

Consultation on the draft RTS under Article 53(10) of Directive (EU) 2024/1640 on pecuniary sanctions, administrative measures and periodic penalty payments

Period of the Consultation: 9 February 2026 - 9 March 2026

List of Respondents

Bundesrechtsanwaltskammer	6
Ordre des Barreaux Francophones et germanophones.....	11
Malta Gaming Authority	14
Economic And Food Safety Authority (ASAE)	19
Conseil supérieur du notariat.....	21
CZECH BAR ASSOCIATION	23
Concord Asset Management AD.....	28
anonymous_1	29
anonymous_2.....	32
ucina.....	35
Kunsill Nutarili ta' Malta.....	38
Ordem dos Notários.....	41
ASSIREVI - Association of the Italian Audit Firms	43
MEXEM LTD	48
ALFI (Association of the Luxembourg Fund Industry).....	50

CFE Tax Advisers Europe.....	54
Permanent European Horological Committee (CPHE).....	57
Financial Analytical Office	61
Royal Dutch Association of Civil-law Notaries (KNB)	63
Chartered Accountants Ireland	65
European Payment Institutions Federation.....	67
EFAMA	69
Notarial Chamber of the Czech Republic (Notarska komora Ceske republiky)	70
Sveriges Advokatsamfund (the Swedish Bar Association)	73
Fédération Bancaire Française	79
CONSIGLIO NAZIONALE FORENSE - COMMISSIONE ANTIRICICLAGGIO	82
Caixa Geral de Depósitos	85
Chamber of Tax Advisers of the Czech Republic	87
Harmonic Fund Service Luxembourg.....	88
Insurance Europe.....	90
Alter Domus	91
Accountancy Europe	93
H2A.....	99
Institute of Financial Services Practitioners.....	102
Austrian Chamber of Civil-Law Notaries (ÖNK).....	104



Consiglio Nazionale dei Dottori Commercialisti e degli Esperti Contabili	107
Ordem dos Advogados	112
Observatoire de la lutte anti blanchiment et contre le financement du terrorisme	114
Fastighetsmäklarförbundet (FMF)	121
Dansk Erhverv.....	126
BOS - The Swedish Trade Association for Online Gambling.....	129
Spelbranschens Riksorganisation	132
Council of Bars and Law Societies of Europe (CCBE)	136
WSBI-ESBG	142
Chamber of Auditors of the Czech Republic	144
Febelfin	146
Confcommercio - Imprese per l'Italia.....	148
Lottomatica Group.....	151
Spillebranchen	157
CINOA.....	159
A.N.T.I.C.O. - Associazione Nazionale Tutela Il Comparto Oro.....	167
NETBET FR.....	170
CONSEIL NATIONAL ORDRE DES EXPERTS - COMPTABLES.....	172
Srf konsulterna AB	177
Binance.....	179

Ordre des Avocats à Luxembourg-OAL.....	183
CINOA- Confédération Internationale des Négociants en Œuvres d'Art.....	188
ECNL	191
Dutch Banking Association	195
Growell Capital Ltd	198
Amicorp Luxembourg S.A.	200
Bitkom e. V.....	202
Danske Gallerier	203
Wirtschaftskammer Österreich	206
SIA E-Laiks	209
The Norwegian Gambling and Foundation Authority (Lotteritilsynet)	211
Wirtschaftsprüferkammer	214
Nasdaq	216
ZAD Allianz Bulgaria Zhivot	219
European Gaming and Betting Association	221
Federal Ministry of Justice.....	226
Consiglio Nazionale del Notariato	229
Fachverband der Immobilien- und Vermögenstreuhänder; Austrian Federal Economic Chamber	234
Betway	237
FINANCE INCORPORATED LIMITED.....	239

National Police Board of Finland / Gambling Administration	241
Italian Banking Association	243
Kennedy Van der Laan	245
WKNÖ - Sparte Information und Consulting	247
anonymous_3	249
anonymous_4	258
anonymous_5	260
Iris Capital management	262
anonymous_6	264
anonymous_7	266
Gunas Grāmatas SIA	268
TMF Luxembourg S.A.,	270
anonymous_8	273

Name of the Organisation	Question	Answer
Bundesrechtsanwaltskammer	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Grds. Einverständnis. Die Entscheidung über die konkrete Höhe einer Sanktion sollte immer im Ermessen der Bußgeldbehörde stehen und stets eine Individualentscheidung im Einzelfall ermöglichen. Soweit Art. 1 lit. c) RTS-E als Indikator für die Schwere des Verstoßes als Verantwortlichkeitskriterium das „Zulassen“ oder „nicht Verhindern“ eines Pflichtverstoßes vorschreibt, wird tatbestandlich eine Verantwortlichkeit für fremdes Handeln vorausgesetzt. Die Verantwortlichkeit für fremdes Handeln sehen wir – auch im Zusammenhang mit der Vorschrift des Art. 15 der Verordnung (EU) 1624/2024 – jedoch als problematisch an. Nach Art. 15 der VO(EU) 1624/2024 unterliegen Rechtsanwälte, die ein Katalogmandat im Rahmen Ihrer Tätigkeit für eine juristische Person bearbeiten, nicht den Pflichten der Verordnung. Art. 53 der GW-RL hingegen verpflichtet die Mitgliedstaaten, sicherzustellen, dass für Verstöße verantwortliche natürliche Personen ebenfalls geahndet werden können. In Deutschland wäre das über das Ordnungswidrigkeitengesetz (§§ 9, 130 OWiG) grundsätzlich möglich. (...) Allerdings erscheint dazu bereits im Geldwäschepaket widersprüchlich, dass einerseits die natürlichen Personen durch die Verordnung explizit ausgenommen wurden, die Richtlinie aber gleichwohl fordert, diese ahnden zu können. Hier gibt es Schwierigkeiten hinsichtlich des Bestimmtheitsgebots, da eine natürliche Person, die für eine Kanzlei tätig ist, nach dem Wortlaut der VO davon ausgehen darf, selbst gerade nicht gegen die Pflichten der Verordnung verstoßen zu können (sondern höchstens gegen interne Anweisungen der Kanzlei). Eine Zurechnung eines Verstoßes, den ein einfacher angestellter Rechtsanwalt aus eigener Nachlässigkeit begeht, wird so nicht möglich. (...) Redundanzen Während Art. 53 Abs. 10 der RL lediglich Indikatoren für die Einstufung des Schweregrads der Verstöße verlangt, listet Art. 1 RTS-E Indikatoren zur Einstufung der Schwere von Verstößen und in Art. 2 Regelungen zur Einstufung des Schweregrads von Verstößen auf. Dies führt zu Redundanzen. So wird die Dauer des Verstoßes nicht nur in Art. 1a) RTS-E genannt, sondern auch als Kriterium in Art. 53 Abs. 6a) der Richtlinie und in Art. 2 Nr. 4 und Nr. 6a RTS-E. Die Wiederholung des Verstoßes wird ebenfalls nicht nur in Art. 1b RTS-E, sondern auch in Art. 53 Abs. 6b) der Richtlinie sowie in Art. 2 Nr. 4 RTS-E genannt. Das Kriterium der „Auswirkungen der Verletzung auf das verpflichtete Unternehmen“ (Art. 1d RTS-E) passt für

Name of the Organisation	Question	Answer
		die Anwaltschaft und den Nichtfinanzsektor regelmäßig nicht und die dort genannten Kriterien sind der Aufsicht in der Regel nicht bekannt. Es erschließt sich auch nicht, inwieweit dies für die zu verhängenden Geldbußen oder zu ergreifenden Maßnahmen relevant sein soll. Die Anzahl der von der Verletzung betroffenen Kunden ist wiederum in der Wiederholung des Verstoßes enthalten. Art. 1g) RTS-E ist aus sich heraus nicht verständlich. Dort wird nicht nur auf Art. 2 Abs. 1 Nr. 3 der VO EU 2024/1624 verwiesen, sondern dieser Artikel verweist seinerseits wiederum auf weitere EU-RL. Inwieweit ein Verstoß Auswirkungen auf die finanzielle Lebensfähigkeit des Verpflichteten haben soll (Art. 1i RTS-E) erschließt sich nicht bzw. ist der Aufsicht regelmäßig nicht bekannt. Um Ermittlungen von Amts wegen mit unverhältnismäßigem Aufwand, der wiederum die Effektivität der Aufsicht beeinträchtigt, zu vermeiden., sollte klargestellt werden, dass die Indikatoren nur berücksichtigt werden, soweit sie der Aufsichtsbehörde bekannt sind. (...) Ein leichter Verstoß könnte bei einzelnen Verstößen vorliegen, die nicht wider besseren Wissens („ohne Vorsatz“) erfolgen etc..(...) Prüfung der Art Die Indikatoren gem. Art. 1 lit. f) und lit. h) RTS-E, (...) sich nicht ohne Weiteres. Verstöße gegen einzelne Präventionspflichten nach der VO(EU) 1624/2024 sind jeweils bußgeldbewehrt sowie fahrlässig, leichtfertig oder vorsätzlich begehrbar. Die Wichtigkeit der einzelnen Pflichten führt zwangsläufig zu unterschiedlich schwerwiegenden Verstößen (z. B. wiegt eine verletzte Meldepflicht u. U. schwerer, als die unterlassene Aufbewahrungspflicht eines einzelnen Dokuments). Im Ergebnis kommt es für die konkrete Sanktionsbemessung immer auch auf die Gesamtbetrachtung des Lebenssachverhalts an. Wiederholte und systematische Verstöße (Art. 1 lit. b) und lit. k) RTS-E) Einstufung und Rechtswirkung des Schweregrads von Verstößen (Art. 2 und 3 RTS-E) Die Indikatoren gem. Art. lit. b) und lit. k) (syst. Natur des Verstoßes) RTS-E erschließen sich nicht ohne Weiteres und bedürfen einer näheren Erläuterung, worin der genaue Unterschied liegt. Sinn und Zweck soll offensichtlich sein, systematische (wiederholte) Verstöße zu erfassen und schwerer zu sanktionieren.

Name of the Organisation	Question	Answer
		Die Einteilung von Pflichtverstößen in verschiedene Schweregrade ist sehr schematisch und könnte nach hiesiger Betrachtung einer gerichtlichen Überprüfung im Einzelfall nicht standhalten (...).
Bundesrechtsanwaltskammer	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Die Kriterien für die Festlegung der Höhe der Geldbuße sind teilweise nicht nachvollziehbar. Es gilt der Grundsatz, dass niemand sich selbst belasten muss und von seinem Aussage- bzw. Auskunftsverweigerungsrecht Gebrauch machen kann. Die fehlende Mitwirkung gegenüber der Aufsichtsbehörde ist zudem ein eigener Ordnungswidrigkeitentatbestand, der bebußt wird. Dies sollte daher nicht als Strafzumessungskriterium dienen. Zur Herabsetzung von Geldbußen sind lediglich zwei Kriterien vorgesehen, wohingegen nach Art. 4 Nr. 2 RTS-E sechs Kriterien für eine Erhöhung der Geldbußen genannt werden. Zu Art. 4 Nr. 3c) RTS-E ist anzumerken, dass der Grad der Verantwortung als solcher kein Faktor für eine Erhöhung der Geldbuße sein kann, sondern nur ein hoher Grad der Verantwortung bzw. ein vorsätzlicher Verstoß. In Art. 4 Nr. 5 und 6 RTS-E sollte klargestellt werden, dass die Finanzkraft juristischer und natürlicher Personen nur dann zu berücksichtigen ist, wenn diese der Aufsichtsbehörde bekannt ist, insoweit je-doch keine Ermittlungspflichten bestehen. Der „Umsatz“ wäre kein geeigneter Indikator für Verpflichtete, die natürliche Personen sind.
Bundesrechtsanwaltskammer	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Grundsätzlich erscheint dies im Sinne des Verhältnismäßigkeitsprinzips und auch nach Art. 53 Abs. 6d der Richtlinie geboten. Gerade bei Gesellschaften bürgerlichen Rechts oder natürlichen Personen ist die Finanzkraft vielfach jedoch nicht bekannt, so dass klargestellt werden sollte, dass diese nur soweit bekannt berücksichtigt werden muss. Es erscheint überdies angemessen, zwischen den Grundbeträgen für Verpflichtete zu unterscheiden, die juristische Personen und natürliche Personen sind. Es scheint jedoch nicht notwendig, zwischen Verpflichteten, die natürliche Personen sind, und Mitgliedern der Geschäftsleitung und anderen natürlichen Personen zu differenzieren. Die Spannen der Grundbeträge für Verstöße durch juristische Personen sollten generell höher sein als bei natürlichen Personen. Eine weitere Unterscheidung zwischen Verpflichteten, abgesehen von der Unterscheidung zwischen natürlichen und juristischen Personen, scheint nicht notwendig zu sein, wenn die wirtschaftliche Leistungsfähigkeit als allgemeine Grundlage verwendet wird. Für natürliche Personen sollte das bereinigte Nettoeinkommen der geeignetste Indikator zu sein.

Name of the Organisation	Question	Answer
		Kriterien zur Erhöhung oder Senkung der Geldbuße teilweise nicht nachvollziehbar (Art. 4 Nr. 3a RTS-E) Bei der Festsetzung der Höhe der Geldbußen sollen die Aufseher weitere Besonderheiten des Einzel-falls berücksichtigen und nach dem ihnen obliegenden Ermessen eine täter- und schuldangemessene Entscheidung im Einzelfall treffen. Dies ist grundsätzlich richtig. Die Kriterien zur Herabsetzung oder Erhöhung von Geldbußen sind jedoch teilweise nicht nachvollziehbar. So ist zum Beispiel nicht verständlich, warum die fehlende Mitwirkung an der Aufklärung des Sachver-halts oder bei fehlender Kooperation des Verantwortlichen gem. Art. 4 Nr. 3 lit.a) RTS-E eine Straf-schärfung erfolgen soll. Dies soll nach dem Inhalt des Entwurfs für das Ausmaß der Zusammenarbeit der verantwortlichen natürlichen oder juristischen Person mit ihrer Aufsicht gelten. Die Aufseher sollen insbesondere berücksichtigen, ob die natürliche oder juristische Person nicht mit dieser zusamme-arbeitet oder dieser Informationen vorenthalten hat, die sie vernünftigerweise hätte erwarten können, oder Maßnahmen ergriffen wurden, um den Verstoß ganz oder teilweise zu verschleiern oder die Auf-sicht in die Irre zu führen. Es gilt der Grundsatz, dass niemand sich selbst belasten muss und von seinem Aussage- bzw. Aus-kunftsverweigerungsrecht Gebrauch machen kann. Die fehlende Mitwirkung gegenüber der Aufsichts-behörde ist zudem ein eigener Ordnungswidrigkeitentatbestand, der bebußt wird. Grundlage für die Bemessung der Geldbuße unklar (Art. 4 Nr. 6 RTS-E) Art. 4 Nr. 6 RTS-E sollte klarstellen, dass die Bemessung der Geldbuße sich bei natürlichen Personen an dem bereinigten Jahresnettoeinkommen des Betroffenen orientiert und dass bei fehlenden Angaben des Betroffenen die Aufseher das Jahreseinkommen anhand von regionalen statistischen Erhebungen für die jeweilige Berufsgruppe schätzen können. In Deutschland besteht keine gesetzliche Verpflich-tung, an eigenen Bußgeldverfahren teilzunehmen. Wenn Informationen nicht freiwillig bereitgestellt werden, können die Aufseher nur auf Basis offizieller statistischer Erhebungen und individueller Um-stände schätzen. Bei dem „Jahreseinkommen“ sollte überdies nur auf die Jahresnettoeinkünfte aus beruflicher Tätigkeit abgestellt werden. Außerberufliche Einkünfte (z. B. aus Kapitalvermögen) sollten außer Betracht bleiben. Die Begriffe des „Umsatzes“ als auch des „Einkommens“ sollten unter einem gemeinsamen Begriff zusammengefasst werden. Es sollte klar sein, welches Krit.für die Bemessung von Geldbußen relevant ist,

Name of the Organisation	Question	Answer
		daher sollte vermieden werden, beide Begriffe synonym zu verwenden. Es sollte zudem klargestellt werden, dass die Finanzkraft juristischer und natürlicher Personen nur dann zu berücksichtigen ist, wenn diese der Aufsichtsbehörde bekannt ist, insoweit jedoch keine Ermittlungs-pflichten bestehen.
Bundesrechtsanwaltskammer	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Die Geldwäscherichtlinie enthält eine Vielzahl an unbestimmten Rechtsbegriffen, die näher definiert werden sollten. Unbestimmte Begrifflichkeiten sollten nicht mit Hilfe von weiteren unbestimmten Rechtsbegriffen erklärt werden. Für weitere Einzelheiten verweisen wir auf die in Ziffer I Nr. 2 dieser Stellungnahme ausgeführten Gründe.
Bundesrechtsanwaltskammer	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Klargestellt werden sollte, dass Zwangsgelder nicht einer Sanktion im Sinne einer „Strafe“, sondern der Durchsetzung von Verwaltungsakten dienen. Diese Differenzierung ist wichtig, da den Behörden verschiedene Maßnahmen mit unterschiedlicher Zweckrichtung zur Verfügung stehen. So ist ein Zwangs-geld nach hiesigem Verständnis nicht als eine Maßnahme im Sinne einer Sanktion zu verstehen. Diese strikte Trennung wird teilweise – vermutlich auch aufgrund von sprachlichen Hürden und gegebenenfalls Übersetzungsschwierigkeiten – nicht hinreichend deutlich. Anhörungsfrist zu lang (Art. 7 Nr. 2 RTS-E) Die in Art. 7 Nr. 2 RTS-E vorgesehene Anhörungsfrist von vier Wochen erscheint zu lang. In der Praxis der Aufseher wird in der Regel von einer Anhörungsfrist von ca. zwei Wochen Gebrauch gemacht. Eine gesetzlich bestimmte, längere Frist kann das Verfahren, das ohnehin schon lange dauert, unnötig (künstlich) in die Länge ziehen.

Name of the Organisation	Question	Answer
		Gründe für die Nichtbefolgung der geltenden Verwaltungsmaßnahme häufig nicht bekannt (Art. 8 Nr. 1 RTS-E) Die unter Art. 8 Nr. 3b) RTS-E als Kriterium genannten „Gründe für die Nichtbefolgung der geltenden Verwaltungsmaßnahme“ werden vielfach nicht bekannt sein. Außerdem handelt es sich insoweit um ein Kriterium des Verschuldens, die Verhängung von Zwangsgeldern ist jedoch gerade verschuldens-unabhängig. Und selbst wenn beispielsweise bekannt ist, dass dem Betroffenen die Befolgung der Verwaltungsmaßnahme schwerfällt und deshalb nicht erfolgt, bleibt unklar, ob dies – unter dem Gesichtspunkt des geringeren Verschuldens – für ein niedriges oder – unter dem Gesichtspunkt des erforderlichen hohen Drucks zur Erreichung einer Befolgung der Verwaltungsmaßnahme – für ein hohes Zwangsgeld sprechen soll. Verjährungsfrist zu lang (Art. 10 Nr. 1 RTS-E) Eine Verjährungsfrist von fünf Jahren für verhängte Zwangsgelder, wie in Art. 10 Nr. 1 RTS-E vorgesehen, ist ebenfalls zu lang. Nach der Praxis des deutschen Verwaltungsrechts sind drei Jahre üblich und ausreichend.
Ordre des Barreaux Francophones et germanophones	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Les critères énoncés ne correspondent pas toujours à la réalité des cabinets d’avocat.es. Il faut avant tout rappeler les caractéristiques de cette profession : - Les avocat.es ne sont assujettis que partiellement. Le champ d’application de l’assujettissement pose encore actuellement, à cause de cet assujettissement partiel, des questions d’interprétation ; - Iels doivent respecter leur secret professionnel, lequel est protégé pénalement. Leur supervision ne doit pas mener à ce qu’iels doivent divulguer des informations protégées par ce secret, qui est un droit fondamental pour leurs client.es et un élément essentiel de l’Etat de droit ; - Le droit à un procès équitable impose que les avocat.es soient indépendant.es, ce qui a pour corollaire qu’ils ne doivent subir aucune pression, notamment étatique. C’est la raison pour laquelle iels sont, en Belgique, soumis à un système d’autorégulation et à leur déontologie professionnelle. - Iels sont soumis à leur déontologie. Il est important que les sanctions imposées aux avocat.es par leur autorité de contrôle, en Belgique les bâtonnier.ères, fassent l’objet d’une appréciation individuelle des faits et de toutes les circonstances de l’infraction commise. Si une uniformisation pourrait être souhaitable, nuance et souplesse doivent toutefois rester permises. Imposer une sanction de doit jamais être une décision automatique. Les critères relatifs à l’impact de l’infraction sont particulièrement peu pertinents pour la profession. Un cabinet d’avocat.es ne fait que rarement partie d’un groupe. L’impact d’une infraction devrait plutôt se

Name of the Organisation	Question	Answer
		mesurer en fonction, notamment, du type de dossier concerné et, le cas échéant, du montant de l'opération envisagée. Le critère du nombre de client.es concernés est particulièrement inadapté dès lors que l'assujettissement de l'avocat.e à la législation préventive est lié au type de dossier et non pas à la qualité du client. Quant à la manière dont l'infraction a affecté l'efficacité des systèmes, contrôles et procédures AML/CTF, ce critère est adéquat pour de grandes entreprises, mais pas pour les PME que sont les cabinets d'avocat.es qui appliquent les mesures AML/CTF sans disposer des moyens techniques permettant une automatisation. Quant au critère (c), le « comportement », il nous semble que, dès lors que ce critère ne peut s'évaluer qu'après la commission de l'infraction, il ne peut en aucun cas aider à déterminer la gravité de celle-ci. Ce critère ne devrait trouver sa place que dans l'évaluation de la hauteur de la sanction.
Ordre des Barreaux Francophones et germanophones	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	L'hypothèse d'une infraction due à une erreur d'appréciation n'est pas envisagée. Or, comme dit plus haut, le champ d'application de la loi aux avocat.es est, encore aujourd'hui, sujet à discussion, de même que l'exception à l'obligation de procéder à une déclaration de soupçons. Par ailleurs, les cabinets peuvent prendre plusieurs formes allant de la simple association de frais à l'intégration totale. Le niveau d'intégration pourrait être un critère utile à mentionner au paragraphe 4. De manière générale, seul.es les avocat.es ayant participé effectivement et activement à l'infraction doivent pouvoir être sanctionné.es. Le statut de l'avocat.e concerné.e doit également être un critère : les avocat.es stagiaires auront moins la possibilité de contredire leur maître de stage.
Ordre des Barreaux Francophones et germanophones	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article	Nous sommes opposé.es à l'utilisation du chiffre d'affaires comme critère d'appréciation l'assise financière de l'avocat.e impliqué.e, et par conséquent comme critère de détermination du niveau de la sanction pécuniaire. Nous estimons que le revenu/bénéfice serait un critère plus approprié et, surtout, plus équitable pour les avocat.es en général : selon le domaine d'activité, la région, la structure du cabinet (si les coûts sont partagés ou non avec d'autres avocat.es), etc., certain.es avocat.es peuvent avoir des coûts beaucoup plus élevés que d'autres, et une sanction financière du même niveau pourrait donc avoir un impact très différent. Ce critère

Name of the Organisation	Question	Answer
	4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	permet donc une individualisation de la sanction financière. Il devrait bien sûr être défini et pourrait être déterminé par l'autorité de contrôle en se référant à la comptabilité de l'avocat.e (ou, à défaut, aux informations fiscales – déclaration de TVA, déclaration d'impôt sur le revenu, etc.).
Ordre des Barreaux Francophones et germanophones	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Les critères déjà utilisé pour déterminer la catégorie de sanctions ne devraient pas être utilisés une seconde fois pour décider de la mesure à appliquer. Cela complique inutilement l'analyse par l'autorité de contrôle.
Ordre des Barreaux Francophones et germanophones	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you	Les autorités de contrôle des avocat.es ont déjà leurs procédures propres et garantissent déjà le respect des droits de la défense. Par ailleurs, les astreintes n'ont pas vraiment d'utilité dans l'arsenal des sanctions pouvant être imposées pour le secteur des avocat.es. A titre subsidiaire, les droits de la défense (parmi lesquels le droit à être entendu.e) ne sont pas propres aux astreintes. Leur respect pourrait être exigé pour les autres sanctions. Par ailleurs, dans l'arsenal des dispositions applicables, il serait souhaitable de permettes aux autorités de contrôle (bâtonnier.ères) de prononcer une sanction avec sursis ou suspension du prononcé de celle-ci en cas de non-manquement ultérieur de l'avocat.e dans le délai fixé par la décision.

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	
Malta Gaming Authority	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	In general, the respondent is in support of initiatives aimed at enhancing supervisory harmonisation in terms of AML and acknowledges that several of the indicators listed in Article 1 of the RTS may be applied to the gaming sector. Nevertheless, the respondent has identified a number of criteria which, due to the specificities of the gaming ecosystem and its non harmonised regulatory framework, raise issues in their practical application. a) Article 1(b) and Article 1(d)(iii) The indicator concerning the repetition of a breach (Art. 1(b)) must be considered in light of the operational characteristics of gaming operators, who generally operate high-volume business models. Within such models, certain types of repeated breaches may structurally arise more frequently than in other sectors, thereby increasing the likelihood that operators meet this indicator even where the underlying risk may be limited. Additionally, the distinction between “repetition of the breach” (Art. 1(b)) and the “systematic nature of the breach” (Art. 1(k)) is currently unclear and appears to overlap. The respondent recommends that the RTS introduce definitions to delineate the two concepts. By way of example, repetition could be understood as the recurrence of an identical breach following the expiry of remediation deadlines or escalation to management, whereas systematic could refer to failures stemming from control design, governance, or process deficiencies affecting multiple operational areas. The indicator relating to the approximate number of affected customers (Art. 1(d)(iii)) is similarly problematic for retail and online gaming operators. Identifying the precise number of individuals affected may be operationally complex. Customer-count-based indicators would therefore benefit from risk-weighting mechanisms that reflect exposure and materiality, rather than absolute customer volumes. b) Article 1(c) The respondent acknowledges the intent behind introducing this criterion, however, its application within the gambling sector presents practical challenges. Due to the fact that the gaming ecosystem is not harmonised across the Union, Member States operate under differing gaming regulatory models, licensing systems, and supervisory expectations. Against this backdrop, an indicator premised on assessing “the conduct of the natural or legal person that committed the breach” risks producing inconsistent gravity assessments across jurisdictions. Depending on

Name of the Organisation	Question	Answer
		the Member State in which an operator is licensed, conduct that is routine, permissible, or regulated differently may attract distinct supervisory interpretations, resulting in uneven classification outcomes for the same behaviour. Furthermore, the concept of “conduct” under Article 1(c) remains insufficiently defined for non financial sectors, where the nature, scale, and operational design of activities differ significantly from those of financial institutions for which many of these indicators were originally developed. Without additional guidance clarifying whether the assessment should reference Member State level impacts, Union level impacts, or both, and how such conduct should be evaluated within the context of structurally diverse gambling frameworks, competent authorities may reach fragmented and potentially disproportionate conclusions. For these reasons, the respondent recommends that Article 1(c) be refined or supplemented with sector specific interpretative guidance, ensuring that assessments of conduct are applied in a proportionate, consistent, and context appropriate manner across all non harmonised sectors, including gaming.
Malta Gaming Authority	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The respondent is broadly aligned with the Article 4, however, certain elements of the proposed framework raise concerns when applied to gambling operators whose operational and financial profiles differ significantly from those of regulated financial institutions. The respondent outlines below the main areas where clarification or recalibration is required to ensure proportionality and coherent supervisory outcomes: (a) Article 4(3)(f) Firstly, the reference to “previous breaches” should be explicitly limited to AML/CFT related breaches. In a non harmonised sector like gambling, operators face a wide range of regulatory requirements unrelated to AML/CFT, which differ drastically between across the Union. Considering such non AML issues when setting pecuniary sanctions would risk disproportionate and uneven outcomes. For legal certainty and proportionality, the RTS should state clearly that only AML/CFT breaches are taken into account under Article 4(3)(f). Additionally, the criterion relating to an entity’s past compliance history requires further clarity. As drafted, it remains unclear whether competent authorities should only consider sanctions and supervisory interventions issued by national authorities, or whether they are also expected to rely on information originating from other EU Member States or third-country jurisdictions Without clearer boundaries, there is a tangible risk that entities active in multiple jurisdictions may be assessed against information that is either incomplete, inconsistent, or collected under supervisory frameworks with differing thresholds and evidentiary requirements. It is also unclear how supervisors will

Name of the Organisation	Question	Answer
		verify the completeness of such information or ensure mutual recognition of sanctions imposed outside their own jurisdiction. For global or multi-licensed groups, the RTS should specify how the relevant perimeter of the group is defined, what information may be relied upon, and how proportionality will be safeguarded where the gravity of a historical breach may differ materially depending on jurisdictional context. Establishing a harmonised approach is crucial to avoid double-counting, inconsistent reliance on foreign enforcement records, and disproportionate sanction escalation. (b) Article 4(5) The draft RTS requires supervisors to assess a legal person's financial strength and lists total annual turnover as one of the indicators to be used. For gambling operators, however, turnover is not a meaningful measure of financial capacity. In this sector, turnover reflects the total amount staked by players. Most of this is subsequently paid back to customers as winnings and never becomes the operator's revenue. Certain verticals, such as sports betting for instance, generate enormous turnover but very small margins. It does not represent available capital, liquidity, or economic resilience. As a result, a gambling operator's turnover can appear multiple times larger than its gross gaming revenue (GGR), which is the only metric that tracks the operator's actual economic position. Using turnover to judge financial strength creates a misleading and distorted picture that is likely to lead to disproportionate sanctions far exceeding the operator's real financial capability. Such an approach would undermine proportionality and create an uneven playing field compared to other non financial sectors whose turnover reflects income rather than player stakes. To avoid disproportionate sanction outcomes, the respondent recommends that supervisors be instructed to use sector specific indicators, such as GGR, or any financial metric that reflects the operator's true economic capacity. If turnover is to remain within the RTS, the text should at minimum clarify how this concept should be interpreted in sectors where turnover does not correspond to revenue. Clear guidance is essential to prevent inconsistent interpretations between Member States and to ensure that the sanctioning framework operates fairly across different business models.
Malta Gaming Authority	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held	The respondent agrees in principle that the financial strength of legal and natural persons may be a relevant consideration when determining the level of pecuniary sanctions, including for entities operating outside the financial sector. Nevertheless, the application of Articles 4(5) and 4(6) to the gaming sector raises several practical concerns that warrant further clarification to ensure the consistent and proportionate implementation of the RTS. As noted in response to Question 2, the use of total annual turnover as an indicator of financial strength is

Name of the Organisation	Question	Answer
	responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	particularly problematic in the gambling context. Turnover in this sector reflects the full volume of wagers placed by customers rather than revenue, profit, or capital available to absorb sanctions. It is therefore an artificial and inflated measure that does not correspond to the operator's actual economic capacity. Applying sanctions on the basis of a metric that does not represent financial strength risks producing outcomes that are disproportionate and misaligned with the economic reality of gambling operators. Additional uncertainty arises under Article 4(6), which requires supervisors to consider "all the information made available," including other income where relevant. The provision does not define the boundaries of this obligation, nor does it identify which types of information supervisors should rely on, how they should assess relevance, or whether information sourced from other jurisdictions is expected to form part of the assessment. In the absence of common EU level rules governing gambling supervision, checks conducted at licensing stage and ongoing requirements applied to gambling operators vary significantly between Member States. This variability means that the information available to supervisors may differ substantially depending on the jurisdiction in which the operator is licensed. Consequently, comparable operators may be assessed on the basis of entirely different evidentiary records, which undermines consistency in sanctioning practices and creates a risk of unequal treatment. Given these divergences, further clarification is needed on the specific types of financial information that supervisors are expected to take into account when assessing financial strength in non financial sectors. Clear guidance is also required to determine how relevance should be assessed in industries, such as gaming, where standard financial indicators do not accurately reflect liquidity or resilience. Moreover, it should be clarified whether financial information originating from other Member States or third countries must be considered, and if so, how supervisory authorities are expected to verify the accuracy and comparability of such information. In the respondent's view, greater clarity in the interpretation of Articles 4(5) and 4(6) is necessary to ensure that pecuniary sanctions imposed on gambling operators are proportionate, based on reliable and comparable information, and consistent across the Union.
Malta Gaming Authority	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector	The respondent broadly supports the criteria set out in Article 5, however, two areas require further clarification to ensure that administrative measures are applied consistently and proportionately in the gaming sector. The draft criterion requiring supervisors to consider "the extent to which a measure could have a negative impact on customers or stakeholders" is too vague in its current form. In a player facing sector such as

Name of the Organisation	Question	Answer
	supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	gambling, supervisory measures can have immediate and significant effects on players, employees, commercial partners and service providers. Without clearer parameters on what constitutes a relevant impact, how materiality should be assessed and which stakeholders fall within scope, supervisors across Member States may reach inconsistent conclusions. More precise guidance would help ensure that stakeholder impacts are properly evaluated without diluting the intended AML/CFT objectives behind the measure. A second point relates to the interaction between AML supervision and sectoral regulation. In several Member States, including Malta, responsibility for AML supervision and licensing rests with different authorities. In such frameworks, AML related supervisory measures may, by their nature, have implications for an operator's licensing status or ability to participate in the market, particularly where material AML/CFT concerns are identified. This interaction highlights the relevance of appropriate coordination between AML supervisors and gambling regulators in circumstances where measures may have broader regulatory effects, in order to ensure coherence across supervisory actions and clarity for operators. Such coordination supports a consistent focus on substantive AML/CFT control deficiencies and material ML/TF risk exposure, within the respective mandates of the competent authorities. Consequently, it is important that the RTS emphasise the need for coordination between AML supervisors and gambling regulators before imposing measures that could materially affect an operator's ability to operate. This would help ensure that administrative measures remain targeted at genuine AML/CFT control failings or substantive ML/TF risk exposure, rather than being influenced by operational size or business model. Given the diversity of supervisory arrangements across the EU and the absence of harmonisation in the gambling sector, such clarification is necessary to achieve coherent and proportionate outcomes. With clearer criteria on stakeholder impact and structured coordination between relevant authorities, Article 5 can operate effectively in a non financial, high volume environment such as gaming.
Malta Gaming Authority	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft	The respondent considers periodic penalty payments to be a generally appropriate enforcement mechanism for the non financial sector, including gaming, particularly where they serve to compel compliance with supervisory measures. However, the methodology set out in Section 3 of the RTS requires further refinement to ensure it is workable and proportionate in practice. The principal concern relates to Article 7(2) and its reference to a four week deadline for written submissions. For large groups or entities operating within complex governance frameworks, a strict four week period is simply not realistic. Preparing a complete, accurate response often requires coordination across multiple

Name of the Organisation	Question	Answer
	RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	jurisdictions, retrieving older records, obtaining group level approval, or gathering evidence from external or third party systems. A fixed four week deadline risks penalising operators not for non compliance, but for the operational complexity inherent in larger, cross border structures. In practice, extensions are frequently necessary to allow entities to substantiate their representations. Additionally, as already outlined in our response to the previous question posed, in order to avoid conflicting or duplicative actions, it is important that the RTS emphasise the need for coordination between AML supervisors and gambling regulators before imposing measures such as periodic penalty payments that could materially affect an operator's ability to operate.
Economic And Food Safety Authority (ASAE)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Considering that some of the economic activities in the non-financial sector present a significant risk of being used for money laundering purposes, we have no objection to the adoption, for that sector, of the same indicators used in the financial sector to classify the severity of offences.
Economic And Food Safety Authority (ASAE)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial	As regards the setting of penalties, ASAE, as the supervisory authority for the non-financial sector, has no objections, especially since many of the criteria set out here are already enshrined in the regime applicable to other administrative offences. This is the case, in particular, with regard to the seriousness of the offence, the guilt of the perpetrator, the economic situation of the offender, the economic benefit obtained from the unlawful act, the falsification, concealment or dissimulation of information likely to hinder the discovery of the truth, recidivism and the duration of the offence, as criteria for aggravating the penalty. Similarly, factors such as the existence of circumstances prior to or after the administrative offence that diminish the unlawfulness of the act or the guilt of the perpetrator, as well as compensation for the damage caused, are also taken into account.

Name of the Organisation	Question	Answer
	sector? If you do not agree, please explain your reasoning.	
Economic And Food Safety Authority (ASAE)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	With regard to financial solidity, it should be noted that, in Portugal, as mentioned above, the economic situation of the defendant is one of the relevant criteria for determining the penalty, both in criminal law and in the field of administrative offences. This criterion is intended to ensure that the penalty imposed is proportionate and effective, avoiding it being excessively burdensome for some or merely symbolic for others. When assessing financial solidity or economic situation, the administrative authority takes into account, on the basis of accounting and financial data, factors such as income earned, assets held and regular expenses incurred by the offender.
Economic And Food Safety Authority (ASAE)	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	With regard to administrative measures relating to the withdrawal or suspension of authorisations or licences to carry out the activity, ASAE considers that these should only be applied when the infringements have been committed in the course of or because of the activity to which such authorisations or licences relate. With regard to the restriction or limitation of the exercise of an activity, or the prohibition of the exercise of a profession, we consider that, given their particular seriousness and in accordance with the principle of proportionality, such measures should be reserved for situations where the infringement has been committed with serious abuse of functions or with a manifest and serious breach of the duties inherent in the functions exercised.

Name of the Organisation	Question	Answer
Economic And Food Safety Authority (ASAE)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Compulsory financial penalties also exist in the Portuguese legal system and are applied either by the courts or by administrative authorities for non-compliance with an obligation, serving as a pressure mechanism to ensure that the decision is complied with. already being used by financial sector authorities such as the Bank of Portugal, the Securities Market Commission and the Competition Authority, so we have no objection to their application to the non-financial sector. However, we consider that the amounts imposed by Article 57(3) of the Directive are high '...the amount of the periodic penalty payment shall not exceed 3% of its average daily turnover in the preceding business year or, in the case of natural persons, that amount shall not exceed 2% of the average daily income in the preceding calendar year'.
Conseil supérieur du notariat	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	A l'exception de l'astreinte périodique, qui sauf erreur, n'existe pas en France dans le Code monétaire et financier, le processus encadrant l'évaluation du niveau de gravité d'un manquement, sa cotation, la détermination du niveau des sanctions pécuniaires et des mesures administratives paraît transposable au notariat français. Mais pour atteindre les objectifs du prononcé de sanctions « proportionnées, efficaces et dissuasives » le superviseur doit pouvoir disposer d'une nécessaire appréciation des manquements qui peuvent être commis dans le cadre des activités notariales, de la taille des entités assujetties etc. Du fait de l'hétérogénéité des secteurs assujettis, la connaissance pratique des activités du secteur est essentielle pour pouvoir prononcer de manière effectivement dissuasive et proportionnée ces sanctions en lien avec les autres mécanismes répressifs éventuellement en place en droit sectoriel (ex : répression disciplinaire des manquements à la déontologie notariale réorganisée en France entre 2022 et 2024).
Conseil supérieur du notariat	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions	Les critères des RTS semblent être déjà conformes à la réglementation française avec la prise en compte pour déterminer le montant et le type de la sanction infligée de la gravité et de la durée des manquements, du degré de responsabilité de l'auteur des manquements, de sa situation financière, de l'importance des gains qu'il a obtenus ou des pertes qu'il a évitées, de son degré de coopération lors du contrôle et de la procédure ainsi que des manquements qu'il a précédemment commis et s'ils peuvent être déterminés, des préjudices subis par des tiers du fait des manquements. Le Conseil supérieur du notariat n'a pas d'objection sur ces critères.

Name of the Organisation	Question	Answer
	set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Deux points paraissent plus novateurs (et difficiles à appréhender) : 1° le process des astreintes qui dans les RTS sembleraient, sauf erreur d'analyse, être dissociées d'une injonction ; et 2° l'astreinte périodique qui semble une nouvelle option et qui dépendra à priori des droits nationaux.
Conseil supérieur du notariat	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	L'appréciation des capacités financières paraît absolument pertinente pour éviter que le montant d'une sanction n'ait pour conséquence de mettre en péril la pérennité de l'entité assujettie. Les sanctions pécuniaires pour les personnes physiques qui ne sont pas elles-mêmes des entités obligées devraient tenir compte du lien de subordination qu'elles ont avec celles-ci, de leur positionnement et de leur rôle effectif dans la commission de l'infraction. Il paraît difficilement conciliable avec l'état actuel du droit positif et de la jurisprudence française qu'un collaborateur d'un notaire, y compris un notaire salarié (sauf poursuites pénales et s'il y a commission personnelle et intentionnelle d'infractions relevant du droit pénal) puisse être condamné à des sanctions pécuniaires pour des faits commis dans le cadre de ses fonctions du fait de son lien de subordination.
Conseil supérieur du notariat	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If	Le Code monétaire et financier prévoit dans l'arsenal des sanctions pouvant être prononcées pour manquement aux obligations de lutte contre le blanchiment des capitaux et le financement du terrorisme y compris aux dispositions européennes directement applicables en matière de LCB-FT, ainsi qu'à celles des règlements européens portant mesures restrictives, une interdiction temporaire d'exercice de responsabilités dirigeantes. Il s'agit là d'une sanction déjà très lourde. L'application d'une mesure administrative de changement de structure de gouvernance telle qu'envisagée dans les RTS reviendrait à la destitution pour un notaire alors qu'il s'agit d'un officier public et ministériel, nommé par arrêté du Garde des Sceaux, Ministre de la Justice.

Name of the Organisation	Question	Answer
	you do not agree, please explain your reasoning.	
Conseil supérieur du notariat	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Le notariat français comprend la philosophie du système proposé. Toutefois, il estime que la méthodologie complexe et la condition du cumul de tous les facteurs, particulièrement celui portant sur « (c) les pertes subies par des tiers causées par le non-respect de la mesure administrative applicable, à condition qu'elles aient été déterminées lors de l'imposition de la mesure administrative applicable », rendent complexes ces RTS pour le secteur non financier. Comment pourrait-il apprécier ne serait-ce que ce seul élément ? Il est conseillé de conserver une méthode simple et opérante pour ne pas démultiplier les risques d'annulation contentieuse.
CZECH BAR ASSOCIATION	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	In regards to the first question, the Czech Bar Association ("CBA") does not consider that the proposed system for classifying the gravity of breaches is appropriate for the legal profession. Article 53(10) AMLD6 empowers AMLA to develop indicators that assist national supervisors in assessing the seriousness of breaches. However, the Draft RTS appear to go beyond that mandate by establishing a structured classification of breaches into predefined categories. Such an approach risks transforming indicative criteria into a framework that effectively predetermines sanctioning outcomes. In the CBA's view, this moves beyond the role of technical standards envisaged in Article 53(10) AMLD6 and may unduly constrain the discretion of national authorities responsible for enforcement. The CBA also shares the concern expressed by the CCBE that the proposed approach risks limiting the possibility for competent authorities to apply supervisory judgement when assessing the gravity of a breach. In the legal profession, enforcement decisions require a contextual assessment that takes into account professional duties, ethical obligations and the interaction between AML obligations and legal professional privilege or professional secrecy.

Name of the Organisation	Question	Answer
		In practice, AML-related compliance issues in the legal sector often arise in situations where lawyers must reconcile AML obligations with statutory confidentiality duties owed to clients. Questions may arise as to whether a particular activity falls within the limited scope of AML-regulated services applicable to lawyers, whether certain information may be disclosed, or how confidentiality obligations interact with reporting duties. In such circumstances, difficulties may stem from the interpretation of overlapping legal obligations rather than from intentional non-compliance. A rigid classification of breaches therefore risks producing disproportionate results and could undermine the principle that sanctions should be based on a full assessment of the factual and legal circumstances of each case. Moreover, enforcement in the Czech system operates through a differentiated institutional framework. The CBA supervises compliance with professional obligations and with duties arising from the AML Act within the legal profession. Where professional misconduct occurs, disciplinary proceedings may be initiated before the disciplinary bodies of the Bar. At the same time, the Financial Analytical Office (the Czech FIU) has the power under the AML Act to impose administrative sanctions for breaches, and such decisions may be challenged before the courts. In addition, lawyer knowingly involved in ML risks criminal liability. This multi-layered enforcement architecture demonstrates that AML compliance in the legal profession is assessed through several complementary mechanisms — professional supervision, disciplinary responsibility, administrative enforcement and judicial oversight. In such a system, the gravity of a breach must be evaluated on a case-by-case basis, taking into account the specific factual circumstances, the nature of the activity concerned and the interaction between AML obligations and professional duties. A rigid categorisation of breaches at EU technical-standard level could interfere with the flexibility and with the ability of national authorities, professional disciplinary bodies and courts to apply proportionality and supervisory judgement when determining the seriousness of a breach.
CZECH BAR ASSOCIATION	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting	The CBA considers that some criteria may be relevant in principle but require substantial clarification and adjustment for the legal profession. First, the list of mitigating circumstances should explicitly include situations where a breach stems from reasonable interpretative error in a complex regulatory environment. This is especially important for lawyers,

Name of the Organisation	Question	Answer
	up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	because the AML framework applies only to certain activities and must be reconciled with professional secrecy and the protected sphere of legal advice and representation. Good-faith difficulties in drawing those lines should not be treated in the same way as straightforward non-compliance. Second, the RTS should attach clearer weight to remedial action. The CCBE rightly points out that substantial investments in compliance, corrective organisational changes, and effective remediation should reduce sanction levels. That is particularly important for small and medium-sized law firms and sole practitioners, which form a significant part of the profession and may need to adapt their internal systems in a proportionate way. Third, the criterion of cooperation must be carefully framed for the legal profession. Professional secrecy is not an incidental concern but a statutory duty, and AML law itself channels suspicious transaction reporting and certain information flows through the Bar. A lawyer's inability to disclose protected information outside the statutory framework must not be treated as a lack of cooperation or as an aggravating factor. Fourth, sanctions on natural persons who are not themselves obliged entities should be limited to situations where their own conduct directly contributed to the breach. For the legal profession, individual attribution matters greatly; sanctions should not be inferred automatically from seniority, title or organisational position alone. Finally, and importantly, sanction calibration should reflect actual AML-regulated exposure. In the Czech Republic, lawyers become obliged entities only when carrying out the defined activities listed in the AML Act. It would therefore be inappropriate to calibrate sanctions by reference to the overall turnover of the law firm, the full range of its legal services, or the general earning capacity of the lawyer. Metrics of that kind would fail to isolate the AML-regulated activity and would risk producing distorted and disproportionate outcomes.
CZECH BAR ASSOCIATION	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural	The CBA has serious reservations regarding the proposed approach. The CCBE correctly notes that, in the legal sector, the relevance of firm-wide or group-wide financial metrics is questionable. This is also true in the Czech context. Lawyers may practise individually, in associations, or within broader professional structures, while their personal financial position and their share in the firm's

Name of the Organisation	Question	Answer
	person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	revenues may differ significantly from the overall economic size of the wider structure. Using aggregated turnover or group revenue as a benchmark may therefore lead to outcomes unrelated to the actual financial capacity of the person concerned. And once again, only certain categories of legal work fall within AML regulation. Overall revenue from legal services is therefore not a reliable proxy for the scale or seriousness of the AML-regulated breach. A law firm may have substantial revenues from litigation, defence work, advisory services or other legal services that fall outside the AML-regulated sphere. Basing sanctions on total turnover would therefore risk overstating the proper sanctioning benchmark. Similarly, annual income received from an obliged entity or group is not necessarily a sound measure for natural persons in the legal profession. The relevant methodology should instead focus on actual financial capacity and on the AML-regulated context of the breach, so as to preserve proportionality.
CZECH BAR ASSOCIATION	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	The CBA does not consider the proposed approach appropriate without significant modification. As the CCBE rightly observes, administrative measures in the legal profession may be as severe as, or even more severe than, pecuniary sanctions. Restrictions on business activity, governance-related measures, or corrective orders backed by coercive mechanisms may have very serious operational, reputational and financial effects, particularly for sole practitioners, boutique firms and other smaller practices. The Bar's Control Council officially supervises compliance with AML legislation by lawyers, and the Bar's disciplinary structures can respond to misconduct affecting professional duties. Published disciplinary practice also shows that AML-related failings can already be addressed through disciplinary sanctions under the professional regime. The existence of that professional enforcement layer means that Draft RTS should not assume a single administrative toolkit borrowed from the financial sector. Moreover, Czech law expressly protects the confidential core of legal advice, defence and judicial representation from the ordinary application of certain AML duties and direct information powers. In that context, intrusive governance or business-restriction measures triggered by an alleged "lack of cooperation" would be particularly problematic where the lawyer is in fact observing statutory professional secrecy. The

Name of the Organisation	Question	Answer
		criteria should therefore make clear that lawful respect for confidentiality cannot be treated as aggravating non-cooperation. The CBA therefore considers that administrative measures, if retained for the legal sector, should remain fully subject to individualised assessment, supervisory judgement, and national constitutional and professional safeguards.
CZECH BAR ASSOCIATION	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The CBA does not consider Article 53(10) AMLD6 to provide a sufficient legal basis for harmonising procedural aspects of enforcement, including periodic penalty payments. This is again consistent with the CCBE response. Article 53(10) authorises AMLA to develop indicators and criteria, not to regulate national procedural architectures of sanctioning. The proposed provisions on periodic penalty payments appear to move into procedural design rather than technical guidance. If periodic penalty payments are nevertheless retained, the RTS should at the very least refer to the full body of defence rights and due-process guarantees available under national and EU law, rather than only to the right to be heard. Final remarks The Czech Bar Association welcomes the opportunity to respond to the AMLA consultation and supports the objectives of the European Union's AML framework. At the same time, the CBA shares a number of concerns raised by the Council of Bars and Law Societies of Europe (CCBE) in its response to this consultation. In particular, the CBA agrees that the Draft RTS appear to have been developed primarily with the financial sector in mind and that certain provisions do not sufficiently reflect the organisational structure, professional obligations and regulatory framework applicable to lawyers. The CBA also agrees with the CCBE that several provisions of the Draft RTS appear more prescriptive than Article 53(10) AMLD6 allows and risk going beyond the mandate conferred on AMLA. Lawyers are AML-obliged entities only when they carry out specifically defined activities, not in respect of legal

Name of the Organisation	Question	Answer
		services as a whole. Moreover, Czech law contains express sector-specific safeguards for lawyers. In relation to information obtained from or about a client during legal advice, defence in criminal proceedings, representation before courts, or legal advice connected with such proceedings, certain AML obligations and certain powers of the FIU do not apply. Suspicious transaction reports by lawyers are submitted to the CBA, which reviews them and forwards compliant reports to the FIU without undue delay. Likewise, where the FIU seeks information from a lawyer in the relevant AML context, it does so through the Bar. The CBA is also not merely an intermediary in reporting. According to its official institutional description, the Control Council of the CBA supervises compliance with the Advocacy Act, special legislation including the AML Act, and the Bar's professional rules, and it performs the tasks assigned to the Bar by the AML Act. This framework reflects the constitutional role of lawyers, the central importance of professional secrecy, the limited and activity-based scope of AML obligations in the legal profession, and the fact that the Czech system combines AML supervision, professional discipline, administrative enforcement and, where appropriate, criminal liability. Those structural features should be fully reflected in any RTS intended to apply to the legal profession.
Concord Asset Management AD	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	

Name of the Organisation	Question	Answer
Concord Asset Management AD	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
anonymous_1	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The proposed indicators in Article 1 provide a useful and structured framework to support the uniform classification of the gravity of breaches across sectors in all EU member states, including the non-financial sector. Indicators relating to the impact, duration, intentionality, recurrence and systemic nature of breaches are relevant for assessing AML/CFT deficiencies in both the financial and non-financial sector. However, additional clarification is necessary to ensure proportional and context-sensitive application to different sectors of DNFBPs. An approach of one size fits all will not work as it will create unnecessary and disproportionate burden on the non-financial sector, especially on professionals who practice their profession as sole practitioners or in small firms (such as notaries) with the consequence of hindering, instead of maximising, efficiency. It would be both unjust and ineffective to apply exactly the same weights and measures to the financial and non-financial sector, in particular to obliged entities within the non-financial sector who operate on their own (sole-practitioners, such as notaries), in small firms and with limited resources (both human and technological). This does not mean that such obliged entities should not adhere to the AML/FT obligations imposed upon them by law. However, one should take into account for example, that classifying an isolated deficiency as a serious breach may not mean much to a financial institution (the impact may be significant but not detrimental), while it will be totally detrimental to a sole practitioner. One should also take into account, that in the non-financial sector, there are sectors (such as the notarial

Name of the Organisation	Question	Answer
		sector), in which professional engagements consist mostly (or always) in occasional transactions. Indicators referring to “systemic failure” or “significant impact” may require sector-specific interpretation and the indicator concerning management involvement should be clarified for sole practitioner settings and small firms. Therefore, the issuance of further guidance and practical examples for DNFBP is essential to avoid for instance, over-classification of isolated deficiencies as serious or systemic breaches.
anonymous_1	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The criteria set out in Article 4 — including gravity and duration of the breach, degree of responsibility, benefit derived, cooperation with authorities and previous breaches — are generally relevant and appropriate also for the non-financial sector. Nonetheless, their application should take into account sector-specific characteristics for the following reasons: • In many cases, in the case of DNFBPs, professional income differs greatly from financial institutions. Consideration must always be given to the tens of thousands of professionals (such as notaries) who, in being allocated penalties, of whatever nature, cannot be compared and treated in the same manner as financial institutions; • More importantly, for those obliged entities, such as notaries, who solely or mostly deal with occasional transactions, this fact alone gives obliged entities less visibility over the activities of the clients, unlike financial institutions who will be aware of a huge number of transactions pertaining to the same person, whether legal or natural. Therefore, while having uniformly established criteria across the board is commendable, their application should take into account professional constraints. The principle of proportionality, particularly for sole professionals and small firms should be kept at the centre. Otherwise, the rules will drive a lot of diligent professionals out of their professions because they would regard the added burdens imposed on them as insurmountable. This would be detrimental to EU member states. Therefore, together with RTSs, guidelines for supervisors, taking into account what has been stated above, should also be issued. Alternatively, the RTSs adopted for the financial sector should be tweaked to cater for the non-financial sector in the manner specified above.
anonymous_1	QUESTION 3: Do you agree that the applicability of	The financial strength is a relevant factor in ensuring sanctions are proportionate and dissuasive. Its inclusion can help tailor sanctions to the capacity of the responsible person. However, excessive reliance on turnover may risk disproportionate outcomes and undermine the viability of small practices and sole practitioners. In

Name of the Organisation	Question	Answer
	financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	fact, the benchmark for professionals should be the taxable income resulting in the last tax return or an average of the last tax returns and not on the actual turnover. Therefore, while the applicability of financial strength as a factor but recommend that supervisors consider alternative indicators of economic capacity and apply this criterion flexibly in the case of natural persons and micro-enterprises. Thus, a degree of flexibility should be afforded to supervisors and this must be clearly stated in the RTSs.
anonymous_1	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	A supervisor should not be given the power to revoke a warrant of a professional. In certain EU member states (as is the case in Malta), the warrant (license to exercise a profession) is given by the state (notaries in Malta are appointed by the President of Malta) and the law is clear that it is the person who grants the warrant in the first place who has the power to revoke it. Hence, under no circumstances, should any supervisory authority be granted this power for DNFBPs. Notaries serve as independent public office holders responsible for the preventive administration of justice and appointed by the relevant state authority. Their role as public office holder clearly sets them apart from private service providers, because they perform public functions in the public interest instead of government authorities, that would otherwise be carried out by the state. Their participation is legally required in a wide range of significant legal transactions. Accordingly, notaries in many Member States have an obligation to provide their public services. As notaries are obliged to perform their services and are required for certain legal transactions, a restriction or limitation of business or the divestment of activities pursuant to Article 5 (2) draft RTS stands in stark contradiction with the public office of the notary and would impair access to mandatory legal services for the general public. Therefore, Article 5 (2) is not applicable to the non-financial sector. With regards to other matters, the fact that the application of administrative measures focuses on remediation, proportionality and prevention of future breaches is supported. Administrative measures are especially appropriate for DNFBPs, where corrective actions such as enhanced procedures, targeted training and improved documentation practices can effectively address deficiencies. In order to enhance practical application, the article should stipulate that measures are to be taken in the

Name of the Organisation	Question	Answer
		following order - giving obliged entities the opportunity to learn from their mistakes, while still penalising them if necessary: • remediation-focused measures should generally precede pecuniary sanctions where breaches are not intentional or systemic • supervisors should consider the scale of practice and available resources when determining governance-related measures • reasonable timelines should be provided to implement procedural or technological changes Hence, the approach taken should be as follows: remediation-first followed by proportionate approach for DNFBPs.
anonymous_1	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Periodic penalty payments (PPPs) can be an effective tool to incentivise timely remediation and compliance with supervisory decisions, and therefore the methodology can apply in principle to the non-financial sector, however with a capping system and in a proportionate manner. Nevertheless, for DNFBPs, and especially for sole-practitioners, the application of PPPs should be carefully calibrated due to: • the small scale and limited resources of many practices • potential delays linked to registries or technological adjustments Thus, the RTS or accompanying guidance should clarify: • proportionality safeguards and potential caps for DNFBPs • consideration of good faith remediation efforts • flexibility where remediation timelines depend on external factors
anonymous_2	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-	No, I disagree. The RTS is prepared only for the financial sector and is not directly applicable to the non-financial sector and does not provide sufficient sectoral differentiation. It is necessary to include sectoral examples for professional service providers. The nature of the audit service itself poses a relatively low risk of money laundering. An audit service is an independent examination of financial statements, during which the auditor does not become involved in the organization of the client's economic activity, the performance of financial transactions or the creation of financial structures. Several indicators of the RTS project need to be adapted to the non-financial sector. Criterion (c) – is too broad - from negligence to intentional dishonesty. A clear distinction is needed between professional error and intentional misconduct.

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	Criterion (d) – Needs clarification. This criterion is not understandable for small audit practices. Auditors usually operate in simple structures without complex products, services or cross-border activities. This mechanical application of the criteria could lead to formal assessments that do not reflect the actual risk or operational reality. Criteria (g) – The audit service is an independent review of financial statements after the end of the reporting year. It is possible that negligence may indirectly contribute to tax fraud or the misuse of company assets, but this would not be covered by this criterion. Criteria (h) – It is unclear whether isolated procedural deficiencies or only persistent organizational deficiencies are included. Criteria (i) and (j) – Do not apply to the non-financial sector that does not conduct client transactions. Criteria (k) – It is unclear what constitutes a systematic violation in small practices. For example, when saving the results of a client study in .pdf format, the date is not indicated, because when changing computers, the previous setting "show header and footer" is not preserved. In small practices, repeated procedural deficiencies (e.g. incomplete CDD) could be classified as category 3, which leads to disproportionate sanctions. It is necessary to: 1) introduce sector-specific definitions and thresholds: calibrate the “significant” impact for small practices; define “duration” and repetition”; distinguish “structural failure” from lack of formalization. 2) exclude criteria not relevant for the non-financial sector: d, i, j and k. 3) distinguish between technical and substantive violations: ensure that minor procedural deficiencies are not classified as serious. 4) implement the principles of proportionality, providing that: the criteria should take into account the size, nature and complexity of the undertaking in line with the EU AML/CFT principles.
anonymous_2	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of	Partially. Some criteria, such as “loss to third parties” or “risk of loss or damage to clients or other market users”, are designed with financial markets in mind. Concepts such as competitive advantage, market users or wider effects on competition are generally not relevant in the audit sector. The application of these criteria carries the risk that the assessment of severity and sanctions will be incorrectly aligned with the reality of the activities of non-financial entities. Monetary sanctions should be proportionate to the size, business model and financial capacity of the

Name of the Organisation	Question	Answer
	pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	responsible entity, in accordance with the proportionality principle of the AML Regulation. The fine should not take into account all income, but only that derived from being an AML subject. For example, if a university lecturer is also a certified auditor and his audit practice is small, then in the event of a breach, only the income from audit services should be taken into account. Furthermore, when determining the amount of financial sanctions, it is important to ensure compliance with the principles of proportionality and fairness, in particular where the breaches are due to simple negligence or formal or technical errors. In such cases, greater emphasis should be placed on corrective measures and cooperative compliance mechanisms rather than financial sanctions. For infringements classified in categories 1 and 2, it should be clarified that fines are not applicable in principle. If the responsible authority has taken effective corrective measures in a timely manner and the deficiency has been fully remedied, the procedure should be formally closed. Furthermore, an infringement that has been corrected and resolved should not subsequently be considered a 'previous infringement'. Treating minor and remedied infringements as aggravating circumstances would reduce the incentive for swift remediation and voluntary compliance, and would create a risk of disproportionate escalation in future cases.
anonymous_2	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Partially. Need to take into account the principle of proportionality, as the current wording creates problems for non-financial sector entities, in particular small practices. Sanctions should not exceed what is strictly necessary to achieve deterrence and compliance. The size, structure and nature of the entity responsible should be taken into account. There are significant differences in the non-financial sector, even between similar professions. For example, turnover and profitability differ between accounting and auditing services. A company where auditing represents 90% of turnover could be disproportionately penalised for accounting offences if financial capacity is applied mechanically. Income from unrelated activities should not automatically increase penalties, as this could lead to disproportionate results. Indicators such as regulatory capital and liquidity are not applicable in the audit sector. Further clarification is needed to clarify the parameters for assessing financial capacity in small, sole practitioners.

Name of the Organisation	Question	Answer
anonymous_2	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	In the audit profession, licensing and certification are inextricably linked to company law and professional regulations. The interaction between AML/CFT supervisory measures and professional regulation can create legal and operational challenges.
anonymous_2	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The proposed methodology for periodic penalty payments raises concerns, as such a mechanism does not currently exist in Latvia. It is unclear how periodic penalty payments would work in practice, including their calculation, accumulation (daily or periodically), capping and the point in time when the infringement is considered to have been remedied. Where an entity provides multiple services, only revenues related to AML-regulated activities should be taken into account. Total revenues or turnover from unrelated activities should not affect the calculation of the penalty. Periodic penalties should only be applied after the entity has failed to remedy the infringement within the time specified by the supervisor. Minor infringements resulting from procedural errors or negligence should be given priority to corrective measures rather than financial penalties. Greater clarity, sector-specific adaptation and guarantees of proportionality are essential for effective and fair enforcement.
ucina	QUESTION 1: Do you agree that the proposed list of indicators to classify	Confindustria Nautica does not agree. It should be noted at the outset that anti-money laundering rules pursue legitimate and widely shared objectives. However, their extension beyond the banking and financial sectors to manufacturing and industrial sectors does not appear to sufficiently take into account the specific characteristics and operational realities

Name of the Organisation	Question	Answer
	the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	of those sectors. This is particularly relevant in the case of manufacturing sectors that represent world-leading European industries and make a significant contribution to EU exports, such as the recreational craft and yacht sector. Article 1(d)(i) provides that the cross-border impact of an infringement must always be assessed. In practice, this element may systematically constitute an aggravating factor for manufacturing sectors characterised by a significant export share, such as the recreational craft and yacht industry, where Italy, Poland, the Netherlands, Germany and France are among the world's leading exporters. Article 1(f) provides that the nature of the violation is to be assessed on the basis of obligations relating to customer due diligence, reporting or data retention. However, the concept of customer due diligence remains broad and may give rise to legal uncertainty if not further clarified. This may be particularly relevant for industries with a strong international dimension, such as the recreational boating sector. In practice, a manufacturing company is required to adopt a trade control compliance policy under which it: • does not engage in any direct or indirect activity with, in, involving or related to territories subject to sanctions, or with persons subject to sanctions; • performs due diligence on customers; • performs due diligence in relation to the negotiation and signing of contracts for the purchase and sale of vessels; • identifies dealers and intermediaries. However, given the tools typically available to manufacturing companies, customer due diligence may in practice consist of: • prior identification through a KYC form and verification of the information obtained by means of a copy of an identity document; • verification that counterparties provide complete information; • verification that the counterparty provides bank details and proposes payment through a bank located in a jurisdiction consistent with its business activities; • identification of potential warning signs (red flags), such as: - attempts to circumvent reporting obligations; - refusal to provide bank information or proposals to make payments through banks located in jurisdictions that are not consistent with the counterparty's business activities;

Name of the Organisation	Question	Answer
		- limited interest in price negotiations, lack of attention to key aspects of the transaction, or indifference to rates, taxes or transport costs; - purchases that appear inconsistent with the type or size of the counterparty's business. It is not possible to request further investigations from a companies of this type. Furthermore, it should be clarified that, for Brokers, the reference financial threshold should correspond to the actual negotiated value, rather than the vessel's market value. In the case of vessel rental agreements, the threshold should be based on the rental value rather than the vessel's value.
ucina	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Confindustria Nautica does not agree. Article 4(5) provides that, when determining the level of financial penalties, supervisory authorities shall take into account the total annual turnover of the entity concerned. In this context, the proposed framework may lead to disproportionately severe outcomes, particularly in cases of minor or unintentional infringements and in sectors such as the recreational boating industry, where the value of individual transactions may vary significantly. As a result, even a minor infringement, or an infringement relating to a transaction of relatively limited value, when assessed against the total annual turnover of the undertaking, could potentially have a significant impact on business continuity. Furthermore, article 2(4) provides that supervisory authorities shall classify an infringement in Category 1, the least serious, where the duration of the infringement has been limited. However, this criterion may have serious effects for certain industrial sectors, such as recreational boating, where transactions are typically characterised by long lead times of goods. The situation is further compounded by paragraphs 5 and 6, which provide that: (5) where the requirements set out in paragraph 4 - including the criterion relating to the short duration of the infringement - are not fulfilled, the infringement shall automatically be classified in Category 2; (6) an infringement shall be classified in Category 3 where it has persisted for a significant period. Finally, the article 19(9), points (a) and (b), of Regulation (EU) 2024/1624 mandate AMLA to develop RTS identifying obliged entities, sectors, or high-risk transactions for which lower CDD thresholds should apply in the case of occasional transactions. In preparing the RTS, AMLA must take due account of the inherent risk of different business models as well as the Union-level risk assessment conducted pursuant to Article 7 of Directive (EU) 2024/1640.

Name of the Organisation	Question	Answer
		Conversely, the same risk assessment may identify business models that are less risky at Union level. For example, in the recreational boating sector, high-value transactions typically involve multiple professional parties, all of whom are obliged entities: the manufacturer, the dealer network, brokers, lawyers, accountants, notaries, and banks. Confindustria Nautica considers that, in light of the above, the recreational boating sector, including pleasure boats and yachts, may constitute a low-risk situation pursuant to Article 28(1), second subparagraph (b), and may therefore allow for simplified due diligence (SDD) measures.
Kunsill Nutarili ta' Malta	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The proposed indicators in Article 1 provide a useful and structured framework to support the uniform classification of the gravity of breaches across sectors in all EU member states, including the non-financial sector. Indicators relating to the impact, duration, intentionality, recurrence and systemic nature of breaches are relevant for assessing AML/CFT deficiencies in both the financial and non-financial sector. However, additional clarification is necessary to ensure proportional and context-sensitive application to different sectors of DNFBPs. An approach of one size fits all will not work as it will create unnecessary and disproportionate burden on the non-financial sector, especially on professionals who practice their profession as sole practitioners or in small firms (such as notaries) with the consequence of hindering, instead of maximising, efficiency. It would be both unjust and ineffective to apply exactly the same weights and measures to the financial and non-financial sector, in particular to obliged entities within the non-financial sector who operate on their own (sole-practitioners, such as notaries), in small firms and with limited resources (both human and technological). This does not mean that such obliged entities should not adhere to the AML/FT obligations imposed upon them by law. However, one should take into account for example, that classifying an isolated deficiency as a serious breach may not mean much to a financial institution (the impact may be significant but not detrimental), while it will be totally detrimental to a sole practitioner. One should also take into account, that in the non-financial sector, there are sectors (such as the notarial sector), in which professional engagements consist mostly (or always) in occasional transactions. Indicators referring to “systemic failure” or “significant impact” may require sector-specific interpretation and the indicator concerning management involvement should be clarified for sole practitioner settings and small firms. Therefore, the issuance of further guidance and practical examples for DNFBP is essential to avoid for instance, over-classification of isolated deficiencies as serious or systemic breaches.

Name of the Organisation	Question	Answer
Kunsill Nutarili ta' Malta	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The criteria set out in Article 4 — including gravity and duration of the breach, degree of responsibility, benefit derived, cooperation with authorities and previous breaches — are generally relevant and appropriate also for the non-financial sector. Nonetheless, their application should take into account sector-specific characteristics for the following reasons: • In many cases, in the case of DNFBPs, professional income differs greatly from financial institutions. Consideration must always be given to the tens of thousands of professionals (such as notaries) who, in being allocated penalties, of whatever nature, cannot be compared and treated in the same manner as financial institutions; • More importantly, for those obliged entities, such as notaries, who solely or mostly deal with occasional transactions, this fact alone gives obliged entities less visibility over the activities of the clients, unlike financial institutions who will be aware of a huge number of transactions pertaining to the same person, whether legal or natural. Therefore, while having uniformly established criteria across the board is commendable, their application should take into account professional constraints. The principle of proportionality, particularly for sole professionals and small firms should be kept at the centre. Otherwise, the rules will drive a lot of diligent professionals out of their professions because they would regard the added burdens imposed on them as insurmountable. This would be detrimental to EU member states. Therefore, together with RTSs, guidelines for supervisors, taking into account what has been stated above, should also be issued. Alternatively, the RTSs adopted for the financial sector should be tweaked to cater for the non-financial sector in the manner specified above.
Kunsill Nutarili ta' Malta	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft	The financial strength is a relevant factor in ensuring sanctions are proportionate and dissuasive. Its inclusion can help tailor sanctions to the capacity of the responsible person. However, excessive reliance on turnover may risk disproportionate outcomes and undermine the viability of small practices and sole practitioners. In fact, the benchmark for professionals should be the taxable income resulting in the last tax return or an average of the last tax returns and not on the actual turnover. Therefore, while the applicability of financial strength as a factor but recommend that supervisors consider alternative indicators of economic capacity and apply this criterion flexibly in the case of natural persons and micro-enterprises. Thus, a degree of flexibility should be afforded to supervisors and this must be clearly stated in the RTSs.

Name of the Organisation	Question	Answer
	RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	
Kunsill Nutarili ta' Malta	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	No. A supervisor should not be given the power to revoke a warrant of a professional. In certain EU member states (as is the case in Malta), the warrant (license to exercise a profession) is given by the state (notaries in Malta are appointed by the President of Malta) and the law is clear that it is the person who grants the warrant in the first place who has the power to revoke it. Hence, under no circumstances, should any supervisory authority be granted this power for DNFBPs. Notaries serve as independent public office holders responsible for the preventive administration of justice and appointed by the relevant state authority. Their role as public office holder clearly sets them apart from private service providers, because they perform public functions in the public interest instead of government authorities, that would otherwise be carried out by the state. Their participation is legally required in a wide range of significant legal transactions. Accordingly, notaries in many Member States have an obligation to provide their public services. As notaries are obliged to perform their services and are required for certain legal transactions, a restriction or limitation of business or the divestment of activities pursuant to Article 5 (2) draft RTS stands in stark contradiction with the public office of the notary and would impair access to mandatory legal services for the general public. Therefore, Article 5 (2) is not applicable to the non-financial sector. With regards to other matters, the fact that the application of administrative measures focuses on remediation, proportionality and prevention of future breaches is supported. Administrative measures are especially appropriate for DNFBPs, where corrective actions such as enhanced procedures, targeted training and improved documentation practices can effectively address deficiencies. In order to enhance practical application, the article should stipulate that measures are to be taken in the following order - giving obliged entities the opportunity to learn from their mistakes, while still penalising them if necessary: • remediation-focused measures should generally precede pecuniary sanctions where breaches are not intentional or systemic • supervisors should consider the scale of practice and available resources when determining governance-related measures

Name of the Organisation	Question	Answer
		reasonable timelines should be provided to implement procedural or technological changes Hence, the approach taken should be as follows: remediation-first followed by proportionate approach for DNFBPs.
Kunsill Nutarili ta' Malta	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Periodic penalty payments (PPPs) can be an effective tool to incentivise timely remediation and compliance with supervisory decisions, and therefore the methodology can apply in principle to the non-financial sector, however with a capping system and in a proportionate manner. Nevertheless, for DNFBPs, and especially for sole-practitioners, the application of PPPs should be carefully calibrated due to: - the small scale and limited resources of many practices - potential delays linked to registries or technological adjustments Thus, the RTS or accompanying guidance should clarify: - proportionality safeguards and potential caps for DNFBPs - consideration of good faith remediation efforts - flexibility where remediation timelines depend on external factors
Ordem dos Notários	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	No. 1. Article 1, paragraph h) The concept of “structural failure” may have a disproportionate impact on micro-entities that do not have complex organizational structures. It is recommended that the interpretation take into account: i) the size of the entity; ii) the organizational model; iii) the degree of formalization required according to the principle of proportionality. 2. Article 1, paragraph j) The criterion relating to the impact on the integrity, stability or orderly functioning of the financial system may have limited relevance for many non-financial entities. Interpretative clarification is suggested to the effect that this indicator should only be considered when materially applicable, avoiding automatic or artificial application.

Name of the Organisation	Question	Answer
Ordem dos Notários	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	No. Risk of disproportionate impact on small entities In many non-financial sectors, micro and small businesses or individual professionals predominate. The application of aggravating criteria should avoid generating sanctions that: i) exceed the entity's economic capacity; ii) lead, in practice, to effects equivalent to constructive closure.
Ordem dos Notários	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes.
Ordem dos Notários	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a	Yes.

Name of the Organisation	Question	Answer
	non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
Ordem dos Notários	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes.
ASSIREVI - Association of the Italian Audit Firms	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-	Non Financial Sector (NFS) includes various types of obliged entities performing activities that are not comparable with each other, which also impacts the scope of AML obligations which those obliged entities must abide to. In particular, audit firms neither stand at the origin, nor participate in the execution, of transactions relevant for the purposes of AML legislation. Auditors do not carry out real time transactional monitoring, but fulfil AML obligations as part of their audit procedures through a risk based approach. Specifically, auditors' activity is carried out in accordance with auditing standards, which govern the procedures to be performed as part of an audit engagement. Auditors analyse available information and assess the consistency of transactions from an accounting perspective. In carrying out this activity, auditors

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	may identify unusual facts or circumstances requiring further investigation in the context of suspicious transaction reporting. Therefore, auditors' activity necessarily focuses on an ex-post analysis of available accounting and corporate documentation and not on the ongoing, operational tracking of a company's financial flows. Likewise, auditors' obligations to actively cooperate are fulfilled on the basis of what is observed during the performance of required audit procedures. The above circumstances should be carefully considered when identifying indicators of gravity and criteria for applying sanctions to audit firms, to comply with the principle of effective proportionality. In this perspective, certain indicators of gravity, as set out in Art. 1 RTS, may not prove to be consistent with the nature and purpose of audit firms and their activity. Indeed, the indicators set out in Art. 1(d)ii ("the extent to which the products and services are affected by the breach") and Art. 1(d)iii ("the approximate number of customers affected by the breach") imply a direct involvement of the obliged entity in the delivery of products or the provision of services or the execution of transactions for customers. Such assumptions are not identifiable with respect to auditors, which do not participate – and could not participate, being required to comply with independence principles – in managing audited companies and their financial flows. Moreover, the indicators under Art. 1(j)i ("the actual or potential impact of the breach: i. on the integrity, transparency and security of the financial system of a Member State or of the Union as a whole, or on the financial stability of a Member State or of the Union as a whole") and Art. 1(j)ii ("on the orderly functioning of the financial markets") imply the possibility that an AML breach could trigger systemic effects. Such effects typically arise as a result of AML breaches by financial entities that move funds or execute transactions on behalf of customers and therefore are not immediately and directly attributable to the activity of auditors, which neither participate in the execution of transactions nor perform real-time checks. In light of the above, it would be appropriate to clarify—in addition to the general statement "to the extent they apply" currently reflected in the draft RTS - that the indicators provided for in Art. 1 should be assessed in light of the specific role of the different obliged entities operating in the NFS, and that those indicators should be applied to auditors only insofar as they are consistent with the nature and purpose of the audit activity. When assessing the gravity of breaches, supervisors should also take into account the nature of the AML procedures required to each obliged entity. With respect to audit firms, it should be considered that AML obligations fall within the context of a professional engagement in which audit procedures are to be performed

Name of the Organisation	Question	Answer
		periodically, as required by auditing standards. With regard to Art. 1(h), it would be useful to clarify in greater detail when situations of “structural failure within the obliged entity with regards to AML/CFT systems and controls and policies” and “material failure of the obliged entity to put in place adequate AML/CFT systems and controls” occur. In particular, it would be useful to specify when a “failure of the obliged entity to put in place adequate AML/CFT systems and controls” may be considered “material” and, in any event, clarify that a “failure” cannot be regarded as “material” in case of isolated irregularities in the application of required procedures. Lastly, Art. 1(l) (“any other indicators identified by the supervisors”) should be supplemented by providing that when supervisors intend to take into account any additional indicators beyond those set out in the RTS, they shall operate consistently with the RTS themselves and respect the “general principles of administrative law such as rule of law, legality, protection of legitimate expectations, proportionality, fairness and right to non self incrimination”.
ASSIREVI - Association of the Italian Audit Firms	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	2.1. Also with respect to Question 2, it is the view of Assirevi that the specific features of the core activity required to audit firms in the context of the AML framework, as summarised above in our response to Question 1, should be taken into account. Indeed, some indicators of gravity set out in Article 4 of the RTS may likewise prove not to be consistent with the nature and purpose of audit firms and their activity, as referred above. In particular, the following criteria should be considered: (a) art. 4(3)(d), “the benefit derived from the breach insofar as it can be determined and whether the natural person or legal person held responsible has benefited or could benefit either financially or competitively from the breach or avoid any loss”; (b) art. 4(3)(e), “the losses to third parties caused by the breach, insofar as they can be determined, and the loss or risk of loss caused to customers or other market users”. The above criteria imply that the obliged entity receives a direct benefit from the breach or that the breach results in immediate impacts on the obliged entity’s customers or the market. With respect to audit firms, however, their activity does not involve the delivery of products, the provision of financial services, or the execution of transactions for customers; rather, it is based on an ex-post analysis of the available accounting and corporate documentation. As a result, the possibility to identify an economic benefit deriving from the breach, or direct losses for customers or other market users, cannot be immediately and directly attributed to the execution of audit activities.

Name of the Organisation	Question	Answer
		In light of the above, according to Assirevi, it would be appropriate to clarify – in addition to the general statement “to the extent they apply” currently reflected in the draft RTS – that the relevance of the above indicators should be assessed in light of the specific role of the different obliged entities operating in the non financial sector, and that those indicators should be applied to audit firms only insofar as they are consistent with the nature and purposes of the audit activity. 2.2 As far as Art. 4(2)(c) and Art. 4(3)(g) are concerned, it would also be useful to supplement those provisions by clarifying that, when supervisors intend to take into account any additional indicators of gravity beyond those set out in the RTS, they shall nonetheless operate consistently with the RTS and respect the “general principles of administrative law such as rule of law, legality, protection of legitimate expectations, proportionality, fairness and right to non self incrimination”, as mentioned in the Consultation Paper, in order to pursue a consistent and predictable application of the criteria established to assess the gravity of breaches.
ASSIREVI - Association of the Italian Audit Firms	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Financial strength is a criterion for determining the type and level of pecuniary sanctions and administrative measures provided by Article 53(6)(d) of AMLD, as well as by the relevant Italian sector legislation set out in Article 194 of Legislative Decree no. 58/1998. The regulation concerning entities belonging to the financial sector is primarily focused on requirements of sustained resilience related to equity and financial aspects, with the objective of guaranteeing their economic soundness, in a perspective of systemic stability that does not immediately apply to the audit activity. In fact, the organisational requirements of audit firms under the applicable legislative and regulatory framework do not pertain to equity or financial profiles; rather, they concern aspects aimed at ensuring the quality, independence, objectivity and professional competence of auditors and their activity. As Article 4(5) appears to be structured on a model applicable to financial sector entities, it would therefore be appropriate to adjust this criterion with respect to audit firms or, more generally, with respect to obliged entities operating in the non financial sector. Alternatively, it would be appropriate, at least, to delete from Article 4(5) any reference to “information from prudential authorities on the level of regulatory capital and liquidity requirements.”
ASSIREVI - Association of	QUESTION 4: Do you agree with the	4.1. In our response to Question 1 above it was noted that, taking into account the nature of the activity required to audit firms in the AML framework, the indicators in Art. 1(i) and Art. 1(j) can hardly be attributable

Name of the Organisation	Question	Answer
the Italian Audit Firms	proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	to how audit activity is performed and its purpose. For the same reasons, Assirevi believes that it would be appropriate to carefully assess the applicability to audit firms of the criteria indicated in Art. 5(2)(b) and 5(3)(b) (which expressly refer to the indicators in Art. 1(i) and Art. 1(j)). 4.2. Art. 5(2) and the criterion set out therein at point (c) refer to the concept of “network of institutions comprising the obliged entity”. As neither the AML Directive nor the draft RTS contain a definition of “network”, it is the view of Assirevi that a clarification would undoubtedly be useful to apply appropriately the criteria set out in Art. 5 of the draft RTS. Indeed, the EU audit legislation does include a specific definition of “network” applicable to audit firms. This refers to Article 1(1)(7) of Directive 2006/43/EC (Audit Directive), according to which: “‘network’ means the larger structure: — which is aimed at cooperation and to which a statutory auditor or an audit firm belongs, and — which is clearly aimed at profit or cost sharing or shares common ownership, control or management, common quality control policies and procedures, a common business strategy, the use of a common brand name or a significant part of professional resources.” This definition was transposed in Italy into Article 1 of Legislative Decree 39/2010. It would be necessary to clarify the nature and scope of the above concept of “network of institutions comprising the obliged entity”, so as to avoid any inappropriate overlap between the latter and the “network” definition set forth by the Audit Directive. 4.3. From a different standpoint, with regard also to Art. 5(3)(d), it is appropriate to highlight the opportunity to clarify in greater detail when the situations of “structural failure within the obliged entity with regards to AML/CFT systems and controls and policies” and “material failure of the obliged entity to put in place adequate AML/CFT systems and controls” occur. In particular, it would be useful to specify when a “failure of the obliged entity to put in place adequate AML/CFT systems and controls” may be considered “material” and, in any event, to clarify that a “failure” cannot be regarded as “material” in case of isolated irregularities in the application of required procedures. 4.4. Lastly, it would be appropriate that Art. 5(2)(e), Art. 5(3)(e) and Art. 5(4)(f) be supplemented by providing that, when supervisors intend to take into account any additional indicators of gravity beyond those

Name of the Organisation	Question	Answer
		specifically set out in the RTS, they shall nonetheless operate consistently with the RTS themselves and respect the “general principles of administrative law such as rule of law, legality, protection of legitimate expectations, proportionality, fairness and right to non self incrimination”—also mentioned in the Consultation Paper—in order to pursue a consistent and predictable application of the criteria established to assess the gravity of breaches.
ASSIREVI - Association of the Italian Audit Firms	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Also with respect to Question 5, Assirevi believes that the nature and purpose of the activity required to audit firms in the context of the AML legal and regulatory framework – already mentioned in response to Question 1 above – should be considered. Indeed, the criteria laid down in Art. 8(3)(c) (the losses to third parties caused by the non compliance with the applicable administrative measure, provided they were determined when the applicable administrative measure was imposed) and Art. 8(3)(d) (the benefit derived from the non compliance with the applicable administrative measure, provided they were determined when the applicable administrative measure was imposed) may not be consistent with the nature of the activity of audit firms. In fact, the above criteria imply that non compliance could lead, respectively, to third parties equity losses or to economic advantages for the obliged entity. These are circumstances that typically occur for financial intermediaries or operators that manage funds, execute payments, handle money or are part of transactional processes. Audit firms, instead, do not have any power over funds or financial instruments and neither move nor handle clients’ assets. Consequently, it would be desirable to clarify that the relevance of the above indicators should be assessed in light of the specific role of the different obliged entities operating in the non financial sector, and that those indicators should be applied to audit firms only insofar as they are consistent with the nature and purpose of the audit activity.
MEXEM LTD	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the	I Agree

Name of the Organisation	Question	Answer
	proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	
MEXEM LTD	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	I Agree
MEXEM LTD	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you	I Agree

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	
MEXEM LTD	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	I Agree
MEXEM LTD	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	I Agree
ALFI (Association of the Luxembourg Fund Industry)	QUESTION 1: Do you agree that the proposed list of	While not speaking for the non-financial sector, ALFI welcomes the insertion of the word “material” in Article 1(h) of the AMLA RTS. However, as stated in our response to the EBA consultation, we consider that additional indicators could usefully be taken into account by supervisors when assessing breach severity, irrespective of

Name of the Organisation	Question	Answer
	indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	sector: a) whether the breach is due to a failure by the obliged entity itself, or by a third party or delegate of the obliged entity; b) whether the obliged entity took appropriate and reasonable steps to define mitigation measures and controls; c) whether the breach constitutes a breach of applicable AML/CFT laws and regulations, as opposed to a breach of the obliged entity's own internal AML/CFT policies and procedures which did not result in a breach of applicable laws or regulations. These additional indicators are sector-neutral and would enhance the proportionality of the assessment by distinguishing between different degrees of culpability and different types of non-compliance. The distinction under point (c) is particularly relevant for both financial and non-financial obliged entities, as internal policies may in certain cases exceed legal requirements.
ALFI (Association of the Luxembourg Fund Industry)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	While not speaking for the non-financial sector, we wish, however, to reiterate two cross-sectoral observations submitted to the EBA. First, with respect to Article 4(2), the level of pecuniary sanctions should decrease in equivalent amount to take into account the amounts already invested by the obliged entity to remedy the identified and sanctioned breach. This principle is relevant to non-financial obliged entities, many of which are smaller in size and may have devoted proportionally significant resources to remediation. Second, with respect to Article 4(4), pecuniary sanctions on natural persons who are not themselves obliged entities should be limited to cases where it may be demonstrated that the individual conduct of such natural persons had a direct impact on the identified and sanctioned breach. We would also like to underline that further requirements lack relevance for the financial industry, in particular for investment funds
ALFI (Association of	QUESTION 3: Do you agree that the applicability of	While not speaking for the non-financial sector, ALFI is concerned about the broader implications of the personal liability framework for natural persons across all sectors. In particular ALFI is concerned about the implication that compliance professionals could be held personally responsible for breaches occurring in the

Name of the Organisation	Question	Answer
the Luxembourg Fund Industry)	financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	organisation. While the role of compliance functions is undeniably critical, it is important to recognise that responsibility for regulatory breaches does not rest solely with compliance officers. Compliance staff often serve in advisory roles without final decision-making power. Holding second-line functions personally liable – without executive powers – might be disproportionate. Staff in the second line of defence provide oversight and advice. They do not have executive power over business lines, nor are they the final decision-makers. Holding them personally liable for breaches caused by failures in the first line or senior management is disproportionate. Moreover, there is a risk that institutions could shift blame onto individual compliance officers as a defensive tactic, especially in high-profile cases. Hence the proposed regime might undermine the internationally and EBA (paragraph 31 EBA GL/2022/05) recognised “three lines of defence” model. The second line (compliance, risk) is designed to monitor and advise. Assigning liability to these functions distorts governance principles and weakens accountability in the first line and senior management. In line with the principles of company law, particularly the principle of collegial responsibility of the management body, accountability for decisions and oversight should be shared among the members of the management body collectively. Under the principles of civil law, and in line with the concept of collegial responsibility of the management body, liability for institutional failings must rest with the collective governing body, not with individual staff members acting within their defined responsibilities and without decision-making authority. It follows that the liability should not rest with individual staff members. Furthermore, compliance professionals already operate under significant pressure and face substantial personal liability under existing AML frameworks. In several EU jurisdictions, they are subject to administrative, civil, and even criminal sanctions in the event of serious failings and gross negligence – despite often lacking the authority to enforce decisions or allocate resources. The threat of further personal penalties risks undermining the attractiveness of these critical roles and may deter experienced professionals from taking them on. The attribution of individual liability to compliance professionals for failures that may originate from broader organisational or strategic decisions risks misrepresenting the nature of their role. Furthermore, assigning

Name of the Organisation	Question	Answer
		personal liability to individuals who lack control over final decisions is inappropriate and potentially harmful. The threat of individual sanctions, in a context where decision-making is collective, could undermine the attractiveness of these positions and weaken the overall effectiveness of the compliance function. The increased personal risk associated with compliance roles could lead to talent drain, as experienced professionals either leave the sector or avoid such roles altogether. This can lead to a shortage of qualified staff across the EU. As a consequence, this will most likely lead to a weakening of the compliance function and increasing systemic risk rather than reducing it. Imposing personal liability on compliance staff risks blurring the lines between supervisory oversight and operational management. It would represent a shift from regulating institutions to regulating individuals within specific functions, which might exceed the intended scope of the regulatory framework. A strong compliance culture is better supported by clear institutional accountability, adequate resourcing, and effective governance structures – not by imposing personal penalties on individual staff. In any case, should AMLA maintain the current approach regarding individual sanctions, we are of the view that the financial strength of the natural person, including where applicable the annual income (fixed and variable remuneration), should not be taken into account to set the level of pecuniary sanctions. AML/CFT supervisors do not in fact have the authority to request and obtain such type of personal information.
ALFI (Association of the Luxembourg Fund Industry)	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree,	While not speaking for the non-financial sector, ALFI considers that the administrative measures set out in Article 5, given their severity, should be reserved for breaches with the highest level of gravity, i.e. breaches classified as category four (while the current draft refers to category three or four). This applies in particular to the following measures under Article 56(2) of Directive (EU) 2024/1640: a) restricting or limiting the business, operations or network of institutions comprising the obliged entity, or requiring the divestment of activities (Article 56(2)(e)); b) withdrawal or suspension of an authorisation (Article 56(2)(f)); c) requiring changes in governance structure (Article 56(2)(g)).

Name of the Organisation	Question	Answer
	please explain your reasoning.	Alternatively, these measures could be extended to category three breaches in the event of a failure by the relevant obliged entity to remedy the breach within a predefined timeframe.
ALFI (Association of the Luxembourg Fund Industry)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	NA
CFE Tax Advisers Europe	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	CFE Tax Advisers Europe (CFE) represents tax advisers established across the European Union who qualify as obliged entities pursuant to Regulation (EU) 2024/1624 (“AMLR”) and are subject to the supervisory and enforcement framework established by Directive (EU) 2024/1640 (“AMLD”). The majority of such entities operate as small and medium-sized professional advisory firms whose activities are primarily advisory in nature and do not typically involve the execution of financial transactions or the holding of client funds. CFE supports the objective underlying Article 53 AMLD that administrative sanctions and measures must be effective, proportionate and dissuasive. We further support AMLA’s mandate under Article 53(10) AMLD to specify indicators for classifying the gravity of breaches and to develop criteria for determining pecuniary sanctions and periodic penalty payments. A harmonised Union-level approach is essential to prevent supervisory divergence and to promote consistent enforcement standards across Member States. In implementing Article 53(10) AMLD, AMLA must give full effect to the principle of proportionality under Article 5(4) TEU and must ensure consistency with the risk-based approach embedded throughout the AMLR, including Articles 6 and 7. Sanctioning methodologies must appropriately reflect the operational realities and

Name of the Organisation	Question	Answer
		risk exposure of non-financial obliged entities and avoid replicating financial-sector enforcement models without necessary differentiation.
CFE Tax Advisers Europe	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Article 53(10) AMLD requires AMLA to specify indicators to classify the level of gravity of breaches. This classification is determinative, as it directly influences the subsequent calibration of sanctions and measures. The RTS should therefore adopt a structured and transparent taxonomy distinguishing clearly between: • Minor administrative or technical deficiencies; • Negligent non-compliance; • Serious, repeated or intentional infringements. Not all failures to comply with obligations under Regulation (EU) 2024/1624, including obligations under Article 28 AMLR concerning customer due diligence, are of equivalent gravity. A deficiency in documentation, where substantive identification and verification have in fact occurred, should not automatically be equated with systemic disregard for AML/CFT obligations. The gravity assessment should consider, inter alia: • The material impact of the breach on AML/CFT safeguards; • The degree of fault (intentionality or negligence); • The duration and recurrence of the breach; • The extent to which the breach created or increased ML/TF risk. Mitigating factors should be expressly recognised in the RTS, including prompt remediation, cooperation with supervisory authorities, existence of documented compliance systems and the absence of demonstrable ML/TF harm. Codification of such elements would enhance legal certainty and promote consistent application across Member States.

Name of the Organisation	Question	Answer
CFE Tax Advisers Europe	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	In accordance with Article 53(1) and (2) AMLD, sanctions must be effective, proportionate and dissuasive. These elements must be balanced and cannot be interpreted in isolation. The RTS should clarify how supervisory authorities are to assess: • The size, turnover and financial capacity of the obliged entity; • The organisational structure and governance arrangements; • The degree of responsibility of senior management; • The level of cooperation with supervisory authorities. Given that many tax advisory firms operate as small partnerships or sole practitioners with limited turnover, turnover-based methodologies must incorporate appropriate scaling mechanisms to avoid disproportionate financial impact. The calibration of sanctions must reflect the differentiated risk profile of advisory professionals compared to credit institutions. Furthermore, the RTS should articulate clearly the weighting attributed to aggravating and mitigating factors. Absent such clarification, there is a risk of divergent national approaches that would undermine the harmonisation objective of Article 53(10) AMLD.
CFE Tax Advisers Europe	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree,	The RTS must also develop a methodology for periodic penalty payments. Such payments are inherently coercive and designed to secure compliance with supervisory decisions. The RTS should therefore specify with precision: • The conditions triggering periodic penalty payments; • The procedural safeguards applicable prior to their imposition; • The relationship between corrective measures and periodic penalties. Periodic penalties should be applied only where an obliged entity has failed to comply with a binding

Name of the Organisation	Question	Answer
	please explain your reasoning.	supervisory decision within a reasonable timeframe and after appropriate supervisory engagement. Automatic escalation mechanisms would risk undermining proportionality and legal predictability.
CFE Tax Advisers Europe	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	To prevent divergent interpretation by national competent authorities, the RTS should provide sufficiently detailed definitions of key concepts such as “serious”, “repeated” and “systematic” breaches, including examples relevant to non-financial obliged entities. Clear and detailed guidance at Union level is essential to ensure supervisory convergence and to provide legal certainty to obliged entities operating across borders. CFE Tax Advisers Europe supports the development of harmonised enforcement standards under Article 53 AMLD. However, the final RTS must ensure that sanctioning criteria are transparent, proportionate and appropriately differentiated to reflect the diversity of obliged entities across the Union, including non-financial professional service providers. CFE stands ready to participate in further consultation processes and discussion with AMLA to provide the perspective of the tax advisory profession.
Permanent European Horological Committee (CPHE)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	General observations The CPHE welcomes the initiative taken by the European Commission and the Anti-Money Laundering Authority (AMLA) to establish a harmonised framework for the assessment of the gravity of breaches and the determination of administrative sanctions in the area of anti-money laundering and counter-terrorist financing (AML/CFT). 1. Drafting issue relating to Article 2 1.1 The CPHE would like to draw attention to a possible inconsistency in the drafting of Article 2 of the draft RTS, which establishes the categorisation of breaches according to their gravity. Under the current formulation, it appears that certain situations may not be clearly captured by the classification framework. In particular, a breach that would have had no or only a minor or moderate impact, but that could nevertheless be considered systematic within the meaning of Article 1(k), does not seem to fall clearly within any of the four categories defined in Article 2. Categories 1 and 2 would appear to be excluded due to the presence of an indicator listed in Article 1(k), while Category 3 requires a significant impact that would not be present in such circumstances. Similarly, the conditions provided for Category 4 would not

Name of the Organisation	Question	Answer
		necessarily be met. In order to ensure legal certainty and consistent application by competent authorities, the CPHE respectfully suggests that the classification mechanism set out in Article 2 be clarified. 1.2 The distinction between the indicator relating to the repetition of a breach (Article 1(b)) and the indicator referring to the systematic nature of a breach (Article 1(k)) is not entirely clear. While repetition appears to refer to the occurrence of several similar breaches over time, the notion of “systematic nature” could potentially overlap with this concept. It is therefore unclear whether Article 1(k) is intended to refer to breaches occurring in a systematic manner, or rather to breaches reflecting a systemic deficiency in internal systems, procedures or controls. The CPHE would welcome clarification on this point, including whether the notion of “systematic nature” was intended to capture situations that might more appropriately be described as systemic breaches. 2. Specific characteristics of non-financial retail sectors More generally, the CPHE considers that the assessment of the gravity of breaches should take due account of the specific characteristics of non-financial sectors such as distribution and retail activities which differ significantly from financial services in terms of operational environment, access to information and the nature of transactions. Retail transactions typically take place in an immediate commercial context in which a customer enters a boutique and purchases a product. Unlike financial or real estate transactions, such interactions do not generally allow for extensive background checks or verification procedures carried out over extended periods of time. Furthermore, retailers do not have access to the financial data and monitoring tools that are available to financial institutions. In the case of scriptural payments, the relevant transaction data remains within the banking system, and retailers cannot perform detailed transaction monitoring or analysis regarding the origin of funds. For these reasons, supervisory expectations regarding AML/CFT systems, controls and procedures should be interpreted in a manner that remains consistent with the risk-based approach and that reflects the actual role and capabilities of non-financial operators within the overall AML/CFT framework. 3. Proportionality in the assessment of internal policies or compliance procedures The CPHE also considers that the assessment of the adequacy of AML/CFT internal policies or compliance

Name of the Organisation	Question	Answer
		procedures put in place by entities of non-financial sectors should take into account the size, organisational structure and available resources of the entities concerned. Retail businesses, including small and medium-sized enterprises, typically do not operate with the same level of compliance infrastructure as financial institutions. In this context, the absence of sophisticated compliance systems or dedicated compliance departments should not automatically be interpreted as a structural deficiency within the meaning of the draft RTS. For many retail operators, proportionate procedures adapted to the risk profile of their activities constitute an appropriate and effective compliance framework. It should also be recognised that the exposure to AML/CFT risks may represent only a limited portion of the overall business activity. For example, companies whose activities are primarily conducted on a business-to-business basis may only occasionally engage in transactions involving retail customers. Such elements should be taken into consideration when evaluating the adequacy of internal controls and procedures.
Permanent European Horological Committee (CPHE)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The CPHE would also like to highlight certain practical challenges associated with the determination of sanctions under the proposed framework. In particular, the assessment of the “benefit derived from the breach” and of potential “losses to third parties” may prove difficult in retail environments, where commercial transactions do not always allow for a clear quantification of such elements. The CPHE therefore encourages AMLA to ensure that the methodologies used to determine these elements remain clear, pragmatic and adapted to the operational realities of non-financial businesses.
Permanent European Horological	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural	The CPHE would also like to highlight certain practical challenges associated with the determination of sanctions under the proposed framework. In particular, the assessment of the “benefit derived from the breach” and of potential “losses to third parties” may prove difficult in retail environments, where commercial transactions do not always allow for a clear quantification of such elements.

Name of the Organisation	Question	Answer
Committee (CPHE)	person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The CPHE therefore encourages AMLA to ensure that the methodologies used to determine these elements remain clear, pragmatic and adapted to the operational realities of non-financial businesses.
Permanent European Horological Committee (CPHE)	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	the CPHE notes that certain administrative measures foreseen in the draft RTS, such as changes to governance structures, may have particularly significant consequences for smaller businesses, including family-owned businesses. In such cases, governance arrangements are often closely linked to the ownership and management structure of the company.
Permanent European Horological Committee (CPHE)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-	no specific remarks

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	
Financial Analytical Office	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	We do not agree. NFS needs different, more light-touch approach than the FS. When it comes to Article 1, point j) needs to be omitted, as it is not applicable to NFS.
Financial Analytical Office	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	We do not agree. Criteria under Article 4(3)(a) and Article 4(3)(b) need to be omitted as they are in contravention of principle of prohibition of coercion of self-blame. Also Criterion under Article 4(3)(c) needs to be omitted, as it is not possible to determine degree of responsibility of legal person. It also needs to be clearly set out that where OE proves that it did everything that could be reasonably required to prevent the breach (i.e. the breach is a result of excess of individual worker), liberation occurs, i.e. obliged entity is exempt from liability for the breach.

Name of the Organisation	Question	Answer
Financial Analytical Office	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Definitely, criterion of financial strength should be taken into account also in the case of NFS. It needs to be clearly set out that imposition of fine shall not cause the obliged entity to bankrupt.
Financial Analytical Office	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We are of the opinion that the criteria are not applicable to the reality of NFS, which is comprised mainly of individuals. How could individual carry out a change in the governance structure?
Financial Analytical Office	QUESTION 5: Do you agree that the proposed methodology	We agree.

Name of the Organisation	Question	Answer
	for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	
Royal Dutch Association of Civil-law Notaries (KNB)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The KNB notes that Article 1, point (l), concerns an open standard which may imply that the intended supervisory judgement application in a coherent and consistent way with comparable outcomes across Member States is not achieved. The KNB therefore suggests that this provision could be deleted. Article 1 forms the basis for Article 2 of the proposed draft RTS. Therefore, the KNB also considers Article 2 in relation to Article 1 of the proposed draft RTS. In that context, the KNB endorses the importance of the use of supervisory judgement as stated in recital 2 to the proposed draft RTS. In that context, the KNB makes some suggestions for some small amendments to Article 2(4) of the proposed draft RTS, bolded as follows: “4. Supervisors shall classify the breach under category one breaches where there is no direct impact or the impact is minor on the obliged entity when assessing the indicators specified in Article 1, points (d) or (e), and, at the same time: - when assessing the indicator specified in Article 1, point (a), the breach has lasted for a short period of time, or - when assessing the indicator specified in Article 1, point (b), the breach has been committed on a non- or limited repetitive basis. Supervisors shall not classify a breach as category one if indicators specified in Article 1, points (g) to (k) are met.” Compared to Article 2(6), which also refers to Article 1, point (a) and point (b), and in which the word ‘or’ is used ((d) or (e), (a) or (b)), this seems more proportionate for small obliged entities like notaries, which because of their limited size (often only one natural person) may have a greater chance of unintentionally

Name of the Organisation	Question	Answer
		committing a few minor breaches (on a non- or limited repetitive basis) of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113.
Royal Dutch Association of Civil-law Notaries (KNB)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The KNB considers it positive that Article 4(5) and Article 4(6) of the proposed draft RTS state that when setting the level of pecuniary sanctions because of breaches of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, supervisors shall take into account the financial strength of the legal person and the natural persons held responsible. The KNB considers this important for small obliged entities like notaries which often have less financial leeway than large obliged entities. An important note here is that the financial strength that is taken into account should be proportionate and related to relevant activities. When setting the level of pecuniary sanctions because of breaches of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, it seems reasonable to only take into account turnover and income from activities that fall within the scope of these regulations, especially in the case of professionals/natural persons, also if they exercise their professional activities through a legal person. Moreover, the turnover and income related aspects should not only be depending on the AMLR-relevant activities, but also only related to the formal contractor. In that context, the KNB makes some suggestions for some small additions to Article 4(5) and Article 4(6) of the proposed draft RTS, bolded as follows: “5. When setting the level of pecuniary sanctions, supervisors shall take into account the financial strength of the legal person held responsible, including, where applicable, and in the light of its total annual turnover from activities that fall within the scope of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, any available relevant information from the financial statements in order to assess financial capacity and information from prudential authorities on the level of regulatory capital and liquidity requirements.” “6. When setting the level of pecuniary sanctions, supervisors shall take into account the financial strength of the natural persons held responsible by assessing all the information made available. Such assessment shall cover the annual income from activities that fall within the scope of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, whether consisting of fixed or variable remuneration, received from the obliged entity or group of which the obliged entity is part and where relevant, other income from activities that fall within the scope of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113 of the natural person held responsible.” An important note here is that notaries receive large sums of money from clients, so-called third-party funds, related to transactions the notary carries out. For example deposits for the purchase of real estate by clients.

Name of the Organisation	Question	Answer
		These amounts explicitly do not constitute turnover or income for the notary. These are funds from and for clients. These amounts should therefore explicitly be excluded from the turnover and income referred to in Article 4(5) and Article 4(6).
Chartered Accountants Ireland	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	We have contributed to the Accountancy Europe consultation response and support their position.
Chartered Accountants Ireland	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	We have contributed to the Accountancy Europe consultation response and support their position.

Name of the Organisation	Question	Answer
Chartered Accountants Ireland	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We have contributed to the Accountancy Europe consultation response and support their position.
Chartered Accountants Ireland	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We have contributed to the Accountancy Europe consultation response and support their position.

Name of the Organisation	Question	Answer
Chartered Accountants Ireland	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	We have contributed to the Accountancy Europe consultation response and support their position.
European Payment Institutions Federation	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	EPIF has no specific views.
European Payment Institutions Federation	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions	EPIF has no specific views.

Name of the Organisation	Question	Answer
	set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
European Payment Institutions Federation	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes
European Payment Institutions Federation	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If	Yes

Name of the Organisation	Question	Answer
	you do not agree, please explain your reasoning.	
European Payment Institutions Federation	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	No. Before imposing penalties, supervisory authorities should assess the Action Plan and request from the entity its completion, fulfilment, finalisation, and status report. If the subject person does not honour the commitments set out in the Action Plan, the authority may proceed with the imposition of a penalty. The proposal of the issuing Action plan should apply unless there are significant breaches and where money laundering intention and involvement of the subject person are detected.
EFAMA	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	While this public consultation is seeking mainly input from the non-financial sector, EFAMA, representing the asset management industry, would like to highlight two elements that we believe are important, irrespective of the sector concerned. In our response to the public consultation conducted by the EBA last year, we emphasised the need for caution regarding holding professionals performing compliance functions personally responsible for breaches. Within the usual three-defence model, the compliance function plays the role of the second line, providing continuous oversight and advice to the decision-making bodies. As such, the compliance function does not hold executive powers. While the compliance function provides reports and advice, it is the responsibility and power of senior management to make final decisions on the obliged entity's AML/CFT strategy and resources. This has been reflected in Art. 53(4) AMLD, which limits the ability to apply pecuniary sanctions and administrative measures to senior management and other natural persons “who under national law are responsible for the breach”. Holding the compliance function personally liable could, in fact, weaken senior management's accountability and be counterproductive to establishing an effective governance structure in which tasks and responsibilities are clearly assigned.

Name of the Organisation	Question	Answer
		Any disproportionate approach, holding the compliance function personally liable for the failures caused by the decisions made by the senior management, would have implications for the availability of professionals performing these tasks. It would undermine the attractiveness of these roles, leading experienced professionals to pursue other career paths. This would be detrimental to the strength of the AML/CFT response, as their knowledge, experience, and advice are critical resources for the obliged entities. Therefore, the liability and any sanctions should target the obliged entity or its senior management, leaving it to the legal entity to address any serious misconduct by its employee. We would like to draw AMLA's attention also to another important element. Article 4(6) refers to the financial strength of the natural person, including, where applicable, the annual income (fixed and variable remuneration). We would like to point out that this represents employees' personal information that AMLA and AML/CFT supervisors have no authority to request, and obliged entities are not entitled to share. This is another argument against applying pecuniary sanctions to these professionals.
EFAMA	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We would also like to reiterate that the administrative measures, such as (i) the restriction or limitation of the business, operations, and (ii) withdrawal or suspension of authorisation, will significantly impact an obliged entity's operations. The implications of such measures might also be difficult to reverse once full compliance with AML/CFT obligations is restored. Therefore, we believe that they should be reserved for the most significant breaches i.e. classified under category four only.
Notarial Chamber of the Czech	QUESTION 1: Do you agree that the	Even though we believe the indicators can be technically speaking applied to the non-financial sector, we are not convinced that the regulatory approach is appropriate. The RTS should reflect the reality of the non-

Name of the Organisation	Question	Answer
Republic (Notarska komora Ceske republiky)	proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	financial sector and small obliged entities. At the same time, they should be guided by the principle of proportionality, which is not the case towards the non-financial sector and/or small obliged entities. At this stage, we would therefore like the supervisory judgement to be emphasized and the form of fault (negligence or intent) to be stipulated as one of the indicators. At the same time, we suggest the following amendment to Article 2(4) regarding the breaches of category one: “4. Supervisors shall classify the breach under category one breaches where there is no direct impact or the impact is minor on the obliged entity when assessing the indicators specified in Article 1, points (d) or (e), and, at the same time: - when assessing the indicator specified in Article 1, point (a), the breach has lasted for a short period of time, or - when assessing the indicator specified in Article 1, point (b), the breach has been committed on a non- or limited repetitive basis. Supervisors shall not classify a breach as category one if indicators specified in Article 1, points (g) to (k) are met.” This amendment aims at ensuring more proportionality in the context of smaller obliged entities.
Notarial Chamber of the Czech Republic (Notarska komora Ceske republiky)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not	The criteria seem to be applicable to the non-financial sector, but they should include also other elements relevant especially to smaller obliged entities (without a continuous overview of clients’ cash flow and daily financial operations available to banks). We suggest at least the following two points to be added to Article 4 (2): - the effort of the obliged entity to prevent the breach, - the complexity of the transaction (especially in view of the information asymmetry between the client and obliged entity),

Name of the Organisation	Question	Answer
	agree, please explain your reasoning.	
Notarial Chamber of the Czech Republic (Notarska komora Ceske republiky)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	In our opinion, the supervisors shall take into account the financial situation of the obliged entities being natural persons of the non-financial sector, as the maximum sanctions provided for by the Directive are extremely high. We would like to propose the following amendment of Article (5) and (6): “5. When setting the level of pecuniary sanctions, supervisors shall take into account the financial strength of the legal person held responsible, including, where applicable, and in the light of its total annual turnover from activities that fall within the scope of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, any available relevant information from the financial statements in order to assess financial capacity and information from prudential authorities on the level of regulatory capital and liquidity requirements.” “6. When setting the level of pecuniary sanctions, supervisors shall take into account the financial strength of the natural persons held responsible by assessing all the information made available. Such assessment shall cover the annual income from activities that fall within the scope of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, whether consisting of fixed or variable remuneration, received from the obliged entity or group of which the obliged entity is part and where relevant, other income from activities that fall within the scope of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113 of the natural person held responsible.” When setting the level of pecuniary sanctions because of breaches of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, it seems reasonable to only take into account turnover and income from activities that fall within the scope of these regulations.
Notarial Chamber of the Czech Republic (Notarska	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	As notaries in most countries are legally obliged to provide all notarial services except for individual reasons foreseen by law (and hence may not limit the portfolio of their services), we do not think that Art. 5 (2) should be applied to the non-financial sector. Similarly, notaries in many countries cannot create networks that are to be limited in cases foreseen by this provision. Hence, we suggest the following formulation of Art. 5 (2): Where restriction or limitation of the business, operations or network of institutions comprising the obliged

Name of the Organisation	Question	Answer
komora Ceske republiky)	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	entity, or requiring the divestment of activities as referred to in Article 56 (2) point (e) of Directive (EU) 2024/1640 is applicable, supervisors shall take into account each of the following criteria to its applicable extent: ... Further, removal of a notary from the office is a serious step to be undertaken by the Ministry of Justice or other judicial bodies in most member states. It requires respecting constitutional limits and proportionality. In view of these aspects, we think that Article 5(3)(a) shall be reworded as follows: ...the level of gravity is classified pursuant to Article 2 as category four. When it comes to a suspension of the authorization, it must be clarified that this measure can lead to the actual termination of the activity of the respective notary due to continuing operation costs to be covered by the individual notary without generating any income. In this respect, the situation is significantly different from other sectors without the appointment to the function exercised by the state.
Notarial Chamber of the Czech Republic (Notarska komora Ceske republiky)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Application to the non-financial sector would require several amendments. It is necessary to stipulate at least a minimum period for written comments pursuant to Art. 7(2); this should not be shorter than 5 working days. Article 8(3)(e) shall be reworded as follows: (e) the financial strength of the natural person or legal person concerned, provided the supervisor had the possibility to determine this when the applicable administrative measure was imposed. At the same time, suspensory effect shall be foreseen for case an administrative action has been filed.
Sveriges Advokatsamfund (the Swedish Bar Association)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of	General remarks: As the format of the questionnaire did not permit complete responses to all questions, the Swedish Bar Association (the "SBA") has submitted a supplementary paper to AMLA setting out its full comments. The SBA endorses the position expressed by the Council of Bars and Law Societies of Europe (CCBE) that AMLA should develop specific regulatory technical standards tailored to the legal profession, rather than

Name of the Organisation	Question	Answer
	breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	extending financial sector-oriented standards to the non-financial sector. The SBA also shares the CCBE's concern that several provisions of the draft RTS appear to exceed the mandate conferred upon AMLA under Article 53(10) of AMLD 6 and should be strictly limited to that mandate. Without prejudice to the foregoing, and in order to ensure that the legal profession's perspective is fully reflected in the event that the draft RTS – in whole or in part – were to be applied to law firms and lawyers, the SBA sets out below its comments on the specific provisions of the draft RTS. These comments are submitted on a strictly subsidiary basis and shall not be construed as an acceptance that the draft RTS constitutes an appropriate regulatory instrument for the legal sector. The SBA supports AMLA's objective of ensuring supervisory convergence and consistent enforcement across Member States. The legal profession possesses unique structural and constitutional characteristics – including statutory professional secrecy, independence obligations and a pivotal role in upholding the rule of law – which objectively justify certain targeted clarifications in the final RTS. Question 1: Article 1 – Indicators of the Level of Gravity. Several provisions require clarification to ensure proportionate application to the legal profession. The draft RTS provides no guidance on how the indicators are to be weighted in relation to one another. Given the three-step structure of the draft RTS, there is also a risk that the same factual circumstances may be considered at more than one stage of the assessment. Guidance is needed to avoid double counting and ensure a proportionate, workable methodology. Article 1(a) – Duration of the Breach. It is unclear whether the relevant period runs from when the deficiency arose, when the obliged entity ought reasonably to have detected it, or when the supervisory authority became aware of it. This distinction may significantly affect classification outcomes and must be clarified. Article 1(b) – Repetition of Breaches. It remains unclear whether "repetition" requires recurrence of the same type of breach or whether different deficiencies identified at different times may cumulatively satisfy this criterion. This concept requires further clarification to ensure predictability and legal certainty. Article 1(d)(iv) – Impact on AML/CFT systems. The assessment of the extent to which AML/CFT systems have been affected presupposes a causality analysis. Methodological guidance is necessary, particularly as regards smaller law firms. Article 1(h) – Structural or Material Failures. While the qualifier "material" is a welcome addition, it does not sufficiently resolve interpretative uncertainty in the legal profession context. Supervisory decisions in the

Name of the Organisation	Question	Answer
		advisory sector frequently concern deficiencies in general risk assessments, which inherently involve professional judgment. Without further clarification, there is a risk that such deficiencies may automatically trigger classification under category four pursuant to Article 2(7). The assessment of materiality should explicitly incorporate an evaluation of actual or potential harmful effects, and guidance should clarify how the size, structure and professional nature of the obliged entity are to be considered. Articles 1(i)–(j) – Systemic Impact Indicators. These indicators are primarily relevant to the financial sector. In law firms, such systemic effects will generally not arise. Further clarification is warranted to reduce the risk of inconsistent application across Member States. Article 1(l) – Non-Exhaustive List of Indicators. The absence of any requirement that additional indicators be determined, documented and communicated in advance undermines foreseeability and risks introducing arbitrariness. Any additional indicators relied upon by a supervisor should be clearly determined, documented and communicated to the obliged entity before forming the basis of an enforcement decision. Article 2(8) – Combined Assessment of Multiple Breaches. Supervisors should be required to provide explicit reasoning where Article 2(8) is relied upon to classify several individually lower-gravity breaches as category three or four. Clear guidance should also be provided on how this provision is to be applied in practice.
Sveriges Advokatsamfund (the Swedish Bar Association)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Article 4 – Criteria for Setting the Level of Pecuniary Sanctions. In law firms, it is often not possible to isolate or quantify any financial benefit obtained, or loss caused to third parties, directly attributable to a specific AML/CFT deficiency. Non-financial sector supervisors should apply such criteria with caution and avoid drawing adverse inferences solely from the absence of quantifiable financial data. Additional guidance is warranted on how these criteria are to be applied where such quantification is not readily feasible. Article 4(3)(a) – Right Not to Self-Incriminate. This provision raises concerns regarding compatibility with the fundamental right not to self-incriminate, as reflected in Article 6 ECHR. The mere fact that an obliged entity adopts a passive position should not, in itself, justify an increase in the level of pecuniary sanctions. While active cooperation may appropriately be treated as a mitigating factor and active concealment as an aggravating factor, the absence of voluntary self-reporting must not automatically result in an increased sanction. Clarification is required to ensure application compatible with fundamental rights. Articles 4(2)–(3) – Professional Secrecy and Independence. A lawyer should not, solely on the basis of what a supervisor might reasonably expect within the meaning of Article 4(3)(a), be required to disclose information

Name of the Organisation	Question	Answer
		protected by professional secrecy absent a prior request from the competent supervisory authority. Articles 4(2) and 4(3) should therefore be amended to expressly provide that they apply subject to limitations arising from statutory professional secrecy and other legally protected confidentiality obligations. Article 4 – Explicit Proportionality Requirement. Although the principle of proportionality is acknowledged in the recitals, an explicit proportionality requirement should be incorporated into Article 4 , ensuring that enforcement measures are calibrated by reference to the actual seriousness of the breach and the size, nature and complexity of the obliged entity.
Sveriges Advokatsamfund (the Swedish Bar Association)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The SBA agrees, in principle, that supervisors should be permitted to consider the financial strength of the obliged entity to ensure that pecuniary sanctions are both proportionate and dissuasive. However, the non-financial sector is not subject to harmonised capital or liquidity requirements. Financial information may therefore be less standardised and less readily available than in the financial sector. Supervisors should accordingly apply this criterion with appropriate flexibility and proportionality. In law firms, partners and senior lawyers often receive variable remuneration that may fluctuate significantly from year to year. Reliance on a single year's income may therefore provide a misleading picture of actual financial capacity and risk resulting in disproportionate sanctions. Furthermore, the reference to "annual income" in Article 4(6) raises interpretative questions. It is unclear whether this refers to the year in which the breach occurred or the year preceding the supervisory authority's decision. This distinction may have significant practical implications and should be clarified in the final RTS.
Sveriges Advokatsamfund (the Swedish Bar Association)	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	Articles 5(2)–(4) – Methodology and Proportionality. For reasons of legal certainty, it should be clarified whether each criterion may independently justify an administrative measure or whether the criteria are to be weighed together as part of a comprehensive proportionality assessment. Article 5(2) – Limitation of Business. It is unclear how such a measure would operate in practice in relation to law firms, where legal practice is inherently difficult to segment. It is unclear whether such a limitation would entail a prohibition on accepting new clients, a prohibition on acting within a specific area of law, or a

Name of the Organisation	Question	Answer
	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	prohibition on representing clients in a particular economic sector. For niche law firms, even a narrowly defined restriction may in practice amount to a partial cessation of activities, with serious consequences for clients and employees. Article 5(3) – Withdrawal of Authorisation. In Sweden, law firms are not subject to authorisation as entities; individual lawyers are authorised by the SBA, while firms are merely registered. This measure therefore does not appear directly applicable to law firms and, if applied, would likely conflict with the Swedish legal framework. Unlike banks, withdrawal affecting a law firm may in practice amount to a complete cessation of activities, with severe consequences for clients at critical procedural stages. Article 5(2) expressly requires supervisors to consider the potential negative impact on clients when limiting business, but no corresponding requirement exists in Article 5(3). Given that withdrawal is the most intrusive measure available, the RTS should clarify that client impact must be considered here as well. Article 5(3)(d) – Structural or Material Failures. The concerns expressed under Question 1 regarding interpretation of "material" failures apply equally here. Differences in professional assessment should not be automatically characterised as "material failures" triggering the most severe administrative measures. Article 5(4) – Governance Restructuring. Requirements to alter governance structures may interfere with contractual freedom and property rights in partner-based law firms. Any such measure should be narrowly tailored to specific governance deficiencies and should not amount to a general restructuring. Article 5 – Explicit Proportionality Requirement. Although the principle of proportionality is acknowledged in the recitals, an explicit proportionality requirement should be incorporated into Article 5, ensuring that enforcement measures are calibrated by reference to the actual seriousness of the breach and the size, nature and complexity of the obliged entity.
Sveriges Advokatsamfund	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as	Section 3 – Periodic Penalty Payments. The SBA considers it is essential that: (i) periodic penalty payments remain clearly distinguished from punitive sanctions; (ii) proportionality is carefully assessed in each individual case; and (iii) procedural safeguards – including the right to be heard and the right not to self-incriminate – are respected throughout the enforcement process.

Name of the Organisation	Question	Answer
(the Swedish Bar Association)	listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The reference to the "preceding financial year" in the calculation of periodic penalty payments raises interpretative questions. It is unclear whether this refers to the financial year preceding the commission of the breach or the financial year preceding the supervisory authority's decision. This distinction may have material implications for the level of periodic penalty payments and should be clarified in the final RTS. Article 7(2) – Time limit for Written Submissions. The time limit of up to four weeks for written submissions may be insufficient in more complex cases, particularly for smaller obliged entities in the non-financial sector. The applicable time limit should be set in a manner that ensures a meaningful opportunity to be heard, having regard to the complexity of the case and the circumstances of the obliged entity concerned. Concluding Remarks: The SBA would like to reiterate that it endorses the position expressed by the CCBE that AMLA should develop specific RTS specifically tailored to the legal profession, rather than extending financial sector-oriented standards to the non-financial sector. Notwithstanding the above, the SBA supports AMLA's objective of supervisory convergence and consistent enforcement across the European Union. However, the legal profession fulfils a constitutionally recognised role in the administration of justice and is bound by statutory duties of professional secrecy, independence and loyalty. These characteristics constitute objectively identifiable sector-specific features that warrant careful consideration in the design and application of enforcement measures. The draft RTS does not expressly address the interaction between AML/CFT enforcement obligations and lawyers' statutory professional secrecy. This deficiency appears across several provisions and, if left unaddressed, is likely to give rise to adverse practical and constitutional consequences. The SBA therefore considers it essential that AMLA – should it decide to proceed without the requested sector-specific RTS – whether in the final RTS or in accompanying guidance, expressly clarify how such conflicts are to be resolved. Targeted clarifications in the areas identified above would serve to reinforce the proportionality, legal certainty and overall legitimacy of the draft RTS as applied to the legal profession.

Name of the Organisation	Question	Answer
Fédération Bancaire Française	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	As an introductory remark, we would like to inform AMLA that we understand the financial sector is not the primary target of these questions. Nevertheless, we wish to bring to your attention several requests that we previously submitted during the EBA consultation. As these points were not reflected in the final outcome, we would like to reiterate our proposed adjustments for AMLA's consideration. It is with this objective in mind that we have provided our perspective in response to the questions below. Regarding this RTS it appears key to clarify enforcement boundaries between administrative penalties and civil/criminal liability. Overlapping regimes (e.g., AMLR and GDPR) risk double penalties. Clear guidance is needed to prevent conflicting obligations and ensure legal certainty. In details, please find below our comments and suggestions regarding the proposed list of indicators to classify the level of gravity of breaches sets out in Article 1 of the draft RTS: (a) Necessity to delimit the duration to avoid discrepancies between supervisors and create unfairness within obliged entities. The question of the limitation period should be also taken into account and specified. (b) Notion of repetition to be clarified in terms of time. The question of the limitation period should be considered. Paragraphs (a) and (b) could be merged. (c) This indicator is not taken into account in the article 2 "Classification of the level of gravity of breaches". We would appreciate understanding its purpose. (e) Redundant with paragraph (d). This should be clarified and merged with paragraph (d). (g) This kind of assessment falls in the competence of criminal judges, not supervisors. This sentence should be deleted. (h) To be clarified. Necessity to define what is a structural failure. Point of attention: this concept refers to banking failures with a prudential analysis falling within the competence of the issuing authorities in relation to the ECB. This analysis of a structural failure (with a resolution procedure) of an authorized entity affecting the stability of the banking and financial sector cannot fall within the competence of the AMLA but of the supervisory authorities, since conditions suspending the retention of the authorization. It is therefore requested to review the concept of structural failure to recall the supervisory and decision-making powers of the other competent authorities on the subject. (i) To be clarified. In particular the criteria on which the supervisors will rely to assess if the breach has an actual or potential impact on the financial viability of the obliged entity. (j) We would appreciate to understand if it means that the impact of the breach will be judged more severely

Name of the Organisation	Question	Answer
		for systemic financial institutions. (k) This seems redundant with the article 1(a) related to the repetition. (l) Too broad. This should be deleted considering the previous indicators that give the possibility to cover most of situations of breach. If not deleted, other indicator identified by supervisors should be prior communicated to obliged entities. Regarding article 2, please find below our comments : Article 2 (3): "Supervisors may classify under those categories breaches other than those described in paragraphs 4 to 7." The phrasing of this sentence is unclear and requires clarification. Specifically, the term "breaches other than" should be explicitly restricted to AML/CTF matters and must not be extended to other compliance topics. Article 2 (4) This requires clarification, particularly regarding the criteria for determining direct and indirect impacts. Additionally, it is unclear why a breach would be considered if there is no direct impact. Criteria should be established to assess the impact as minor, moderate, significant, or very significant. Additionally, criteria should be defined to determine when a breach is considered significant. Article 2 (7) The classification falls within the prerogative of the criminal judge, whose role is to determine whether the breach has facilitated or led to criminal activities. This responsibility does not lie with supervisors and should therefore be removed. Article 2 (8) It is not logical that combined breaches could be classified under categories 3 or 4 when each individual breach does not fall into these categories when assessed separately. This provision should be removed.
Fédération Bancaire Française	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial	Regarding the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions of Article 4 of the draft RTS, this assumption is not relevant, as these characteristics should first be considered in determining the level of gravity of breaches. Consequently, this article should be removed. Regarding Article 4 (2), the level of cooperation should be assessed based on the overall behavior of the obliged entity. Additionally, natural persons who may be held responsible alongside the supervisor should be precisely identified, and clear mechanisms for individual liability should be established. Regarding Article 4 (3): (a) The obligation of natural and legal persons held responsible alongside supervisors should be limited to responding to supervisors' requests. They should not be expected to determine supervisory expectations. Therefore, this provision should be removed.

Name of the Organisation	Question	Answer
	sector? If you do not agree, please explain your reasoning.	(c) Clarification is needed regarding whether a graduated system exists to assess the degree of responsibility. (f) A limitation period should be taken into account. (g) The scope is too broad and should be removed, as previous criteria already provide sufficient coverage for most situations. If this provision is not deleted, any additional criteria identified by supervisors should be communicated to obliged entities in advance.
Fédération Bancaire Française	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Please find below our comments on article 5 of the draft RTS. Article 5(2): The phrase "network of institutions comprising the obliged entity" is too vague and requires clarification. (e) is overly broad and should be removed. Article 5(3): c) The level of cooperation and the conduct should be taken into account by considering the behaviour of the obliged entity overall instead. (d) To be clarified. Necessity to define what is a structural failure. Point of attention: this concept refers to banking failures with a prudential analysis falling within the competence of the issuing authorities in relation to the ECB. This analysis of a structural failure (with a resolution procedure) of an authorized entity affecting the stability of the banking and financial sector cannot fall within the competence of the AMLA but of the supervisory authorities, since conditions suspending the retention of the authorization. It is therefore requested to review the concept of structural failure to recall the supervisory and decision-making powers of the other competent authorities on the subject. (e) Too broad. This should be deleted. If not deleted, other criteria identified by supervisors should be prior communicated to obliged entities.
Fédération Bancaire Française	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-	Please find below our comments on articles 6 to 9 of the draft RTS. - Article 6(1): We propose restricting this topic exclusively to "mise en demeure" (formal notice), without extending it to "lettre de suite" (follow-up letter). - Article 7(2): Four weeks is an insufficient timeframe and should be extended. Additionally, the duration should be calculated based on working days rather than calendar days. - Article 7(4):

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	The fundamental rights associated with a fair trial should be guaranteed comprehensively. This includes the right to legal assistance and representation by a lawyer, as well as the right to appeal the decision. - Article 8(2): The right to appeal should be explicitly stated in the decision itself. Additionally, the decision should remain confidential and not be made public. - Article 9(1): Having three different frequencies is unnecessary. It would be more effective to standardize and adopt a single frequency instead.
CONSIGLIO NAZIONALE FORENSE - COMMISSIONE ANTIRICICLAGGIO	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The consultation document on anti-money laundering shows that the consultation is aimed exclusively at obtaining comments from interested parties in the non-financial sector on the draft RTS, which was prepared from the outset by the EBA and which would nevertheless apply to both the financial and non-financial sectors (and therefore also to lawyers). This Council wishes to point out that the obliged entities belonging to these two different sectors are, in view of their nature, financial and material resources and size, difficult to compare and that the application of the same RTS would be detrimental. It is clear that an individual solicitor working as a sole practitioner does not have the same breadth and depth of resources to comply with anti-money laundering obligations as a solicitor in a large law firm, let alone a bank, particularly with regard to the automation of certain parts of the processes. As the draft was designed for the financial sector, it is inevitable that certain aspects specific to solicitors and other legal professions are not addressed sufficiently to ensure a harmonised interpretation. This is why the Council believes that specific RTS dedicated to the legal profession should be developed in addition to those relating to the financial sector, especially considering that the non-financial sector comprises very diverse and heterogeneous categories of obliged entities. It is also essential to emphasise that the legal sector is subject to special rules in light of legal privilege and professional secrecy principles, which must be fully safeguarded in the context of risk assessment. It is essential that supervision does not result in lawyers being required to disclose information protected by these two principles. Furthermore, some provisions included in the draft RTS appear to impose more stringent obligations than those provided for in the 6th Anti-Money Laundering Directive. This suggests that the draft should be revised to

Name of the Organisation	Question	Answer
		ensure greater consistency with the logic and limitations of the Directive and to avoid an undue extension of the scope of the powers entrusted to the AMLA. In conclusion, we suggest that the implementation of the RTS be the result of coordination between the AMLA, non-financial supervisory authorities and legal professional associations to include all relevant elements and the specific characteristics of the various obliged entities. Articles 2 and 3 of the draft RTS cannot be applied to the legal sector, as they effectively create different categories of breaches depending on their severity. However, this has no legal basis in the 6th Anti-Money Laundering Directive and cannot be regulated by the RTS. In particular, it should be noted that Article 53(10)(1)(a) of AMLD VI only requires the RTS to establish 'indicators for classifying the level of seriousness of breaches'. Therefore, anti-money laundering must only contribute to defining these indicators to enable the national supervisory authority to assess the severity of the violation. The classification of violations into four classes contained in the draft RTS exceeds the scope assigned to the LRD. Consequently, this approach limits the assessment of the seriousness of a breach by national supervisory authorities, even though the "supervisory judgement" is repeatedly referred to in the draft RTS and also in the consultation paper. This rigid classification is incompatible with the principle of a risk-based approach and with case-by-case assessment, which is essential for lawyers, also in view of the principles of legal privilege and professional secrecy. This approach could lead to the sanctioning of conduct that is not serious, but simply the result of a good-faith error in the interpretation of two coexisting obligations: confidentiality and STR. We ask that a approach be considered, more gradual to the imposition of sanctions on lawyers following the path already taken for entities supervised, i.e. the provision in cases of first access by the authorities when dealing with purely formal violations or basic sanctions merely of issuing a warning to comply with the requirements to remedy the violations found within a reasonable period of time and only in the event of failure by the lawyer to comply with the procedures for the imposition of sanctions. In conclusion, the application of this Draft RTS to the legal sector would lead to the imposition of sanctions without adequate consideration of the specific circumstances of each case or the principle of proportionality, thus coming into total conflict with a cornerstone of anti-money laundering legislation, namely the risk-based approach.

Name of the Organisation	Question	Answer
CONSIGLIO NAZIONALE FORENSE - COMMISSIONE ANTIRICICLAGGIO	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The comments above regarding question 1 also apply to this question. It should be noted that cooperation with the supervisory authority may be limited or prohibited for lawyers in light of legal privilege or professional secrecy obligations. Therefore, the level of cooperation as a criterion could be a particularly relevant issue for lawyers.
CONSIGLIO NAZIONALE FORENSE - COMMISSIONE ANTIRICICLAGGIO	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The reference in Articles 4(5) and 4(6) of the proposed RTS applies to the non-financial sector. Articles 4(5) and 4(6) of the draft RTS on the link between the financial strength of the responsible person and the income received by the obliged entity to which they belong is a matter of concern. Such a link is problematic in cases where a solicitor acts as an independent professional while being part of a structured law firm.
CONSIGLIO NAZIONALE FORENSE -	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a	As mentioned above, it is essential that the supervisory authority be able to exercise its judgement when deciding whether and how to impose a sanction. The competences and powers of supervisory authorities must also be taken into account, as in some Member States supervisory authorities do not have the power to impose financial penalties or administrative

Name of the Organisation	Question	Answer
COMMISSIONE ANTIRICICLAGGI O	non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	measures. In this respect, the draft RTS is not aligned with the actual situation and rules of supervisory authorities. From this point of view, lawyers may also encounter limitations in their ability to cooperate, as they may find themselves having to comply simultaneously with professional secrecy and legal professional privilege obligations on the one hand, and anti-money laundering obligations on the other.
CONSIGLIO NAZIONALE FORENSE - COMMISSIONE ANTIRICICLAGGI O	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	It does not appear that Article 53(10) of the Sixth Anti-Money Laundering Directive can be considered an adequate legal basis for regulating such procedural aspects, which should remain within the scope of national law. Article 7 of the draft RTS should be deleted. That said, Articles 7 and 8 should not be limited to providing for the right to be heard, but should rather refer to the set of procedural safeguards of any defendant in a fair trial. This would be the only way to ensure a fair decision and the right to defense.
Caixa Geral de Depósitos	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-	CGD generally agrees that the proposed list of indicators to classify the level of gravity of breaches, as set out in Article 1 of the draft RTS, can be applied to the non-financial sector, as they reflect a risk-based and outcome-focused approach and contribute to consistent supervisory assessments across Member States. However, CGD considers that, in the context of practical application, supervisors should retain sufficient flexibility to distinguish between structural deficiencies and isolated or incidental operational incidents, particularly those arising from technological limitations, reliance on external service providers or system-related issues. Where such incidents do not result in a material impact on AML/CFT risk, their classification as high-gravity breaches may undermine the proportionality objective of the RTS.

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	Clarifying this distinction, either in the RTS or through supervisory guidance, would enhance legal certainty and support a more proportionate and consistent application across sectors.
Caixa Geral de Depósitos	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	CGD agrees that the criteria set out in Article 4 of the draft RTS for determining the level of pecuniary sanctions are, in principle, applicable to the non-financial sector, as they appropriately reflect the need to balance effectiveness, proportionality and dissuasiveness. In particular, CGD supports the inclusion of qualitative criteria that allow supervisors to take into account the nature, duration and impact of the breach. Nevertheless, CGD considers it essential that mitigating factors be applied in a consistent and meaningful manner. These should include, in particular, the timely identification of deficiencies through internal controls, voluntary disclosure to competent authorities and the prompt implementation of corrective measures. Explicitly reinforcing the weight of such mitigating factors would further align the sanctioning framework with the preventive and risk-based objectives of the AML/CFT regime.
Caixa Geral de Depósitos	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	CGD agrees that the consideration of the financial strength of the legal or natural person held responsible is a relevant criterion when setting pecuniary sanctions, including in the non-financial sector, as it contributes to ensuring that sanctions are effective and dissuasive. That said, CGD considers that this criterion should be applied with particular prudence and proportionality, especially in the context of group structures and where responsibility is attributed to natural persons who do not qualify as obliged entities. In such cases, the application of financial strength criteria should avoid disproportionate outcomes that may not reflect the individual's actual capacity to influence compliance outcomes. Further clarification on the application of these criteria in complex organizational and group contexts would contribute to more consistent supervisory practices.

Name of the Organisation	Question	Answer
Caixa Geral de Depósitos	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	CGD generally agrees with the criteria proposed under Article 5 of the draft RTS, as they provide a structured framework for the application of administrative measures and support consistent supervisory decision-making. However, CGD emphasizes that the application of more intrusive administrative measures should remain proportionate to the gravity and persistence of the breach. In particular, due consideration should be given to the complexity of the remediation process, including technological constraints and dependencies on third-party providers, which may reasonably require extended implementation timelines. Ensuring that such criteria are applied in a flexible and risk-sensitive manner will be key to preserving both the effectiveness and fairness of the supervisory framework.
Caixa Geral de Depósitos	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	CGD acknowledges that the proposed methodology for imposing periodic penalty payments, as set out in Section 3 of the draft RTS, may be applicable to the non-financial sector, given its potential effectiveness in addressing situations of persistent non-compliance. Nevertheless, CGD considers that periodic penalty payments are, by nature, highly intrusive and coercive measures and should therefore be reserved for cases of serious and persistent non-compliance involving a continued and unjustified failure to comply with instructions issued by the competent authority. CGD does not consider their application appropriate in cases of isolated deficiencies or in remediation processes which, due to their technical complexity or reliance on third-party providers, reasonably require longer implementation periods. In all circumstances, the application of periodic penalty payments should fully respect the right to be heard, be duly reasoned, and take into account the operational complexity involved in remedying the identified deficiencies.
Chamber of Tax Advisers of the Czech Republic	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of	The Chamber of Tax Advisers of the Czech Republic supports the statement of the CFE (Confédération Fiscale Européenne – Tax Advisers Europe), of which it is a member, and agrees with its arguments.

Name of the Organisation	Question	Answer
	breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	
Chamber of Tax Advisers of the Czech Republic	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	In addition to the statement in the first answer, we emphasize that when determining the level of sanctions for breaches of AML obligations, it is essential to take into account the differing economic conditions of the Member States and AML-obliged entities. Therefore, we do not consider it appropriate to strive for the harmonization of fines across all EU countries.
Harmonic Fund Service Luxembourg	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you	Agree

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	
Harmonic Fund Service Luxembourg	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Agree
Harmonic Fund Service Luxembourg	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Agree

Name of the Organisation	Question	Answer
Harmonic Fund Service Luxembourg	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Agree
Harmonic Fund Service Luxembourg	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Agree
Insurance Europe	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of	Insurance companies take measures to combat money laundering and terrorist financing very seriously and devote considerable resources to complying with the prescribed regulations. When drafting the RTS on uniform enforcement (fines, administrative penalties) it should be considered that supervisory authorities should be given the option of first initiating a warning procedure in the event of violations, with the mandate to

Name of the Organisation	Question	Answer
	breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	restore compliance with the law within a period to be determined by the supervisory authority, and only imposing a penalty if this period expires without action being taken.
Alter Domus	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we do. In respect of "structural failure" we wish to request a clarification given its automatic Category 4 classification under Article 2(7)(b). Does it require: (a) multiple interconnected control failures; (b) pervasiveness across business lines; (c) persistence despite opportunities to remedy; (d) root cause in governance/culture rather than isolated operational lapses? In respect of "number of customers affected" (Article 1(d)(iii)) it shall be contextualized for non-retail business models.
Alter Domus	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not	Yes, we do. We wish to be provided with more clarity in respect of Art 4.3(d). PSF, AIFM and Corporate Services providers receive flat fees regardless of compliance quality. There is no additional revenue or competitive advantage for a PSF from weaker controls. Breaches typically increase costs (remediation, legal, reputational damage).

Name of the Organisation	Question	Answer
	agree, please explain your reasoning.	
Alter Domus	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we do. We wish to request a methodology guidance: Art4(5)> When assessing financial strength of obliged entities without prudential capital requirements, profit margins, EBIT, and available equity in addition to turnover shall be considered, recognizing that entities with low-margin business models have proportionally less capacity to absorb pecuniary sanctions. And Art4(6)> It shall be recognized the sector-specific variations in remuneration structures, including the proportion of fixed versus variable components.
Alter Domus	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Yes, we do. We suggest adding more clarity around thresholds for severe measures (authorization withdrawal, business restrictions) with greater consideration of proactive remediation potential. For instance, the Authorization withdrawal is the most severe measure with biggest market impact (client disruption, job losses, market concentration). Therefore, it should require cumulative criteria, not a single factor.

Name of the Organisation	Question	Answer
Alter Domus	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we do. It is not fully clear how factors under Article 8(3) are weighted, when the non-compliance is calculated from, if PePP accrues through the whole period since activation or only after implementation deadline passes and there is not Explicit recognition of partial compliance (accrual last until full compliance is completed) and good-faith efforts. We therefore propose three implementation guidances: -Set interim compliance milestones, with PePP accruing only upon milestone failures. -Adjust the daily/weekly/monthly amount to reflect partial compliance achieved. -Suspend accrual where delays are attributable to factors outside the entity's reasonable control and the entity demonstrates good-faith compliance efforts.
Accountancy Europe	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Assessment of indicators We do not agree that the proposed indicators apply to the non-financial sector. We set out below which indicators require adaptation for the accountancy sector and include related recommendations. Indicator (c) – Conduct of the natural or legal person: The term ‘conduct’ is overly broad, potentially encompassing negligence, imprudence, bad faith, obstruction, or lack of cooperation. A clear distinction between professional error and intentional wrongdoing i.e. fraud is needed. Indicator (d) – Impact on the obliged entity: Requires multi-dimensional assessments, including group-level impact, cross-border activities, number of clients affected, impact on products or services, and AML/CFT effectiveness. For small accountancy or tax practices, these criteria are often meaningless: • In a small practice, any breach may technically affect “100% of clients,” inflating perceived severity. • Professionals typically operate individually or in simple structures without complex products, services, or cross-border operations. Applying these criteria mechanically could lead to formalistic assessments that do not reflect actual risk or operational realities. Indicator (e) – Exposure of the obliged entity or group: Assumes structured risk assessment methods that are generally unavailable in small professional settings. Exposure is often linked to individual engagements, making aggregate assessments difficult. Indicator (g) – Facilitation of criminal activities: Broadly covers all offences in Article 2(1) of Directive 2018/1673. Vigilance failures in our sector may indirectly facilitate tax fraud or misuse of corporate assets. Without safeguards, most procedural breaches could be classified as facilitating criminal activity, triggering

Name of the Organisation	Question	Answer
		category 4. Indicator (h) – Structural failure: Requires clarification; it is unclear whether isolated procedural shortcomings are included or only persistent organisational deficiencies. Indicators (i) and (j) – Impact on financial viability and financial stability: Largely irrelevant for non-financial professionals, as breaches rarely affect financial strength or systemic stability. Indicator (k) – Systemic nature of the breach: Further clarification is needed; it is unclear what constitutes a systematic breach in small practices. Classification of infringements Indicator (f) is essential for assessing breach severity in the accountancy sector but is not included in the criteria for categories 1-4. Most AML breaches in accountancy involve: • Internal procedure deficiencies • Shortcomings in CDD • Incomplete or missing documentation Excluding indicator (f) risks structural inconsistencies and artificial misclassification, either overestimating or underestimating severity. Undefined indicators and sectoral relevance Indicators such as “significant impact,” “significant duration,” “significant repetition,” and “systematic failure” are undefined. In small practices, repeated procedural shortcomings (e.g., incomplete CDD) could be classified as category 3 (“serious, repeated or systematic”). Without clearer definitions, this risks: • Disproportionate sanctions • Mandatory publication obligations • Reputational harm Recommendations for proportionate application Introduce sector-specific definitions and thresholds: Calibrate “significant” impact for small practices; define “duration” and “repetition”; distinguish “structural failure” from lack of formalisation. • Neutralise irrelevant indicators: - o Impact on financial stability (j) - o Group-level impact (d)(i) - o Impact on financial markets (k) • Distinguish technical and substantive breaches: Ensure minor procedural shortcomings are not classified as

Name of the Organisation	Question	Answer
		serious. • Embed proportionality in classification: Include a recital clarifying that indicators must consider the size, nature, and complexity of the entity in line with EU AML/CFT principles. • Clarify cumulative assessment of minor breaches: Paragraph 8 allows combining category 1-2 breaches to classify as 3-4. Minor breaches are minimal, non-repetitive, non-systematic, and do not facilitate crime; these elements should not change solely due to combination. Recommendation: delete paragraph 8 or provide clear guidance to ensure consistent, predictable enforcement.
Accountancy Europe	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Criteria to be considered when determining the level of pecuniary sanctions Articles 4 and 5 of the draft RTS align with the logic of the EU AML Package, including: • The distinction between aggravating and mitigating circumstances • Consideration of the conduct of the person responsible for the breach • Attention to cooperation with the supervisory authority • Assessment of the financial capacity of the person or entity responsible • Linkage with the classification of breaches into categories 1-4 However, we do not agree that the proposed criteria in Article 4 of the draft RTS for determining pecuniary sanctions are fully applicable to the non-financial sector. Several aspects, in particular, raise concerns for non-financial professions such as accountancy practices: Criteria designed for financial markets Some criteria, such as “losses to third parties” or “loss or risk of loss caused to customers or other market users,” are framed with financial markets in mind. Concepts such as competitive advantage, market users, or broader impacts on competition are generally not relevant to accountancy practices. Applying these criteria risks misaligning the assessment of severity and sanctions with the operational realities of non-financial entities. Proportionality for small and medium-sized practices Pecuniary sanctions must be proportionate to the size, business model and financial capacity of the obliged entity, in line with the proportionality principle of the AML framework. Several criteria — for example: (d) the benefit derived from the breach insofar as it can be determined and whether the natural person or legal person held responsible has benefited or could benefit either financially or competitively from the breach or avoid any loss; (e) the losses to third parties caused by the breach, insofar as they can be determined, and the loss or risk of

Name of the Organisation	Question	Answer
		loss caused to customers or other market users; — may be difficult to apply meaningfully in the context of small practices, where such benefits or losses are typically minimal or indirect. Clear guidance on assessing financial capacity would help ensure sanctions are proportionate and operationally realistic. Treatment of minor breaches and corrective actions When determining the level of pecuniary sanctions, it is essential to ensure compliance with the principles of proportionality and fairness, particularly where breaches arise from mere negligence or formal or technical errors. In such cases, greater emphasis should be placed on corrective measures and cooperative compliance mechanisms rather than financial penalties. For breaches classified under categories 1 and 2, it should be clarified that pecuniary sanctions are, in principle, not imposed. Where the obliged entity has taken timely and effective corrective action, and the deficiency has been fully remedied, the procedure should be formally closed with definitive effect. Furthermore, a breach that has been corrected and resolved should not subsequently be treated as a “previous breach” for the purposes of Article 4(3)(f). Counting minor and remedied breaches as aggravating circumstances would undermine incentives for prompt remediation and voluntary compliance, and would risk disproportionate escalation in future cases. Conclusion: While the criteria in Articles 4 and 5 provide a useful framework, their practical application to non-financial professions requires clarification, proportionality adjustments, and guidance tailored to the size, structure, and operational context of smaller obliged entities.
Accountancy Europe	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you	Applicability of financial strength to the non-financial sector We do not agree that the proposed approach to assessing the financial strength of the legal or natural person held responsible (Articles 4(5) and 4(6) of the draft RTS) is appropriately suited to the non-financial sector. While the underlying principle of proportionality is relevant, the current formulation raises substantial practical challenges for non-financial entities, particularly small accountancy and tax advisory practices. 1. Legal persons (Article 4(5)) The size, structure, and type of activity of an obliged entity must be taken into account. A large bank with substantial regulatory capital and liquidity differs fundamentally from a sole-practising accountant or small partnership. Within the non-financial sector, significant variation exists even between similar professions. For example, turnover and profitability differ between accounting and audit services. A firm where accounting represents

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	90% of turnover could be disproportionately penalised for breaches in audit activities if financial capacity is applied mechanically. Indicators such as regulatory capital and liquidity, relevant in the financial sector, are not applicable to accountancy practices, which are often partnerships. Further guidance is necessary to clarify the parameters for assessing financial capacity in small, single-practitioner businesses. For non-financial entities, turnover is a more meaningful measure for calibrating pecuniary sanctions. 2. Natural persons (Article 4(6)) Penalties imposed on individuals must respect the principle of proportionality: sanctions should not exceed what is strictly necessary to achieve deterrence and compliance. Considering financial capacity for natural persons in small practices is challenging. Income from unrelated activities should not automatically increase penalties, as this may lead to disproportionate outcomes. Non-financial sanctions remain an important tool for enforcing compliance while limiting undue impact on personal assets. Possible measures include disciplinary sanctions (up to delicensing), fixed fines, and orders to comply. Conclusion: The concept of financial capacity is only partially applicable to the non-financial sector. For small and medium-sized accountancy practices, relevant adjustments are needed: • Use turnover rather than regulatory capital or liquidity to gauge capacity. • Ensure proportionality between the nature of the breach and the financial circumstances of the entity or individual. • Allow non-financial sanctions to complement pecuniary measures where appropriate. This approach would ensure sanctions remain effective, proportionate, and tailored to the realities of non-financial obliged entities.
Accountancy Europe	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	While we support the objective of establishing clear criteria to guide the application of administrative measures, we have substantive concerns regarding the practical implementation of certain measures in the non-financial sector, particularly the suspension or withdrawal of an authorisation. In the accountancy and audit profession, authorisations are often intrinsically linked to company law and professional regulatory frameworks. For example, the withdrawal of an audit registration is subject to specific statutory requirements and procedural safeguards under company law. The interaction between AML/CFT supervisory measures and these separate legal regimes may create legal and operational challenges.

Name of the Organisation	Question	Answer
	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	In particular, an automatic or rigid application of suspension or withdrawal measures in response to AML/CFT breaches could conflict with legal provisions governing professional authorisations. To ensure legal certainty and avoid unintended conflicts between regulatory frameworks, greater flexibility should be expressly reflected in the RTS. In this context, it is necessary to clarify that such measures are to be applied within the limits of the legal framework governing the relevant authorisation. Recommendation We therefore recommend amending the relevant provision as follows: “When considering whether to withdraw or suspend an authorisation as referred to in Article 56(2), point (f), of Directive (EU) 2024/1640, supervisors shall take into account, to the extent possible in law pertaining to such authorisation, each of the following criteria, to the extent that they apply.” Such wording would preserve the effectiveness of AML/CFT supervision while recognising the legal constraints applicable to professional authorisations in the non-financial sector, and would ensure that administrative measures remain proportionate, legally sound and operationally feasible.
Accountancy Europe	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	We do not agree that the proposed methodology for imposing periodic penalty payments under Section 3 of the draft RTS is sufficiently suited to the non-financial sector. The proposed approach raises significant concerns for non-financial obliged entities, particularly small and medium-sized accountancy practices: 1. Lack of operational clarity • It is unclear how periodic penalty payments would operate in practice, including their calculation, accrual (daily or periodic), capping, and the point at which a breach is considered remedied. • In jurisdictions unfamiliar with such mechanisms, this may lead to inconsistent understanding and application. • Illustrative examples would help ensure consistent interpretation across sectors and Member States. 2. Relevance of financial metrics • References to financial capacity, financial viability, or turnover as a basis for penalties are often not meaningful for small professional practices, particularly sole practitioners. • Where a natural person provides multiple services, only revenue related to AML-regulated activities should be considered. Total income or turnover from unrelated activities should not affect penalty calculation. • Guidance is needed on distinguishing professional revenue from other income. 3. Proportionality and timing • Daily or ongoing penalties should only be applied after a reasonable grace period, allowing the obliged entity

Name of the Organisation	Question	Answer
		time to remediate the breach. • Minor breaches arising from procedural errors or negligence should prioritise corrective measures over financial penalties. 4. Practical implementation challenges • Assessing group-level impacts or cross-border turnover is often impossible or irrelevant for small practices. • Supervisors require flexibility to determine when a breach has ended without imposing disproportionate administrative burdens. • Existing legal frameworks in some Member States (e.g., France) do not currently allow periodic penalty payments, and amendments would be needed for implementation. 5. Recommendations • Clarify calculation, accrual, capping, and remediation triggers for periodic payments. • Limit financial metrics to professional revenue only, and provide guidance for small and single-practitioner entities. • Introduce a grace period before penalties accrue to ensure fairness and proportionality. • Consider alternative enforcement mechanisms, such as suspension or compliance orders, for breaches in small non-financial practices. Conclusion: While the concept of periodic penalty payments aligns with AML/CFT objectives, its current drafting is unclear, operationally challenging, and poorly suited to non-financial entities. Greater clarity, sector-specific tailoring, and proportionality safeguards are essential for effective and fair application.
H2A	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you	The Haute Autorité de l'Audit (H2A), as the public oversight authority responsible for the supervision of statutory auditors in France, broadly agrees that the indicators proposed in Article 1 provide a useful framework for assessing the gravity of AML/CFT breaches in the non-financial sector. Several indicators are particularly relevant to the supervision of statutory auditors, including the duration and repetition of the breach, the conduct of the natural or legal person responsible, and the effectiveness of AML/CFT policies, procedures and controls within the audit firm. However, certain indicators appear primarily designed for financial institutions and may have more limited relevance in the context of audit firms. In particular, indicators relating to the potential impact on the integrity, transparency or stability of the financial system or on the orderly functioning of financial markets may rarely

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	arise directly from the activities of statutory auditors. In practice, the gravity of AML/CFT breaches in the audit sector is more closely linked to failures in professional obligations such as client due diligence, internal control procedures and suspicious transaction reporting obligations. The H2A therefore welcomes the fact that the list of indicators is non-exhaustive and allows supervisors to exercise supervisory judgement in light of the specific characteristics of the sector they supervise.
H2A	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The H2A generally agrees that the criteria set out in Article 4 are appropriate for determining the level of pecuniary sanctions in the non-financial sector, including the statutory audit profession. In particular, the criteria relating to the level of cooperation with the supervisor, the conduct of the person responsible after the breach has been identified, the degree of responsibility and the existence of previous breaches are consistent with the principles governing disciplinary sanctioning in the supervision of statutory auditors. However, certain criteria may require a specific interpretation when applied to the statutory audit profession. For example, the assessment of the benefits derived from the breach or the losses caused to third parties may be more difficult to determine in the context of audit services, where breaches of AML/CFT obligations are often linked to deficiencies in professional procedures rather than to direct financial gains. It would therefore be useful to clarify that these criteria should be applied where relevant and in a manner proportionate to the nature of the professional services provided by the obliged entity.
H2A	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article	The H2A agrees that the financial strength of the legal or natural person held responsible should be taken into account when determining the level of pecuniary sanctions, including in the statutory audit sector. Taking financial strength into account is consistent with the objective of ensuring that sanctions are effective, proportionate and dissuasive. However, the application of this criterion may present specific challenges in the audit sector. Audit firms often

Name of the Organisation	Question	Answer
	4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	vary significantly in size, ranging from large international networks to small and medium-sized firms. In addition, individual statutory auditors may exercise their activity either individually or within professional structures with limited financial reporting obligations. Supervisors may therefore have access only to limited information regarding the overall financial capacity of the persons concerned. In this context, it would be appropriate to clarify that supervisors should rely primarily on information reasonably available to them, such as publicly available financial statements or information provided during supervisory or disciplinary procedures.
H2A	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	The H2A broadly agrees with the criteria proposed in Article 5 for the application of administrative measures. In particular, linking the most severe measures to breaches classified as category three or four and to the existence of structural failures in AML/CFT systems and controls provides an appropriate framework for supervisory action. In the context of the statutory audit profession, structural deficiencies in internal procedures, governance arrangements or professional oversight mechanisms within audit firms may justify the adoption of significant supervisory measures. However, certain measures such as restrictions on activities or withdrawal of authorisation may have particularly significant consequences in the audit sector, especially for small or medium-sized audit firms or individual statutory auditors. It is therefore important that supervisors retain sufficient discretion to assess the proportionality of such measures, taking into account the structure of the audit firm, the nature of the breach and its actual impact on AML/CFT compliance.
H2A	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft	The H2A generally agrees that the proposed methodology for the imposition of periodic penalty payments can apply to the non-financial sector. Periodic penalty payments may constitute an effective supervisory tool to ensure that statutory auditors and audit firms comply with administrative measures requiring them to remedy identified deficiencies in their AML/CFT systems or procedures.

Name of the Organisation	Question	Answer
	RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The procedural safeguards included in the proposed RTS – in particular the requirement to issue a statement of findings, the respect of the right to be heard and the obligation to base decisions only on facts on which the concerned party has been able to comment – are essential to ensure fairness and legal certainty. The H2A also considers that the flexibility provided by allowing national administrative procedures to govern certain aspects of the imposition and collection of periodic penalty payments is appropriate, as supervisory and disciplinary frameworks may differ across Member States.
Institute of Financial Services Practitioners	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	We agree that the indicators listed in Article 1 are broadly applicable to the non-financial sector and constitute an appropriate horizontal framework. However, we strongly recommend that AMLA explicitly embeds the principle of proportionality, particularly given the heterogeneity of DNFBPs and other non-financial obliged entities. We reiterate our prior feedback submitted during the EBA consultation: • Clarify “repetition of a breach”: Repetition should refer to the same breach identified in distinct supervisory examinations, not multiple instances within one inspection. If a breach stems from misinterpretation or misapplication, it should count as one breach unless it meets a clearly-defined “systematic” threshold. • “Any other indicator” (Art. 1(l)): Such an open clause risks divergence. A “reasonableness” test and mandatory justification should be required, including disclosure by supervisors when they rely on additional indicators. • Indicators referencing financial-sector constructs (e.g., market integrity, financial stability) are not meaningful for many DNFBPs. AMLA should complement them with sector-neutral proxies. • Qualitative labels (“minor”, “moderate”, “significant”, “very significant”) should be calibrated using EU-wide minimum benchmarks.
Institute of Financial Services Practitioners	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting	We agree that the criteria in Article 4 are applicable to the non-financial sector. Nonetheless, proportionality should explicitly guide their application. We highlight the following considerations: • “Any other criteria” (Art. 4(2)(c) and 4(3)(g)) risks undermining harmonisation. Its use should be restricted to

Name of the Organisation	Question	Answer
	up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	exceptional cases, subject to justification and publication. • Mitigation factors should expressly include proactive remediation, self-reporting, and voluntary corrective action. • When imposing sanctions on natural persons, supervisors should assess the individual's role, responsibilities, and actual level of involvement. • To avoid outcome divergence, AMLA should introduce baseline fine ranges, adjustment bands, and weighting principles.
Institute of Financial Services Practitioners	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	With regards to the pecuniary sanctions for legal persons (as specified under Article 4(5) and (6) of the Breaches RTSs), reference is made to ‘total annual turnover’ and ‘annual income’. In our view, the annual turnover is not the most appropriate metric. Rather, profits of the obliged entity over, say, a period of a number of years and the average of the balance sheet size over a number of years should, in our view, be seen as the main (albeit not the only) metric to undertake such calculations. Other metrics such as turnover, number of employees, may also be taken into account.
Institute of Financial Services Practitioners	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under	We agree that the proposed criteria in Article 5 are relevant. However, the administrative measures listed, restrictions on business, divestment, withdrawal of authorisation, governance restructuring, are exceptionally severe. We therefore recommend: • Limiting their use to Category 4 breaches only. • Requiring justification when applying “any other criteria”. • Strengthening proportionality safeguards for small and micro-entities.

Name of the Organisation	Question	Answer
	Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
Institute of Financial Services Practitioners	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	We agree that the methodology for imposing periodic penalty payments (PePPs) applies to the non-financial sector. However, leaving key procedural aspects to national law risks significant divergence. We recommend stronger EU-level harmonisation, including: • Clear guidance on when daily, weekly, or monthly penalties should apply. • Standard review intervals. • Common maximum thresholds and calculation principles. • Explicit proportionality checks for DNFBPs. Other considerations 1. Harmonisation risks being undermined by broad supervisory discretion. Undefined severity labels, numerous open-ended clauses, and non-binding thresholds increase the likelihood of divergent outcomes. 2. AMLA should consider an EU-wide semi-quantitative scoring matrix to structure classification. 3. Sector-neutral indicators should be added for DNFBPs. 4. Periodic penalty payments require stronger EU-wide minimum standards. 5. The consultation period is too short for meaningful engagement by the non-financial sector. 6. Due-process safeguards, including impartiality protections and safeguards against self-incrimination, should be more clearly articulated.
Austrian Chamber of Civil-Law Notaries (ÖNK)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in	The proposed indicators constitute a coherent and carefully structured foundation for the assessment of gravity and meaningfully support the objective of a harmonised and credible enforcement architecture at Union level. Nevertheless, in their present articulation, they do not appear entirely comprehensive when transposed to obliged entities operating within the non-financial sector. Whilst the draft appropriately identifies intentionality, duration, recurrence and financial impact as relevant

Name of the Organisation	Question	Answer
	Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	determinants, the gravity of a breach in regulated professional environments cannot be appraised predominantly through turnover-based metrics. Proper regard must also be had to the qualitative dimension of the infringement, namely the nature and seriousness of the professional duty violated, the existence of grave, repeated or systemic misconduct, and the scale of actual or potential harm occasioned. Such harm is not confined to pecuniary loss; it may equally consist in the impairment of legally protected interests, the diminution of the integrity and effectiveness of formally authenticated instruments, and the erosion of public confidence in office-holders entrusted with gatekeeping responsibilities. Given that pecuniary sanctions, administrative measures and periodic penalty payments (PePPs) may be imposed either autonomously or cumulatively, the calibration of gravity assumes particular significance in safeguarding proportionality and coherence across sectors. An approach predominantly anchored in aggregate financial indicators risks underrepresenting the functional and normative weight of breaches in the non-financial professions. Thus, the inclusion of case-specific economic reference points, such as the transactional volume connected to the infringement, the revenue attributable to the mandate concerned, or the scale of fiduciary activities implicated, would permit a more exact alignment between financial metrics and the concrete regulatory impact of the conduct at issue.
Austrian Chamber of Civil-Law Notaries (ÖNK)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Article 4 provides a cogent point of departure for the calibration of pecuniary sanctions. Yet, in its present formulation, its application to obliged entities within the non-financial sector does not fully reflect the institutional and normative architecture within which such entities operate. In regulated professional environments, pecuniary sanctions are embedded within a comprehensive framework of individual accountability and supervisory oversight. The determination of an appropriate financial penalty, therefore, cannot be premised solely upon the economic capacity of the entity concerned. Rather, it must be guided by the qualitative gravity of the obligation contravened, the seriousness and systemic character of the misconduct, and the extent to which the breach has eroded both the integrity of legally mandated functions and the confidence inherently reposed in the office. In such settings, the normative significance of the duty infringed may outweigh abstract indicators of organisational scale. Thus, an approach calibrated predominantly by reference to aggregate turnover risks conflating economic magnitude with regulatory relevance - an equivalence that, in the context of non-financial professions, does not necessarily obtain. A more exacting application of proportionality would permit consideration of economic parameters directly connected to the breach itself, such as the transactional volume implicated, the revenue

Name of the Organisation	Question	Answer
		attributable to the specific mandate, or the scale of fiduciary activity affected. Anchoring pecuniary sanctions in said concrete functional and economic context of the infringement would thereby enhance legal certainty, preserve cross-sectoral equity, and ensure that deterrence operates with due regard to institutional reality rather than abstract financial metrics.
Austrian Chamber of Civil-Law Notaries (ÖNK)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Whilst Article 4(5) and Article 4(6) of the proposed draft RTS provide a structured methodology to consider the financial capacity of the legal or natural person held responsible, a literal transposition of these provisions to the non-financial sector warrants careful scrutiny. In the context of regulated professional environments, financial capacity as conventionally measured by total turnover, regulatory capital, or income may not provide a proportionate or functionally relevant basis for the envisioned calibration of pecuniary sanctions. In said sectors, the gravity of a breach may also be determined by reference to the qualitative and operational dimensions of the infringement; including the specific duties contravened, the systemic or repeated nature of the misconduct, the actual or potential harm caused to clients, and the degree to which the breach compromises the integrity of the profession as well as public trust. An approach that overemphasises abstract financial metrics risks conflating organisational scale with regulatory significance, potentially yielding sanctions that are disproportionate or misaligned with the actual context of the breach. Accordingly, we suggest that the application of financial strength metrics in the non-financial sector should be carefully contextualised. Rather than relying solely on aggregate economic indicators, competent authorities may benefit from incorporating metrics directly linked to the infraction itself, including, inter alia, the transactional volume implicated, the revenue attributable to the specific mandate or client relationship affected, and the scale of professional activity implicated. Such an approach would allow pecuniary sanctions to be meaningfully calibrated to the circumstances, ensuring that enforcement measures remain effective, proportionate, and sensitive to the institutional realities of non-financial obliged entities.
Austrian Chamber of Civil-Law Notaries (ÖNK)	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	Whilst the criteria set out in Article 5 of the draft RTS provide a coherent and structured framework for the application of administrative measures, there remains scope for refinement when applied to obliged entities operating within the non-financial sector. In regulated professional environments, administrative measures are embedded within established national systems of professional discipline and graduated supervisory intervention. Against this background, reliance solely on abstract classifications of gravity or generalised assessments of organisational impact may not, in all cases, fully capture the regulatory significance of the conduct at issue.

Name of the Organisation	Question	Answer
	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Article 5 appropriately links the application of intrusive measures to a high threshold of gravity and to an assessment of their capacity to mitigate actual or potential impact, while requiring due regard to adverse effects on clients and stakeholders. In the non-financial sector, the relevance and proportionality of such measures may also warrant consideration of qualitative and functional aspects of the infringement. These include the nature and seriousness of the professional obligations contravened, the recurrence or systemic character of the misconduct, the extent of actual or potential harm caused, and the degree to which the breach affects the integrity of legally mandated professional functions and public trust. Where economic considerations are relevant to the assessment of effectiveness or proportionality, a contextualised approach may be beneficial. Rather than relying exclusively on aggregate indicators, competent authorities may wish to take into account parameters directly linked to the infringement itself, including, inter alia, the transactional volume implicated or the revenue attributable to the specific mandate or client relationship affected.
Austrian Chamber of Civil-Law Notaries (ÖNK)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	While the presented methodology for imposing PePPs constitutes a coherent enforcement instrument intended to address ongoing or repeated non-compliance, its transposition to obliged entities within the non-financial sector necessitates careful contextualisation. Given that supervisory interventions in non-financial professions are typically embedded within established national regulatory architectures, the unqualified application of a uniform methodology risks misalignment with sector-specific operational realities. This is particularly pertinent insofar as the deployment of PePPs across non-financial entities has, to date, been limited and uneven across fellow Member States. Thus, particular scrutiny is warranted concerning the determination of the stated “specified period” stated in the draft at hand, including possible parameters governing its duration or risk-based adjustment. In the absence of clear minimum standards, there exists a risk of divergent supervisory practices, with concomitant implications for legal certainty and the proportionality of enforcement. Accordingly, while the methodology articulated in Section 3 is, in principle, capable of underpinning effective enforcement, its application within the non-financial sector would additionally benefit from a sufficiently flexible and context-sensitive approach. Such an approach would ensure that PePPs will operate as envisioned targeted remedial instruments across the EU, preserving proportionality, legal certainty, and alignment with existing national supervisory architectures.
Consiglio Nazionale dei Dottori	QUESTION 1: Do you agree that the proposed list of	In general we do not agree with the approach taken in the draft document under consideration, as it is formulated in terms that do not differentiate between the nature of the entities subject to possible sanctions. This approach risks resulting in the application of the legislation on the prevention and combating of ML/TF in

Name of the Organisation	Question	Answer
Commercialisti e degli Esperti Contabili	indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	a manner that is not in line with the principles of proportionality and fairness on which it is expressly based. The absence of specific references to the nature, organizational structure, and size of entities belonging to the NFS's could, in fact, compromise the effectiveness of the penalty system outlined, considering that financial penalties and administrative measures must be instrumental to the efficient functioning of the system and not become a factor in the excessive bureaucratization of professional services, business relationships, and financial transactions. The correct identification of the nature of the non-financial entities covered by the regulation in question is necessary in order to ensure full compliance and consistency with the provisions issued by the UE legislator (Cons. 101 of the VI Dir.). That said, with a view to collaboration and constructive dialogue, it is nevertheless considered appropriate to make some observations and proposals below on the specific provisions of the draft RTS. With reference to the indicators referred to in Art. 1, lett. d) e) i) and j) we highlight some significant critical issues for professionals in terms of application. Firstly the elements referred to in lett. d) require a multi-dimensional assessment. This approach presents the following difficulties in terms of application: - professionals generally operate individually or in small structures, without group structures or significant cross-border operations; - the "approximate number of customers affected by the breach" is often an insignificant parameter, as even individual transactions can present high risk profiles, while larger volumes may be of no substantial relevance; - assessing the impact on the effectiveness of prevention systems requires formalized organizational models and structured control systems, which are not always present—nor required in equivalent form—in professional contexts. This gives rise to the risk that these indicators will be applied in a purely formal or analogical manner, without any real adherence to the specific operational characteristics of the recipients. Similar critical issues arise with regard to lett. e) as the related assessment requires risk assessment methodologies that are not generally available in professional contexts, resulting in a high margin of discretion. Furthermore, for professionals, exposure to risk is often linked to individual practices or assignments, making it difficult to configure an aggregate assessment in systemic terms. In the absence of clear methodological criteria, the indicator therefore risks translating into an abstract and unverifiable assessment. With regard to lett. i), the indicator relating to the financial soundness appears, in most cases, to be irrelevant to non-financial entities. The indicators referred to in lett. (j) introduce systemic assessments that are difficult to relate to the operations of professionals and are therefore complex to apply in practice. For professionals, in fact, the

Name of the Organisation	Question	Answer
		impact of a violation is, in almost all cases, limited to the individual professional relationship and is not likely to have any appreciable effect on the financial system or markets. In light of the above, it is suggested that it should be clarified that these indicators should be applied in a manner proportionate to the nature, size, and complexity of the obliged entity, providing for simplified or specific criteria for NF entities and giving priority, for these categories, to elements that are concretely verifiable and directly related to conduct, rather than assessments of systemic or potential impact. With specific reference to the concepts of "repetition" referred to in lett. b) and "systematicity" referred to in lett. k) it should be noted that these concepts should be defined more clearly in order to identify serious, repeated, and systematic violations. If kept generic, these concepts could overlap, thereby undermining the harmonization in the application of the rules that is being sought. It is therefore proposed to correctly define them. Finally, it is proposed to delete par 8 of Art. 2. This provision appears inconsistent with the general framework of the RTS: violations classified as minor - categories 1 and 2 - are, by definition, characterized by minimal or no impact on the obliged entity and its exposure to ML/TF risks, are neither systematic nor repetitive, and have not facilitated criminal activity. These qualifying elements, which constitute their classification as minor, do not appear to be capable of changing solely because of their combination.
Consiglio Nazionale dei Dottori Commercialisti e degli Esperti Contabili	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	As already pointed out, we do not agree with the general approach of the draft document under consideration and that the criteria identified in Article 4 for determining the level of financial penalties should be adapted to take effective account of the nature of the non-financial sector entities covered by the forthcoming regulation, with reference to the specific criteria identified therein, for collaborative purposes only, we note the following. Paragraph 3 identifies certain aggravating circumstances to be considered for the purposes of determining the financial penalty. In this context, point (f) refers to the existence of previous violations by the natural or legal person held responsible, as well as to the previous imposition of financial penalties or the ordering of corrective measures that have not been complied with. In this regard, it is proposed to expressly limit the time frame for the assessment of such previous violations, given that a consideration not subject to a specific time limit risks mitigating its significance for the purposes of determining the penalty, thereby disproportionately affecting the overall assessment of the conduct.

Name of the Organisation	Question	Answer
Consiglio Nazionale dei Dottori Commercialisti e degli Esperti Contabili	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We do not agree with the application of the above factor in the absence of adequate consideration of specific contexts such as, for example, that of professionals subject to anti-money laundering legislation and the provisions of the forthcoming regulation under consideration. In determining the level of financial penalties, paragraph 5 requires supervisors to take into account the financial strength of the legal person held liable, including, where applicable and in light of total annual turnover, any relevant information available from financial statements in order to assess financial capacity and information from prudential authorities on the level of regulatory capital and liquidity requirements. In this regard, it should first be noted that the reference to "financial strength" appears to be tailored to financial entities and is not relevant to non-financial entities, for which such parameters are generally not applicable. This indicator, relating to the financial soundness of the obliged entity or group, appears, in most cases, to be irrelevant to non-financial entities; in this sense, any violations, although significant from a regulatory point of view, do not normally have a direct effect on 'financial soundness' in the technical sense. In any case, it is considered appropriate to supplement this provision with an explicit reference not only to total annual turnover but also to annual income, to be considered as the net amount actually earned, taking into account the possibility that the recipient of the penalty may be a natural person. This data can be easily obtained by the supervisory authorities as it can be inferred from the professional's tax return (documentation fully available to the Revenue Agency), excluding any income of a different nature. This is to ensure that the determination of the penalty takes into account the actual ability to pay and the actual possibility of the obligated party to meet the payment, in accordance with the principles of proportionality and adequacy.
Consiglio Nazionale dei Dottori Commercialisti e degli Esperti Contabili	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the	We do not generally agree with the proposed approach to the application of administrative measures, given the lack of any coordination with the various regulatory systems applicable to entities falling within the non-financial sector, such as professional regulations, which govern the terms and conditions of access to the register and for maintaining such registration, as well as for the exercise of disciplinary powers arising from the determination of disciplinary responsibility on the part of the professional. These systems may already provide for the application of measures such as suspension from practice or revocation of authorization to carry out the aforementioned activity. In the case of professionals, for example, this could include sanctions such as suspension from practice for a certain period of time or removal from the register following the determination of disciplinary responsibility. Moreover, even with regard to the application of administrative measures, it appears necessary to ensure

Name of the Organisation	Question	Answer
	proposed draft RTS? If you do not agree, please explain your reasoning.	compliance with the principles of proportionality and fairness, especially in cases where the violation is attributable to mere negligence and/or a formal breach, making use, in such cases, of instruments of repentance and collaborative compliance. That said, with a view to collaboration, with reference to the identification of the criteria referred to in Article 5, with regard to violations falling under categories 1 and 2, it is proposed, at the very least, to expressly specify that: - no financial penalty shall be imposed; - following the successful outcome of the corrective action ordered, the proceedings shall be expressly closed, with the final extinction of the dispute, which shall not be relevant for the purposes of assessing previous violations pursuant to Article 4, paragraph 3, letter f).
Consiglio Nazionale dei Dottori Commercialisti e degli Esperti Contabili	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Also with regard to the application of late payment penalties, we do not agree with the proposed methodology as the factors identified for determining the amount of the periodic payment do not seem to take adequate account of the specific operating contexts of the various entities belonging to the non-financial sector (such as, for example, professionals). Some of the factors identified—such as those referred to in letters c) and d)—are difficult to apply to the professional context in light of the specific nature of the relevant activities. In practice, this means that when determining these amounts, the supervisory authorities should only take into account the type of administrative measure that has not been complied with, the reasons for non-compliance, and the financial soundness of the non-compliant entity. With regard to the latter aspect, however, it should be noted that in the case of professionals, financial soundness should be assessed by reference to the net annual income derived from the exercise of the professional activity, as this is the most appropriate parameter for representing the actual economic capacity of the obligated party. As just highlighted, this data can be easily obtained by the supervisory authorities as it can be inferred from the professional's tax return (documentation fully available to the Revenue Agency), excluding any income of a different nature. Otherwise, the use of indicators typically referring to business structures - such as total turnover, turnover, or other similar parameters - would risk leading to assessments that are disproportionate to the professional's actual ability to pay. In the absence of additional factors suitable for concretely assessing the peculiarities of the different

Name of the Organisation	Question	Answer
		operating contexts of the obliged entities belonging to the non-financial sector, the proposed methodology could therefore lead, in practice, to results that are not consistent with the principle of proportionality.
Ordem dos Advogados	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	No, Ordem dos Advogados considers to have enough disciplinary sanctions gravity to hold before perpetrators and besides that, criminal authorities investigate and courts, under the Portuguese Constitution and legal system, hold the powers to enforce those sanctions to non financial professionals.
Ordem dos Advogados	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	No, we don't agree. Ordem dos Advogados considers to have enough disciplinary sanctions gravity to hold before perpetrators and besides that, criminal authorities investigate and courts, under the Portuguese Constitution and legal system, hold the powers to enforce those sanctions to non financial professionals.

Name of the Organisation	Question	Answer
Ordem dos Advogados	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	No, we don't agree. Ordem dos Advogados considers to have enough disciplinary sanctions gravity to hold before perpetrators and besides that, criminal authorities investigate and courts, under the Portuguese Constitution and legal system, hold the powers to enforce those sanctions to non financial professionals. This type of financial strenght before a legal or natural person who does not engage in financial matters is inadequate and disproportionate. Lawyers are fundamental for the rule of law implementation. The European Chart of Fundamental Rights and the Eurpean Convention for the Protection of the Lawyers Profession present the absolute safeguarding of independence and legal privilege or legal secrecy protection on legal consultation/advice. These norms exist precisely for defense of independence - european values include the respect for the rule of law therefore, it is not proprtionate and adequate to apply these criteria/these financial strenght to a non finacial sector, for centuries defending rights and conformity for individuals fundamental rights.
Ordem dos Advogados	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	No, we don't agree. Ordem dos Advogados considers to have enough disciplinary sanctions gravity to hold before perpetrators and besides that, criminal authorities investigate and courts, under the Portuguese Constitution and legal system, hold the powers to enforce those sanctions to non financial professionals. This type of financial strenght before a legal or natural person who does not engage in financial matters is inadequate and disproportionate.
Ordem dos Advogados	QUESTION 5: Do you agree that the proposed methodology	No, we don't agree. Ordem dos Advogados considers to have enough disciplinary sanctions gravity to hold before perpetrators and besides that, criminal authorities investigate and courts, under the Portuguese Constitution and legal system, hold the powers to enforce those sanctions to non financial professionals. This

Name of the Organisation	Question	Answer
	for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	type of financial strenght before a legal or natural person who does not engage in financial matters is inadequate and disproportionate. Lawyers are fundamental for the rule of law implementation. The European Chart of Fundamental Rights and the Eurpean Convention for the Protection of the Lawyers Profession present the absolute safeguarding of independence and legal privilege or legal secrecy protection on legal consultation/advice. These norms exist precisely for defense of independence - european values include the respect for the rule of law therefore, it is not proprtionate and adequate to apply these methodoly/these financial strenght to a non finacial sector, for centuries defending rights and conformity for individuals fundamental rights.
Observatoire de la lutte anti blanchiment et contre le financement du terrorisme	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The character limit prevented us from submitting both an English and a French version. Please contact OLAB if an English version is required. 1.1. L'indicateur (l) : une clause générale vidant la liste de sa portée normative L'article 1 du projet de RTS énumère onze indicateurs destinés à évaluer la gravité d'un manquement. Cette démarche d'harmonisation apparaît louable dans son principe. Toutefois, l'indicateur (l), qui confère au superviseur la faculté d'identifier "tout autre indicateur pertinent", compromet gravement l'objectif poursuivi. Sur le plan juridique, cette clause générale transforme une liste qui se présente comme exhaustive en une simple énumération non exhaustive. Le superviseur conserve ainsi une liberté totale dans l'identification des critères pertinents, ce qui neutralise la fonction d'encadrement du pouvoir d'appréciation que la liste était censée remplir. Cette indétermination pose problème. Si chaque autorité de supervision dispose d'une marge d'appréciation illimitée pour ajouter ses propres critères, les divergences nationales que le RTS entend réduire persisteront nécessairement. L'harmonisation devient alors purement formelle, masquant une hétérogénéité substantielle des pratiques. Recommandation : Supprimer l'indicateur (l) ou, à défaut, l'encadrer strictement par l'exigence d'une justification renforcée de tout indicateur additionnel, accompagnée d'une publication systématique des critères complémentaires retenus par chaque superviseur, afin de garantir la transparence et la prévisibilité du système. 1.2. L'indétermination des notions utilisées à la lumière des spécificités sectorielles 1.2.1. Indicateur (a) : La durée du manquement Le projet de RTS ne définit pas ce qu'il convient d'entendre par "durée" d'un manquement. Cette lacune est d'autant plus problématique que la notion présente une variabilité sectorielle considérable. Dans les secteurs

Name of the Organisation	Question	Answer
		caractérisés par des relations d'affaires continues – tels que les jeux d'argent ou la banque –, la "durée" du manquement peut s'étendre sur toute la période de la relation commerciale, soit potentiellement plusieurs années. À l'inverse, dans les secteurs marqués par des transactions ponctuelles – comme le notariat ou les transactions immobilières –, la durée se limitera au temps de traitement du dossier, soit généralement entre trois et six mois. Sanctionner de manière identique une "durée" de trois mois pour un notaire et de trois ans pour une banque reviendrait à méconnaître la nature fondamentalement différente de ces activités. Cette approche contreviendrait au principe de proportionnalité, qui exige que la sanction soit adaptée à la fois à la gravité objective du manquement et aux circonstances particulières de l'affaire. Recommandation : Le critère de durée doit être relativisé en fonction de la nature de l'activité exercée et du type de relation d'affaires concernée. Le RTS devrait préciser les modalités de calcul de la durée et intégrer des coefficients de pondération tenant compte des spécificités sectorielles. 1.2.2. Indicateur (b) : La répétition Le concept de "répétition" d'un manquement n'est pas défini par le projet. Or, son interprétation conditionne de manière déterminante la classification de la gravité et, partant, le niveau de la sanction. En pratique, une ambiguïté majeure subsiste : doit-on considérer qu'il y a répétition lorsqu'un même type de manquement est constaté sur plusieurs dossiers lors d'un unique contrôle, ou seulement lorsque le manquement est réitéré entre deux contrôles distincts ? Si la première interprétation devait prévaloir, la quasi-totalité des manquements seraient qualifiés de "répétés", dès lors que le superviseur examine nécessairement un échantillon de dossiers. Cette conception viderait le critère de la répétition de toute portée discriminante et conduirait à une inflation généralisée des niveaux de sanction. À l'inverse, si l'on réserve la qualification de répétition aux cas où un manquement identique est constaté lors de contrôles successifs, ce critère conserve sa fonction de marqueur d'une défaillance persistante malgré les mises en garde antérieures. Cette seconde interprétation paraît plus conforme à l'esprit du texte et à la logique répressive. Recommandation : Définir précisément la notion de répétition comme la pluralité de manquements de même nature constatés lors de contrôles distincts, sur une période déterminée, en distinguant clairement le manquement continu de la véritable répétition consécutive à une première mise en demeure. 1.2.3. Indicateur (d) : L'impact du manquement

Name of the Organisation	Question	Answer
		Comme pour les deux autres indicateurs mentionnés, l'impact du manquement est un critère qui gagnerait à faire l'objet de précisions.
Observatoire de la lutte anti blanchiment et contre le financement du terrorisme	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	2.1. Classification par catégories et persistance de la clause générale Le projet de RTS propose une classification des manquements en quatre catégories de gravité, allant de la catégorie 1 (la moins grave) à la catégorie 4 (la plus grave). Cette gradation apparaît rationnelle et conforme à l'exigence de proportionnalité. Toutefois, le paragraphe 3 de l'article relatif à cette classification précise que les superviseurs peuvent classer les manquements autrement que selon cette grille. 2.2. Indétermination des critères de modulation 2.2.1. Le degré de coopération : subjectivité et risque d'atteinte aux droits de la défense L'article 4 prévoit que le niveau de coopération de l'entité avec le superviseur constitue un critère permettant de diminuer ou d'augmenter la sanction. Si l'intention sous-jacente – encourager la transparence et la bonne foi – est louable, la mise en œuvre pratique de ce critère soulève des difficultés substantielles. Premièrement, le critère est d'une subjectivité considérable. Qu'est-ce qu'une coopération "active et effective" ? Comment mesurer la "rapidité" avec laquelle l'entité porte un manquement à l'attention du superviseur ? Quel est le point de départ de ce délai ? Que doit-on entendre par ce que le superviseur peut "raisonnablement attendre" ? En l'absence de définitions précises, ce critère ouvre la voie à des appréciations variables d'un superviseur à l'autre, voire d'un dossier à l'autre au sein d'une même autorité. Deuxièmement, et de manière plus fondamentale, le critère pose un paradoxe au regard de l'obligation légale de coopérer. Dans la plupart des États membres, les entités assujetties ont l'obligation juridique de répondre aux demandes du superviseur, sous peine de sanctions pénales pour obstruction à l'enquête administrative. Moduler la sanction selon la coopération revient donc à sanctionner moins ceux qui respectent leur obligation légale (alors que ce respect est obligatoire) et à sanctionner plus ceux qui exercent leurs droits de la défense dans les limites permises par la loi. Troisièmement, ce critère doit être examiné au regard du droit de ne pas s'auto-incriminer, garanti par l'article 48 de la Charte des droits fondamentaux, d'ailleurs rappelé page 7 du document relatif à la consultation publique. Bien que ce principe s'applique principalement en matière pénale, il doit également être respecté dans le cadre de sanctions administratives présentant un caractère répressif. Or, moduler la sanction en fonction de la coopération peut conduire à pénaliser l'exercice du droit de ne pas s'auto-incriminer.

Name of the Organisation	Question	Answer
		2.2.2. La solidité financière : absence de définition et de méthode L'article 4 fait référence à la "solidité financière" de l'entité sans préciser comment cette notion doit être appréciée. À l'échelle du groupe ? S'agit-il du chiffre d'affaires ? Du résultat net ? Des capitaux propres ? De la trésorerie disponible ? Le texte ne fournit aucune indication sur les ratios financiers à utiliser, les seuils de "solidité" ou de "fragilité", ni sur la pondération respective de ces différents indicateurs. Cette imprécision est problématique à double titre. D'une part, elle ouvre la voie à des appréciations divergentes selon les superviseurs. D'autre part, elle ne permet pas aux entités de prévoir raisonnablement comment leur situation financière sera évaluée. Or, la prévisibilité est une exigence fondamentale. . 2.3. Absence de matrice de calcul et impossibilité de prévoir la sanction Le projet de RTS énumère des critères permettant d'augmenter ou de diminuer la sanction, mais ne fournit aucune indication sur la manière dont ces critères doivent être pondérés et combinés pour aboutir au montant final de la sanction. Cette lacune est d'autant plus problématique que les pratiques nationales actuelles souffrent déjà de ce défaut. Les décisions de sanction se bornent généralement à énoncer les critères pris en compte, puis à fixer un montant, sans expliciter le raisonnement mathématique ou logique conduisant de l'un à l'autre. En l'absence de méthode de calcul explicite, il est impossible pour l'entité de prévoir ex ante le niveau de sanction auquel elle s'expose. Cette imprévisibilité porte atteinte au principe de sécurité juridique et complique considérablement le contrôle juridictionnel de la proportionnalité de la sanction. Comment un juge pourrait-il vérifier que la sanction est proportionnée s'il ne dispose pas des éléments permettant de comprendre comment elle a été calculée ? Par ailleurs, cette absence de méthode rend illusoire l'harmonisation recherchée. Si chaque superviseur applique sa propre approche pour combiner les critères, les divergences persisteront nécessairement, même si les critères formels sont identiques. (cette réponse n'est pas complète du fait de la limite imposée s'agissant du nombre de caractères. Voir la version complète publiée en ligne sur le site de l'OLAB).
Observatoire de la lutte anti	QUESTION 3: Do you agree that the	3.1. L'importance de la définition de l'entité concernée par la sanction

Name of the Organisation	Question	Answer
blanchiment et contre le financement du terrorisme	applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	L'article 4(5) dispose que le superviseur doit prendre en compte "la solidité financière de la personne morale tenue responsable". Cette formulation soulève une question déterminante : qui est "la personne morale tenue responsable" ? Est-ce la filiale ou l'établissement ayant matériellement commis le manquement ? La société mère ? Le groupe consolidé ? La question relative à la délimitation de l'entité visée a déjà été évoquée dans l'introduction de ce document. Il convient d'ajouter que l'indétermination relative à l'entité concernée par la sanction confère au superviseur un pouvoir discrétionnaire considérable. En fonction du périmètre retenu, le montant de la sanction peut varier dans des proportions très importantes. Considérons le cas d'un groupe international dont la filiale française représente 10 % du chiffre d'affaires consolidé. Si le superviseur décide d'apprécier la solidité financière au niveau du groupe, la sanction sera calculée sur une base dix fois supérieure à celle qui résulterait d'une appréciation au niveau de la seule filiale française. Cette liberté de choix du périmètre transforme un pouvoir d'appréciation légitime en un pouvoir arbitraire compromettant la prévisibilité et l'égalité devant les sanctions. Deux entités dans des situations factuelles identiques peuvent se voir infliger des sanctions radicalement différentes selon le périmètre retenu par leur superviseur respectif. Recommandation : Le RTS doit établir des critères objectifs pour le choix du périmètre d'appréciation. Une solution cohérente consisterait à lier explicitement l'article 4(5) à l'article 1(d) : si le manquement a eu un impact au niveau du groupe (indicateur de gravité), la sanction doit être calculée sur la base de la capacité financière du groupe ; si le manquement n'a affecté que l'entité, la sanction doit être calculée sur la base de la capacité financière de cette seule entité. 3.2. Effets domino et risques systémiques Le choix de sanctionner la holding ou la filiale peut avoir des conséquences systémiques considérables qui ne sont nullement prises en compte par le projet actuel. Une sanction d'un montant élevé peut conduire une entité à la cessation d'activité, avec des répercussions en chaîne sur l'ensemble de l'écosystème. Prenons l'exemple d'une société de domiciliation d'entreprises. Une telle structure peut domicilier plusieurs milliers, voire dizaines de milliers de sociétés. Si une sanction conduit cette société à la cessation d'activité, les sociétés domiciliées perdent immédiatement leur siège social, ce qui crée une situation d'irrégularité pour chacune d'entre elles et soumet les greffes des tribunaux de commerce à une charge de travail insurmontable. Les effets collatéraux d'une sanction disproportionnée peuvent ainsi dépasser de très loin les objectifs légitimes poursuivis par la répression du manquement initial.

Name of the Organisation	Question	Answer
		Recommandation : Le RTS devrait prévoir, parmi les critères de modulation de la sanction, la prise en compte des effets systémiques potentiels et des répercussions sur les tiers (clients, autres acteurs du secteur, fonctionnement du marché). Lorsque la cessation d'activité de l'entité sanctionnée est susceptible d'entraîner des perturbations majeures, le superviseur devrait être tenu d'en tenir compte dans le calibrage de la sanction ou d'accompagner celle-ci de mesures permettant une transition ordonnée. 3.3. Personnes physiques et structures unipersonnelles L'article 4(6) traite du cas des personnes physiques. Toutefois, le secteur non-financier se caractérise par une prévalence importante de structures unipersonnelles où la personne physique est à la fois l'entité assujettie (entrepreneur individuel, gérant unique), le dirigeant et le bénéficiaire effectif. Dans ces configurations, la distinction entre l'article 4(5) (relatif aux personnes morales) et l'article 4(6) (relatif aux personnes physiques) devient floue. Recommandation : Clarifier l'articulation entre les articles 4(5) et 4(6) pour les entrepreneurs individuels et les gérants uniques propriétaires de leur structure. Le texte devrait préciser si, dans ces cas, la capacité financière s'apprécie au niveau de la personne physique (patrimoine personnel) ou au niveau de l'activité professionnelle (chiffre d'affaires).
Observatoire de la lutte anti blanchiment et contre le financement du terrorisme	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	4.1. Le changement de gouvernance : une mesure nouvelle soulevant des difficultés juridiques L'article 56(2)(g) de la Directive (UE) 2024/1640 prévoit la possibilité d'imposer un "changement de structure de gouvernance". Cette mesure, qui n'existe pas en tant que pouvoir juridique formalisé dans la plupart des droits nationaux, soulève des difficultés pratiques et juridiques considérables. La première difficulté tient aux modalités d'exécution de cette mesure. Comment contraindre effectivement un changement de gouvernance lorsque les dirigeants sont également les propriétaires de l'entité ? Dans le cas d'une société à responsabilité limitée dont le gérant est l'associé unique, ou d'une société par actions simplifiée dont le président détient l'intégralité du capital, imposer un changement de gouvernance reviendrait à contraindre le propriétaire à se démettre de ses fonctions de direction. Or, le superviseur ne dispose d'aucun pouvoir pour contraindre une cession de parts sociales ou d'actions. Une telle contrainte relèverait de la confiscation, un mécanisme étranger au droit administratif de la lutte contre le blanchiment. La seconde difficulté concerne les structures unipersonnelles. Pour un entrepreneur individuel, un notaire exerçant seul ou un agent immobilier indépendant, la "structure de gouvernance" se confond avec la personne elle-même. Imposer un changement de gouvernance équivaut donc à imposer une cessation d'activité. Cette mesure apparaît alors disproportionnée, car elle ne laisse aucune possibilité de correction

Name of the Organisation	Question	Answer
		tout en maintenant l'activité. Elle produit un effet équivalent au retrait d'autorisation, mais sans les garanties procédurales et les critères d'application stricts qui encadrent traditionnellement cette mesure extrême. Recommandation : Le RTS doit (i) clarifier les modalités concrètes d'exécution de la mesure de changement de gouvernance, (ii) préciser ses limites juridiques, notamment l'impossibilité de contraindre une cession de parts ou d'actions, (iii) renforcer l'exigence de proportionnalité en excluant expressément l'application de cette mesure aux structures unipersonnelles où elle serait de facto équivalente à une cessation d'activité, et (iv) distinguer clairement entre mesure provisoire (suspension temporaire des fonctions) et mesure définitive (remplacement permanent). 4.2. Le retrait ou la suspension d'autorisation et les effets domino Le retrait ou la suspension d'autorisation constitue la sanction administrative la plus grave, car elle empêche l'entité de poursuivre son activité. Dans la pratique actuelle, cette mesure est davantage utilisée comme "épée de Damoclès" – une menace destinée à obtenir une mise en conformité rapide – que comme sanction effectivement prononcée. Cette utilisation témoigne de la conscience qu'ont les autorités de la gravité extrême de cette mesure. Toutefois, lorsque cette mesure est effectivement mise en œuvre, ses conséquences peuvent dépasser largement le cas individuel de l'entité sanctionnée (comme cela a déjà été expliqué dans le 3.2). De tels effets collatéraux ne sont nullement pris en compte par l'article 5(3) du projet actuel. Recommandation : Le RTS devrait (i) ajouter parmi les critères d'appréciation de la mesure de retrait ou suspension d'autorisation l'impact potentiel sur les clients, les autres acteurs du secteur et le fonctionnement du marché, (ii) prévoir, lorsque cet impact est significatif, des mesures d'accompagnement telles qu'un plan de transition pour les clients, une coordination avec les services administratifs concernés (greffes, autorités de tutelle), ou encore la possibilité d'un retrait progressif permettant une réorganisation ordonnée.
Observatoire de la lutte anti blanchiment et contre le	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft	5.1. Caractère coercitif de l'instrument Les paiements de pénalités périodiques (Periodic Penalty Payments) constituent un instrument nouveau dans le paysage des sanctions administratives en matière de lutte contre le blanchiment. Inspirés du mécanisme de l'astreinte tel qu'il existe dans plusieurs droits nationaux, les paiements de pénalités périodiques vise à contraindre une entité à se conformer à une mesure administrative qui lui a été imposée, sous peine d'un paiement quotidien, hebdomadaire ou mensuel jusqu'à mise en conformité, pour une durée maximale de douze mois.

Name of the Organisation	Question	Answer
financement du terrorisme	RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	La finalité de cet instrument est clairement coercitive : il ne s'agit pas de sanctionner un manquement passé, mais de contraindre à l'exécution d'une obligation future. Le caractère cumulatif du paiement – qui croît avec le temps tant que l'entité demeure en situation d'inobservation – crée une pression financière croissante destinée à obtenir une mise en conformité rapide. Nous reconnaissons l'utilité potentielle de cet instrument dans les cas où une entité refuse délibérément de se conformer à une mesure administrative légalement imposée. Toutefois, son caractère fortement coercitif exige des garanties procédurales strictes et une attention particulière à la proportionnalité de son application. Recommandation : Le RTS devrait (i) clarifier le lien entre les critères d'imposition du paiement de pénalités périodiques et les critères généraux de l'article 8(3), (ii) prévoir des seuils de proportionnalité garantissant que le montant périodique demeure supportable pour l'entité compte tenu de sa taille et de sa situation financière, et (iii) préciser les modalités de cessation du paiement de pénalités périodiques, notamment la procédure par laquelle l'entité peut prouver sa mise en conformité. 5.2. Garanties procédurales Les articles 7 à 10 du projet prévoient un ensemble de garanties procédurales qui apparaissent conformes aux principes généraux du droit administratif de l'Union européenne et aux exigences de la Charte des droits fondamentaux. L'article 7 garantit le droit d'être entendu, avec un délai pouvant aller jusqu'à quatre semaines pour présenter des observations. L'article 8 impose que la décision d'imposition du paiement de pénalités périodiques soit motivée et ne puisse se fonder que sur des faits ayant fait l'objet du droit d'être entendu. L'article 10 limite à cinq ans le délai de recouvrement à compter de la notification de la décision fixant le montant final cumulé. Ces garanties nous paraissent essentielles compte tenu du caractère coercitif de l'instrument. Nous saluons leur inclusion dans le projet et appelons à leur application rigoureuse.
Fastighetsmäklarförbundet (FMF)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS	FMF supports the objective of establishing a more harmonised framework for assessing breaches under the EU anti-money laundering and counter-terrorist financing framework. A common set of indicators can contribute to greater consistency, legal certainty and predictability in supervisory practices across Member States. However, it is essential that these indicators are applied in a manner that adequately reflects the structural characteristics of the non-financial sector. Unlike large financial institutions, many obliged entities in the non-financial sector – including real estate brokerage firms – are small or medium-sized enterprises with comparatively limited organisational and financial resources.

Name of the Organisation	Question	Answer
	apply to the non-financial sector? If you do not agree, please explain your reasoning.	Indicators relating to governance structures, internal control systems and organisational complexity should therefore be interpreted proportionately. Smaller firms naturally operate with simpler organisational structures than large financial institutions, which should not in itself result in breaches being classified as more severe. FMF therefore considers that the assessment of the proposed indicators should explicitly take into account: • the size and organisational structure of the undertaking • the scale and complexity of the business model • the actual risk exposure associated with the activities performed Without such clarification, there is a risk that the framework could produce disproportionate effects for smaller actors in the non-financial sector. It should also be recognised that the real estate brokerage profession in several Member States, including Sweden, is already highly professionalised and subject to significant regulatory oversight. Swedish real estate agents operate within a framework requiring formal education, mandatory registration and ongoing supervision by a public authority. The sector has developed structured processes for customer due diligence, transaction transparency and documentation requirements in property transactions. These existing safeguards should be acknowledged when assessing both the seriousness of breaches and the adequacy of internal control systems within the sector. Introduction/background FMF: The Swedish Association of Real Estate Agents (Fastighetsmäklarförbundet, FMF) is a national industry organisation representing real estate agents and real estate brokerage firms in Sweden. FMF works to promote a professional, transparent and well-functioning real estate market and represents Swedish real estate agents in matters relating to regulation, supervision and market practice. The association provides legal guidance, professional support and industry representation for its members and actively participates in dialogue with public authorities, legislators and other relevant stakeholders. The Swedish real estate brokerage sector is characterised by a regulated and professionalised profession. In order to practise as a real estate agent, a university-level education and registration with the supervisory authority, the Swedish Estate Agents Inspectorate (Fastighetsmäklarinspektionen, FMI), are required. The profession is therefore subject to both professional regulation and regulatory supervision. FMF represents a significant share of the Swedish real estate brokerage market, including both independent

Name of the Organisation	Question	Answer
		brokerage firms and larger brokerage organisations. Through its work, the association has extensive insight into how anti-money laundering regulation is applied in practice within the non-financial sector and how supervisory practices affect small and medium-sized enterprises operating in the real estate brokerage industry. The comments provided in this consultation response are based on the practical experience of Swedish real estate brokerage firms implementing AML/CFT obligations in their day-to-day operations.
Fastighetsmäklarförbundet (FMF)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	FMF recognises that common criteria for determining administrative pecuniary sanctions can support greater consistency in supervisory practices across the European Union. At the same time, it is crucial that such criteria are applied in a manner that ensures sanctions remain proportionate and appropriate for the structural realities of the non-financial sector. Recent supervisory practices in several Member States, including Sweden, have resulted in sanction levels perceived within the sector as exceptionally high in relation to both the economic capacity of firms and the actual nature of the identified breaches. This development has contributed to considerable legal uncertainty within the industry. Real estate brokerage firms are typically small or medium-sized enterprises operating with relatively limited margins and financial buffers. Sanctioning frameworks implicitly designed with large financial institutions as the benchmark therefore risk producing disproportionate outcomes for smaller entities in the non-financial sector. Furthermore, revenues within the real estate brokerage industry are largely transaction-based and derived from commission structures linked to individual transactions. In several Member States, including Sweden, commission levels are comparatively low relative to transaction values. Sanctions calculated as a percentage of turnover or based on high fixed thresholds may therefore have particularly severe effects in sectors where operating margins are already limited. Against this background, FMF considers it essential that AMLA emphasises the principle of proportionality when supervisory authorities determine administrative pecuniary sanctions in the non-financial sector. Sanctions should in particular: • remain proportionate to the actual seriousness and impact of the breach • take into account the financial resilience and economic capacity of the undertaking • avoid creating situations in which otherwise compliant and legitimate businesses risk their continued operation.

Name of the Organisation	Question	Answer
Fastighetsmäklarförbundet (FMF)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	FMF recognises that the financial strength of both legal entities and responsible natural persons should be taken into account when determining sanction levels. This criterion is particularly relevant in the non-financial sector, where a large proportion of obliged entities consist of small businesses or micro-enterprises with limited financial capacity. If sanction levels are determined without sufficient consideration of economic capacity, there is a risk that sanctions may become disproportionately burdensome and potentially distort competition within the market. In the real estate brokerage sector, sanctions representing a substantial proportion of a firm's turnover may have far-reaching consequences. This is particularly the case when breaches relate primarily to procedural or documentation deficiencies rather than conduct that has actually facilitated money laundering or other criminal activity. FMF therefore considers that AMLA should clarify that the financial capacity of obliged entities must constitute a central factor in determining sanction levels in the non-financial sector. Supervisory authorities should also consider the broader market implications of very high sanctions in sectors characterised by a large number of small enterprises. It should also be recognised that the real estate brokerage sector in many Member States already operates in close cooperation with the financial sector in areas such as customer due diligence and transaction monitoring. In Sweden, for example, real estate transactions involve extensive collaboration with banks through digital transaction platforms and information-exchange systems. These infrastructures already contribute significantly to the transparency and integrity of property transactions. Future supervisory and sanctioning frameworks should therefore build upon these existing cooperative structures rather than creating parallel systems.
Fastighetsmäklarförbundet (FMF)	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative	FMF recognises that administrative measures such as restrictions on business activities, withdrawal of authorisation or changes in governance arrangements may be justified in cases involving serious or systemic breaches. However, such measures should be applied with particular caution in the non-financial sector. Real estate brokerage firms typically operate as specialised service providers within local markets. Administrative measures affecting their authorisation or operational capacity may therefore have significant consequences not only for the firm itself but also for local market functioning and consumer access to services.

Name of the Organisation	Question	Answer
	measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Supervisory authorities should therefore carefully assess: • the proportionality of the proposed measure • the possibility of corrective or remedial actions • whether less intrusive measures could achieve the same supervisory objective. More intrusive administrative measures should generally be reserved for particularly serious, repeated or systemic breaches, consistent with the underlying intent of the EU legislative framework. FMF would also like to highlight the need for a broader policy discussion regarding how the increasing compliance obligations under the EU AML/CFT framework should be financed in practice. In several regulated sectors, increasing compliance requirements have led to greater transparency towards consumers regarding the costs associated with regulatory compliance. In some cases, this has taken the form of specific service fees linked to regulatory checks or security procedures. It may therefore be appropriate at EU level to explore whether similar mechanisms could contribute to a more transparent and sustainable allocation of compliance costs in the non-financial sector.
Fastighetsmäklarförbundet (FMF)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	FMF recognises that periodic penalty payments may constitute an effective tool for ensuring compliance with supervisory decisions. Nevertheless, it is important that such mechanisms are applied in a manner that fully respects the principle of proportionality. In sectors dominated by small and medium-sized enterprises, even relatively modest periodic penalties may quickly accumulate to levels that become economically unsustainable. Supervisory authorities should therefore carefully consider: • the financial capacity of the undertaking • the duration of the identified breach • whether the measure is necessary and proportionate to achieve compliance. Where possible, supervisory authorities should prioritise dialogue and remedial actions before resorting to recurring financial sanctions. Final remarks FMF welcomes AMLA's efforts to strengthen supervisory consistency across the European Union within the framework for combating money laundering and terrorist financing. At the same time, it is essential that the future supervisory framework recognises the structural differences

Name of the Organisation	Question	Answer
		between the financial and non-financial sectors. The latter is characterised by a large number of small and medium-sized enterprises with limited organisational and financial resources. Ensuring that sanctions and supervisory measures are applied proportionately will be crucial to maintaining an effective regulatory framework that: • effectively addresses non-compliance • maintains fair and balanced market conditions • avoids unintentionally undermining the ability of legitimate businesses to operate sustainably. FMF therefore emphasises the importance of giving the proportionality principle a clear and practical role in the implementation of the framework within the non-financial sector. Finally, FMF would like to underline the importance of structured and continuous cooperation between supervisory authorities and industry organisations within each Member State. Industry organisations play a key role in disseminating guidance, supporting professional training and translating regulatory requirements into workable operational procedures. A more structured dialogue between AMLA, national supervisory authorities and industry organisations could therefore contribute to a more effective and proportionate implementation of the AML/CFT framework across the European Union.
Dansk Erhverv	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	General observations. About Danish Chamber of Commerce: The Danish Chamber of Commerce is one of the largest business organizations in Denmark, representing companies across sectors including retail, services, IT, transport, tourism, health and business services such as lawyers and accountants. We act on behalf of more than 18,000 member companies and over 100 sector associations. As a business and employers' organization, we work to improve framework conditions for companies operating in Denmark and internationally. Through policy engagement and expert advice, we promote competitive, transparent, and proportionate regulation that supports innovation, growth, and well-functioning markets. General remarks: The Danish Chamber of Commerce supports strong and effective measures to prevent and combat money laundering and terrorist financing. At the same time, it is important that the regulatory framework is designed in a way that avoids creating unnecessary administrative burdens for businesses. Experience across several sectors shows that AML/CFT regulation has increasingly developed into complex compliance requirements

Name of the Organisation	Question	Answer
		that demand significant resources from companies without necessarily improving the effectiveness of the fight against financial crime and terror financing. More broadly, the Danish Chamber of Commerce advocates that regulation at both national and EU levels should place greater emphasis on proportionality, risk-based approaches, and regulatory simplification. Businesses already devote substantial resources to regulatory compliance, tying up labour and capital that could otherwise contribute to innovation, investment, and growth. This is particularly important for non-financial obliged entities, where many actors are small and medium-sized enterprises with limited administrative capacity. A genuinely risk-based and proportionate approach will strengthen compliance while ensuring that regulatory requirements remain manageable for legitimate businesses. Overreliance on pecuniary penalties risks creating a reactive system focused on punishment rather than effective risk prevention. Equal emphasis should be placed on mechanisms that support obliged entities in strengthening AML/CFT compliance sustainably. Question 1: Several indicators in the draft RTS require adaptation for non-financial obliged entities including e.g. lawyers, accountants, real estate agents and art galleries. The assessment of “structural failure” in indicator (h) should clearly distinguish between systemic governance deficiencies and situations where small non-financial obliged entities lack formalized documentation but operate in good faith with limited administrative resources. A clear distinction between professional error and intentional wrongdoing is needed. Most AML/CFT breaches in non-financial obliged entities involve internal procedure deficiencies, shortcomings in customer due diligence or incomplete or missing documentation. Indicator (i) and (j) - impact on financial viability and financial stability - are largely irrelevant for non-financial obliged entities, as breaches rarely affect financial strength or systemic stability. We would recommend introducing non-financial sector-specific definitions and thresholds and to calibrate “significant” impact for non-financial obliged entities; define “duration” and “repetition”; and distinguish “structural failure” from lack of formalisation.
Dansk Erhverv	QUESTION 2: Do you agree that the proposed list of criteria	While the criteria in Article 4 provide a useful framework, we believe their practical application to non-financial obliged entities require clarification, proportionality adjustments, and guidance tailored to the size, structure, and operational context of smaller non-financial obliged entities.

Name of the Organisation	Question	Answer
	to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	In particular, the inclusion of mitigating factors such as cooperation, voluntary disclosure and timely remedial actions is essential and welcome. These elements are especially important in sectors where compliance structures are less formalised than in large financial institutions. Furthermore, sanctions should reflect not only the gravity of the breach, but also the actual AML/CFT risk exposure profile of the entity concerned, taking into account the typically limited systemic risk of non-financial obliged entities.
Dansk Erhverv	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The concept of financial capacity is only partially applicable to non-financial obliged entities. Turnover, or other measures that are sector meaningful, should be used rather than regulatory capital or liquidity to gauge capacity. Proportionality between the nature of the breach and the financial circumstances of the entity or individual must be ensured. Non-financial sanctions to replace and/or complement pecuniary measures where appropriate should be possible. Such approach would ensure sanctions remain effective, proportionate, and tailored to the realities of non-financial obliged entities.
Dansk Erhverv	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	An automatic or rigid application of suspension or withdrawal measures in response to AML/CTF breaches could conflict with legal provisions governing professional authorisations. To ensure legal certainty and avoid unintended conflicts between regulatory frameworks, greater flexibility should be explicitly reflected in the RTS. In this context, it would be helpful to clarify that such measures are to be applied within the limits of the legal framework governing the relevant authorisation.

Name of the Organisation	Question	Answer
	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
Dansk Erhverv	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The proposed methodology for periodic penalty payments (PePPs) under Section 3 of the draft RTS raises significant concerns for non-financial obliged entities. There is a lack of operational clarity including the calculation, accrual (daily or periodic), capping, and the point at which a breach is considered remedied. Where multiple services are provided, only revenue or other relevant measures used related to AML/CTF-regulated activities should be considered. Daily or ongoing penalties should only be applied after a reasonable grace period, allowing the obliged entity time to remediate the breach. Minor breaches arising from procedural errors or negligence should prioritise corrective measures over financial penalties. The process of imposition of PePPs shall be governed by national law in force in the Member State where the periodic penalty payments are imposed and collected. We welcome the procedural safeguards provided in Articles 7–10, including the right to be heard and clear decision requirements, as important elements of legal certainty.
BOS - The Swedish Trade Association	QUESTION 1: Do you agree that the	Indicators pertaining to the integrity, transparency, and security of the financial system, as well as financial stability and the orderly functioning of markets, necessitate nuanced application regarding gambling

Name of the Organisation	Question	Answer
for Online Gambling	proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	operators. Given that the gambling sector maintains only marginal and indirect exposure to the financial system — distinct from the role of financial institutions — the application of criteria designed for direct financial market participants may result in disproportionate regulatory outcomes. Consequently, further clarification is required on the interpretation of “impact on the financial markets or financial system” for non-financial sectors. To mitigate the risk of speculative assessments regarding "potential impact," the gravity of a breach should primarily be evaluated based on its actual impact and materiality during the period of manifestation. Furthermore, regarding Article 2(4), it is recommended that ambiguous phrasing such as “short period of time” be replaced with more prescriptive definitions. Precise terminology is essential to ensure consistent application across Member States and to eliminate the risk of divergent national interpretations.
BOS - The Swedish Trade Association for Online Gambling	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Regarding the requirement for supervisors to assess the financial strength of legal persons based on total annual turnover, it is submitted that this metric may inaccurately represent the financial position of gambling operators. In the gambling industry, "turnover" often encompasses the total aggregate of all wagers placed by customers, including funds that do not constitute revenue, profit, or available capital. Consequently, total turnover is frequently substantially higher than an operator's Gross Gambling Revenue (GGR) or its actual financial standing. The use of turnover as a primary metric risks overstating an entity's financial capacity, potentially leading to disproportionate sanctions. For instance, in the context of slot machines, turnover accounts for 100% of bets placed, whereas GGR reflects the actual income remaining after winnings are returned to players. With a Return-to-Player (RTP) rate of 92%, the operator retains only 8% as GGR. Thus, while turnover measures betting volume, GGR more accurately reflects earnings prior to operating expenses. To ensure a proportionate and sector-specific application, it is recommended that supervisors be permitted or required to utilize alternative metrics, such as GGR, which more faithfully reflect an operator's true financial position. Alternatively, clear guidance should be provided on the interpretation of “turnover” for sectors where standard accounting definitions diverge from industry-specific indicators. Such measures would prevent disproportionate outcomes and facilitate consistent application across Member States.

Name of the Organisation	Question	Answer
BOS - The Swedish Trade Association for Online Gambling	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The gambling sector recognizes that the financial strength of the responsible party is a well-established criterion within the AML/CFT legislative framework, essential for ensuring that sanctions remain proportionate, effective, and dissuasive. When applied consistently and in accordance with the principle of proportionality, this criterion enables supervisory authorities to calibrate sanctions effectively while accounting for the specific characteristics of non-financial obliged entities. However, it is imperative to clearly define group parameters to ensure a proportionate approach when an entity belongs to a corporate group. The assessment of the actual impact of a breach, as well as the resulting pecuniary penalties, should focus on the risk manifested within that specific legal entity rather than being evaluated against the financial context of the entire group. Furthermore, Paragraph 5 stipulates that supervisors, when determining sanctions, shall consider the financial strength of legal persons, including total annual turnover. As previously noted, the use of total annual turnover as an indicator of financial strength causes significant distortion for gambling operators. Relying on this metric may lead to the imposition of pecuniary sanctions that are fundamentally disproportionate to the entity's actual financial capacity.
BOS - The Swedish Trade Association for Online Gambling	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	The gambling sector acknowledges that the proposed criteria for administrative measures are broadly aligned with the principles of proportionality and effectiveness. The following observations are submitted to address specific practical concerns regarding their application. Regarding Article 7(2), the proposed four-week timeframe for responding may prove insufficient for large-scale groups or entities operating within complex governance structures. For such operators, this restrictive duration may impede the ability to provide comprehensive and accurate submissions. Consequently, the framework should include provisions for reasonable extensions when justified by the scale or cross-border nature of the group. Furthermore, the phrasing "up to four weeks" introduces regulatory ambiguity; a standardized minimum timeframe should be clearly established to ensure consistent application and interpretation across Member States. Furthermore, given the potentially existential consequences of license suspension or withdrawal, such measures must be applied with strict adherence to the principle of proportionality and, where appropriate, in

Name of the Organisation	Question	Answer
		a sequential manner. The withdrawal or suspension of a license should not be triggered solely by a Category 3 or 4 classification. Instead, these measures should be predicated on demonstrable evidence of structural or material failure and the entity's inability to mitigate risks through less severe interventions. The sector recommends that AMLA encourages formal coordination between AML supervisors and sectoral gambling regulators prior to the imposition of measures that materially impact market viability or licensing status. This ensures that such significant sanctions are reserved for demonstrable systemic deficiencies in AML controls or substantial ML/TF risk exposure.
BOS - The Swedish Trade Association for Online Gambling	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The gambling sector recognizes the importance of a clear, consistent, and predictable methodology for the imposition of periodic penalty payments (PePPs), as such a framework enhances legal certainty and ensures effective enforcement. The sector notes that the proposed framework is broadly sufficiently articulated to allow for a proportionate application to non-financial obliged entities, provided their specific money laundering and terrorist financing (ML/TF) risk profiles are adequately considered. However, a critical consideration arises regarding the duration of PePPs. To remain commensurate and proportionate, the timeframe for these penalties must account for the technical realities of implementing corrective solutions. In instances where remediation requires complex technological development that may necessitate several months to complete, the imposition of a daily penalty would be unreasonable. Consequently, supervisors should establish realistic remediation milestones. PePPs should be aligned with clearly measurable periods of non-compliance rather than unavoidable delays inherent in technical implementation or system integration. Finally, AMLA must remain mindful of market viability and stability, particularly within regulated consumer-facing sectors. Disproportionate measures — specifically those affecting licensing status — risk driving consumers toward the unregulated market, which operates outside the scope of EU AML safeguards. A proportionate application of the framework is therefore essential to uphold both AML objectives and broader market integrity.
Spelbranschens Riksorganisation	QUESTION 1: Do you agree that the proposed list of	We broadly support the proposed indicator framework as a basis for harmonised supervisory assessment across sectors. However, certain clarifications would help ensure risk-based proportionality in digital and cross-border operational models. Key considerations: Scale versus risk: Indicators such as “number of

Name of the Organisation	Question	Answer
	indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	customers affected” or “cross-border impact” should not automatically increase gravity unless linked to demonstrable ML/TF risk exposure. In high-volume digital environments, numerical scale alone may not reflect material risk. The RTS should explicitly require that the assessment of gravity takes into account the risk profile, scale and business model of the obliged entity. Material structural failure: Given its link to the highest severity categories, clarification would be beneficial to ensure that “material structural failure” refers to systemic inability to mitigate ML/TF risk rather than temporary operational incidents or legitimate calibration choices within risk-based frameworks. Product-level risk differentiation: Within the gambling sector, ML/TF risk varies across products and payment channels. Assessment of gravity should reflect actual risk exposure rather than applying a uniform approach across heterogeneous non-financial activities. The notion of “impact on the integrity, transparency and security of the financial system” should be interpreted in light of the specific role of non-financial operators, which do not provide credit or deposit-taking services but may process significant transaction volumes. While ML/TF risks may arise within the gambling sector, breaches are unlikely to affect financial stability in the same manner as failures in credit institutions. Systemic financial stability considerations should therefore be relevant only where an entity’s activities are objectively capable of generating material cross-sector financial contagion risk.
Spelbranschens Riksorganisation	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	We support the proposed criteria, as they enhance predictability and supervisory consistency. Limited clarification could further strengthen proportionality. Key considerations: Materiality over numerical reach: In high-volume environments, minor operational deviations may affect large numbers of transactions or customers. Sanction calibration should focus on material AML/CTF risk impact rather than absolute numbers alone. Benefit derived from the breach: Any aggravation based on financial benefit should require a demonstrable causal link between the breach and unjust enrichment, rather than reflecting the continuation of normal business activity. With respect to prior breaches, the assessment should clearly distinguish between minor administrative shortcomings and serious AML/CFT failures in order to avoid disproportionate escalation.

Name of the Organisation	Question	Answer
		Intentionality and degree of fault: Clear differentiation between deliberate misconduct, negligence and genuine operational or human error would reinforce proportionality and legal certainty.
Spelbranschens Riksorganisation	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We agree that financial strength is a relevant factor to ensure sanctions are effective and dissuasive. Application should, however, reflect economic reality and proportionality. Key considerations: Group turnover versus scope of breach: Reliance solely on consolidated turnover may lead to disproportionate outcomes where infringements are geographically or operationally limited. Assessment should consider the scope and relevance of the breach. Appropriate financial metrics: In the gambling sector, turnover does not necessarily reflect actual economic benefit. Metrics such as Gross Gaming Revenue (GGR), already used in sectoral supervision, may better represent financial capacity. For gambling operators, financial strength should not be assessed on the basis of total customer stakes handled, but rather on relevant revenue indicators such as Gross Gaming Revenue (GGR). Total stakes significantly exceed the operator's actual revenue. Using total stakes as a benchmark would distort proportionality and risk producing excessive sanctions. Financial strength assessments should therefore be based on GGR (net revenue) rather than total amounts wagered. Supervisors should also take into account the regulatory density and compliance complexity of highly regulated sectors when assessing culpability and sanction levels. When setting sanctions for licensed gambling operators, supervisors should assess whether disproportionate sanctions risk undermining regulated market channelization objectives by inadvertently strengthening unlicensed operators, contrary to AML policy goals.

Name of the Organisation	Question	Answer
Spelbranschens Riksorganisation	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We recognise administrative measures as legitimate tools in cases of serious or systemic AML/CFT failures. Clear escalation thresholds are essential to ensure proportional and consistent application. Key considerations: Systemic failure threshold: Restrictive measures, including licence suspension or withdrawal, should primarily target demonstrable systemic AML control deficiencies or significant ML/TF risk exposure, not operational scale alone. Withdrawal or suspension of authorization should be applied only as a measure of last resort and subject to a strict proportionality assessment. Such measures should be imposed only where less intrusive alternatives demonstrably cannot achieve compliance. When imposing severe measures such as suspension, supervisors should explicitly assess the potential impact on customers and broader market stability, including potential disruption of public-interest functions. Governance-related measures should be directly linked to identified AML/CFT deficiencies and demonstrable failures in oversight. Link to Category 3 and 4: Given the consequences attached to these categories, their application should be based on material risk impact to avoid disproportionate outcomes. Market stability considerations: In regulated consumer-facing sectors, disproportionate licence-level measures may drive consumers toward unlicensed markets operating outside EU AML safeguards. Proportional application supports both AML objectives and market integrity.
Spelbranschens Riksorganisation	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as	We support the applicability of periodic penalty payments to the non-financial sector as a compliance-enforcement tool. Clarification is needed to ensure proportional and predictable implementation. Key considerations:

Name of the Organisation	Question	Answer
	listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Determination of the non-compliance period: As supervisory audits cover defined timeframes; it may be difficult to precisely determine the start and end of non-compliance. Guidance would enhance legal certainty and consistency. Limitation period for collection: The proposed five-year limitation period may be excessively long and create prolonged legal uncertainty. Consideration could be given to a more proportionate timeframe aligned with the corrective purpose of PePPs. Article 8(3) should require transparency in the calculation methodology for PePPs. Supervisors should provide a clear calculation methodology in their decision in order to ensure predictability and enable effective judicial review. The interaction between PePPs and pecuniary sanctions should be framed in a manner that avoids disproportionate cumulative effects. Supervisors should ensure that the amount and frequency of PePPs remain proportionate to the objective of restoring compliance and do not assume a punitive character. PePPs should be linked to objectively measurable compliance steps and realistic implementation timelines.
Council of Bars and Law Societies of Europe (CCBE)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The CCBE observes that most of the provisions of the Draft RTS (DRTS) only refer to the “supervisor”. In view of the possibility granted by Article 37, par.3 of AMLD 6, the AMLA should check that the term “supervisor” includes SRBs, as the latter have, in certain States, the power to impose pecuniary sanctions and administrative measures, accompanied by periodic penalty payments where appropriate. The AMLA should further check whether the DRTS sufficiently takes into account the possibility provided to States by Article 53, par. 3 of AMLD 6 (pecuniary sanction is initiated by the supervisor and imposed by a judicial authority). Articles 2 and 3 of the DRTS, which derive from Article 1, cannot be applied to the legal sector. These provisions aim at regulating procedures and create classes of breaches. More fundamentally, this lacks legal basis in the AMLD 6 and cannot be regulated by RTS, for the following reasons. (i) Classification of breaches into four classes (as provided by Article 2 of the DRTS) with consequences attached is against the provisions of Article 53(10), para.1, (a) of the AMLD 6, which only prescribes that the RTS shall set out “indicators to classify the level of gravity of breaches”. On the contrary, pursuant to same

Name of the Organisation	Question	Answer
		Article 53(10), the involvement of AMLA shall be limited to assisting in defining indicators enabling the national supervisors to assess the level of seriousness of breaches; (ii) Relatedly, the approach currently upheld in the DRTS actually seriously limits the possibility for the national supervisors to apply their own supervisory judgement in the determination of the gravity of a given breach, while the importance of such notion of “supervisory judgement” is expressly enshrined in the recitals of the RTS and recalled throughout the AMLA Consultation Paper . The classification and attribution of consequences is too rigid and alien to the European tradition of sanctions which are imposed after an individual appreciation of facts and circumstances. From the point of view of legal professional supervision systems, a rigid, predefined classification of breaches — especially one tied to automated consequences — is not suitable for a profession where case-by-case assessment, ethical obligations, and LPP/PS are central to practice. Also, it could have as practical consequence that obliged entities could be less diligent when defining and implementing measures aiming at mitigating the risk of being exposed to breaches which are deemed less serious as per their “category”. Many AML/CFT-related compliance issues in the legal sector arise from complex interactions between the obligation to prevent ML/TF and the duty to respect confidentiality, client rights, and due process. Applying a uniform four-tier system of gravity could result in sanctioning conduct that is not objectively serious, but merely reflects a good-faith error in the interpretation of overlapping obligations and the other way around. Such an approach risks undermining both the proportionality and legitimacy of enforcement measures. In that sense, the DRTS goes also beyond what is the competence of the Union and the procedures should be left to national law. The search for clarity and certainty is understandable, but if the draft provisions were to be applied to the legal sector, the effect would be the opposite - it would be ticking the box to set sanctions without really looking in the case. In case where judges are competent to impose sanctions, binding them by RTS would not be correct. (iii) Furthermore, the DRTS appears to overlook the reality that in many Member States, legal professionals are supervised by self-regulatory bodies, which have not only robust disciplinary mandates, but also obligations to safeguard constitutional principles, such as access to justice and LPP/PS. Those bodies operate under national legal traditions that require flexibility and deliberation — qualities that a strict, EU-wide classification model may undermine. Also, if the system has to be risk-based it means one needs to tailor sanctions to specific circumstances of the case. The proposed classification system goes against this approach.

Name of the Organisation	Question	Answer
		With respect to the indicators to classify the gravity of breaches provided under Article 1 of the DRTS, they do not allow for just results for all cases because there could be other factors that could shed light on them. A proper assessment of the gravity of breaches needs to take into account all elements of a case and therefore allow a certain discretion in order to reflect the circumstances of a case in a fair manner. When deciding on the gravity of a breach, it should be allowed to take into account (and leave to the discretion of the relevant supervisor exercising its supervisory judgment on a case by case basis) other contributing factors which may not be listed such as for example (and without limitation) repetition of the breach.
Council of Bars and Law Societies of Europe (CCBE)	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	While, in principle, the list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the Draft RTS may indeed be relevant to the non-financial sector (subject to a case-by-case assessment of relevant breaches), we would like to raise the following comments: (i) the list of criteria allowing for the decrease of pecuniary sanctions (Article 4(2) of the Draft RTS) could be expanded, for example in case if the breach was committed by error, including error on the applicable laws and regulations in a complex regulatory environment; (ii) with respect to Article 4(2), the level of pecuniary sanctions should decrease in equivalent amount to take into account the amounts already invested by the obliged entity to remedy the identified / sanctioned breach; (iii) with respect to Article 4(4), pecuniary sanctions on natural persons which are not themselves obliged entities (e.g. board members, compliance officers... of an obliged entity) should be limited to cases where it may be demonstrated that the individual conduct of such natural persons had a direct impact on the identified / sanctioned breach; (iv) with respect to Articles 4(2)(a) and 4(3)(a), it shall be noted that, for certain non-financial professions (such as lawyers), the level of cooperation with the supervisor may be (validly) limited or hindered by the strict LPP / PS obligations to which they may be subject. Hence, the level of cooperation with supervisors might not be always relevant for such professions. Proportionality benchmark must reflect actual AML-regulated exposure (not firm-wide or individual earning metrics). For legal professionals and law firms whose AML obligations arise only when performing defined AML-regulated activities any benchmark used under the Draft RTS to calibrate the level of a pecuniary sanction should be confined to the obliged entity's actual AML-regulated activity and exposure to ML/TF risk in the matter concerned. Accordingly, AMLA should ensure that sanction calibration is not driven (expressly or implicitly) by metrics that do not isolate AML-regulated activity, including firm-wide turnover/revenue/overall economic size, or by metrics linked to the earning capacity / annual income of an individual. Such metrics risk

Name of the Organisation	Question	Answer
		producing distorted outcomes for mixed-service professional firms and for individuals whose income is not a reliable indicator of the scale, seriousness, or impact of an AML-regulated breach.
Council of Bars and Law Societies of Europe (CCBE)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Articles 4(5) and 4(6) of the Draft RTS operate a distinction between legal persons, on the one hand, and natural persons, on the other hand, held responsible for the breach. In particular, Article 4(6) makes a link between the financial strength of the natural person held responsible, and the annual income received from the obliged entity or group of which the obliged entity is part. Relevance of such link may be challenged, in particular in case of lawyers performing their activities under an independent status, while belonging to a structured law firm. In addition, relevance of income at group level (where relevant), is questionable, as group entities, on an individual basis, do not necessarily benefit from income perceived, on an aggregate basis, at group level. As a general point of principle, any reference to “financial strength” used to set the level of a pecuniary sanction should serve the objective of ensuring proportionality by reference to the obliged entity’s actual AML-regulated activity and exposure to ML/TF risk. For legal professionals, that necessarily requires a careful distinction between AML-regulated activities and the broader set of legal services that fall outside the AML regime. In that context, there is a concern that approaches that would directly or indirectly use firm-wide turnover/revenue or the earning capacity / annual income of an individual as a metric benchmark for sanction calibration. Where such metrics do not correspond to AML-regulated activity, they risk overstating or understating seriousness and producing outcomes that are not genuinely risk-based or proportionate.
Council of Bars and Law Societies of Europe (CCBE)	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the	Article 5 of the Draft RTS does not provide distinct criteria for non-financial sector supervisors when applying administrative measures. For all these measures, given their impact, they should be reserved for the breaches with the highest level of gravity, i.e. breaches with gravity classified as category four (while current draft refers to category three or four). Alternatively, they could be extended to category three breaches e.g. only in case of failure by relevant obliged entity to remedy within a predefined timeframe. It is important to underline that, for non-financial sector professionals such as legal professionals, administrative measures may prove, in certain circumstances, to be more efficient and have a more deterrent effect than pecuniary sanctions. Indeed, for instance: (i) issuing an order to implement specific corrective measures (Art. 56 par. 2 (b), AMLD 6) together with

Name of the Organisation	Question	Answer
	proposed draft RTS? If you do not agree, please explain your reasoning.	periodic penalty payments (Art.57 AMLD 6) may result more efficient and compelling than a mere pecuniary sanction; (ii) restricting or limiting the business (Art.56 par. 2., (e) AMLD 6) or requiring changes in the governance structure (Art.56 par.2 (g) AMLD 6) may respectively result in financial loss or compliance costs, and/or reputational impact exceeding the consequences that a mere pecuniary sanction could have on a lawyer / law firm. Accordingly, administrative measures should not be treated under the Draft RTS as a lower alternative to pecuniary sanctions, but instead, subject to the judgement of relevant supervisor / self-regulatory body, as equivalent to pecuniary sanctions, depending on the author of the identified breach. The indicators and criteria provided in the Draft RTS generally do not seem completely irrelevant to the legal sector, but as previously commented, and given the relevance of the administrative measures to the non-financial sector professionals (as emphasized hereabove), it is important that these criteria/indicators remain examples to be taken into account by the supervisor, with the supervisor retaining flexibility to apply its own judgement when deciding on a sanction. Based on its supervisory judgement, and regardless of the criteria provided by the Draft RTS, the supervisor should, ultimately, retain discretion in the determination of the administrative measure (or pecuniary sanction) deemed more appropriate in a given circumstance, notably taking into account the seriousness of the identified breach, and the typology of the professional concerned (for instance, as noted above, boutique law firm, vs. law firm pertaining to a network), in order to impose the sanction or measure considered by the supervisor, on a case by-case basis, as the most effective, proportionate and dissuasive - such overarching principle being set out under Article 53 par. 2. of AMLD 6. There is also a question of attribution of powers and competencies. It can be unfit for purpose because depending on the national system, supervisors might not have enforcement functions (e.g. certain Bar cannot impose fines or take administrative measures, but independent disciplinary courts do). In that sense, the Draft RTS does not fit with the reality and rules regarding supervisory powers in the legal sector and thus may be of limited relevance for the Bars acting as supervisors. Lastly, as commented under Section 2.2(iv) above, for lawyers, the level of cooperation may be limited or hindered by the strict LPP / PS obligations to which they may be subject. Hence, considering the lack of cooperation with supervisors when considering the need for a change in the governance structure (Article 5(4)(c) of the Draft RTS) cannot be relevant in their respect.

Name of the Organisation	Question	Answer
Council of Bars and Law Societies of Europe (CCBE)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The principle of imposing periodic penalty payments to compel an obliged entity to comply with an administrative measure pronounced against it, is relevant to non-financial sector obliged entities (such as legal professionals. More specifically, decision of imposing periodic penalty payments is rarely taken in isolation and is more likely to be included in a decision to impose pecuniary sanctions or administrative measures. However, the manner in which Article 3 is drafted appears to suggest a procedure and decision-making process that is distinct from the decision-making process relating to an administrative measure. In practice, this is not the case. However, the proposed methodology for periodic penalty payments should not apply to the non-financial sector. In addition, Article 53 (10) of AMLD 6 is not the appropriate legal basis for procedural aspects. Such aspects shall indeed be governed by national law only. Articles 7, 8 and 10 of the Draft RTS (to the extent purporting to set forth procedural aspects of periodic penalty payments) must therefore be deleted. In any case, Articles 7 and 8 of the Draft RTS should rather refer to the complete body of defendant rights of due process, instead of focusing exclusively on the right to be heard in relation to periodic penalty payments. Additional general remarks: - In order to complete the answers to these questions that were not possible due to the format of the questionnaire, the CCBE has provided AMLA with an additional paper. - Moreover, it should be specified that through the answer to these questions, the CCBE would like to reiterate certain comments raised through the CCBE answer dated 6 June 2025 to the EBA consultation paper which addressed, amongst others, the initial version of the Draft RTS. - The CCBE wishes to invite AMLA to make sure its contact points effectively and meaningfully consult with relevant bars, acting as national supervisors (as the case may be, in accordance with Article 37, 3. of AMLD 6) for the non-financial sector. - The CCBE would advocate for the development of specific RTS, specifically tailored to the legal profession. - Several provisions in the Draft RTS (as noted in the answers below) appear to impose more stringent and prescriptive obligations than the corresponding provisions in the AMLD 6. We strongly recommend that the Draft RTS be revised to reflect more accurately the spirit and wording of the AMLD. - It is important to stress that one of the elements that distinguishes the legal sector is indeed that it is covered by the AML rules only when performing particular activities.

Name of the Organisation	Question	Answer
		- We recommend that the implementation of the Draft RTS be accompanied by a structured dialogue between AMLA, national non-financial supervisors and (legal) professional associations, to ensure a proportionate and practical roll-out.
WSBI-ESBG	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the draft RTS should apply to the non-financial sector. However, we suggest two adjustments to improve clarity and legal certainty: • Deletion of “structural failure”: Structural failure appears to be already encompassed within the criterion relating to the “nature” of the breach. • Deletion of “others”: This term is undefined and overly broad, which may lead to inconsistent interpretation.
WSBI-ESBG	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree that the proposed list of criteria set out in Article 4 of the draft RTS can, in principle, also apply to the non-financial sector. However, keeping only “level of cooperation” as the second (“conduct...”) is part of it.
WSBI-ESBG	QUESTION 3: Do you agree that the	Yes, we agree that the applicability of the financial strength of the legal or natural person held responsible under Article 4(5) and Article 4(6) of the proposed draft RTS should also apply to the non-financial sector.

Name of the Organisation	Question	Answer
	applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	
WSBI-ESBG	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Yes, but 2(e) and 3(e) as they are open to interpretation
WSBI-ESBG	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as	Yes we do

Name of the Organisation	Question	Answer
	listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	
Chamber of Auditors of the Czech Republic	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Navrhované ukazatele je vhodné pro nefinanční sektor upravit a přizpůsobit jeho specifikům. Finanční sektor se od nefinančního výrazně liší, převažují v něm velké společnosti s vysokým objemem transakční aktivity. Naproti tomu v nefinančním sektoru existuje značná rozmanitost subjektů různé velikosti, od velmi malých po velké, přičemž rozdíly v obratu a rozsahu činnosti mohou být až stonásobné. U auditorských entit navrhované ukazatele nemusí plně odrážet jejich skutečný rizikový profil a roli v systému AML/CFT. Auditori přicházejí ke klientovi zpravidla až po jiných povinných osobách, jako jsou účetní či daňoví poradci, a jejich činnost spočívá především v následné kontrole transakcí po skončení účetního období. Doporučujeme proto explicitně zohlednit velikost a povahu subjektu, rozsah jeho transakčního zapojení a princip proporcionality (recitál 32 nařízení (EU) 2024/1624).
Chamber of Auditors of the Czech Republic	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not	Kritéria jsou obecně relevantní, avšak v nefinančním sektoru je třeba je aplikovat s ohledem na jeho specifika. Finanční či konkurenční prospěch z porušení je u auditorské profese obtížně vyhodnotitelný, protože auditori poskytují především kontrolní a ověřovací služby a nepodílejí se přímo na realizaci transakcí. Současně je třeba zohlednit relativně nízký rizikový profil auditorských služeb v rámci systému AML/CFT. Auditori obvykle vstupují do vztahu s klientem až po jiných povinných osobách (např. účetních či daňových poradcích) a jejich činnost spočívá především v následné kontrole transakcí po skončení účetního období. Zásada proporcionality by proto měla při stanovení výše sankcí reflektovat velikost subjektu, jeho ekonomickou realitu, skutečný dopad porušení i omezené kapacity orgánů dohledu v nefinančním sektoru (recitál 28 nařízení (EU) 2024/1624).

Name of the Organisation	Question	Answer
	agree, please explain your reasoning.	
Chamber of Auditors of the Czech Republic	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Zohlednění finanční síly je legitimní, avšak v nefinančním sektoru, kde převažují malé a střední subjekty či OSVČ by mělo být aplikováno obezřetně. Sankce založené převážně na obratu mohou být nepřiměřené. Doporučujeme, aby finanční síla byla jedním z více posuzovaných faktorů a aby ji vyvažovaly skutečný dopad, míra zavinění a nízká rizikovost auditorské profese.
Chamber of Auditors of the Czech Republic	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Kritéria jsou relevantní, ale musí reflektovat specifické postavení regulovaných profesí, včetně auditorů. AML povinnosti jsou u auditorů podle současné národní legislativy dozorovány v užším rozsahu, než jaký se předpokládá v novém evropském rámci, což znamená významné rozšíření regulatorních a dohledových požadavků. V nefinančním sektoru jsou navíc dozorové kapacity často omezené (menší finanční a lidské zdroje) a AML představuje pouze jednu z oblastí, nad nimiž dohledové orgány vykonávají kontrolu. Auditři zároveň obecně představují nízkorizikový sektor z hlediska AML/CFT, neboť poskytují převážně kontrolní a ověřovací služby a již podléhají přísnému profesnímu dohledu, etickým pravidlům a licenčnímu režimu. U osobně odpovědných a licencovaných subjektů mají opatření jako odnětí licence nebo zásah do řídicí struktury zcela zásadní dopad a měla by být vyhrazena zejména pro závažná či úmyslná porušení. U méně závažných pochybení doporučujeme upřednostnit nápravná a preventivní opatření a uplatnit proporcionalitu s ohledem na velikost, povahu a rizikový profil subjektu.

Name of the Organisation	Question	Answer
Chamber of Auditors of the Czech Republic	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Metodiku lze uplatňovat i v nefinančním sektoru, nicméně musí obsahovat dostatečnou flexibilitu. Vzhledem k výrazné heterogenitě subjektů (rozdíly v obratu a velikosti) a omezeným procesním možnostem menších subjektů může být standardní přístup k ukládání penále administrativně i finančně neúnosný. Současně je třeba zohlednit, že v nefinančním sektoru je počet subjektů podléhajících dohledu zpravidla výrazně vyšší než ve finančním sektoru, což klade zvýšené nároky na kapacity dohledových orgánů. Ty navíc často disponují omezenějšími finančními a personálními zdroji a AML představuje pouze jednu z oblastí jejich dohledu. V případě regulovaných profesí, jako jsou auditoři, je také relevantní skutečnost, že AML povinnosti jsou podle současné národní legislativy dozorovány v užším rozsahu, než jaký se předpokládá v novém evropském rámci. Doporučujeme proto, aby orgány dohledu měly možnost přihlídnout k velikosti subjektu, jeho reálným možnostem nápravy a k nízké rizikovosti auditorské profese, při současném zachování účinné prevence a odstrašujícího účinku.
Febelfin	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The proposed indicators to be used by supervisors are coherent with those used internally by the financial sector to assess historical incidents. However, considering that the objective of the AML-CFT package is to harmonise AML-CFT rules across the EU, we recommend deleting Article 1(l) allowing supervisors to introduce ‘any other indicators’. This provision would, in practice, enable national authorities to apply divergent criteria, thereby preserving local specificities and undermining the intended harmonisation.
Febelfin	QUESTION 2: Do you agree that the proposed list of criteria	No particular comment, the proposed criteria are similar to mitigants taken into account by OFAC (voluntary disclosure, proactivity, remediation measures, structural changes in processes/policies...). That said, we note that criteria remain subject to national supervisory discretion (e.g., determining whether an

Name of the Organisation	Question	Answer
	to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	impact is moderate or significant). To avoid inconsistencies across jurisdictions and reduce litigation risks, the RTS should clearly specify when an impact is deemed moderate or significant.
Febelfin	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We have no comments regarding the application of these rules to the non-financial sector. However, in our view, this point requires certain clarifications. We would like to know, for example, whether supervisors will define tiers of administrative fines based on the level of gravity, in a manner similar to those imposed for GDPR violations (x EUR or x% of turnover)
Febelfin	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	We have no comments regarding the application of these rules to the non-financial sector. However, we consider that, given the seriousness of the administrative sanctions (which may include withdrawal of authorisation), certain concepts should be further detailed: • With regard to “the conduct of the natural or legal person held responsible” it would be useful to clarify this notion explicitly, for example by indicating that it covers uncooperative or deceitful behaviour. • Concerning “the existence of a structural failure...”, we request additional clarification on how such a failure should be assessed. More specifically, it would be appropriate to state that a failure which the obliged entity

Name of the Organisation	Question	Answer
	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	has promptly and effectively remedied cannot be considered as “structural”. Indeed, in our view, when an entity promptly and decisively remedies a deficiency once it has been identified by the supervisor, this should not result in the withdrawal of its authorisation.
Febelfin	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	No comment.
Confcommercio - Imprese per l'Italia	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	PRELIMINARY REMARKS Confcommercio is Italy's largest business association for the tertiary sector, representing numerous enterprises and professionals classified as "obliged entities". Our association welcomes the consultation. A harmonized sanctioning framework is essential to improve the internal market. However, it is crucial to consider that the non-financial sector is highly heterogeneous. For example, Italy has over one million (1,023,785) retail and trade businesses. Of these, 96% have fewer than 10 employees, and their average size is 1.9 individuals (source: Istat). OECD data highlights that micro-entrepreneurs generally have low financial literacy, a trend not limited to Italy. Furthermore, the situation differs only slightly for small enterprises. In most cases, financial intermediaries and merchants cannot be compared in terms of size, governance, operations, or dedicated compliance resources. Therefore, any regulatory proposal based on the European

Name of the Organisation	Question	Answer
		Banking Authority's work must be carefully calibrated to strictly adhere to the principle of proportionality (Art. 5, para. 4, of the Treaty on European Union), as well as to the principles of effectiveness and dissuasiveness of administrative sanctions established by the settled case-law of the Court of Justice of the European Union. In line with the GAFI/FATF's risk-based approach, sanctions should be calibrated not just on the abstract breach, but on the actual ML/TF risk profile of both the sector and the specific operator. ON THE SPECIFIC QUESTION We partially agree with the proposed indicators. Certain criteria, such as the "financial stability of the Union" or the "cross-border" impact, do not appear relevant for small enterprises. They refer to systemic risks typical of the financial sector. PROPOSAL: The absence of systemic risk must be a key criterion. For MSMEs, unless there is willful misconduct, breaches should automatically be classified in the lowest gravity categories (Category 1 or, at most, 2). The sanctioning system should always comply with the principle of proportionality.
Confcommercio - Imprese per l'Italia	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Confcommercio agrees with the general criteria for setting financial penalties, but we have serious concerns about how they will be applied in practice. It is positive to reward cooperation and prompt corrective actions. However, we express reservations concerning their practical application in connection with certain detailed rules. Calculating the "derived benefit" or "losses to third parties" is complex for small retailers/professionals. Frequently, in micro-enterprises, ownership and control functions are vested in a single individual handling small-value transactions with consumers or retail clients (such is the case, for example, of cash-for-gold operators or money changers), who may operate under simplified or ultra-simplified accounting regimes and thus lack advanced management control systems. Identifying distinct levels of responsibility is therefore difficult, disproportionate, and perhaps of limited utility. Above all, at least in the case of micro and small enterprises and professionals, it appears incongruous to us to determine the quantum of a sanction based on the degree of responsibility of the natural or legal person held liable. In these businesses, all "control functions" are often concentrated in the business owner—a single individual already overwhelmed by numerous legal obligations that are difficult to manage alone.

Name of the Organisation	Question	Answer
		PROPOSAL: Calculating the financial benefit must not create excessive paperwork for the business. Supervisory authority should utilize reasonable flat-rate estimates for non-financial MSMEs.
Confcommercio - Imprese per l'Italia	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We agree on the necessity of calibrating sanctions to the actual economic capacity. Nevertheless, the current lexical choices are sub-optimal as they are drawn from the financial intermediaries sector. Article 4(5) requires supervisory authorities to assess (albeit "where applicable") information "from prudential authorities on the level of regulatory capital and liquidity requirements". These are terms that all possess a precise meaning within the regulations defined by prudential authorities; regrettably, this meaning is incomprehensible to merchants and invokes concepts that are not applicable to them. Furthermore, the only financial disclosures that – just a share of - SMEs provide are financial statements (in Italy balance sheets filed with the business register). PROPOSAL: For the non-financial sector, "financial strength" should be based on clear concepts and easily measurable metrics. For example, consideration could be given to turnover and net income, perhaps averaged over several years. It is necessary to exclude any reference to banking prudential parameters in the final text.
Confcommercio - Imprese per l'Italia	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We oppose some of the proposed criteria for administrative measures. Forcing changes to the "governance structure" is practically impossible for micro/small family businesses and individual professionals. In almost all these cases, management and ownership are identical. Regarding the withdrawal of authorization, the utmost prudence is required. For a merchant, it entails the definitive closure of the business. This measure must be strictly limited to proven cases of intentional fraud or criminal collusion. Daily periodic penalty payments are potentially highly punitive measures. If disproportionate, they will quickly drive small businesses into insolvency. Delays are often due to a lack of internal resources, not a deliberate attempt to evade rules. PROPOSAL: Governance-related measures must not apply to entities lacking a formal Board of Directors. We propose limiting suspension or withdrawal to cases of willful misconduct, severe repeat offenses, or criminal collusion. In other cases, corrective measures should be provided for (remediation plans, training, procedural adjustments). This ensures effective enforcement without disproportionate consequences. Regarding periodic penalty payments - which should only apply after a reasonable grace period for remediation - we

Name of the Organisation	Question	Answer
		request an absolute maximum cap. This limit should be proportionate to the enterprise's average monthly turnover.
Confcommercio - Imprese per l'Italia	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Confcommercio supports periodic penalty payments as a tool to enforce compliance. However, such penalties could become excessively punitive for sole proprietorships, micro, and small enterprises. Periodic Penalty Payments are a new tool that, like any other, must be strictly anchored to proportionality criteria. Daily or weekly sanctions can cause the bankruptcy of a micro-enterprise. Frequently, the delay results from a lack of administrative resources. An evasive intent on the part of the subject does not always exist. With this in mind (except for repeated breaches), such measures should only take effect after a reasonable timeframe (grace period) granted to implement remedies. PROPOSAL: We request an absolute maximum cap for cumulative penalties. The limit must be proportionate to the enterprise's average monthly turnover. The goal of this measure - including its start date - should be to ensure compliance, not to force a business into insolvency.
Lottomatica Group	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Under European and Italian regulations, gambling service providers constitute an autonomous and distinct category, both in relation to financial operators and to other non-financial operators, in line with European legislation (cf. Directive 2005/60/EC and Directive (EU) 2015/849). The framework provides for specific provisions applicable only to gambling service providers whose activities, by their nature, are not exposed to the risks inherent in the systemic movement of capital that are typical of financial operators. In Italy, gambling services belong to a highly regulated sector, as these activities are legally reserved to the State and carried out through concessionaire companies that are carefully selected through public tender procedures and are subject to the supervisory activities of the Customs and Monopolies Agency (ADM), which operates under the Ministry of Economy and Finance. ADM, in support of gambling service providers, develops technical regulatory standards, also on the basis of the national analysis of the risks of money laundering and terrorist financing. With reference to Article 1, it is considered that the indicators would be only partially applicable to the gambling sector as well. In particular: 1. With reference to point (c), the criterion relating to the conduct should consider the actual degree of culpability and the adequacy and effective implementation of organizational and control safeguards, in line with Article 53(7) of Directive (EU) 2024/1640.

Name of the Organisation	Question	Answer
		In the absence of this, there would be a risk of falling into a regime of strict liability; in several constitutional systems, including the Italian one, sanctioning regimes of a punitive nature require at least a minimum degree of culpability and allow responsibility to be excluded or mitigated where adequate organizational diligence is demonstrated. A system that does not effectively value preventive efforts and compliance models risks conflicting with these principles and undermining the requirement of proportionality. 2. With reference to point (e), the criterion of impact should refer to the material and concrete increase in ML/TF risk, based on objective and reasonably foreseeable consequences, rather than on a merely theoretical weakening of the safeguards put in place for the prevention of money laundering and terrorist financing (ML/TF). Otherwise, considering that AML/CFT obligations are inherently aimed at mitigating the risks of money laundering and terrorist financing (ML/TF), any violation could, in abstract terms, be considered capable of increasing exposure to ML/TF risk. If the indicator were interpreted in this way, it would become applicable to the generality of violations, thereby losing its selective function, contrary to the principle of the necessary proportionality and reasonableness of sanctions. This would ultimately distort the architecture of the differentiated categories of severity established, also with the aim of avoiding an excessive or disproportionate restriction of the legal sphere of the addressees compared to the intended purpose. 3. With reference to point (f), it is considered necessary to provide for an explicit ranking of the seriousness of the provisions violated, also in order to facilitate consistent application by the Member States. 4. With reference to point (g), to preserve its differentiating function, the notion of “facilitation” should presuppose a concrete and specific link between the violation and the criminal conduct, or at least a sufficiently serious, direct, and foreseeable risk clearly attributable to the violation itself. Otherwise, the criterion could be applied in a generalized manner, contrary to the principle of the necessary proportionality and reasonableness of sanctions, considering that any reduction in the effectiveness of safeguards could, in abstract terms, be regarded as capable of facilitating criminal conduct and money laundering. 5. With reference to point (j), as criteria specifically relating to the financial sector, they do not appear to be applicable to the specific risks of the gambling sector, in particular points (i) and (ii). From a strictly legal perspective, the adoption of the above indicators requires an analysis of their compatibility with the legal

Name of the Organisation	Question	Answer
		nature of the obliged entities in the gambling sector. The classification of this sector as an autonomous category is not merely a taxonomic distinction, but reflects a different exposure to risk and, consequently, requires a different calibration of culpability and of the seriousness of violations. The uncritical extension of parameters developed for the financial sector risks violating the principle of legal certainty in sanctions, where the evaluation criteria are unrelated to the operational activities of the supervised entity.
Lottomatica Group	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	With reference to Article 4, the following observations are submitted. In particular: 1. With reference to point (4), it should be noted that the sanctionability of natural persons who are not themselves obliged entities, under both European legislation and the Italian legal system, is currently provided for in the financial sector, but not in the sector of gambling service providers. This approach, consistent with Directives 2005/60/EC and (EU) 2015/849, responds to the need to adequately sanction the conduct of natural persons capable of undermining the stability of financial markets. The criteria are therefore coherent for financial operators, but do not appear to be automatically extendable to gambling service providers, a sector subject to a special regulatory regime (concessions, stringent requirements, and public supervision) and characterized by risks that differ in nature and scope from those in the financial sector. Gambling concessionaires also operate through third-party distribution networks (retailers and points of sale), a circumstance that makes it difficult to identify ex ante a senior figure with specifically defined AML responsibilities comparable to those in the banking and financial sectors. Regulation (EU) 2024/1624 allows financial soundness and proportionality criteria to be applied also to the non-financial sector, but always in compliance with the principles of national law. Otherwise, there is a risk of establishing personal liability through interpretation, in violation of the principle of legality; under national law, even administrative sanctions of a punitive nature require a subjective element and exclude strict liability. The introduction of parameters for natural persons, derived from the banking compliance model, is ill-suited to the network-based structure of the gambling sector (concessionaire–retailer–point of sale), with the risk of forms of strict liability incompatible with the principles of the European Convention on Human Rights (ECHR). It would therefore be necessary to provide for exculpatory indicators that exclude the liability of natural persons where adequate organizational models are in place, thereby preventing interpretative uncertainties from resulting in an unpredictable sanctioning burden. 2. With reference to points (5) and (6), it is not considered appropriate that the criterion relating to the financial soundness of the legal or natural person held responsible should be automatically applied to the non-financial sector, at least where it is linked to the overall annual turnover or to the global economic

Name of the Organisation	Question	Answer
		capacity in the case of entities carrying out a plurality of activities. The issue from the perspective of proportionality arises where the obliged entity operates through distinct business lines, with different economic sizes and risk profiles. In such cases, calibrating the seriousness of the violation based on the overall turnover or financial capacity of the entity may produce distortive effects, since the economic reference does not coincide with the operational scope in which the infringement actually occurred. For example, where an operator conducts activities both through a retail network and online, and the violation concerns exclusively the digital channel (e.g., deficiencies in the AML safeguards of the remote platform), determining the sanction also on the basis of the turnover generated by the physical network could prove disproportionate, particularly where the two business lines differ significantly in size. Reference to total annual turnover may therefore lead to sanctions that exceed the seriousness, duration, and actual impact of the violation, contrary to the principle of proportionality enshrined in Directive (EU) 2024/1640 and Regulation (EU) 2024/1624, which require that administrative sanctions and measures be proportionate to the gravity and duration of the infringement. A similar issue arises for natural persons. Where an individual holds multiple roles and receives compensation attributable to different functions, the sanction should not be based on total income if the violation relates to only one role. The economic parameter should reflect exclusively the remuneration connected to the role in which the infraction occurred, excluding unrelated sources of income. Therefore, reference to economic capacity should be strictly limited to the specific activity or function affected by the violation, to avoid outcomes that are disproportionate relative to the factual context of the infringement.
Lottomatica Group	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you	With reference to Article 4 (5) and Article 4 (6), the following observations are submitted. In particular, reiterating the points made in response to question 2, it should be added that, with regard to the criterion of financial soundness of the legal entity, for gambling operators there are no supervisory authorities capable of defining levels of “regulatory capital” comparable to those for banking and financial intermediaries. Therefore, although the general approach appears consistent with the currently applicable provisions, it is necessary to adapt it to the sanctioning framework of the national system, which already provides tools to calibrate sanctions according to the size of the operator. The gambling sector in Italy is, in fact, regulated under a specific legal regime (see observations in response to Question 1: ADM concessions, operating requirements, legality and security controls), which is distinct from the regime governing the financial sector.

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	From the perspective of an economic analysis of law applied to AML supervision, the insistence on regulatory capital and liquidity parameters (point 5) would represent an improper transposition of these requirements into the scope of non-financial entities. For gambling service providers, “financial soundness” should be assessed based on their capacity to meet concession-related obligations and should be measured not against total turnover, but against the actual profitability of the specific business segment. The use of information from “supervisory authorities” (typically central banks or the ECB) is practically impossible for gambling service providers, who report instead to administrative regulatory authorities (in Italy, the Customs and Monopolies Agency – ADM). As a result, if the RTS draft is not amended, it would require supervisors to seek nonexistent or non-comparable data, thereby undermining the principle of the proper functioning of administrative action.
Lottomatica Group	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	With reference to Article 5, the following observations are submitted. In particular, regarding the criteria specified in paragraphs 2 to 4, it is noted that they do not appear compatible with the sector of gambling service providers, and therefore the current formulation of the proposed criteria is not fully supported. Under European and Italian legislation, gambling service providers constitute an autonomous and distinct category, both in relation to financial operators and to other non-financial operators, in line with European law (cf. Directive 2005/60/EC and Directive (EU) 2015/849). The framework provides specific provisions applicable only to gambling service providers, whose activities, by their nature, are not exposed to the risks inherent in the systemic movement of capital, typical of financial operators. In Italy, gambling services belong to a highly regulated sector, as these activities are legally reserved to the State and carried out through concessionaire companies carefully selected through public tender procedures and subject to the supervisory activities of the Customs and Monopolies Agency (ADM), which operates under the Ministry of Economy and Finance. ADM, in support of gambling service providers, develops technical regulatory standards, also on the basis of the national risk analysis of money laundering and terrorist financing. Specifically, the concession-based framework on which the gambling sector operates provides specific measures in the event of regulatory violations, including, in the most serious cases, the revocation or termination of the concession, which can be imposed not automatically, but only following specific administrative procedures in which the concessionaire participates.

Name of the Organisation	Question	Answer
		The introduction of additional or alternative criteria beyond those already provided in the concession agreement would constitute a violation of the principle of stability of concession rules, with regard to the obligations and rights of the concessionaire, which cannot be modified during the term and validity of the concession. From a strictly legal perspective, Article 5 introduces administrative measures of a highly impactful nature, such as the limitation of operations or the revocation of authorization, which, in the context of gambling service providers, have a different character compared to banking and financial institutions. In the financial sector, the revocation of authorization represents a prudential supervisory measure aimed at protecting market stability; in the gambling sector, the revocation or suspension of a concession affects a public-law reciprocal relationship between the State and the concessionaire. The introduction of additional AML criteria beyond those already established in regulatory provisions and agreed in the Concession Agreements could create regulatory uncertainty, undermining the principles of legitimate expectations and the stability of contractual relations with the Public Administration. Furthermore, with reference to paragraph 2, point (d), the assessment of “negative impact on clients or other stakeholders” must be interpreted with extreme caution. For a gambling operator, suspending operations does not only harm the operator, but also results in an immediate reduction in tax revenue and, most importantly, drives users towards unmonitored illegal gambling channels. Furthermore, the criteria relating to changes in the governance structure (paragraph 4) appear inconsistent with the fit and proper procedures already established under national law for the shareholders and executives of gambling concessionaires. A request for governance modification by an AML authority that does not consider the strict subjective requirements already imposed by the Anti-Mafia Code and the concession agreements could create paralyzing conflicts of competence. It would be desirable to recognize the equivalence of measures already provided for in the concession regulations, to prevent the “duplication” of provisions from effectively creating a regulatory “short-circuit”, caused by overlapping rules that, taken as a whole, could undermine protected legal interests.
Lottomatica Group	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as	With reference to the applicability of the proposed methodology for imposing periodic penalty payments, as set out in Section 3 of the RTS draft, to the non-financial sector, the following observations are submitted. The autonomous and distinct nature of gambling service providers is reiterated, whose operations in Italy are subject to a state concession regime managed by the Customs and Monopolies Agency (ADM). In this context, the proposed methodology appears excessively oriented toward the financial and credit

Name of the Organisation	Question	Answer
	listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	sectors and is inadequate for managing the complexities of a sector that, while subject to AML obligations, operates according to administrative and contractual logics that are profoundly different. The introduction of periodic penalty payments structured according to standards designed for the financial sector risks inefficiently overlapping with existing compliance mechanisms. In fact, under Italian law, the sanctioning system for gambling concessionaires is already characterized by conventional clauses that provide for penalties, revocations, and suspensions for procedural non-compliance. The addition of a further layer of periodic penalty payments of European origin, if not strictly coordinated with national law (as noted in paragraph 1 of Article 6), could result in a duplication of sanctions (substantive bis in idem) for the same omission. Periodic penalties are coercive tools typical of banking supervision, designed to force the adoption of corrective measures in systemic risk contexts. Article 57 of Directive (EU) 2024/1640, to which the RTS draft refers, provides for penalties that can reach substantial amounts for each day of delay. For a non-financial operator, which may be smaller in scale than financial operators, such amounts could become critically burdensome in a very short time. Furthermore, it should be noted that the calculation of periodic penalties should not be based on total turnover, but rather on the actual profitability of the specific business segment affected by the violation. Only in this way would the administrative measure comply with the European principle of proportionality, which requires that measures adopted are not excessively burdensome for the recipients relative to the intended objective.
Spillebranchen	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you	Operators broadly support the indicator-based framework for classifying the gravity of breaches, considering it a useful basis for harmonised supervisory assessments across sectors. Several operators emphasise that gravity should remain risk-based and proportionate, particularly in high-volume digital environments. Indicators such as the number of customers affected or cross-border impact should not automatically increase the severity classification unless they reflect actual ML/TF risk exposure, as numerical scale alone may not indicate material risk. Operators also highlight the need for clearer interpretation of “structural failure.” There is general agreement that this concept should refer to systemic deficiencies that undermine AML/CFT control effectiveness, rather than temporary operational incidents, isolated errors, or legitimate risk-based calibration choices. Some operators further suggest that the RTS could benefit from more operational and quantifiable criteria to support consistent supervisory interpretation. In particular, introducing clearer benchmarks for elements

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	such as duration, repetition, or systemic weaknesses could reduce subjectivity and improve consistency across Member States. Another point raised concerns product-level risk differentiation within the gambling sector. ML/TF risk can vary significantly between products and payment channels, and assessments of gravity should reflect actual risk exposure rather than applying a uniform approach across heterogeneous activities.
Spillebranchen	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Operators generally support the proposed criteria for determining pecuniary sanctions, as they enhance predictability and supervisory consistency. A key consideration raised by several operators is that sanction calibration should prioritise material AML/CTF risk impact rather than numerical reach. In high-volume environments, minor operational deviations may affect large numbers of customers or transactions without representing significant ML/TF risk. Operators also note that financial benefit derived from a breach should only be considered an aggravating factor where a clear causal link exists between the breach and unjust enrichment, rather than where revenue simply reflects normal business activity. There is broad support for clearer differentiation between intentional misconduct, negligence, and genuine operational or human error, as such distinctions would reinforce proportionality and legal certainty. Some operators additionally stress that sanctions should not be scaled mechanically based solely on the size of the entity, but should remain proportionate to the gravity and impact of the breach.
Spillebranchen	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you	Operators agree that financial strength is an appropriate factor to ensure sanctions are effective, proportionate and dissuasive. However, concerns were raised about relying solely on consolidated group turnover as a metric for determining sanction levels. Operators note that this approach may lead to disproportionate outcomes where breaches are geographically or operationally limited, and therefore suggest that supervisors should also consider the scope and relevance of the breach. Some operators further highlight that turnover may not accurately reflect economic capacity in the gambling sector. As an alternative or complementary metric, they propose considering Gross Gaming Revenue (GGR), which is already widely used in sectoral regulation and may better reflect financial capacity.

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	
Spillebranchen	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Operators recognise administrative measures as legitimate supervisory tools, particularly in cases of serious or systemic AML/CFT failures. There is broad agreement that restrictive measures such as licence suspension or withdrawal should be reserved for cases involving systemic deficiencies or significant ML/TF risk exposure, rather than situations where the scale of activity alone is large. Operators also emphasise the importance of clear escalation thresholds, particularly given that severe measures are linked to Category 3 and Category 4 breaches. These categories should therefore be applied based on material risk impact to ensure proportionality. Some operators additionally highlight market stability considerations, noting that disproportionate licence-level measures in regulated consumer markets may unintentionally drive consumers toward unlicensed operators outside EU AML safeguards, which could undermine AML objectives.
Spillebranchen	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Operators generally support the use of periodic penalty payments (PePPs) as an enforcement tool applicable to both financial and non-financial sectors. However, operators highlight the need for clear guidance on determining the period of non-compliance, as supervisory audits typically assess defined timeframes and it may be difficult to precisely identify the start and end of non-compliance. There are diverging views regarding the proposed five-year limitation period for the collection of periodic penalty payments. Some operators consider the proposed period excessively long, arguing that it may create prolonged legal uncertainty and could be shortened to better reflect the corrective purpose of such payments. Other operators did not express specific concerns about the duration but emphasised the importance of transparency and predictability in the calculation and enforcement of the penalties.
CINOA	QUESTION 1: Do you agree that the proposed list of	Our comments reflect some key principles for assessing the gravity of breaches in micro and small non-financial entities, including art market participants. Our aim is to emphasize the need for proportionality, to clarify how the classifications could better apply to transaction-based sectors, avoid assuming systemic

Name of the Organisation	Question	Answer
	indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	relevance or group/market impact where unrealistic, and ensure assessments are evidence-based and linked to actual ML/TF risk. We believe that these clarifications would help enhance legal certainty, promote consistent supervisory practice, and align with the EU's risk-based approach. Several of the indicators listed in the proposed Article 1 may operate disproportionately when applied to: • Micro and small non-financial obliged entities; and • Art market obliged entities (AMOE), including galleries, dealers and auction houses. In general, there is a need for explicit proportionality. The indicators appear calibrated primarily for financial institutions and group-based entities. For micro and art market entities, which are typically stand-alone businesses, that are owner-managed, transaction-based (rather than account-based) and not systemically relevant, the absence of explicit proportionality language may lead to an over-classification of the gravity of a breach. We recommend proportionality: based on size, organisational structure, business model. The specific characteristics and actual risk level of the individual business should clearly and explicitly influence how each gravity indicator is applied. (d)(ii) - Concern: In the art market, goods are unique and assessed individually to determine their value. A breach affecting a single artwork may not reflect systemic risk. Suggestion: Assess scale and systemic relevance of the activity, rather than uniqueness or value of individual items. (d)(iv) and (h) - Concern: Micro and art market entities often operate simplified, owner-led compliance procedures. "Structural failure" implies governance models suited to large financial institutions, not to small shop keepers. Suggestion: Assess adequacy proportionally to size, internal organisation, and risk exposure. Simplified structures should not automatically indicate structural failure. (k) - Concern: In small entities, informal or repeated administrative weaknesses may be interpreted as "systematic," even where there is no deliberate disregard. Suggestion: Clarify that "systematic breach" implies persistent and knowing failure, not isolated weaknesses due to limited administrative capacity. THE ABOVE LIST IS INCOMPLETE, FOR A FULL LIST OF DETAILS SEE OUR TABLE OF CONCERNS AND SUGGESTIONS: https://acrobat.adobe.com/id/urn:aaaid:sc:EU:8942eb48-2b0e-4eda-bd38-3e5fbca769b5 The following three sentences are proposed as minimal, stand-alone additions to Article 1 of the RTS. They are intended to clarify materiality, ensure evidence-based assessment, and introduce a horizontal proportionality safeguard, without altering the existing indicators or sector-neutral wording. Proposed insertions to Article 1

Name of the Organisation	Question	Answer
		Horizontal proportionality Placement: Extend the introductory sentence of Article 1 (before point (a)) to read: “To classify the level of gravity of a breach, supervisors shall take into account all of the following indicators, to the extent that they apply, whilst taking into account the size, nature, internal organisation and risk profile of the obliged entity:” Purpose / Rationale: • Operationalizes proportionality across all indicators (a)–(l). • Ensures small or micro entities are not unfairly penalized due to limited resources. • Maintains flexibility for different types of obliged entities while leaving the EU text intact. Materiality / administrative vs substantive breaches Placement: Extend point (f) – (Nature of the breach) to read: “the nature of the breach, by assessing whether the breach is related to internal policies, procedures and controls of the obliged entity, customer due diligence, reporting obligations or records retention, whilst distinguishing between those breaches that materially impair the effectiveness of AML/CFT systems, controls or policies and those which do not.” Purpose / rationale: Clarifies that minor procedural or documentation gaps should not automatically be treated as serious breaches, while substantive failures remain fully enforceable. Evidence-based assessment Placement: After point (l) – Any other indicator: “In assessing the indicators, competent authorities should take into account objective and evidence-based factors, reflecting the specific circumstances and materiality of the breach.” Purpose/ rationale: Ensures that assessments rely on verifiable facts and actual impact, not assumptions or sector reputational perceptions.
CINOA	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions	Our table (see link below) presents key considerations for setting pecuniary sanctions under Article 4, adapted to the context of non-financial art market micro-businesses. It highlights that sanctions should be proportionate to the size, resources, and operational capacity of the entity, reflecting a risk-based approach rather than a one-size-fits-all standard. Factors such as cooperation with supervisors, remedial actions, financial strength, and previous breaches are included, but applied with recognition of practical constraints typical of small, owner-led art market businesses. Our comments emphasize distinguishing between intentional breaches and inadvertent errors, assessing the actual scale and impact of any breach, and

Name of the Organisation	Question	Answer
	set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	ensuring transparency and consistency in the application of sanctions. Overall, our suggestions aim to balance regulatory effectiveness with the realities of micro-business operations, avoiding disproportionate penalties that could threaten the viability of small art market participants. 1(a)-Concern: Total turnover or total annual income may be a disproportionate measure for micro-businesses with limited resources that have income from a variety of sources, some of which may relate to activity that is out of scope of regulation 2024/1624. Examples of this include antique dealers who also offer interior decorating services or have rental income derived from real estate. Furthermore, not all the categories of objects sold by such businesses will be in scope because they may not fit the definition of “cultural goods” given in article 2(56) of regulation 2024/1624. A dealer may only make one transaction a year above the 10,000€ threshold, with hundreds of other transactions falling below the threshold. Suggestion: Consider size, turnover of in scope transactions, and operational capacity to ensure sanctions are proportionate. 3(a) -Concern: On account of their limited human and financial resources small business owners may not have been in a position to cooperate to the same level as a large business that has a compliance department and therefore unintentionally fail to meet formal reporting/correction requirements. Suggestion: Distinguish intentional non-cooperation from minor procedural gaps; take account of the resources available to the business that is trying to rectify their breaches; adjust sanctions to reflect intent and scale. THE ABOVE LIST IS INCOMPLETE, FOR A FULL LIST OF DETAILS SEE OUR TABLE OF CONCERNS AND SUGGESTIONS: https://acrobat.adobe.com/id/urn:aaid:sc:EU:8942eb48-2b0e-4eda-bd38-3e5fbca769b5 The following stand-alone sentences are proposed as minimal additions to Article 4 of the RTS. They are intended to guide supervisors in applying the existing criteria in a proportionate, evidence-based, and risk-focused manner, particularly for micro-entities and small operators. These insertions clarify the assessment of breach materiality, ensure that sanctions reflect the actual impact and scale of the entity, the scale to which the entity operates within the regulated sector and support consistent application across all obliged entities without altering the existing text or indicators. Proposed insertions to Article 4 Horizontal proportionality / micro-entities safeguard: Placement: After paragraph 1 (before paragraph 2) “Competent authorities should apply the criteria in a proportionate and risk-based manner, taking into account the size, turnover relating to the regulated sector, organisational structure, nature of activities, and operational capacity of the obliged entity.” Purpose/ rationale: Ensures that small or micro-businesses, for which only a small part of their operations

Name of the Organisation	Question	Answer
		relate to the sale of cultural goods are not unfairly penalized due to limited resources and that penalties reflect the scale and capacity of the entity. Materiality of breaches: Placement: After paragraph 2(b) (mitigating criteria) and after paragraph 3(b) (aggravating criteria) – same insertion covering both contexts: “Where relevant, competent authorities shall distinguish between minor administrative or technical breaches and breaches that materially affect the effectiveness of AML/CFT systems, controls, or policies.” Purpose/ rationale: Prevents minor procedural or administrative errors from triggering disproportionate increases in pecuniary sanctions, while ensuring substantive breaches remain enforceable. Evidence-based assessment: Placement: After paragraph 3(g) insert a new paragraph: “In applying the criteria in paragraphs 1 to 3, competent authorities should take into account objective and evidence-based factors reflecting the specific circumstances, materiality, and impact of the breach.” Purpose/ rationale: Ensures sanctions are based on verifiable facts and actual impact, rather than assumptions, reputational perceptions, or hypothetical risks.
CINOA	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Our comments address the use of financial strength criteria for legal and natural persons in the non-financial sector, especially micro and small art market businesses. Many have low turnover, limited reporting, and no prudential oversight, so strict application risks disproportionate sanctions. Furthermore, as referred to elsewhere in this document, we also believe that it is contrary to the principles of fair dispensation of justice that income that is not derived from in-scope business should be included in any penalty computations concerning small shopkeepers who may, for example, conduct only one cultural objects transaction above the €10,000 threshold in a calendar year. The same principle applies to very large entities whose in-scope transactions are few and far between. We recommend a proportional, risk-based approach that reflects the actual ML/TF risk without threatening business viability. Article 4(5) -Concern: Many micro and small non-financial entities have low turnover, may conduct very limited numbers of in-scope transactions in cultural goods, have limited financial reporting obligations, and limited prudential oversight. Using financial strength as a strict criterion could lead to disproportionate penalties which are unrelated to the actual ML/TF risk. Suggestion: Apply financial strength assessment proportionally, considering available turnover or liquidity, relevant turnover based only on those transactions that are in scope of regulation 2024/1624 and focus on the entity’s capacity to pay without threatening viability. Sanctions should reflect the actual risk posed, not just financial metrics. Article 4(6)-Concern: Owners of micro businesses may have other personal income, inheritances, or assets in

Name of the Organisation	Question	Answer
		addition to their business revenue given that the art market businesses have fluctuating incomes with limited financial security. Strict assessment of personal wealth risks being disproportionate and may not reflect actual ML/TF risk or culpability. Suggestion: Assess personal financial strength realistically and proportionally, taking into account the size and structure of the business, relevant turnover based only on those transactions that are in scope (of regulation 2024/1624), and the actual impact of the breach. Avoid automatic escalation of sanctions based on other income or personal wealth. The following sentences are proposed as minimal, stand-alone additions to Articles 4.5 and 4.6 of the RTS. They are intended to ensure that pecuniary sanctions are applied proportionally, particularly for micro-entities and small operators, without altering the existing text or affecting other sectors. The insertions focus on proportionality, realistic assessment of financial capacity, and risk-based application. Proposed insertions to Article 4 Horizontal proportionality / proportional financial assessment Placement: Immediately after the current text of paragraph 5 – Financial capacity of the legal person. “Supervisors should take into account the size, the operational capacity, the extent to which transactions carried out are in scope of regulation, and available financial information of the legal person, ensuring that sanctions are proportionate to the actual ML/TF risk and the entity’s ability to pay without threatening viability. Purpose/ rationale: Protects micro and small entities from disproportionate sanctions by emphasizing proportionality and the entity’s capacity to pay, while keeping focus on actual ML/TF risk. Proportional assessment of natural persons Placement: Immediately after the current text of paragraph 6- Financial capacity of the natural person. “Supervisors should take into account the financial capacity of natural persons proportionally and realistically, considering the size and structure of the business, the extent to which transactions carried out are in scope of regulation, and the actual impact of the breach, while avoiding automatic escalation of sanctions based on other personal income or wealth.” Purpose/ rationale: Ensures sanctions for natural persons reflect the actual impact of the breach and the scale of the business, rather than wealth unrelated to the breach, protecting small business owners from disproportionate penalties.
CINOA	QUESTION 4: Do you agree with the proposed criteria to be	The proposed criteria risk being overly complex and burdensome for supervisors attempting to apply them to non-financial micro art market operators. A proportional, risk-based approach should be explicitly stated, recognizing the scale, transaction value, and operational capacity of micro businesses. Simplification, clear

Name of the Organisation	Question	Answer
	taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	examples, and guidance tailored to small operators would improve clarity, compliance, and fairness. It is not clear from the legislative wording whether an entity meeting some of the criteria would be expected to increase or decrease the severity of the administrative measures. The regulations seem to be assuming an implied understanding of intent. For example, take criterion 5(2)(d) (the extent to which the measure could have a negative impact on customers or stakeholders). Is it the regulation's intention that the severity of measures be scaled down if the proposed measures would have a negative impact on customers or stakeholders, or should the measures be fully implemented with the aim of impacting those customers and stakeholders? Clarity is important in the 5(2)(d) case since the inference behind Article 1(d)(iii) is that a breach that has caused damage to many customers is regarded as triggering penalties on the entity, whereas when determining the penalties or measures themselves the extent to which they damage customers has to be considered (but in which way?). Is there an omission in the phraseology of this Article concerning the expected outcome when any individual listed criteria are met, or when they are met to a higher degree? This needs clarification, since it would be contrary to the aims of the implementing regulation if one member state's regulator was to interpret the consequences of meeting the criteria in a way that leads to an outcome the reverse of the interpretation made by another state. Article 5(4) Concern: Solely managed or micro businesses typically cannot meaningfully change their governance structure. Requiring such changes could be impractical or impossible, making this criterion disproportionately burdensome for very small entities. Suggestion: Supervisors should apply this criterion flexibly, focusing on risk mitigation measures that are achievable for micro businesses, rather than expecting formal governance changes that are impractical given their size and structure. (2)(c)- Concern: Severe measures could threaten the viability of micro businesses, where a single restriction can disrupt the entire operation. Suggestion: Apply measures gradually and proportionally, carefully assessing stakeholder impact, and prioritise less disruptive alternatives such as training, monitoring, or remediation before imposing business restrictions. (2)(d) -Concern: Could be disproportionately applied; micro-operators may have very few stakeholders. Micro businesses often serve niche markets; overly strict measures could harm clients or the cultural ecosystem, reducing access to art services. THE ABOVE LIST IS INCOMPLETE, SEE OUR CONCERNS AND SUGGESTIONS: https://acrobat.adobe.com/id/urn:aaid:sc:EU:8942eb48-2b0e-4eda-bd38-3e5fbca769b5 Proposed insertions to Article 5: After paragraph 1- Administrative measures: "Supervisors should take into account the size, resources, operational capacity, and risk exposure of the entity, applying administrative measures proportionately, prioritising feasible mitigation, distinguishing minor procedural deficiencies from substantive

Name of the Organisation	Question	Answer
		failures, and ensuring that any additional criteria are objective, documented, and transparent.” Rationale: •Ensures measures are proportionate for micro and small entities, •Encourages realistic mitigation and avoids overly burdensome restrictions. •Distinguishes minor errors from substantive breaches, considering intent. •Requires additional criteria to be objective and transparent. Amend Article 5(4)(d) as follows: “(d) where the obliged entity has previously been advised by the supervisor to amend its internal policies, procedures and controls on account of them having been determined as ineffective, and following a minimum period of allowed for implementation of change the replacement internal policies, procedures and controls are also found by the supervisor to be ineffective;” Rationale: •Takes a more pragmatic approach, since amending an entity’s governance would be a severe and disruptive measure, and may be less likely to rectify the situation than amending the policies, procedures and controls, which are directly relevant to the transactions subject to supervision. After Article 5(4)(e) insert an additional criterion: “(f) the extent to which it is feasible for the governance structure of the obliged entity to be changed” Rationale: •Takes account of when the business comprises a natural person trading as a sole trader, or where the business comprises a legal person owned entirely by the natural person held responsible. •Encourages realistic mitigation and avoids overly burdensome restrictions.
CINOA	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The proposed methodology for periodic penalty payments is largely designed with larger entities in mind. For non-financial micro art market businesses, the rules risk being overly complex, burdensome, and potentially disproportionate. Introducing proportionality measures, simplified calculations, and flexible deadlines would make the methodology applicable and fair for micro enterprises without compromising regulatory objectives. Article 6(2)- Concern: Micro art market businesses may find it difficult to track specific national transpositions and legal interpretations. Suggestion: Include references or links to official national guidance for small non-financial operators. Article 7(2)- Concern: For sole operators or small galleries, preparing a detailed response may be challenging, especially if legal advice is needed. Suggestion: Suggest proportional flexibility or extended deadlines for micro enterprises, e.g., up to 8–12 weeks. Article 8(3)(b)- Concern: Small operators may inadvertently fail administrative measures due to limited resources rather than deliberate non-compliance. Suggestion: Emphasize intent and proportionality in determining the penalty for micro businesses. Article 8(3)(c-d)-Concern: That an entity’s penalties should be based on supposed consequential losses suffered by third parties, when it is not necessarily the case that those third parties have any cause of action

Name of the Organisation	Question	Answer
		against the entity in law appears inequitable and disproportionate. Furthermore, how will the reliability of the supposed losses of third parties be confirmed? Additionally, micro art market transactions are often low-value; calculating losses/benefits may be impractical or disproportionate. Suggestion: Consider carrying out a full legal review of the concept of Member States using third party consequential losses to determine penalties, with one possible outcome being the removal of Article 8(3)(c). Introduce thresholds below which these factors are considered negligible for small operators. Article 8(3)(e)- Concern: Many micro operators have minimal capital; applying standard metrics may result in disproportionate penalties. Suggestion: Use proportionality and risk-based scaling for penalty calculation based on micro enterprise size and capacity. Article 9(1) -Concern: It is not clear from the proposed wording whether the daily/weekly/monthly basis refers to the period used to calculate the penalties (i.e. based on a non-compliance period calculated to the nearest day, week or month) or to the frequency with which the periodic payments are themselves to be collected. Should it be the latter, it could create excessive administrative burden for very small businesses where resources to track penalties are limited. Furthermore, many micro entities in the art market operate on a cyclical / seasonal basis – where certain months of the year produce very low income. Suggestion: Recommend that the wording be clarified and that if it is referring to the frequency of collection (rather than the period used to compute the size of the penalty) then in the case of micro entities the frequency of collection should be no more frequent than once a month. Article 9(2)- Concern: Determining exact period may require record-keeping beyond small business capacity. Suggestion: Guidance for simplified record-keeping and estimation methods for micro operators. Article 10(1)- Concern: Long limitation period may be burdensome for micro businesses with limited administrative resources. Suggestion: Consider proportional limitation periods or clear notification requirements for micro entities. Article 10(2)- Concern: Lack of clarity may create uncertainty for small businesses in multiple jurisdictions. Suggestion: Provide a practical guide or examples of how interruptions/suspensions work for small non-financial entities.
A.N.T.I.C.O. - Associazione	QUESTION 1: Do you agree that the proposed list of indicators to classify	The Association shares the general approach underlying the application of the indicators referred to in Article 1 of the draft RTS to entities belonging to the non-financial sector as well. At the same time, it considers it appropriate to highlight the need to further supplement the list of indicators used for classifying the severity level of breaches in relation to the organizational and procedural framework adopted by the obliged entity.

Name of the Organisation	Question	Answer
Nazionale Tutela Il Comparto Oro	the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	In determining the severity of a breach, the presence and effective adoption of internal safeguards could be of significant relevance, including, by way of example: • Staff training programs: it would be necessary to consider the presence of structured, ongoing, and documentable training programs aimed at employees and collaborators, designed to disseminate AML regulations and prevent the specific types of breaches that occurred; • AML policies: it would be essential to verify the existence and internal sharing of operational manuals on the AML procedures to be adopted, which should also include a clear assignment of AML roles and functions within the structure of the obliged entity; • Organizational models: it would be useful to evaluate the effective implementation of models and procedures suitable for preventing and mitigating money laundering and terrorist financing risks, clearly defining the responsibilities of the personnel in charge. The absence or inadequacy of the aforementioned organizational safeguards required by law could be assessed not merely as a general structural deficiency, but as an element capable of directly affecting the classification of the breach's severity, as it indicates insufficient integration of a compliance culture within the corporate organization. This profile appears particularly relevant to the sector of gold, precious metals, and precious objects, where the effective implementation of adequate organizational safeguards constitutes an essential element for the effective prevention of money laundering risks.
A.N.T.I.C.O. - Associazione Nazionale Tutela Il Comparto Oro	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not	A.N.T.I.C.O. views positively the application of the criteria set out in Article 4 to the non-financial sector as well, while emphasizing the opportunity to interpret such criteria based on the operational specificities of the entities belonging to this sector (including Gold Operators). Therefore, in determining the amount of administrative pecuniary sanctions, it would be appropriate to consider the following additional profiles: • The size and degree of organizational complexity of the operator, evaluating the resources effectively available for the implementation of AML/CFT safeguards, in consistency with the principle of proportionality and the risk-based approach. This criterion is of particular importance in sectors predominantly composed of micro, small, and medium-sized enterprises (SMEs), which often lack highly sophisticated compliance structures; • The actual impact of the breach on the risk of money laundering or terrorist financing, distinguishing between purely formal or documentary breaches and substantive breaches capable of leading to a concrete

Name of the Organisation	Question	Answer
	agree, please explain your reasoning.	increase in AML/CFT risk exposure. The integration of these elements would strengthen the application consistency of the sanctioning framework towards entities operating in the non-financial sector, avoiding potentially disproportionate effects that could significantly impact business continuity, without however compromising the effectiveness of the sanctioning system.
A.N.T.I.C.O. - Associazione Nazionale Tutela Il Comparto Oro	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	This Association highlights the need to apply the criterion relating to financial capacity in accordance with the principle of proportionality and, above all, taking into account the economic and operational specificities of certain branches of the non-financial sector. The determination of the amount of the sanction should, in fact, be based on an assessment of the actual financial capacity of the obliged entity, understood as the actual availability of generated economic resources rather than mere turnover (annual revenue). This is particularly relevant with reference to operators active in the gold, precious metals, and precious objects sector, where the high intrinsic value of the raw material results in very high turnover volumes that do not necessarily reflect the wealth actually generated, as intermediation margins are generally limited. In light of these characteristics, referring to the total annual turnover as an indicator of financial capacity could, in some cases, not be fully representative of the actual economic sustainability of the sanction. It is therefore suggested that the competent Authority, when assessing the financial capacity of the responsible entity, also consider economic indicators that are more representative of actual profitability, such as the operating margin or actual income.
A.N.T.I.C.O. - Associazione Nazionale Tutela Il Comparto Oro	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If	A.N.T.I.C.O. expresses a favorable opinion on the framework of criteria proposed in Article 5, while considering it indispensable that their practical application be strictly guided by the principles of proportionality and gradualism. It is fundamental to consider that for operators in the non-financial sector, and particularly for small and medium-sized enterprises in the gold sector, administrative measures that restrict business activities or revoke authorizations might not represent mere management corrections; instead, they could lead to the irreversible market exit of the obliged entity. In this regard, the assessment of a "structural failure" in controls or the ineffectiveness of internal policies should be calibrated against the operator's actual organizational capacity, clearly distinguishing between a willful intent to conceal and deficiencies resulting from limited availability of human and technological resources.

Name of the Organisation	Question	Answer
	you do not agree, please explain your reasoning.	Furthermore, we view favorably the opportunity to direct the Authority's actions toward the operator's return to compliance through post-inspection collaborative conduct. This ensures that administrative sanctions do not jeopardize the economic survival of healthy business entities affected by non-substantial violations.
A.N.T.I.C.O. - Associazione Nazionale Tutela Il Comparto Oro	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The Association agrees with the general framework of Section 3, while considering it necessary to supplement the methodology with corrective measures that take into account the specificities of non-financial operators and guarantee their effective right to be heard. Specifically, it is suggested to provide for an extension of the four-week deadline for natural persons and micro-enterprises that demonstrate technical difficulties in producing statement of defense, ensuring that such tight timeframes do not prejudice the right of defense. Furthermore, it is proposed to supplement "written observations" with the option of a direct hearing. Such an exchange would allow for a better assessment of whether non-compliance stems from technical deficiencies or an actual intent to evade, thereby fostering a post-inspection collaborative approach.
NETBET FR	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	OUI
NETBET FR	QUESTION 2: Do you agree that the proposed list of criteria to be taken into	OUI

Name of the Organisation	Question	Answer
	account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
NETBET FR	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	OUI, plus la taille de l'opérateur de jeux.
NETBET FR	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative	OUI, en y ajoutant le fait qu'une déclaration auprès des services TRACFIN a été émise ou pas. 99,99 % des déclarations ne faisant l'objet d'aucune suite donnée malgré l'importance des fonds mis en cause déclarés. Majoritairement des dépôts prépayés en ce qui concerne un opérateur d'une très petite taille comme NETBET FR

Name of the Organisation	Question	Answer
	measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
NETBET FR	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Bien qu'étant d'accord avec le principe, ce type de sanction signifierait la mort de l'opérateur, là encore en tenant compte de la taille de celui-ci. Un opérateur de notre taille à du mal à subvenir à ses besoins en raison d'une taxation qui atteint aujourd'hui plus de 75% du chiffre d'affaires brut. Le versement d'une pénalité périodique supplémentaire serait catastrophique.
CONSEIL NATIONAL ORDRE DES EXPERTS - COMPTABLES	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Preliminary comment: Recital 101 of Directive (EU) 2024/1640, read together with Article 56, promotes a proportionate and differentiated sanctioning framework. The Directive emphasises differentiation based on the nature and risk profile of the obliged entity, its organisational structure, and its financial capacity. However, the draft RTS appears to adopt a largely undifferentiated approach, without sufficiently reflecting the characteristics of different categories of obliged entities whether it is in the financial or non-financial sector. We support the principle of applying a classification framework for breaches to promote more harmonized sanctions. However, several practical considerations arise in the context of the non-financial sector, and accounting sector in particular: 1. Extrapolating the breaches: Reliably extrapolating the consequences of a breach observed in a single file to the entire client portfolio is difficult, not only for small and medium-sized entities (SMPs) who have no large team capable of. Therefore, the supervisory authority will have to conduct this analysis during inspections,

Name of the Organisation	Question	Answer
		substantially increasing the administrative burden and associated costs, which would ultimately be borne by the obliged entities. 2. Sole practitioners: For single-accountant practices without any employee (approximately 10% of the profession in France), it is challenging to distinguish failures attributable to the structure from those attributable to the professional himself. 3. Inapplicable indicators: • Indicator (d) - Most professionals operate individually or in simple structures without complex services or cross-border operations. Assessing group-level impacts or cross-border turnover is often impossible or irrelevant for small practices. Further, it is unclear how the supervisory authority of a subsidiary could assess potential group-level impacts (or cross border activities where applicable). • Indicators (i) and (j) are not applicable (and not understandable) for accounting firms. 4. Some indicators need adaptation for accountants: Indicator (c) – distinction between professional errors (mere negligence or formal or technical errors) and intentional wrongdoing, i.e. fraud, is necessary Indicator (e) – structured risk assessment methods are generally less detailed in small professional practices, exposure is usually rather assessed at engagement level. Indicator (g) – Facilitation of criminal activities need to be further explained. Most professional errors might be seen as a facilitation even in the absence of intentional misconduct. This might lead to overclassification in gravity type 4 breach. Indicators (h) and (k)– Structural failure and systemic nature of the breach: Requires clarification in the context of small practices. 5. Implementation timeline: Considering the time required to finalize an approve RTS and for obliged entities to familiarize themselves with the rules (including training), a grace period should be established before sanctions are applied.
CONSEIL NATIONAL ORDRE DES	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of	We agree, and only agree, because Article 4.2(c) allows consideration of specific circumstances by the supervisor. To ensure sanctions are individualized rather than applied mechanically, the authority setting the sanction must account for the relevant circumstances (Recital 5). Failure to do so risks a purely formal compliance approach (“tick the box” logic) rather than effective anti-money laundering enforcement.

Name of the Organisation	Question	Answer
EXPERTS - COMPTABLES	pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Breaches that are minor and are therefore classified in categories 1 or 2 should never be considered in categories 3 or 4, even in combination (Article 2 point 8). Indicator (f) of article 1 is essential for assessing breach severity in the accounting sector, for all categories of breaches. Additionnel observations: • Obstruction to supervision: We recommend explicitly including obstruction to supervision as a criterion, as it constitutes a breach that can be clearly identified when assessing non-cooperation with the supervisory authority. • Non-financial sector relevance: - o Article 4.3 (e) is not applicable to the non-financial sector. - o “Losses to third parties”, “loss or risk of loss caused to customers or other market users,” are not relevant for the accounting sector.
CONSEIL NATIONAL ORDRE DES EXPERTS - COMPTABLES	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Pecuniary sanctions must be proportionate to the size, business model and financial capacity of the obliged entity, in line with the proportionality principle of the AML framework. The concepts of financial viability of an entity or group, and of financial soundness of legal and natural persons, require clearer definition, in particular for SMPs. Article 4.5 – Legal Persons • Partial applicability: Article 4.5 is only partially applicable to the non-financial sector, particularly regarding prudential, capital, and liquidity considerations. • Turnover as an indicator: For accounting professionals (legal or natural person), turnover is an appropriate

Name of the Organisation	Question	Answer
		indicator. The reference period must however be defined: should it be the turnover during the period of the breach, or at the time the sanction is levied? Elements included in turnover calculation should also be specified (e.g. recharge of travel expenses, subcontracting revenue). Further, where a group/network provides multiple services, only revenue related to AML-regulated activities should be considered. Total income or turnover from unrelated activities should not affect penalty calculation. • Distinguishing activities: Within a firm, accounting and audit activities should be distinguished, as turnover and profitability differ. For instance, imposing severe sanctions for audit services breaches on a firm whose revenue is primarily accounting-based would be disproportionate. • Groups/networks: The basis of sanctions for groups or networks is not clearly defined. Sanctions should be limited to the supervised entity and not extended to the broader group or network. Article 4.6 – Natural Persons • Proportionality principle: Under Article 8 of the Declaration of Human Rights and Citizens, sanctions must not exceed what is strictly necessary to achieve deterrence and compliance objectives. • Size and structure matters: The size, structure, and type of activity must be considered. The situation of the CEO in a large bank differs fundamentally from this of an accountant sole practitioner. Base sanctions suitable for senior executives may be entirely inappropriate for small non-financial firms practitioner. • Basis for financial sanctions: “Other income” of sanctioned natural persons should be limited to professional income. • Non-financial sanctions: These remain important tools to enforce compliance while avoiding disproportionate effects on personal assets. Sanctions may include:

Name of the Organisation	Question	Answer
		o Disciplinary measures, up to delicensing; o Orders to comply. Activity restrictions: Restrictions under Article 56.2 AMLD6 appear difficult to implement, without facing judicial risks, (e) & (f) in particular. The RTS might usefully comment further on those matters.
CONSEIL NATIONAL ORDRE DES EXPERTS - COMPTABLES	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Categorizing sanctions is challenging because some indicators in Article 1 are ambiguous. This ambiguity may undermine the goal of harmonization, potentially leading to inconsistent outcomes due to differences in interpretations.
CONSEIL NATIONAL ORDRE DES EXPERTS - COMPTABLES	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you	Periodic payments cannot currently be imposed by supervisory authorities in France. Legal/regulatory amendments are necessary to enable enforcement, including appropriate recovery mechanisms. Financial penalties might preferably be imposed after a reasonable period open for remediation, in particular for breaches in categories 1 & 2. This might be clearly stated in the RTS. Point at which a breach is considered remedied (and sanctions end) is to be further clarified in the RTS keeping in mind that the supervisor may not exercise a day-to-day surveillance of small practices without excessively burdening administration costs.

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	
Srf konsulterna AB	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Srf konsulterna stödjer i huvudsak de indikatorer som föreslås för att bedöma överträdelsernas allvarlighetsgrad. Faktorer som varaktighet, upprepning och ansvar hos verksamhetsutövaren är relevanta vid en sådan bedömning. Även om harmoniserad tillsyn är ett viktigt mål för EU:s nya AML-ramverk bör tillsynsmetoderna ta hänsyn till de strukturella skillnaderna mellan finansiella institut och DNFBP-sektorer såsom bokföringstjänster. En väsentlig skillnad är att redovisnings- och lönekonsulterna (konsulterna) har en varaktig och i många fall långsiktig kundrelation som inte baseras på tillfälliga transaktioner. Konsulterna har utöver en insyn i alla transaktioner en helhetsbild av kundföretags verksamhet i jämförelse med andra verksamhetsutövare som i många fall endast ser enstaka, isolerade transaktioner i kundrelationen, exempelvis fastighetsmäklare som oftast har en affär med en kund. Det skulle dock vara värdefullt med ytterligare förtydliganden kring hur vissa indikatorer ska tolkas för DNFBP-verksamheter. Redovisnings- och lönekonsulter fungerar i regel som så kallade grindvakter genom uppnådd kundkännedom [CB3.1] och löpande uppföljning av kundrelationer, men de genomför sällan själva finansiella transaktioner. AMLA bör därför överväga att tydliggöra hur indikatorer som hänvisar till påverkan på finansmarknader eller det finansiella systemet ska tolkas för DNFBP-verksamheter vars roll är indirekt. Sektorsspecifika exempel bör tas fram för att bidra till mer enhetlig tillsyn och ökad rättssäkerhet. Praktiska erfarenheter från tillsyn inom DNFBP-sektorer visar att AML/CFT-regelverket kan vara svårt att omsätta i praktiken utan tillräckligt tydlig vägledning och branschspecifika exempel. Srf konsulterna anser att de indikatorer som används för att bedöma hur allvarlig en överträdelse är alltid bör tolkas inom ramen för ett riskbaserat förhållningssätt.[VM4.1][TA4.2] Administrativa eller dokumentationsrelaterade brister som inte innebär en faktisk ökning av risken för penningtvätt eller finansiering av terrorism bör inte automatiskt leda till en högre sanktionskategori. Srf konsulterna anser också att AMLA bör göra en bedömning utifrån risk i olika sektorer. Redovisnings- och lönekonsulter verkar i sin yrkesprofession för att efterleva lagar och regler. Genom det arbetet säkerställer konsulterna att både den egna verksamheten och kundernas verksamheter följer uppställda krav inom flera områden däribland gällande penningtvättsregelverk.

Name of the Organisation	Question	Answer
Srf konsulterna AB	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Srf konsulterna anser att de föreslagna kriterierna för att bestämma sanktionsavgifter i stort är ändamålsenliga. Samarbete med tillsynsmyndigheter och snabb rättelse av brister bör ses som viktiga förmildrande omständigheter. Tillsynsmyndigheterna bör ha en nyanserad och gemensam syn med beaktande av olika sektors förutsättningar. Srf konsulternas erfarenhet är att våra nationella tillsynsmyndigheter inom bokföringstjänster gör olika bedömningar i snarlika fall. Vi vill gärna referera till Riksrevisionens rapport i detta sammanhang, https://www.riksrevisionen.se/granskningar/granskningsrapporter/2024/statens-tillsyn-for-att-motverka-penningtvatt---bristande-omfattning-och-effektivitet.html . Vår uppfattning är även att tillsynen skiljer sig mellan olika sektorer. Srf konsulterna anser att om syftet med regelverket ska uppfyllas är det viktigt att tillsynen och bedömningen styrs utifrån verksamhetens förutsättningar. Verksamhetens faktiska arbete bör styra bedömningen om risk för penningtvätt och finansiering av terrorism har förelegat. Därutöver anser Srf konsulterna att bedömningen av sanktionernas storlek bör vara nyanserade och transparenta. Tydlig motivering i tillsynsbeslut är särskilt viktigt för mindre verksamhetsutövare. När tillsynsmyndigheter tydligt redogör för vilka faktorer som påverkat sanktionsnivån blir det lättare att förstå hur regelverket ska uppfyllas. Detta bidrar till att sanktioner blir både effektiva och avskräckande.
Srf konsulterna AB	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Att ta hänsyn till verksamhetsutövarens ekonomiska styrka kan bidra till proportionerliga och avskräckande sanktioner. Samtidigt är proportionalitet särskilt viktig för DNFBP-verksamheter som huvudsakligen består av små och medelstora företag. AMLA kan därför överväga att tydliggöra hur den riskbaserade ansatsen och proportionalitetsprincipen ska tillämpas i praktiken för mindre verksamhetsutövare.

Name of the Organisation	Question	Answer
Srf konsulterna AB	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Srf konsulterna stödjer i huvudsak de föreslagna kriterierna för administrativa åtgärder. Ur DNFBP-perspektiv kan tillsyn som prioriterar rättelse och tydlig vägledning om hur brister ska åtgärdas ofta leda till mer effektiva AML/CFT-resultat. Mer ingripande administrativa åtgärder bör i regel reserveras för allvarliga eller upprepade överträdelser.
Srf konsulterna AB	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Periodiska viten bör vara en åtgärd som sätts in endast i undantagsfall efter att ha uteslutit alla andra tillgängliga åtgärder. Periodiska viten kan vara ett slutgiltigt verktyg för att säkerställa efterlevnad av tillsynsbeslut. Srf konsulterna anser att fyra veckor är för kort tid eftersom det för verksamhetsutövare är viktigt att tidsfrister för efterlevnad tar hänsyn till den praktiska tid som krävs för att genomföra korrigerande åtgärder, exempelvis uppdatera riskbedömningar, ändra rutiner eller genomföra utbildning.
Binance	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of	Article 1 indicator set is broadly sensible as a framework, and many elements are capable of applying across sectors. However, several indicators are drafted in a way that appears tailored to the financial sector, and could create friction or inconsistent application if used for non-financial obliged entities. This is particularly important because the classification outcome is not descriptive. Under Article 3, a breach

Name of the Organisation	Question	Answer
	breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	categorised as level 3 or 4 is treated as serious, repeated or systematic. That linkage raises the importance of ensuring that Article 1 indicators are sector-neutral, evidence-based, and applied consistently, to avoid inadvertent escalation driven by indicator misfit rather than actual ML/TF harm. Indicators focused on the “integrity, transparency and security of the financial system” and the “orderly functioning of the financial markets” may not translate cleanly to non-financial sectors. For many non-financial obliged entities, “impact” is better evidenced through enabling predicate offences via weak controls; compromising AML/CFT system integrity (e.g., systematic failure to apply CDD/EDD or ongoing monitoring); facilitating high-risk flows through trade-based or professional services channels; and consumer harm, rather than financial market functioning concepts. A balanced drafting approach would reduce the risk of supervisors over-weighting financial-market concepts for non-financial sectors, or alternatively disregarding those indicators entirely and diverging in practice. This matters for the crypto ecosystem as well, while crypto-asset service providers sit in the “financial” category in many regimes, the market includes a wide range of business models and user interfaces, and consistent classification is essential to avoid unintended market disruption. We also note Article 1(l), which allows supervisors to consider “any other indicator”. While flexibility is valuable, this is a key divergence risk. AMLA could reduce inconsistency by requiring that any additional indicator is (i) relevant to ML/TF risk, (ii) documented with reasons, and (iii) applied consistently, including through published supervisory guidance or case-handling principles. We would therefore support the indicators applying to the non-financial sector provided they are clarified to: (i) allow supervisors to disregard indicators that are not relevant in a given sector, and (ii) articulate parallel, sector-neutral “impact” concepts (e.g., impact on AML/CFT system integrity, consumer harm, or facilitation of ML/TF), with constrained use of Article 1(l).
Binance	QUESTION 2: Do you agree that the proposed list of criteria to be taken into	Article 4 largely reflects established sanctioning principles that can apply across sectors such as cooperation, remediation, intent, benefit, customer harm, prior history and deterrence. In that sense, the criteria is broadly portable.

Name of the Organisation	Question	Answer
	account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The main concern for non-financial sectors is the risk of mechanical application of financial-sector supervisory expectations to business types that do not have the same governance, reporting cadence, or prudential overlays as financial institutions. In particular, cooperation should not be assessed by reference to open-ended “reasonable expectations” that may vary by Member State. It should focus on timely engagement, good-faith provision of relevant information, and effective remediation, recognising lawful constraints (e.g., legal privilege, ongoing litigation, data protection and security considerations). Sanctions should focus on the actual harm and the degree of responsibility, not on technical or procedural non-compliance that does not impact ML/TF risk. This matters for the broader crypto market because sanction calibration that is perceived as unpredictable or overly punitive can drive de-risking, reduce access to compliant services, and push activity toward less regulated channels. Given the cross-border nature of many business models (including in crypto markets), predictability and convergence of sanction calibration are important to avoid fragmented outcomes for comparable conduct. Finally, where the RTS encourages supervisors to consider “any other criteria identified by the supervisor,” stronger framing would help ensure consistency across Member States. A safeguard that additional criteria must be Directive-consistent, proportionate, and publicly articulated would reduce divergence.
Binance	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you	We agree with the principle that sanctions should be dissuasive yet proportionate, and that ability-to-pay is relevant. In practice, the objective should be dissuasiveness without unintentionally forcing discontinuation of otherwise compliant operations where remediation is achievable. However, Articles 4(5)–(6) are drafted with a clear financial-sector orientation and may not translate cleanly to the non-financial sector without adjustment. For legal persons, “total annual turnover” may be a blunt proxy for financial strength in many non-financial sectors, where margins and cashflow can be highly uneven, and where turnover may be driven by pass-through activity. The reference to prudential capital/liquidity information is unlikely to exist for many non-financial obliged entities. Without clarification, this could lead to inconsistent methodologies or overly punitive outcomes for certain business models. Where turnover is used, supervisors should be encouraged to consider margins, net revenue or profit, and cashflow indicators, to avoid disproportionate outcomes for high-

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	volume/low-margin models. For natural persons, assessing “annual income” can be workable, but may raise data minimisation and practical collection issues in the non-financial context. Many natural persons in relevant sectors may have multiple income sources and non-standard remuneration, and supervisors should not be pushed into intrusive information gathering beyond what is necessary and proportionate. A more sector-neutral approach would be to reference “financial capacity” and allow supervisors to use appropriate proxies depending on the sector (e.g., profit, cash reserves, insurance coverage, audited financials), with clear safeguards on necessity, confidentiality, and minimisation.
Binance	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We agree that administrative measures should be guided by clear criteria and linked to the gravity of the breach. Article 5’s approach of tying measures to the nature of the breach, the level of cooperation, remediation efforts, and the effectiveness of controls, can work across sectors. Measures should also be calibrated to achieve compliance in the least disruptive way, especially where issues can be remediated and where an immediate cessation of activity could harm consumers or push activity into less regulated channels. The key issue for the non-financial sector is that certain measures (e.g., restricting business, limiting operations, divestment-type requirements) can in practice amount to a de facto suspension or closure, particularly for smaller entities. The criteria should therefore more clearly embed: (i) proportionality to the specific ML/TF risk, (ii) sequencing (remediation-focused measures before structural restrictions), and (iii) consideration of collateral impacts, including customer/consumer harm and market displacement effects. From a crypto market perspective, overly blunt operational restrictions can unintentionally push users to less compliant alternatives, undermining AML/CFT objectives. Even when the RTS is framed for non-financial sectors, the same policy logic applies in which measures should correct risk and improve controls, not inadvertently reduce overall system integrity by driving activity away from supervised channels. We would encourage AMLA to clarify that supervisors should (i) sequence measures to prioritise remediation, and (ii) document why less intrusive measures would be insufficient before imposing restrictions that materially curtail operations.

Name of the Organisation	Question	Answer
Binance	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	We agree with the concept of periodic penalty payments as a tool to secure compliance with administrative measures, and Section 3 contains important safeguards. However, because the process and collection are largely governed by national law, there is a risk of uneven practice in the non-financial sector unless AMLA provides clearer harmonised expectations on key operational points. Three aspects warrant attention. First, the RTS should encourage supervisors to set penalty payment cadence and amounts in a way that is proportionate to the complexity and feasibility of the required remediation, including reasonable implementation lead times. This is relevant where compliance requires operational or technical change, not simply a behavioural adjustment. Where delay is demonstrably outside the entity's control (e.g., third-party dependency), supervisors should have discretion to pause or adjust accrual. Second, the methodology should ensure that penalty payments do not become punitive substitutes for pecuniary sanctions. They should remain tightly linked to the objective of securing compliance and should cease promptly when compliance is achieved and verified, with clear evidence. In practice, this requires clarity on who verifies compliance, within what timeframe, and what evidence is acceptable. Third, limitation and interruption/suspension rules should be transparent and predictable to avoid extended uncertainty, especially for smaller non-financial obliged entities.
Ordre des Avocats à Luxembourg-OAL	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you	The "Ordre des Avocats à Luxembourg", (« OAL»), is a self-regulatory body which was established by law in the Grand-Duchy of Luxembourg. It supervises approximately 3,700 lawyers. The OAL has the adequate financial, human and technical resources to perform its functions and has the powers referred to in paragraph 6 of Article 37 AMLD 6, including the power to impose pecuniary sanctions and administrative measures. QUESTION 1 The OAL observes that most of the provisions of the Draft RTS only refer to the "supervisor". In view of the possibility granted by Article 37, par.3 of AMLD 6, the AMLA should check that the term "supervisor" includes self-regulatory bodies, as the latter have, as is the case in Luxembourg, the power to impose pecuniary sanctions and administrative measures, accompanied by periodic penalty payments where appropriate. Articles 2 and 3 of the Draft RTS cannot be applied to the legal sector. These provisions aim at regulating

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	procedures and create classes of breaches. The OAL believes that this lacks legal basis in the AMLD 6 and cannot be regulated by RTS, for the following reasons: (i) classification of breaches into four classes (as provided by Article 2) is against the provisions of Article 53(10), para.1, (a) of the AMLD 6, which only prescribes that the RTS shall set out “indicators to classify the level of gravity of breaches”. Thus, the involvement of AMLA shall be limited to assisting in defining indicators enabling the national supervisors to assess the level of seriousness of breaches; (ii) the approach currently upheld in the Draft RTS seriously limits the possibility for the national supervisors to apply their own supervisory judgement in the determination of the gravity of a given breach, while the importance of such notion of “supervisory judgement” is expressly enshrined in the recitals of the Draft RTS and recalled throughout the AMLA Consultation Paper. From the point of view of legal professional supervision systems, a rigid, predefined classification of breaches — especially one tied to automated consequences — is not suitable for a profession where case-by-case assessment, ethical obligations, and LPP/PS are central to practice. Many AML/CFT-related compliance issues in the legal sector arise from complex interactions between the obligation to prevent ML/TF and the duty to respect confidentiality, client rights, and due process. Applying a uniform four-tier system of gravity could result in sanctioning conduct that is not objectively serious, but merely reflects a good-faith error in the interpretation of overlapping obligations and the other way around. Such an approach risks undermining both the proportionality and legitimacy of enforcement measures. In that sense, the Draft RTS goes also beyond what is the competence of the Union and the procedures should be left to national law. The search for clarity and certainty is understandable, but if the draft provisions were to be applied to the legal sector, the effect would be the opposite - it would be ticking the box to set sanctions without really looking in the case. In case where judges are competent to impose sanctions, binding them by RTS would not be correct. (iii) Furthermore, the Draft RTS appears to overlook the reality that in many Member States, legal professionals are supervised by self-regulatory bodies, which have not only robust disciplinary mandates, but also obligations to safeguard constitutional principles, such as access to justice and LPP/PS. Those bodies operate under national legal traditions that require flexibility and deliberation — qualities that a strict, EU-wide classification model may undermine. Also, if the system has to be risk-based it means one needs to tailor sanctions to specific circumstances of

Name of the Organisation	Question	Answer
		the case. The proposed classification system goes against this approach. With respect to the indicators to classify the gravity of breaches provided under Article 1 of the Draft RTS, other indicators could be taken into account (and left to the discretion of the relevant supervisor exercising its supervisory judgement on a case-by-case basis) to account more precisely for the factual circumstances of a given breach (such as e.g. (and without limitation) author of the breach (obliged entity itself vs. delegate implementing AML/CFT tasks on its behalf), appropriateness of the steps taken to mitigate the risk of the breach occurring).
Ordre des Avocats à Luxembourg-OAL	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Same as for the answer to question 1 above, through the answer to this question, the OAL would like to make certain comments. While, in principle, the list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the Draft RTS may indeed be relevant to the non-financial sector (subject to a case-by-case assessment of relevant breaches), we would like to raise the following comments: (i) the list of criteria allowing for the decrease of pecuniary sanctions (Article 4(2) of the Draft RTS) could be expanded, for example in case if the breach was committed by error, including error on the applicable laws and regulations in a complex regulatory environment; (ii) with respect to Article 4(2), the level of pecuniary sanctions should decrease in equivalent amount to take into account the amounts already invested by the obliged entity to remedy the identified / sanctioned breach; (iii) with respect to Article 4(4), pecuniary sanctions on natural persons which are not themselves obliged entities (e.g. board members, compliance officers... of an obliged entity) should be limited to cases where it may be demonstrated that the individual conduct of such natural persons had a direct impact on the identified / sanctioned breach; (iv) with respect to Articles 4(2)(a) and 4(3)(a), it shall be noted that, for certain non-financial professions (such as lawyers), the level of cooperation with the supervisor may be (validly) limited or hindered by the strict LPP / PS obligations to which they may be subject. Hence, the level of cooperation with supervisors might not be always relevant for such professions.

Name of the Organisation	Question	Answer
Ordre des Avocats à Luxembourg-OAL	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Articles 4(5) and 4(6) of the Draft RTS operate a distinction between legal persons, on the one hand, and natural persons, on the other hand, held responsible for the breach. In particular, Article 4(6) makes a link between the financial strength of the natural person held responsible, and the annual income received from the obliged entity or group of which the obliged entity is part. Relevance of such link may be challenged, in particular in case of lawyers performing their activities under an independent status, while belonging to a structured law firm. In addition, relevance of income at group level (where relevant), is questionable, as group entities, on an individual basis, do not necessarily benefit from income perceived, on an aggregate basis, at group level.
Ordre des Avocats à Luxembourg-OAL	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Same as for the answer to question 1 above, through the answer to this question, the OAL would like to make certain comments. Article 5 of the Draft RTS does not provide distinct criteria for non-financial sector supervisors when applying administrative measures. Furthermore the measures listed in points 2 to 4, given their impact, should be reserved for the breaches with the highest level of gravity, i.e. breaches with gravity classified as category four (while current draft refers to category three or four). Alternatively, they could be extended to category three breaches e.g. only in case of failure by relevant obliged entity to remedy within a predefined timeframe. It is important to underline that, for non-financial sector professionals such as lawyers, administrative measures may prove, in certain circumstances, to be more efficient and have a more deterrent effect than pecuniary sanctions. Indeed, for instance : (i) issuing an order to implement specific corrective measures (AMLD 6, art. 56, 2., (b)) together with periodic penalty payments (AMLD 6, art. 57) may result more efficient and compelling than a mere pecuniary sanction; (ii) restricting or limiting the business (AMLD 6, art. 56, 2., (e)) or requiring changes in the governance structure (AMLD 6, art. 56, 2., (g)) may respectively result in financial loss or compliance costs, and/or reputational impact exceeding the consequences that a mere pecuniary sanction could have on a lawyer / law

Name of the Organisation	Question	Answer
		firm. Accordingly, administrative measures should not be treated under the Draft RTS as a lower alternative to pecuniary sanctions but instead the supervisor/SRB concerned should have the option of applying one or more of the sanctions provided for in Articles 55 to 57 AMLD 6, or combining them, depending on the specific case. The indicators and criteria provided in the Draft RTS generally do not seem completely irrelevant to the legal sector, but as previously commented, and given the relevance of the administrative measures to the non-financial sector professionals (as emphasized hereabove), it is important that these criteria/indicators remain examples to be taken into account by the supervisor/SRB, with the supervisor/SRB retaining flexibility to apply its own judgement when deciding on a sanction. Based on its supervisory judgement, and regardless of the criteria provided by the Draft RTS, the supervisor/SRB should, ultimately, retains discretion in the determination of the administrative measure (or pecuniary sanction) deemed more appropriate in a given circumstance, notably taking into account the seriousness of the identified breach, and the typology of the professional concerned (for instance, as noted above, boutique law firm, vs. law firm pertaining to a network), in order to impose the sanction or measure considered by the supervisor/SRB , on a case by-case basis, as the most effective, proportionate and dissuasive - such overarching principle being set out under Article 53, 2. of AMLD 6.
Ordre des Avocats à Luxembourg-OAL	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	The principle of imposing periodic penalty payments to compel an obliged entity to comply with an administrative measure pronounced against it, is relevant to non-financial sector obliged entities (such as lawyers). This possibility is already provided for in Luxembourg law. More specifically, decision of imposing periodic penalty payments is rarely taken in isolation and is more likely to be included in the decision to impose pecuniary sanctions or administrative measures. However, the manner in which Article 3 is drafted appears to suggest a procedure and decision-making process that is distinct from the decision-making process relating to an administrative measure. In practice, this is not the case. In addition, Article 53 (10) of AMLD 6 is not the appropriate legal basis for procedural aspects. Such aspects shall indeed be governed by national law only. Articles 7, 8, 9, 2. and 10 of the Draft RTS (to the extent purporting to set forth procedural aspects of periodic penalty payments) must therefore be deleted. In any

Name of the Organisation	Question	Answer
		case, Articles 7 and 8 of the Draft RTS should rather refer to the complete body of defendant rights of due process, instead of focusing exclusively on the right to be heard in relation to periodic penalty payments.
CINOA-Confédération Internationale des Négociants en Œuvres d'Art	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	See link for full document: Cloud Link to document: https://acrobat.adobe.com/id/urn:aaid:sc:EU:88cc6ce8-53d7-463d-a78b-d4d4785e1ea9 Our comments reflect some key principles for assessing the gravity of breaches in micro and small non-financial entities, including art market participants. Our aim is to emphasize the need for proportionality, to clarify how the classifications could better apply to transaction-based sectors, avoid assuming systemic relevance or group/market impact where unrealistic, and ensure assessments are evidence-based and linked to actual ML/TF risk. We believe that these clarifications would help enhance legal certainty, promote consistent supervisory practice, and align with the EU's risk-based approach. Several of the indicators listed in the proposed Article 1 may operate disproportionately when applied to: • Micro and small non-financial obliged entities; and • Art market obliged entities (AMOE), including galleries, dealers and auction houses. In general, there is a need for explicit proportionality. The indicators appear calibrated primarily for financial institutions and group-based entities. For micro and art market entities, which are typically stand-alone businesses, that are owner-managed, transaction-based (rather than account-based) and not systemically relevant, the absence of explicit proportionality language may lead to an over-classification of the gravity of a breach. We recommend proportionality: based on size, organisational structure, business model. The specific characteristics and actual risk level of the individual business should clearly and explicitly influence how each gravity indicator is applied. (f) -Differentiate clearly between administrative/technical and substantive AML failures; introduce a materiality threshold and require assessment of actual ML/TF risk impact. (h)-Require supervisors to consider size, organisational structure, transaction volume, risk exposure, intent (negligent vs. intentional), and whether the breach was isolated or systemic. (g)-Assess gravity based on demonstrable and credible links to criminal misuse and the known frequency of such misuse, not hypothetical possibilities. (k)-Clarify that “systematic breach” implies persistent and knowing failure, not isolated weaknesses due to limited administrative capacity. (l)-Require that additional indicators: (1) align with proportionality and risk-based approach; (2) are

Name of the Organisation	Question	Answer
		objectively justified and documented; (3) take into account the size of the business (4) are applied transparently and consistently across Member States. The following three sentences are proposed as minimal, stand-alone additions to Article 1 of the RTS. They are intended to clarify materiality, ensure evidence-based assessment, and introduce a horizontal proportionality safeguard, without altering the existing indicators or sector-neutral wording. Proposed insertions to Article 1 Horizontal proportionality Placement: Extend the introductory sentence of Article 1 (before point (a)) to read “To classify the level of gravity of a breach, supervisors shall take into account all of the following indicators, to the extent that they apply, whilst taking into account the size, nature, internal organisation and risk profile of the obliged entity:” Purpose / Rationale: • Operationalizes proportionality across all indicators (a)–(l). • Ensures small or micro entities are not unfairly penalized due to limited resources. • Maintains flexibility for different types of obliged entities while leaving the EU text intact. Materiality / administrative vs substantive breaches Placement: Extend point (f) – (Nature of the breach) to read: “the nature of the breach, by assessing whether the breach is related to internal policies, procedures and controls of the obliged entity, customer due diligence, reporting obligations or records retention, whilst distinguishing between those breaches that materially impair the effectiveness of AML/CFT systems, controls or policies and those which do not.” Purpose / rationale: Clarifies that minor procedural or documentation gaps should not automatically be treated as serious breaches, while substantive failures remain fully enforceable. Evidence-based assessment Placement: After point (l) – Any other indicator “In assessing the indicators, competent authorities should take into account objective and evidence-based factors, reflecting the specific circumstances and materiality of the breach.” Purpose/ rationale: Ensures that assessments rely on verifiable facts and actual impact, not assumptions or sector reputational perceptions.

Name of the Organisation	Question	Answer
CINOA- Confédération Internationale des Négociants en Œuvres d'Art	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	See Link to document: https://acrobat.adobe.com/id/urn:aaid:sc:EU:88cc6ce8-53d7-463d-a78b-d4d4785e1ea9
CINOA- Confédération Internationale des Négociants en Œuvres d'Art	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	See Link to document: https://acrobat.adobe.com/id/urn:aaid:sc:EU:88cc6ce8-53d7-463d-a78b-d4d4785e1ea9
CINOA- Confédération Internationale	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a	See Link to document: https://acrobat.adobe.com/id/urn:aaid:sc:EU:88cc6ce8-53d7-463d-a78b-d4d4785e1ea9

Name of the Organisation	Question	Answer
des Négociants en Œuvres d'Art	non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
CINOA-Confédération Internationale des Négociants en Œuvres d'Art	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	See Link to document: https://acrobat.adobe.com/id/urn:aaid:sc:EU:88cc6ce8-53d7-463d-a78b-d4d4785e1ea9
ECNL	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-	We are responding to the consultation as NPO coalition: a coalition of (networks of) civil society organisations and public benefit foundations. We welcome the opportunity to respond to this draft RTS from the perspective of the non-financial sector. While many of the indicators apply to the non-financial sector, some presume large financial service operations and are not tailored to the nature of non-financial obliged entities, particularly those set out in art. 1 (j). More importantly, we would like to emphasize the need for a risk-based and proportionate approach. The intrinsic risk profile of some categories of non-financial obliged entities may be minimal. Under the AMLR, all

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	crowdfunding platforms will be obliged entities: some of them are small, non-profit entities. A Dutch donation-based crowdfunding platform focused on the cultural sector indicated that the average fundraising objective for appeals launched on their platform is 7,000 EUR and the average donation 70 EUR. Another small, volunteer-run crowdfunding platform focused on animal welfare uses donations exclusively to provide in-kind support to the animal shelters for which it facilitates fundraising appeals. Hence, risks associated with these obliged entities are significantly lower than in the case of large financial institutions. We recommend including explicit guidance for supervisors to reduce the gravity classification in such cases, considering specific characteristics and ensuring proportionality. Supervisors should also consider the institutional capacity of obliged entities: it is more difficult for small organisations to comply with all requirements than for large financial institutions. Donation-based crowdfunding platforms, whose mission is to contribute to public benefit and who may be non-profit entities themselves, do not have the same in-house expertise and experience as banks. Furthermore, we recommend that the indicators prioritise actual harm to AML/CFT objectives rather than mere procedural non-conformities and avoid an excessive focus on hypothetical or unlikely risks. The indicator set out in point (g) is currently formulated as “whether the breach could have facilitated or otherwise led to criminal activities.” In our view, this wording may encourage purely hypothetical reasoning. This is particularly concerning given that supervisors are required to classify breaches as category three or four where indicator (g) is considered to be met. More specifically, we would like to recommend the following: - Add explicit reference to a risk-based approach in article 1, by adding a new paragraph (1). - Add guidance in point (a) to assess the duration in the breach in relation to the duration of the obligation, to allow for a proportionate approach towards newly designated obliged entities or compliance with new obligations under the AMLR; - Add guidance in point (d) and (e) that the impact must also be assessed in light of the size of the obliged entity and/or add mitigating indicators that can reduce the level of gravity (such as: “number and volume of transactions under the scope of the AMLR”) - Specify in point (d) (i) that cross-border impact should be assessed based on actual risks, not on mere cross-

Name of the Organisation	Question	Answer
		border activity alone. - Clarify what the nature of the breach (as assessed under art. 1 (f)) implies for the risk classification, particularly as this criterion is not referred to in article 2. Distinguish between administrative and procedural non-conformities and substantive failures. - Reformulate the indicator in point (g) so that it focuses on cases where the breach has in fact facilitated, or demonstrably contributed to, criminal activities (“whether the breach has facilitated or otherwise led to criminal activities...”) - Indicate that the indicators set out in article 1 (j) do not apply to non-financial obliged entities. - Require in point (l) that any additional indicators are formulated and assessed in line with proportionality and risk-based approach and are objectively justified and documented.
ECNL	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Yes, these criteria apply to the non-financial sector. We would like to point out though that it is not clear what types of conduct as referred to in art. 4 (3) (b) would increase the level of pecuniary sanctions. Moreover, it should be noted that small organisations do not have the same capacity to respond as large institutions: they may require more time to understand the issue, engage experts and take action. Whether a response is considered appropriate should hence be assessed from the perspective of reasonableness. On point (3) (f) we recommend ensuring that past breaches are assessed proportionately: minor breaches or breaches that have occurred long ago should not be given too much weight. On point (3)(g) we refer to our comments above on ensuring proportionality and a risk-based approach in setting additional criteria.
ECNL	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held	We have no comments on these articles.

Name of the Organisation	Question	Answer
	responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	
ECNL	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We would like to suggest stipulating in paragraph (3) that the withdrawal of authorisations may only be decided upon where the level of gravity is classified as category four. Where the level of gravity is classified as category three, the supervisor should first suspend the authorisation and proceed with withdrawal only if the obliged entity fails to comply with its obligations within a reasonable period of time.
ECNL	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you	We have no comments on this section.

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	
Dutch Banking Association	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Overall NVB reaction to the consultation paper: We note that AMLA has broadened the consultation on this draft RTS to include the non-financial sector. The NVB however appreciates this opportunity to reiterate and further develop a concern we raised in our response to the EBA's earlier consultation on the same draft RTS in June 2025. The concern we set out below is not limited to any single sector; it goes to the foundation of the enforcement framework this RTS seeks to harmonise. The effectiveness of this draft RTS is fundamentally limited by the divergence in the legal qualification and enforcement of AML/CFT breaches across Member States (MS). Article 53(2) AMLD acknowledges the right of MS to provide for and impose criminal sanctions, while at the same time requiring MS to lay down rules on pecuniary sanctions and administrative measures and to ensure that supervisors may impose and enforce these. The draft RTS operationalises this administrative framework and aims to ensure that supervisory judgement is applied in a coherent and consistent way, with comparable outcomes. However, for MS that maintain both criminal and administrative enforcement in parallel, a fundamental conflict arises that obstructs the harmonisation this RTS seeks to achieve. The entire enforcement framework of Section 4 of the AMLD, and by extension this draft RTS, is premised on administrative enforcement by supervisors. The draft RTS can only deliver on its harmonisation objective to the extent that MS operate within this administrative framework. We are concerned that the differences between criminal and administrative enforcement limit the harmonisation that this RTS intends to achieve. In some MS, such as the Netherlands, AML/CFT breaches even if committed negligently or unintentionally, constitute an economic crime, leading to criminal prosecution. In contrast, other MS treat even intentional breaches administratively. Where breaches are prosecuted criminally, the gravity classification under Articles 1 and 2 and the sanctioning criteria under Article 4 of the draft RTS are not applied by the supervisor but determined by the public prosecutor and the criminal court. The RTS is therefore structurally inapplicable in those jurisdictions. This results in unequal treatment of obliged entities depending on their jurisdiction and creates an unlevel playing field, which is the outcome that Article 53 AMLD and this draft RTS seek to prevent. This discrepancy is especially problematic when considering the role of cooperation during supervisory examinations. The nemo tenetur principle applies when breaches may have criminal consequences, meaning

Name of the Organisation	Question	Answer
		that obliged entities may refrain from sharing information to protect their legal position. However, under Article 4(3)(a) of the draft RTS, a lack of cooperation is a ground for increasing pecuniary sanctions, while under Article 4(2)(a) cooperation is a ground for decreasing them. Obligated entities in jurisdictions with criminal enforcement thus face an impossible and conflicting position: either cooperate with the supervisor and risk self-incrimination in criminal proceedings or exercise their right to silence and face an aggravated administrative sanction. This outcome is at odds with the fairness and proportionality principles that this draft RTS aims to serve. The draft RTS aims to ensure that "the same breach of AML/CFT requirements is assessed in the same way by all supervisors in all MS." The draft RTS emphasises the need for supervisors to ensure consistent and comparable outcomes across MS, including a common understanding of the gravity of breaches. This consistency is unattainable if non-intentional breaches trigger criminal law in some MS but not in others. Where the same breach is subject to criminal prosecution in one jurisdiction and an administrative fine in another, comparable outcomes are not attained. A truly harmonised approach to enforcement under Article 53 AMLD requires that the underlying legal frameworks across MS be aligned, particularly in how they distinguish between administrative and criminal responses. We recognise that aligning criminal and administrative enforcement regimes across MS is outside the immediate mandate of AMLA and this RTS. However, this does not relieve AMLA of the obligation to address the consequences of this divergence within the scope of the RTS. At a minimum, the RTS should explicitly acknowledge that the coexistence of criminal and administrative enforcement for the same AML/CFT breaches impedes equal treatment and restricts the comparability of outcomes that the RTS is designed to achieve. We urge AMLA to include a recital or provision recognising this structural limitation, and to engage with the European Commission to address this divergence in the context of the application of the AMLD, with a view to ensuring a level playing field across the EU.
Dutch Banking Association	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions	See overall reaction at question 1.

Name of the Organisation	Question	Answer
	set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
Dutch Banking Association	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	See overall reaction at question 1.
Dutch Banking Association	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If	See overall reaction at question 1.

Name of the Organisation	Question	Answer
	you do not agree, please explain your reasoning.	
Dutch Banking Association	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	See overall reaction at question 1.
Growell Capital Ltd	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree that the proposed indicators for assessing the gravity of breaches can be applied to the non-financial sector. The indicators provide a useful and consistent framework for assessing the seriousness of breaches, provided that they are applied in a proportionate manner considering the size and risk profile of the entity.
Growell Capital Ltd	QUESTION 2: Do you agree that the proposed list of criteria to be taken into	Yes, we agree that the proposed criteria for determining pecuniary sanctions are appropriate for the non-financial sector. The criteria support a proportionate and risk-based approach when assessing the level of sanctions.

Name of the Organisation	Question	Answer
	account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
Growell Capital Ltd	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree that the financial strength of the legal or natural person held responsible should be considered when determining sanctions. This ensures that penalties remain effective, proportionate and dissuasive.
Growell Capital Ltd	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative	Yes, we agree with the proposed criteria to be considered by supervisors when applying administrative measures. The criteria support consistency and proportionality in supervisory actions.

Name of the Organisation	Question	Answer
	measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
Growell Capital Ltd	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree that the proposed methodology for imposing periodic penalty payments can also apply to the non-financial sector, provided that such measures remain proportionate to the size and financial capacity of the entity.
Amicorp Luxembourg S.A.	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes

Name of the Organisation	Question	Answer
Amicorp Luxembourg S.A.	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Yes
Amicorp Luxembourg S.A.	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	yes
Amicorp Luxembourg S.A.	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a	yes

Name of the Organisation	Question	Answer
	non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
Amicorp Luxembourg S.A.	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes
Bitkom e. V.	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS	Article 4 (3) considers the level of cooperation of the person held responsible with the supervisor (or the lack thereof) as well as whether this person disclosed the breach, or other lack of self-incriminating behaviour as an aggravating factor, leading to an increase of pecuniary sanctions. This provision can easily lead to conflicts with both Art. 6 (1), (2) ECHR and Art. 47, 48 EU Charter of Fundamental Rights, enshrining the privilege against self-incrimination. A person must not be sanctioned for not incriminating him*herself but remaining silent. If a responsible (natural) person legitimately invokes the nemo tenetur-principle, this can neither lead to an increase of a pecuniary sanction to the detriment of its employer / the obliged entity. Such a situation would create a severe conflict between both parties, incentivising the legal entity to exert substantial pressure on the natural person. This outcome would

Name of the Organisation	Question	Answer
	apply to non-financial sector? If you do not agree, please explain your reasoning.	disproportionately restrict the fundamental rights guaranteed by Art. 6 ECHR and Art. 47, 48 Charter of Fundamental Rights.
Bitkom e. V.	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The inclusion of the entire financial strength of legal persons or their total annual turnover may lead to disproportionate results in setting pecuniary sanctions for the non-financial sector. In the non-financial sector, it is very common that only a small part of the obliged entity's operative business / activities is subject to AML obligations / lead to the applicability of AML obligations (under the current national AML regulations as well as under the EU AML Regulation). The same applies if a parent company falls within the scope of the AML Regulation solely because its subsidiary is an obliged entity (Art. 3 (2) , Art. 2 (6) (a), (12), (13), 42) Reg. 24/1624). The level of sanctions should therefore be limited to the value of sales / turnover achieved by the activity relevant under the AML Regulation. Regarding natural persons, the RTS do not explain whether the annual income of natural persons refers to net or gross income or - if applicable - other means of calculation.
Bitkom e. V.	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Please refer to the response to Question 3. The considerations set out above are equally relevant in the context of periodic penalty payments.
Danske Gallerier	QUESTION 1: Do you agree that the	We broadly agree that the indicators listed in Article 1 are conceptually applicable to the non-financial sector, including the contemporary art market.

Name of the Organisation	Question	Answer
	proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The principle-based and risk-oriented structure of the indicators is appropriate given the diversity of obliged entities outside the financial sector. Indicators such as duration, repetition, conduct and impact are, in principle, suitable for cross-sectoral application. However, it is important that supervisory guidance ensures a proportionate interpretation for micro and small enterprises, which represent the vast majority of actors in the contemporary art market. Danish galleries predominantly operate in the primary market for contemporary art, working directly with living artists in transparent commercial settings. This business model differs significantly from sectors dealing in antiquities or high-risk cultural heritage objects. The assessment of gravity should therefore reflect the typically lower structural and systemic risk profile of contemporary art galleries. In particular: • The assessment of “structural failure” (Article 1(h)) should clearly distinguish between systemic governance deficiencies and situations where small entities lack formalised documentation but operate in good faith with limited administrative resources. • The assessment of “impact” on financial stability, markets or the integrity of the financial system (Article 1(j)) should reflect the generally limited systemic relevance of individual contemporary art galleries. • References to “group-level or cross-border impact” (Article 1(d)(i)) should be applied proportionately where entities are not part of corporate groups and operate independently. We therefore agree with the applicability of the indicators in principle, provided that supervisory practice ensures a genuinely risk-based and proportionate application to small contemporary art market participants.
Danske Gallerier	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not	We agree that the criteria in Article 4 are generally suitable for application to the non-financial sector. In particular, the inclusion of mitigating factors such as cooperation, voluntary disclosure and timely remedial actions is essential and welcome. These elements are especially important in sectors where compliance structures are less formalised than in large financial institutions. The contemporary art market is predominantly composed of SMEs and micro-enterprises with limited administrative capacity. Commercial relationships are typically long-term and transparent, involving identifiable artists and collectors. This reduces certain anonymity-related risks often associated with other segments of the cultural goods market. Compliance shortcomings in this sector are therefore more likely to arise from interpretative uncertainty or resource constraints than from intentional misconduct. We therefore recommend that supervisory authorities explicitly give significant weight to good-faith efforts,

Name of the Organisation	Question	Answer
	agree, please explain your reasoning.	prompt remediation and constructive cooperation. Furthermore, sanctions should reflect not only the gravity of the breach, but also the actual ML/TF risk exposure profile of the entity concerned, taking into account the typically limited systemic risk of contemporary art galleries.
Danske Gallerier	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We agree in principle that financial strength is a relevant consideration in ensuring sanctions are proportionate and dissuasive. However, in the contemporary art sector, annual turnover may not be a reliable indicator of financial capacity. Contemporary art galleries frequently: • Operate with high-value but low-margin transactions; • Sell on consignment and do not own the works traded; • Experience significant revenue volatility from year to year; • Operate as sole proprietorships or small partnerships. Turnover may therefore significantly overstate actual financial resilience. We recommend that financial strength be assessed holistically, taking into account: • Net profitability rather than gross turnover; • Liquidity and cash-flow position; • Business model characteristics (e.g. consignment-based sales); • The risk of undermining business continuity through disproportionate sanctions. With regard to natural persons (Article 4(6)), careful application is necessary in small owner-managed contemporary galleries where personal income may fluctuate considerably and may not reflect overall business resilience.
Danske Gallerier	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative	We agree that the structured approach set out in Article 5 is appropriate. However, measures such as withdrawal or suspension of authorisation or restrictions on business activities may have particularly severe consequences in the non-financial sector, where many entities are small contemporary art businesses without diversified revenue streams. In such contexts, even temporary restrictions may effectively lead to business closure. Contemporary art galleries operating in the primary market generally pose limited systemic ML/TF risk. This should be reflected in the application of the most severe administrative measures. We therefore recommend that supervisors:

Name of the Organisation	Question	Answer
	measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	• Apply strict proportionality assessments before imposing restrictive measures; • Prioritise corrective and remedial actions where appropriate; • Consider the economic and cultural impact on local creative ecosystems when applying such measures. The most severe administrative measures should remain exceptional and clearly linked to serious, repeated or intentional breaches.
Danske Gallerier	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	We agree that periodic penalty payments (PePPs) can serve as an effective compliance tool across sectors. However, many contemporary art galleries operate with limited liquidity reserves and high cost volatility. Daily or weekly penalty payments, if not carefully calibrated, could quickly threaten business viability without necessarily improving compliance outcomes. We therefore recommend that supervisory authorities: • Carefully assess the financial resilience of SMEs before determining the amount and frequency of PePPs; • Ensure that PePPs remain strictly linked to ongoing non-compliance with administrative measures and are not used in a punitive manner; • Apply proportionality standards that reflect the nature of the breach, particularly where shortcomings are procedural rather than risk-driven. We welcome the procedural safeguards provided in Articles 7–10, including the right to be heard and clear decision requirements, as important elements of legal certainty.
Wirtschaftskammer Österreich	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you	Der Entwurf legt in Artikel 1 Kriterien fest, die die Schwere eines Verstoßes beurteilen sollen, wie bspw. Dauer, Wiederholung, Art des Verstoßes, das Verhalten der Verantwortlichen sowie mögliche strukturelle Mängel in den GW/TF-Systemen. Zudem werden die tatsächlichen oder potenziellen Auswirkungen auf das betroffene Unternehmen und das Finanzsystem insgesamt berücksichtigt. Damit fließen neben dem konkreten Fehlverhalten auch dessen potenzielle Folgen bereits bei der Einstufung der Tat als schwerwiegend, wiederholt oder systematisch mit ein. Aus Sicht des Nicht-Finanzsektors ist eine differenzierte Betrachtungsweise der beiden Sektoren angebracht. Es ist davon auszugehen, dass im Nicht-Finanzsektor die Kritikalität der Geldwäsche und Terrorismusfinanzierung, sowie die Auswirkungen auf das Finanzsystem geringer ausfallen als im Finanzsektor. Außerdem muss stärker berücksichtigt werden, dass viele der aufgeführten Parameter (Konzernstrukturen, grenzüberschreitende Auswirkungen, komplexe AML/CFT Kontrollsysteme) in kleineren und mittleren Unternehmen nicht in gleicher Ausprägung vorkommen.

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	Daher erscheinen - vor allem in Hinblick auf die Sanktion Verpflichteter aus dem Gewerbesektor - Kriterien wie: a. eine strikte Verankerung des Verhältnismäßigkeitsprinzips und des risikobasierten Ansatzes, b. die Berücksichtigung der Größe und wirtschaftlichen Bedeutung des Unternehmens, sowie c. die Frage, ob der Verpflichtete aufgrund der geltenden Rechtslage überhaupt in tatsächliche Zahlungsflüsse involviert ist, praxisnah und relevant. Diese Kriterien sollten aus Sicht der Wirtschaftskammer Österreich im Entwurf der technischen Regulierungsstandards zu Geldstrafen, Verwaltungsmaßnahmen und Zwangsgeldern im Nicht-Finanzsektor entsprechende Berücksichtigung finden. Weiters sollten Beispiele aufgenommen werden, die darlegen, wie diese Regelungen von klein- und mittelständischen Unternehmen (KMU) ohne komplexe Strukturen auszulegen sind. Im österreichischen Verwaltungsstrafrecht ist der Grundsatz "Beraten statt Bestrafen" von essenzieller Bedeutung und wurde mit § 33a des Verwaltungsstrafgesetzes (VStG) explizit verankert. Diese Bestimmung ermöglicht es der Behörde, bei geringfügigen Übertretungen, bei denen die Bedeutung des strafrechtlich geschützten Rechtsgutes und die Intensität seiner Beeinträchtigung sowie das Verschulden des Beschuldigten gering sind, eine Beratung durchzuführen und eine schriftliche Aufforderung zur Herstellung des rechtmäßigen Zustandes zu erteilen, anstatt sofort ein Strafverfahren einzuleiten. Wird dieser Aufforderung fristgerecht entsprochen, ist die weitere Verfolgung wegen dieser Übertretungen unzulässig. Die Einführung dieser Regelung erfolgte mit dem Ziel, einen generellen "Paradigmenwechsel weg von einer Bestrafungs- hin zu einer Beratungskultur" zu erreichen und das Prinzip "Beraten statt Strafen" quasi flächendeckend für alle behördlichen Vollzugsbereiche umzusetzen. Gerade für Ein-Personen-Unternehmen (EPU) und KMU ist der Grundsatz „Beraten statt Strafen“ von essenzieller Bedeutung und sollte für den Nicht-Finanzsektor bei der Bemessung der Strafe berücksichtigt werden.
Wirtschaftskammer Österreich	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS	Zumal in Artikel 4 des RTS-Entwurfs weitere Kriterien festgesetzt werden, die den Aufsichtsbehörden helfen sollen, die Höhe der Geldstrafen zu bestimmen und zu entscheiden, ob diese erhöht oder gesenkt werden sollen, sind dem Entwurf sowohl strafmindernde (Art 4 Ziffer 2) als auch strafferhöhende (Art 4 Ziffer 3) Kriterien immanent, die neben den zuvor beschriebenen Indikatoren gem. Artikel 1 bei der Festsetzung der Höhe der Geldbußen zu berücksichtigen sind. Grundsätzlich sollten die im Artikel 4 des Entwurfs genannten Minderungs- und Erhöhungsgründe auch für Verpflichtete des Nicht-Finanzsektors gelten, aber es muss auch hier die Struktur des Nicht-Finanzsektors verstärkt berücksichtigt werden – insbesondere die begrenzten Ressourcen vieler KMU. Es sollte daher eine klare Begrenzung des Ermessensspielraums und eine

Name of the Organisation	Question	Answer
	apply to non-financial sector? If you do not agree, please explain your reasoning.	ausdrückliche Verankerung des Verhältnismäßigkeitsprinzips Einfluss finden, um übermäßige Belastungen zu vermeiden.
Wirtschaftskammer Österreich	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Die Finanzkraft der verantwortlichen juristischen/natürlichen Person sollte jedenfalls auch im Nicht-Finanzsektor bei der Strafzumessung berücksichtigt werden. Wir weisen jedoch darauf hin, dass Maßnahmen wie Einschränkungen der Geschäftstätigkeit, Widerruf von Zulassungen oder Änderungen der Governance Struktur im Nichtfinanzsektor sehr weitreichend sind. Diese Maßnahmen sollten als Ultima Ratio definiert werden. Es sollten eigene Leitlinien erlassen werden, die speziell nichtfinanzielle Geschäftsmodelle berücksichtigen.
Wirtschaftskammer Österreich	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree,	Die Wirtschaftskammer Österreich sieht hier Anpassungsbedarf für den Nicht-Finanzsektor: periodische Strafzahlungen sollten nur dann angewendet werden, wenn mildere Maßnahmen nicht ausreichen. Zudem müssen Kriterien und methodische Vorgaben stärker auf den administrativen und finanziellen Rahmen kleinerer Unternehmen abgestimmt sein. Auch hier ist eine ausdrückliche Verankerung des Verhältnismäßigkeitsgrundsatzes notwendig.

Name of the Organisation	Question	Answer
	please explain your reasoning.	
Wirtschaftskammer Österreich	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Periodische Strafzahlungen dürfen nur angewendet werden, wenn mildere Maßnahmen nicht ausreichen. Die Methode muss klarer definieren, wie die Höhe im Verhältnis zur Größe und Leistungsfähigkeit kleiner Unternehmen festgelegt wird. Die Fristen und Anforderungen in Artikel 7 (Feststellung, Anhörung) müssen so gestaltet sein, dass sie auch für KMU administrativ bewältigbar sind. Es sollte auch hier eine explizite Verankerung des Grundsatzes der Verhältnismäßigkeit erfolgen.
SIA E-Laiks	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we generally agree that the proposed list of indicators provides a reasonable basis for classifying the severity of breaches in the non-financial sector. The indicators appear proportionate and allow supervisors to assess the impact, duration, and systemic relevance of a breach. However, it would be beneficial to ensure sufficient flexibility so that competent authorities can consider the specific operational context of different non-financial entities.
SIA E-Laiks	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting	Yes, the proposed criteria appear appropriate for determining the level of pecuniary sanctions in the non-financial sector. They provide a balanced framework that takes into account factors such as the gravity and duration of the breach, the degree of responsibility, and any mitigating actions taken by the entity. These criteria should help ensure proportionality and consistency in supervisory decisions.

Name of the Organisation	Question	Answer
	up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
SIA E-Laiks	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree. Considering the financial strength of the responsible person helps ensure that sanctions remain proportionate and effective
SIA E-Laiks	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under	Yes, we agree. The proposed criteria provide a clear framework for supervisors when applying administrative measures in the non-financial sector.

Name of the Organisation	Question	Answer
	Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
SIA E-Laiks	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree. The proposed methodology seems appropriate and can help ensure timely compliance with supervisory requirements.
The Norwegian Gambling and Foundation Authority (Lotteritilsynet)	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree that the proposed indicators are suitable for the non-financial sector.
The Norwegian Gambling and	QUESTION 2: Do you agree that the	Yes, we agree that the proposed criteria are suitable for the non-financial sector.

Name of the Organisation	Question	Answer
Foundation Authority (Lotteritilsynet)	proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
The Norwegian Gambling and Foundation Authority (Lotteritilsynet)	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we find the proposition applicable for the non-financial sector. We have earlier used similar consideration when setting the level of pecuniary sanctions.
The Norwegian Gambling and Foundation	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when	Yes, we agree with the proposed criteria.

Name of the Organisation	Question	Answer
Authority (Lotteritilsynet)	applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
The Norwegian Gambling and Foundation Authority (Lotteritilsynet)	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	We agree with the proposed methodology for imposing periodic penalty payments and only have a few comments: 1) We can report that we are already accustomed to using periodic penalty payments in our work as Gambling Authority (not only in AML supervision, but also in our regular gambling-related supervisory tasks). We use it as an instrument to ensure compliance with orders to remedy unlawful conditions. Our experience with using PePP shows that this is an effective tool that significantly increases the likelihood that supervised entities comply with our orders. 2) We have one question regarding the draft that we are unsure whether has been considered. It concerns whether the RTS should contain guidance on the use of periodic penalty payments in combination with other measures. 3) We would also like to raise the question of whether the RTS should include guidance on criteria and methodology for situations where a subject both receives “normal” pecuniary sanctions and PePP at the same time. a. We have used a combination of administrative fine and pecuniary sanctions (our national equivalent of PePP) in the same case against Norsk Rikstoto (the national betting operator for horse betting). They received a fine for the most serious breaches, while they received order for correction on the less severe breaches. For one breach, they received both a fine and pecuniary sanctions. In the case that the operator doesn’t comply with the order for correction within a set date, they will receive pecuniary sanctions.

Name of the Organisation	Question	Answer
		b. Under our national law and the ECHR, an administrative fine is considered a criminal sanction, while pecuniary sanctions are not. The combination of administrative fines and pecuniary sanctions is therefore not considered double punishment.
Wirtschaftsprüferkammer	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The list of indicators is also generally suitable for the non-financial sector.
Wirtschaftsprüferkammer	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The list of criteria to be taken into account when determining the amount of fines under Article 4 of the proposed draft RTS is, in principle, also appropriate for the non-financial sector.

Name of the Organisation	Question	Answer
Wirtschaftsprüferkammer	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We agree with the statement in principle. When determining fines for natural persons (Article 4(5) of the draft), it should also be possible to estimate financial capacity/income. This is because income may not be disclosed in fine proceedings.
Wirtschaftsprüferkammer	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	The proposed criteria are fundamentally appropriate.
Wirtschaftsprüferkammer	QUESTION 5: Do you agree that the proposed methodology	As we have not needed to use penalty payments in our practice to date and therefore have no experience in this area, we are unable to make any valid statement on this matter.

Name of the Organisation	Question	Answer
	for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	
Nasdaq	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	This submission is provided from the perspective of a Central Securities Depository (CSD) authorised under Regulation (EU) No 909/2014 (CSDR), not offering the banking-type ancillary services listed in Annex C of CSDR. CSDs are financial market infrastructures providing notary services, central maintenance of securities accounts at top-tier level, and securities settlement, and are subject to comprehensive prudential, governance and operational oversight at Union and national level. In reviewing the draft Regulatory Technical Standards (RTS) under Article 53(10) of Directive (EU) 2024/1640, we note that CSDs were not directly involved in the earlier EBA led consultation process that informed the development of the draft RTS, reflecting the fact that CSDs do not fall within the EBA's institutional remit. At the same time, CSDs are identified as financial institutions and will become obliged entities under the EU AML/CFT framework pursuant to the AML Regulation, with effect from 10 July 2027. Against this background, we observe that the consultation paper, draft RTS and accompanying impact assessment do not explicitly consider the specific position of CSDs as obliged entities. While the RTS is intended to apply horizontally across sectors, the absence of a reference to financial market infrastructures (FMIs) may make it more difficult to assess how certain indicators and enforcement tools are expected to apply to CSDs, whose business models differ significantly from both customer facing financial institutions and non financial obliged entities. In light of AMLA's objective of promoting harmonisation and a level playing field, we consider that further clarification on the application of the draft RTS to FMIs such as CSDs would enhance legal certainty, proportionality and effective implementation. We generally agree that the indicators listed in Article 1 are relevant across both financial and non financial sectors. However, given that CSDs will become obliged entities only from 2027 and were not involved in the earlier consultation process, we consider that the application of these indicators should explicitly reflect the

Name of the Organisation	Question	Answer
		situation of newly obliged entities. In particular, issues arising during the initial phase of AML Regulation implementation, where linked to the adaptation of AML/CFT frameworks, should be addressed with a strong focus on remediation rather than sanctioning. To support this approach and ensure a genuine level playing field, we suggest that the RTS explicitly recognises newly included obliged entities as a mitigating factor when assessing the gravity of potential breaches. This could include criteria allowing supervisors to attribute a lower level of gravity or prioritise corrective measures where good faith efforts to implement new obligations are demonstrated and no intentional or systematic deficiencies are identified. We also seek clarification on the application of certain indicators to systemically important FMIs, in particular CSDs: • Impact indicators (Article 1(d) and (e)) should reflect that CSDs' client base consists primarily of large regulated intermediaries rather than retail customers, and that "number of customers affected" or "impact on products or services" should be interpreted proportionately. • Structural failures (Article 1(h)) require clarification in the CSD context, where AML/CFT frameworks may rely on participant level due diligence in intermediated and cross border securities chains. Clear guidance on what constitutes a "material" structural failure would support consistent supervisory expectations. • Indicators (g) and (j) relating to market integrity and financial stability should take into account FMI specific risk frameworks and CSDs' limited access to transactional or end customer data. Where a CSD lacked the information or mandate to identify potential criminal activity, the attributed gravity should be adjusted accordingly. • Article 2(6)–(7) escalates breach severity based on "significant" or "very significant" impact. Given the inherently high volume and systemic nature of CSD operations, supervisors should apply impact criteria proportionately, ensuring that transaction volumes alone do not automatically escalate AML breach categories.
Nasdaq	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of	We agree that the criteria are broadly applicable. However, we propose to consider proportionate application of: • Financial strength (Article 4(5)) - CSDs are subject to prudential, operational resilience, and recovery planning requirements under CSDR. The level of pecuniary sanctions applicable should not exclude required capital buffers or liquidity reserves CSD has to retain and that are critical for market stability. • Benefit derived (Article 4(3)(d)) - CSDs operate utility-like infrastructures and typically do not financially

Name of the Organisation	Question	Answer
	pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	benefit from AML breaches; thus this criterion should explicitly acknowledge neutral or negative incentive structures for FMIs. • The CSD also calls to consider including mitigating criteria for those cases in which Member State national law creates a potential conflict on termination and suspension according to AMLR article 21. It would not be proportionate to sanction an entity which could not refuse providing the services and did not have an option to suspend or terminate the relationship according to Member State national law (even if the national law was incorrectly implementing EU law).
Nasdaq	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	We agree that the criteria are applicable. At the same time, for FMIs such as CSDs, financial strength metrics should be interpreted in a manner that does not inadvertently reduce financial resilience required under other EU frameworks (e.g., CSDR). Supervisors should consider FMI systemic relevance when applying such criteria.
Nasdaq	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the	We broadly agree with the criteria, but would like to emphasize that CSDs perform functions that are critical to market functioning and financial stability. Restrictions on activities, changes to governance structures or withdrawal of authorisation may have effects extending beyond the individual entity and across the markets and jurisdictions. To this end, we recommend: • Supervisors should conduct a market impact assessment before restricting CSD business, suspending authorisation, or imposing governance changes, given the systemic role of FMIs. • Clarifying how “structural failure” (Article 5(3)(d)) relates to CSD specific AML framework that may rely on other obliged entities in ensuring proportionate evaluation.

Name of the Organisation	Question	Answer
	proposed draft RTS? If you do not agree, please explain your reasoning.	
Nasdaq	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	We agree with the methodology in principle. However, CSDs operate complex infrastructures requiring extended implementation cycles for system level changes. Therefore: • Supervisors should explicitly recognise legitimate implementation timelines for large scale remediation measures. • Periodic penalty payments should reflect the operational reality that technical changes to core settlement systems or participant onboarding frameworks may require several months or longer.
ZAD Allianz Bulgaria Zhivot	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree.
ZAD Allianz Bulgaria Zhivot	QUESTION 2: Do you agree that the proposed list of criteria	Yes, we agree.

Name of the Organisation	Question	Answer
	to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
ZAD Allianz Bulgaria Zhivot	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree.
ZAD Allianz Bulgaria Zhivot	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	Yes, we agree.

Name of the Organisation	Question	Answer
	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
ZAD Allianz Bulgaria Zhivot	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes, we agree.
European Gaming and Betting Association	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The gambling sector welcomes a harmonised framework for assessing the gravity of AML/CFT breaches. However, some indicators may not fully reflect the specificities of non-financial sectors, particularly gambling. The observations below aim to ensure the framework is applied effectively and proportionately to the actual risk profile of gaming operators. Paragraph (i) states that competent authorities should consider “the actual or potential impact of the breach on the financial viability of the obliged entity or the group.” Clarification is needed on application. It is unclear whether “impact” includes positive and negative effects and how authorities will avoid double counting the same breach. A breach could theoretically produce a positive financial effect (e.g. avoided costs). Clarification is needed whether such unintended benefits would be treated as aggravating factors even where breaches were minor or inadvertent. Conversely, where a breach already caused negative financial consequences (e.g. operational disruption), assessing gravity again based on financial viability could penalise the entity twice. This is particularly relevant where breaches were unintentional and promptly remediated. Proportionality should ensure entities are not subject to cumulative

Name of the Organisation	Question	Answer
		consequences from the same breach. The methodology for assessing “potential” impact should also be clarified as it may be subjective. Financial viability impact should be assessed once only and any benefit derived should require quantification and a clear causal link. Guidance or examples would support consistent application across Member States. Under Article 1(b), gambling operators operate in volume-driven models where repetition of breaches is structurally more likely than in many sectors. This could result in gambling operators more easily meeting the repetition indicator and receiving disproportionate breach assessments. The distinction between “repetition of the breach” (Art.1(b)) and “systematic nature of the breach” (Art.1(k)) remains unclear and appears duplicative. Definitions could clarify the difference: repetition refers to the same breach recurring after remediation deadlines or management notification; systematic refers to failures caused by control, design or governance deficiencies affecting multiple processes or business units. On Article 1(d)(i), assessing impact at group level may disproportionately affect larger cross-border groups. “Group-level impact” should require demonstrable cross-entity propagation, facilitation of criminal activity should require a clear causal link between the breach and the criminal outcome, while indicators of systemic financial impact should reflect the operator’s actual market relevance. Under Article 1(d)(ii), ML/TF risk in gambling varies across products and payment channels; gravity assessments should reflect actual risk exposure rather than applying uniform criteria across heterogeneous non-financial activities. On Article 1(d)(iii), the approximate number of customers affected may not be a reliable indicator in retail gaming, where determining affected individuals may be structurally difficult. Customer-count indicators should therefore be risk-weighted to reflect exposure and materiality, particularly for operators with large online customer bases where scale alone does not equate to severity. On Article 1(h), clarification would help ensure “material structural failure” refers to systemic inability to mitigate ML/TF risks rather than temporary operational incidents or legitimate calibration choices within risk-based frameworks. This may arise when newly acquired entities are integrated into a group and a transitional period is required to uplift controls. In outsourced controls (e.g. sanctions, PEP or adverse media screening), it should also be distinguished whether issues stem from vendor outages with rapid containment and compensating controls or from inadequate oversight or flawed design. On Article 1(j), indicators relating to integrity, transparency and security of the financial system, financial stability or orderly functioning of financial markets require careful consideration when applied to gaming operators. The sector has only marginal and indirect exposure to the financial system compared with financial institutions. Applying criteria designed for entities with direct financial-market roles could therefore lead to disproportionate outcomes. Clarification is needed on how “impact on the financial

Name of the Organisation	Question	Answer
		markets or financial system” should be interpreted for non-financial sectors such as gambling. As assessments of potential impact may be speculative, gravity should primarily consider the actual impact and materiality of the breach during the period in which it manifested. On Article 2(4), when defining applicable time periods ambiguous terms such as “short period of time” should be avoided as they risk divergent national interpretation. More prescriptive definitions are needed.
European Gaming and Betting Association	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	The gambling sector recognises the importance of a structured and consistent approach to calibrating pecuniary sanctions. The observations below highlight aspects of the proposed criteria that may require refinement to ensure proportionate and effective application to gambling operators. With reference to Article 4(2)(a), it is unclear how quickly a breach must be brought to the supervisor’s attention to mitigate sanctions. Clarification is needed, noting that this can only reasonably be calculated from the moment the breach is identified through internal investigation and review processes within the operator. With reference to Article 4(3)(c), clearer differentiation is required between breaches resulting from deliberate misconduct or negligence and those arising from genuine operational or human error. This would reinforce proportionality and legal certainty and ensure sanctions are commensurate with the root cause of the breach. Regarding Article 4(3)(d), cooperation, remedial action, intentionality, benefit derived and previous breaches are relevant factors. However, “benefit derived” should be quantifiable and causally linked to the breach rather than speculative, and should demonstrate unjust enrichment rather than normal business activity. As gambling operators operate high-volume businesses, transaction volume alone should not increase sanction severity without demonstrated and quantified weaknesses in the AML control framework that result in substantiated ML/TF exposure. AMLA should also explicitly account for circumstances warranting reduced sanctions, particularly early self-reporting and timely remediation following agreement of the breach between the operator and supervisory authority. Such an approach would incentivise proportionate risk reduction and strengthen supervisory outcomes. Regarding Article 4(3)(f), clarification is needed on the geographical and institutional scope of information used when assessing previous or repeated breaches and sanctions. It should be specified whether competent authorities will rely on sanctions imposed at EU level or only those imposed nationally by Member States. Where the obliged entity forms part of a global corporate group operating in EU and non-EU jurisdictions, it is also important to define the relevant group perimeter to ensure sanction proportionality. With reference to Paragraph 5, which requires supervisors to consider the financial strength of legal persons, including total annual turnover, this metric may distort the financial position of gambling operators. In gambling, turnover may include the total amount wagered by customers, including

Name of the Organisation	Question	Answer
		funds that do not constitute revenue, profit or available capital. Consequently, total annual turnover may be significantly higher than the operator's gross gambling revenue (GGR) or actual financial standing. Reliance on this metric could therefore overstate financial capacity and result in disproportionate sanctions. For example, in slot machines turnover represents the full amount wagered (100% of bets placed), while GGR reflects actual operator income calculated as wagers minus winnings returned to players. With a return-to-player (RTP) of 92%, players receive 92% of wagers and the operator retains 8% as GGR. Turnover therefore reflects betting volume, while GGR reflects the operator's actual earnings before expenses. To ensure proportionate and sector-appropriate application, supervisors should allow or require alternative metrics such as GGR or other sector-specific indicators that better reflect the operator's financial position. Alternatively, supervisors should receive clear guidance on interpreting "turnover" in sectors where this metric does not align with sector-specific indicators. This would avoid disproportionate outcomes and ensure consistent interpretation across Member States. Finally, in high-volume environments such as gambling, where minor operational deviations may affect large numbers of transactions or customers, sanction calibration should focus on the materiality of the AML/CFT risk identified rather than transaction volume alone.
European Gaming and Betting Association	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	The gambling sector acknowledges that the financial strength of the responsible party represents a well-established criterion within the AML/CFT legislative framework for ensuring that sanctions are proportionate, effective and dissuasive. When applied consistently and in line with the principle of proportionality, this criterion allows supervisory authorities to appropriately calibrate sanctions, taking into account the specific characteristics of non-financial obliged entities. As articulated above, it remains critical to clearly define group parameters to ensure that in cases where an entity belongs to a group, a proportionate approach is taken regarding financial penalties being issued to the legal entity. As referenced above, the actual impact of the breach, and the sanction imposed need to consider the risk that has manifested in that particular legal entity only rather than in the context of the wider / entire group. Paragraph 5 provides that, when setting pecuniary sanctions, supervisors shall take into account the financial strength of legal persons, including, among other indicators, the total annual turnover of the company. As referenced above, in the case of gambling operators, using total annual turnover as an indicator of financial strength presents a significant distortion resulting in potential pecuniary sanctions that are disproportionate to the company's true financial capacity.

Name of the Organisation	Question	Answer
European Gaming and Betting Association	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	The gambling sector considers the proposed criteria for the application of administrative measures to be broadly aligned with the principles of proportionality and effectiveness. The following observations are submitted to highlight specific practical aspects that may warrant further attention. With reference to Article 7, point 2, while a four-week timeframe for responding may be adequate for individual obliged entities, it is likely that for larger groups or groups operating within complex governance structures such a limited timeframe may not be viable. In such cases, the ability to provide a complete and accurate response within the prescribed timeframe may be unduly restrictive and likely to penalise larger operators. Provisions should be made for effective applications of extensions when so justified in cases of larger /cross border Groups. In addition, the wording ‘up to four weeks’ introduces ambiguity and clarity should be given to a standardised minimum which should be clearly articulated to ensure consistency in application and interpretation across member states. A further consideration arises in relation to the sequencing of administrative measures and financial sanctions. Should financial sanctions be applied alongside business restrictions then considerations should be given to how such restrictions would impact the financial capacity of an operator. In addition, given the potentially existential impact of licence suspension and /or withdrawals, measures should be applied proportionately and, where possible, sequentially. Withdrawal or suspension should be clearly tied not only to Category 3 or 4 classification but also to evidence of structural and /or material failure and the operators inability to mitigate risks through lesser measures. AMLA should encourage coordination between AML supervisors and sectoral gambling regulators before imposing measures that materially affect market viability and licensing status ensuring such measures target demonstrable systemic AML control deficiencies or material ML/TF risk exposure, rather than penalising through the lens of operational scale.
European Gaming and Betting Association	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft	The gambling sector recognises the importance of a clear, consistent and predictable methodology for the imposition of periodic penalty payments, as this contributes to legal certainty and effective enforcement. At the same time, the sector considers that the proposed framework, as currently articulated, is sufficiently clear to ensure a proportionate and coherent application to non-financial obliged entities, taking into account their actual money laundering risk profiles and how ML / TF risk manifests within their environment. A consideration does arise, in ensuring that the implementation of periodic penalty payments for the duration of a breach need to be commensurate with how long implementation of possible solutions (where tech

Name of the Organisation	Question	Answer
	RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	development is required) may take in order to be reasonable and proportionate; for example, something which cannot reasonably be put in place successfully for several months incurring a daily penalty would seem unreasonable. For complex technology-driven remediation, supervisors should set realistic remediation milestones and ensure that PePPs align with clearly measurable periods of elected non-compliance, rather than technical implementation delays and restrictions. In cross-border groups with centralised AML systems, supervisory coordination is necessary to avoid duplicative penalty payments for the same deficiency as articulated above. With reference to Article 10, the proposed five-year limitation period may be excessively long and create prolonged legal uncertainty. Consideration could be given to a more proportionate timeframe aligned with the corrective purpose of PePPs which may, for example, be for a period up to a maximum of 2 years alongside the rationale to support such a timeframe thus providing legal certainty. In summary, while the proposal is broadly suitable for online gambling regulators, clarification is needed on some points. Especially as the current wording leaves it open for interpretation by different supervisors, which runs counter to the objective of supervisory convergence. AMLA must also be considerate to market viability and stability considerations and particularly in regulated consumer-facing sectors. Disproportionate licence-level measures and restrictions may drive consumers toward illegal gambling operators outside EU AML safeguards. Proportional application supports both AML objectives and market integrity.
Federal Ministry of Justice	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you	Although some of the listed indicators, such as the actual or potential impact of the breach on the integrity, transparency and security of the financial system or financial stability of a Member State or the Union as a whole and on the orderly functioning of the financial markets (Article 1, Indicator (j)), may have limited relevance in the area of lawyers and notaries, they are largely applicable to these areas of the non-financial sector. To cover also the characteristics of the non-financial sector in the Text of Article 1, Indicator (j), we propose to add the following provision (iii): "on the integrity, transparency and security of the affected non-financial sector of a Member State or of the Union as a whole, the public trust in the profession or on the stability and orderly functioning of non-financial markets of a Member State or of the Union as a whole;"

Name of the Organisation	Question	Answer
	do not agree, please explain your reasoning.	In order to give supervisory authorities the necessary flexibility in individual cases, the clarification is important and supported, that the listed indicators shall be taken into account only " to the extent that they apply". In this context also the proposed general indicator (I) ("any other indicator identified by the supervisors") is essential, in order to ensure a sufficient flexibility for competent authorities when setting up the level of pecuniary sanctions, which in Austria in the area of lawyers and notaries are based on a long-established professional legal framework und case law. Accordingly, in Austria pecuniary sanctions, such as disciplinary sanctions in general, have to be determined by the competent authorities on the basis of the specific circumstances of each individual case. In addition to the income and financial circumstances of the specific person - maintenance obligations must be taken into account here too – the decisive factors for the amount of a pecuniary sanction are foremost the level of wrongfulness of the breach and, based on this, the level of the individual culpability. When determining the level of gravity of breaches by classifying them into the four categories and when setting the level of pecuniary sanctions, in addition to the size, structure, business model and financial strength of the obliged entity, supervisors shall therefore also take into account the degree of responsibility and intention or negligence of a natural person held (jointly) responsible for the breach. These peculiarities of the non-financial sector should also be included in Recital 2 of the RTS.
Federal Ministry of Justice	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Yes.

Name of the Organisation	Question	Answer
Federal Ministry of Justice	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes. However it should be noted that - as pointed out under point 1. - in addition to the financial strength of the specific person the decisive factors for the amount of a pecuniary sanction in the area of lawyers and notaries in Austria are first of all the level of wrongfulness of the breach and, based on this, the level of the individual culpability.
Federal Ministry of Justice	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Yes.
Federal Ministry of Justice	QUESTION 5: Do you agree that the proposed methodology	Yes.

Name of the Organisation	Question	Answer
	for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	
Consiglio Nazionale del Notariato	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Posizione: Non d'accordo 1. Analisi tecnica 1.1 Premessa generale L'elenco degli indicatori di gravità può, in linea di principio, applicarsi anche al settore non finanziario. Tuttavia, con specifico riferimento alla professione notarile, taluni indicatori - e in particolare quelli relativi alla "ripetizione", alla "durata" e al "material failure" - richiedono un'interpretazione restrittiva e coerente con: • la natura pubblicistica della funzione notarile; • l'assenza di esposizione sistemica; • la struttura episodica della prestazione; • il principio di proporzionalità; • il principio di legalità in materia sanzionatoria Un'applicazione automatica dei criteri concepiti per il settore finanziario determinerebbe un'ingiustificata assimilazione tra modelli organizzativi strutturalmente differenti. 1.2 Diversità strutturale tra settore finanziario e notariato Il modello sotteso al concetto di "material failure" presuppone caratteristiche proprie di banche e intermediari finanziari, quali sistemi organizzativi complessi, monitoraggio continuativo e potenziale impatto sistemico. L'attività notarile, al contrario, non consiste in intermediazione finanziaria, non implica monitoraggio continuativo di rapporti economici e si fonda su valutazioni caso per caso. L'eventuale violazione è fisiologicamente circoscritta alla singola prestazione e non presenta la dimensione sistemica presupposta dalla nozione di "material failure". 1.3 Interpretazione degli indicatori di "ripetizione" e "durata"

Name of the Organisation	Question	Answer
		La prestazione notarile è caratterizzata da un rapporto con il cliente tipicamente episodico e istantaneo. Il notaio esegue un numero elevato di adeguate verifiche su clienti sempre diversi, senza disporre di un profilo storico della loro operatività. Di conseguenza, la “ripetizione” di un errore procedurale su atti diversi e non collegati non può essere equiparata a un fallimento sistemico e la “durata” di una violazione non può essere valutata secondo parametri propri di rapporti continuativi. È necessario distinguere tra una pluralità di errori isolati e una carenza strutturale dell'organizzazione, poiché solo quest'ultima potrebbe assumere rilevanza. 1.4 Principio di legalità e definizione restrittiva di “material failure”. L'indicatore di cui all'articolo 1(h) della bozza, relativo al “material failure” delle procedure interne, deve essere definito in modo tassativo e restrittivo, in ossequio al principio di legalità e prevedibilità della sanzione. Si ritiene che il “material failure” possa configurarsi, nel settore notarile, esclusivamente in presenza di un'assenza totale delle procedure AML obbligatorie o di una manifesta e macroscopica inidoneità strutturale delle stesse. Un errore isolato o una carenza parziale non possono integrare un “material failure” dell'intero sistema. 1.5 Natura pubblicistica della funzione notarile e obbligo di ricezione dell'atto Il notaio esercita una funzione pubblica di controllo preventivo di legalità e, nel sistema italiano, è soggetto all'obbligo legale di ricevere l'atto. La normativa antiriciclaggio prevede una disciplina specifica che consente la ricezione dell'atto con eventuale successiva segnalazione. Questa differenza strutturale rispetto al settore finanziario, che può interrompere un'operazione, rende inappropriato applicare ai notai parametri di gravità fondati su logiche di “business interruption”. 1.6 Assenza di esposizione sistemica e rilievo sulla classificazione nelle Categorie 3 e 4 L'attività notarile è individuale e frammentata, senza esposizione a rischio sistemico comparabile a quello degli intermediari finanziari. La classificazione di una violazione nelle Categorie 3 o 4 comporta automaticamente la qualifica di violazione “grave, ripetuta o sistematica”. Ciò impone una cautela assoluta nella categorizzazione delle condotte nel settore notarile per evitare effetti sanzionatori sproporzionati. 1.7 Conclusione Si esprime l'auspicio che sia esplicitamente riconosciuta la necessità di una declinazione settoriale per il notariato, che il concetto di “material failure” sia definito restrittivamente e che gli indicatori di “ripetizione” e “durata” siano interpretati alla luce della natura episodica della prestazione notarile, nel rigoroso rispetto del principio di proporzionalità.

Name of the Organisation	Question	Answer
Consiglio Nazionale del Notariato	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Posizione: Non d'accordo Argomentazione Tecnica: Il criterio della cooperazione deve essere bilanciato con l'obbligo di ministero. Il notaio che agisce nel rispetto della pubblica fede non può essere sanzionato se, nonostante l'applicazione della dovuta diligenza documentale, viene indotto in errore da parti che occultano informazioni accessibili solo tramite poteri di polizia o indagine bancaria. Asimmetria informativa e grado di colpa: Il notaio non ha accesso a informazioni finanziarie riservate né dispone di poteri investigativi. La sua conoscenza si basa sui dati forniti dalle parti. Nella valutazione del "grado di responsabilità" e dell'"intensità dell'elemento soggettivo", si deve tenere conto di questa asimmetria. La responsabilità del notaio non può estendersi a fatti dolosamente occultati dal cliente e non rilevabili con l'ordinaria diligenza professionale. Deve essere valorizzato il principio della buona fede. Cooperazione con le autorità e obbligo di ministero: Il criterio della "cooperazione" deve essere bilanciato con l'obbligo di ministero (art. 27 Legge Notarile), che vincola il notaio a ricevere gli atti richiesti. A differenza di altri soggetti obbligati, il notaio non ha la facoltà di interrompere discrezionalmente un rapporto d'affari. La sua collaborazione non può tradursi in un'attività di indagine che snaturerebbe la sua funzione di terzo imparziale. Il Principio di Proporzionalità come Limite all'Azione Regolamentare dell'AMLA È fondamentale inquadrare il vincolo giuridico a cui l'azione dell'AMLA, e in particolare l'adozione degli Standard Tecnici Regolamentari (RTS), è soggetta: il principio di proporzionalità. Sancito dall'articolo 5, paragrafo 4, del Trattato sull'Unione Europea (TUE), tale principio stabilisce che "il contenuto e la forma dell'azione dell'Unione non devono eccedere quanto necessario per il conseguimento degli obiettivi dei Trattati". La Corte di Giustizia dell'Unione Europea (CGUE) ha consolidato un test tripartito per valutare il rispetto di tale principio, che si articola nella verifica di: • Idoneità: La misura deve essere oggettivamente idonea a conseguire l'obiettivo. • Necessità: Deve essere scelta la misura meno restrittiva tra quelle idonee. • Proporzionalità in senso stretto: I sacrifici imposti ai singoli non devono essere sproporzionati rispetto ai benefici per l'interesse pubblico. Un vizio di proporzionalità potrebbe configurarsi qualora le RTS imponessero obblighi che, pur idonei, risultassero non necessari o eccessivamente gravosi, ad esempio imponendo obblighi identici a grandi

Name of the Organisation	Question	Answer
		intermediari e piccoli studi professionali, o comprimendo diritti fondamentali come la libertà d'impresa. Sebbene la CGUE riconosca un ampio margine di discrezionalità tecnica, il controllo può portare all'annullamento di una norma "manifestamente inappropriata". Questo principio è la chiave per applicare correttamente il nuovo quadro normativo al settore notarile.
Consiglio Nazionale del Notariato	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Posizione: Non d'accordo. Argomentazione Tecnica: Esiste una differenza ontologica tra il fatturato di un ente creditizio e il reddito professionale di un notaio. Mentre il primo rappresenta la "potenza di fuoco" finanziaria di un'organizzazione, il secondo è un reddito di natura personale e professionale. Parametrare le sanzioni sulla "forza finanziaria" personale del professionista viola il principio di proporzionalità, rischiando di compromettere la sostenibilità dello studio notarile. Differenza ontologica tra fatturato e reddito professionale: Il fatturato del notaio include somme ingenti incassate per conto dello Stato a titolo di imposte, che non costituiscono sua ricchezza. Parametrare la sanzione sul fatturato sarebbe manifestamente illogico e iniquo. Principio di proporzionalità e sostenibilità economica: Ancorare la sanzione alla "forza finanziaria" complessiva della persona fisica, includendo il patrimonio personale, viola il principio di proporzionalità. La sanzione deve colpire la condotta illecita nell'ambito professionale, non compromettere la sostenibilità economica dello studio e la capacità finanziaria personale. Proposta di un criterio alternativo: Si propone che per i professionisti persone fisiche, il parametro sia il reddito professionale imponibile. È indispensabile introdurre un limite massimo, suggerito in una misura non superiore al 10% del reddito professionale imponibile dell'anno in cui è accertata la violazione. . Un simile approccio, già presente in altri settori sanzionatori, garantirebbe proporzionalità ed equità, evitando sanzioni eccessivamente afflittive, che possono rendere inefficiente il sistema con condotte e segnalazioni di tipo difensivo o prudenziale, più volte lamentate dall'UIF La Peculiarità della Prestazione Notarile: Il Paradosso tra Obbligo di Legge e Vigilanza La funzione notarile si distingue da quella degli intermediari finanziari per la sua natura di presidio di legalità a garanzia dello Stato. Il notaio opera in un contesto di "pubblica fede" e la sua attività è l'esercizio di una funzione pubblica delegata. Emerge un contrasto giuridico fondamentale: l'Articolo 27 della Legge Notarile impone al notaio l'"obbligo di

Name of the Organisation	Question	Answer
		ministero", vincolandolo a ricevere gli atti richiesti, salvo manifesta illegalità. Tale obbligo si scontra con i requisiti di Customer Due Diligence (CDD) del framework AMLA. Mentre una banca può fare "de-risking", il notaio non ha la stessa libertà, dovendo garantire parità di trattamento. Dall'analisi si evincono le seguenti limitazioni strutturali: Mancanza di conoscenza storica e "obbligo di prestazione": Il rapporto notarile è intrinsecamente episodico, spesso limitato a un singolo atto, rendendo il "monitoraggio continuo" strutturalmente incompatibile. Asimmetria informativa finanziaria: Il notaio non ha strumenti di indagine sui flussi finanziari del cliente e dipende dalle informazioni fornite dalle parti. Status di Pubblico Ufficiale e Terzietà: Il notaio è un terzo imparziale per lo Stato; la sua collaborazione non deve trasformarsi in una funzione di delazione proattiva che ne snaturi la terzietà.
Consiglio Nazionale del Notariato	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Posizione: Non d'accordo Argomentazione Tecnica: La misura della "revoca dell'autorizzazione" (Art. 5.3.f) è incompatibile con lo status del notaio italiano, la cui nomina è di natura statale a seguito di concorso pubblico. Incompatibilità della "revoca dell'autorizzazione": Il notaio non è un operatore autorizzato, ma un pubblico ufficiale nominato dallo Stato. La sua rimozione (destituzione) è una sanzione disciplinare di massima gravità, riservata a specifici organi giurisdizionali nazionali (CO.RE.DI., Corte d'Appello, Cassazione) e al Ministero della Giustizia. Necessità di coordinamento con gli organi disciplinari nazionali: Qualsiasi misura che incida sullo status professionale del notaio (sospensione, interdizione) deve essere filtrata e gestita attraverso i competenti organi disciplinari nazionali, come le Commissioni Regionali di Disciplina (CO.RE.DI.). Il "Giudizio di Vigilanza" menzionato nella bozza di RTS deve garantire che le misure non derogino ai principi dell'ordinamento notarile. Proposta Alternativa: Qualsiasi misura amministrativa di tale gravità deve essere filtrata attraverso gli organi disciplinari nazionali. L'AMLA non può sovrapporsi alle prerogative sovrane dello Stato nella nomina e rimozione dei propri Pubblici Ufficiali. Inquadramento Sistemático e Procedura di Consultazione Il panorama europeo della lotta al riciclaggio (AML/CFT) sta passando da un sistema di direttive frammentate a un "Single Rulebook" armonizzato, con una vigilanza centralizzata coordinata dall'AMLA. Per i notai, questo significa abbandonare prassi nazionali per una supervisione europea con metodologia comune. L'efficacia di

Name of the Organisation	Question	Answer
		tale supervisione dipende dalla capacità dell'AMLA di integrare le peculiarità strutturali dei professionisti indipendenti, garantendo che l'armonizzazione non prescinda dalle basi costitutive della funzione di Pubblico Ufficiale. In questo contesto, si rileva una criticità procedurale. L'art. 49, par. 1, Reg. (UE) 2024/1620 impone ad AMLA di svolgere consultazioni pubbliche aperte prima di sottoporre alla Commissione qualsiasi progetto di RTS. Tuttavia, per i draft RTS sulle sanzioni, la procedura ha visto prima una consultazione dell'EBA (soggetto non rappresentativo dei settori non finanziari) e solo dopo una consultazione AMLA mirata ai soggetti non finanziari, con un termine breve di circa un mese. Questa scelta, sebbene formalmente corretta, crea una disparità di trattamento rispetto ai soggetti finanziari, che hanno avuto più tempo nella fase EBA. Si auspica, anche per il futuro, un'ulteriore interlocuzione per colmare tale disparità.
Consiglio Nazionale del Notariato	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Posizione: Non d'accordo Argomentazione Tecnica: Si ribadisce la natura delle Penalità di Mora (PePP) come compliance tool (strumento di conformità) e non come sanzione punitiva. Per gli studi notarili, le PePP devono essere graduate in base ai tempi tecnici necessari per l'adeguamento, che potrebbe richiedere modifiche organizzative, aggiornamenti software o formazione. Le penalità di mora non devono trasformarsi in sanzioni pecuniarie suntuarie, ma rimanere uno strumento flessibile e proporzionato per promuovere la compliance, evitando di sanzionare ritardi non imputabili a negligenza del professionista. Conclusioni e Raccomandazioni Strategiche L'armonizzazione europea è un obiettivo condivisibile, a patto che non si traduca in una standardizzazione che ignori la funzione pubblica del notaio e violi il principio di proporzionalità. Raccomandazione Finale: Si invita l'AMLA a valorizzare il ruolo del notaio come filtro di legalità e garante della pubblica fede, evitando di imporre obblighi investigativi per i quali il professionista non dispone di basi legali né di poteri d'indagine. Il rigore nella prevenzione del riciclaggio deve restare compatibile con la missione di certezza del diritto affidata ai notai dallo Stato e deve essere attuato nel pieno rispetto del principio di proporzionalità, che impone obblighi necessari e adeguati al rischio effettivo, senza imporre oneri eccessivi.
Fachverband der Immobilien- und Vermögenstreuhänder; Austrian	QUESTION 1: Do you agree that the proposed list of indicators to classify	It can be assumed that the criticality of money laundering and terrorist financing, as well as their impact on the financial system, is lower in the non-financial sector than in the financial sector. Therefore, criteria such as: a. consideration of the size and economic significance of the company, and

Name of the Organisation	Question	Answer
Federal Economic Chamber	the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	b. the question of whether the obliged entity is actually involved in payment flows under current legislation, appear practical and relevant, especially with regard to sanctions against obliged entities in the non-financial sector. From the perspective of the professional association of real estate and asset trustees, these two criteria should be given due consideration in the draft technical regulatory standards on fines, administrative measures, and coercive fines in the non-financial sector.
Fachverband der Immobilien- und Vermögenstreuhänder; Austrian Federal Economic Chamber	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Since Article 4 of the draft RTS lays down further criteria to help supervisory authorities determine the level of fines and decide whether to increase or decrease them, the draft inherently contains both mitigating (Article 4, paragraph 2) and aggravating (Article 4, paragraph 3) criteria, which, in addition to the indicators described above pursuant to Article 1, must be taken into account when setting the level of fines. The mitigating and aggravating grounds mentioned in Article 4 of the draft should apply equally and thus also to obliged entities in the non-financial sector.
Fachverband der Immobilien- und Vermögenstreuhänder; Austrian Federal Economic Chamber	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft	Yes, the financial strength of the responsible legal/natural person should also be taken into account when determining the sentence in the non-financial sector.

Name of the Organisation	Question	Answer
	RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	
Fachverband der Immobilien- und Vermögenstreuhänder; Austrian Federal Economic Chamber	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Yes.
Fachverband der Immobilien- und Vermögenstreuhänder; Austrian Federal Economic Chamber	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes.

Name of the Organisation	Question	Answer
Betway	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	agree
Betway	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	agree
Betway	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural	agree

Name of the Organisation	Question	Answer
	person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	
Betway	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	agree
Betway	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-	agree

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	
FINANCE INCORPORATED LIMITED	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes
FINANCE INCORPORATED LIMITED	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Yes

Name of the Organisation	Question	Answer
FINANCE INCORPORATED LIMITED	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes
FINANCE INCORPORATED LIMITED	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Yes

Name of the Organisation	Question	Answer
FINANCE INCORPORATED LIMITED	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	No, Before imposing penalties, supervisory authorities should assess the Action Plan and request from the entity its completion, fulfilment, finalization, and status report. If the subject person does not honor the commitments set out in the Action Plan, the authority may proceed with the imposition of a penalty. The proposal of the issuing Action plan should apply unless there are significant breaches and where money laundering intention and involvement of the subject person are detected. In addition, Article 7 - Statement of findings and right to be heard, is proposed to be amended as follows: Paragraph 2 and 3 to be reworded as proposed: 2. The statement of findings shall set a time limit of up to four weeks within which the natural or legal person held responsible may make written submissions along with the Action plan in which commitment for correcting findings is included. 3. Supervisor shall not be obliged to take into account written submissions received after the expiry of that time limit for deciding on the periodic penalty payment, unless agreed differently with the entity.
National Police Board of Finland / Gambling Administration	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The proposed list of indicators mostly apply to the gambling sector. What is the purpose of indicator f), since it is not referred to in any of the four categories or any other part of the RTS?
National Police Board of Finland / Gambling Administration	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting	The proposed list of criteria apply to the gambling sector.

Name of the Organisation	Question	Answer
	up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
National Police Board of Finland / Gambling Administration	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	It may prove difficult to find out the financial strength in a reliable way, especially of a natural person, who may be a citizen of another country.
National Police Board of Finland / Gambling Administration	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under	Yes. What is the purpose of indicator f), since it is not referred to in any of the four categories or any other part of the RTS?

Name of the Organisation	Question	Answer
	Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
National Police Board of Finland / Gambling Administration	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes.
Italian Banking Association	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	We would like to highlight the following considerations that are not directly in response to the proper questions for consultation but represents general concerns of the banking sector in relation to the RTS, that we had the chance to represent also in the first round of consultation. In particular: - With reference to Article 1 (l) “any other indicator identified by the supervisors” we highlight the following: considering that the objective of the AML-CFT package is the harmonization of the AML-CFT Rules, we suggest deleting the letter in question as allowing supervisors the faculty to introduce “any other indicators” results in the adoption from national supervisors of different indicators maintaining the local specificities; - With reference to Article 2 of the draft RTS, in relation to the proposed classification of the level of gravity, we note that there are criteria subject to discretion of the national supervisor (e.g. when an impact is moderate according to paragraph 5?).

Name of the Organisation	Question	Answer
		The RTS should define when the impact is considered moderate or significant to avoid potential inconsistencies/deviations of application among national legislations and a potential source of litigation;
Italian Banking Association	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	We would like to highlight the following considerations that are not directly in response to the proper questions for consultation but represents general concerns of the banking sector in relation to the RTS, that we had the chance to represent also in the first round of consultation. - With reference to Article 4 and Article 5 of the draft RTS, we highlight the following. Considering that the objective of the AML-CFT package is the harmonization of the AML-CFT Rules, we suggest deleting “any other criteria” as allowing supervisors the faculty to introduce them results in national supervisors’s adoption of different indicators related to local specificities. Same with regard to Article 4(2) of the draft RTS where there are indicated criteria subject to a discretion of the supervisor: e.g. “quickly and effectively” (lett. a)), “actively and effectively” (lett. a)), “effective and timely” (lett. b)).
Italian Banking Association	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	We would like to highlight the following considerations that are not directly in response to the proper questions for consultation but represents general concerns of the banking sector in relation to the RTS, that we had the chance to represent also in the first round of consultation. - With reference to Article 4 and Article 5 of the draft RTS, we highlight the following. Considering that the objective of the AML-CFT package is the harmonization of the AML-CFT Rules, we suggest deleting “any other criteria” as allowing supervisors the faculty to introduce them results in national supervisors’s adoption of different indicators related to local specificities. Same with regard to Article 4(2) of the draft RTS where there are indicated criteria subject to a discretion of the supervisor: e.g. “quickly and effectively” (lett. a)), “actively and effectively” (lett. a)), “effective and timely” (lett. b)).

Name of the Organisation	Question	Answer
Kennedy Van der Laan	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	The indicators appear to be primarily derived from money-driven situations involving financial transactions, where an undertaking is actually part of the flow of funds. This makes the implementation somewhat artificial in a sector where the services consist of a legal practice, in which there are rules requiring that everyone must, in principle, have access to justice, and where no factual actions are carried out to cause money to actually flow. Article 1c refers to behaviour; however, this does not appear to be standardised. This leaves considerable room for subjective interpretation, whereas this regulation is specifically intended to ensure that all supervisory authorities in all Member States assess situations, including behaviour, in the same way.
Kennedy Van der Laan	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	By formulating open norms, considerable room is left for subjectivity. This is reflected in the criteria containing open norms in Article 4, such as ‘quickly’, ‘effectively’, and ‘complete breach’. There is a lack of timelines, as a result of which the actions to be taken, the required cooperation, etc., may potentially take longer than desirable, or cooperation may get off to a slow start. With regard to sanctions against natural persons, Article 4(5) does not sufficiently clarify that this concerns individuals who are able to exert influence over operations and/or policy, such as those at executive and board level. Nor is it clear whether members of independent supervisory bodies, such as Supervisory Boards and/or Boards of Commissioners, fall within the definition of ‘natural persons’
Kennedy Van der Laan	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural	Article 4(5) sets out a number of basic criteria for the imposition of financial penalties. In doing so, it only takes into account the financial situation of an undertaking. What is missing are basic requirements regarding the actual payment of the fine. To date, the real financial impact of fines is borne by customers and employees: products or services become more expensive and employees are made redundant. Fines are effective when individuals actually feel the impact. For example, when promotions and bonuses are reversed

Name of the Organisation	Question	Answer
	person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	and put on hold for a specified period going forward. There is insufficient attention to addressing remuneration structures and perverse incentives. Article 4(6) briefly addresses the financial capacity of natural persons; however, a definition of ‘capacity’ is lacking. This leads to subjective interpretation. For instance, is there insufficient capacity if the fine results in children having to attend a public school, the family having to sell a villa and a holiday home in order to buy a terraced house, and the household having to make do with only one mid-range car? When does something constitute a primary necessity, and when is it a luxury?
Kennedy Van der Laan	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	By formulating open norms, considerable room is left for subjectivity such as ‘quickly’, ‘effectively’, ‘complete breach’, ‘conduct’ etc.
Kennedy Van der Laan	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-	To date, the real financial impact of fines is borne by customers and employees: products or services become more expensive and employees are made redundant. Fines are effective when individuals actually feel the impact. For example, when promotions and bonuses are reversed and put on hold for a specified period going forward. There is insufficient attention to addressing remuneration structures and perverse incentives.

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	
WKNÖ - Sparte Information und Consulting	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Der Entwurf listet Indikatoren wie die Dauer und Wiederholung des Verstoßes, das Verhalten der verantwortlichen Person, die Auswirkungen auf den Verpflichteten (z.B. auf AML/CFT-Systeme, Kundenanzahl) und die Exposition gegenüber Geldwäsche- und Terrorismusfinanzierungsrisiken auf (Consultation Paper Draft RTS under Article 53(10), Seite 10 Artikel 1 lit a-f). Die Bewertung muss jedoch risikobasiert und verhältnismäßig erfolgen. Es ist unerlässlich, dass die Aufsichtsbehörden den tatsächlichen Risikobeitrag eines Gewerbebetriebes berücksichtigen. Kumulierte kleine Probleme dürfen nicht automatisch zu einer Einstufung als schwerwiegender Verstoß (Kategorie 3 oder 4) führen, wenn sie kein erhöhtes Geldwäscherisiko darstellen, um unverhältnismäßige Konsequenzen für EPU und KMU zu vermeiden.
WKNÖ - Sparte Information und Consulting	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Der Entwurf sieht vor, dass die Höhe der Sanktionen unter Berücksichtigung der Umstände des Art. 53(6) der Richtlinie (EU) 2024/1640 sowie weiterer Kriterien wie Kooperation, Verhalten, aus dem Verstoß gezogener Nutzen, Verluste Dritter und frühere Verstöße festgelegt wird. (Consultation Paper Draft RTS under Article 53(10) (1), Seite 12). Die Verhältnismäßigkeit der Sanktionen ist für den Nicht-Finanzsektor von größter Bedeutung. Die finanzielle Stärke des Unternehmens oder der Person (Artikel 4 Abs 5 und 6) muss als maßgebliches Kriterium zur Milderung von Sanktionen dienen, um die Existenz kleinerer Unternehmen nicht zu gefährden.

Name of the Organisation	Question	Answer
WKNÖ - Sparte Information und Consulting	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Der Entwurf verlangt, dass bei juristischen Personen der Jahresumsatz und relevante Finanzinformationen, bei natürlichen Personen das Jahreseinkommen und andere Einkünfte berücksichtigt werden. (Consultation Paper Draft RTS under Article 53(10) (1), Seite 13) Eine realistische Bewertung der finanziellen Leistungsfähigkeit ist für den von EPU und KMU geprägten Nicht-Finanzsektor, unerlässlich, um existenzbedrohende Sanktionen zu vermeiden und die Wettbewerbsfähigkeit zu erhalten. Der Entwurf verlangt, dass bei juristischen Personen der Jahresumsatz und relevante Finanzinformationen, bei natürlichen Personen das Jahreseinkommen und andere Einkünfte berücksichtigt werden. (Consultation Paper Draft RTS under Article 53(10) (1), Seite 13) Eine realistische Bewertung der finanziellen Leistungsfähigkeit ist für den von EPU und KMU geprägten Nicht-Finanzsektor, unerlässlich, um existenzbedrohende Sanktionen zu vermeiden und die Wettbewerbsfähigkeit zu erhalten.
WKNÖ - Sparte Information und Consulting	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Der Entwurf sieht vor, dass Maßnahmen wie die Beschränkung des Geschäftsbetriebs oder der Entzug der Genehmigung bei Verstößen der Kategorie drei oder vier angewendet werden können, wenn sie geeignet sind, tatsächliche oder potenzielle Auswirkungen zu mindern. (Consultation Paper Draft RTS under Article 53(10) (1), Seite 14). Einschneidende Maßnahmen wie die Beschränkung des Geschäftsbetriebs oder der Entzug der Genehmigung sollten jedoch nur bei tatsächlich schwerwiegenden Verstößen und als letztes Mittel angewendet werden. Die Definition von "schwerwiegend" muss den Besonderheiten des Nicht-Finanzsektors Rechnung tragen und den tatsächlichen Risikobeitrag des Gewerbebetriebes berücksichtigen, um unverhältnismäßige Konsequenzen aus kumulierten kleinen Fehlern zu vermeiden.

Name of the Organisation	Question	Answer
WKNÖ - Sparte Information und Consulting	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Auch hier ist die Verhältnismäßigkeit der Höhe und Frequenz der Zwangsgelder entscheidend. Die finanzielle Leistungsfähigkeit des Gewerbetreibenden und die Gründe für die Nichteinhaltung (Artikel 8 Abs 3) müssen berücksichtigt werden, um eine übermäßige Belastung zu vermeiden und realistische Fristen für die Behebung von Mängeln zu gewährleisten. Dies ist für alle Gewerbetreibenden von Bedeutung, um sicherzustellen, dass Zwangsgelder als Anreiz zur Compliance dienen und nicht zu einer unverhältnismäßigen Bestrafung führen.
anonymous_3	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Dr Branislav Hock, Associate Professor in Economic Crime & Compliance, University of Portsmouth I agree that the proposed indicators in Article 1 are, in principle, applicable to the non-financial sector. The horizontal, principle-based approach is sound and preferable to sector-specific fragmentation. However, the indicators as currently framed carry risks that are particularly acute when applied to non-financial obliged entities, and I recommend two targeted supplements. The concerns identified in this response are not exclusive to the non-financial sector — they arise from the structure of the RTS methodology itself. However, they manifest most acutely in the non-financial sector. The non-financial sector application therefore serves as a diagnostic lens for issues that AMLA should consider across the full scope of the RTS. 1. Outcome-oriented gravity indicators for the non-financial sector The Article 1 indicators focus predominantly on procedural dimensions of compliance: duration, repetition, impact on systems and controls, and whether there is a structural failure. Many non-financial obliged entities operate with lighter compliance infrastructures than financial entities. Their AML/CFT obligations are no less important, but their systems and controls are typically less formalised and less amenable to the kind of procedural assessment that the indicators presuppose. The risk is that a gravity classification built around procedural indicators will produce systematically distorted outcomes in the non-financial sector: either classifying breaches as more severe than warranted (because smaller entities inevitably have less elaborate systems, so any deficiency appears "structural" under indicator (h)) or, conversely, classifying breaches as less severe than warranted (because the absence of sophisticated monitoring systems means fewer documented failures to detect). Research into legal endogeneity in compliance-intensive regulatory regimes — the tendency for regulatory standards to be

Name of the Organisation	Question	Answer
		progressively defined by the very compliance industry they regulate — demonstrates that open-textured duties are progressively interpreted through enforcement practice and industry guidance, drifting towards what is documentable and defensible rather than what most effectively disrupts harmful conduct (Hock and David-Barrett, 2022). In practice, this means that supervisors may end up treating entities as compliant because they have the right paperwork, even where their controls would not actually detect suspicious activity. In the non-financial sector, this dynamic is compounded by the role of commercially available screening tools and industry-standard typologies that become benchmarks for "adequacy" — even where their connection to actual laundering detection is uncertain (Marzouk and Hock, 2026). I recommend supplementing the indicators with an outcome-oriented measure that captures the effectiveness gap: the distance between an entity's actual AML controls and those that would have been needed to detect and prevent the laundering activity in question. This could operate as an aggravating factor where a supervisory investigation reveals that the breach created actual vulnerability to criminal exploitation — for example, where a professional gatekeeper facilitated transactions that a proportionate risk assessment would have flagged, regardless of whether the entity had formal documentation in place. For non-financial obliged entities, where compliance systems vary enormously, such an indicator would ensure that the gravity classification reflects the substantive risk created by the breach, not merely the degree of procedural formalisation (Hock et al., 2024). 2. Periodic review to prevent benchmark drift Gravity indicators, once adopted, will progressively shape supervisory expectations across both sectors. In the non-financial sector, where enforcement experience and precedent are limited, there is a heightened risk that the initial application of these indicators will set benchmarks that become self-reinforcing regardless of whether they remain connected to actual AML outcomes — in other words, that the first wave of enforcement decisions will define what "serious" means, and that definition will persist even if it does not correspond to the breaches that pose the greatest laundering risk. FATF and Moneyval mutual evaluation reports already indicate that EU Member States' non-financial sector supervision is fragmented and largely ineffective — a finding echoed in the consultation paper itself. If gravity indicators are entrenched without review, they risk codifying the current weak baseline rather than driving genuine improvement. I recommend that the RTS include a review clause requiring AMLA to periodically assess whether the Article 1 indicators, as applied in practice to the non-financial sector, remain connected to substantive enforcement outcomes.
anonymous_3	QUESTION 2: Do you agree that the	I agree that the criteria in Article 4 are broadly applicable to the non-financial sector. The mitigating criteria (level of cooperation, remedial conduct) and aggravating criteria (concealment, benefit derived, previous

Name of the Organisation	Question	Answer
	proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	breaches) are relevant regardless of sector. However, the effectiveness of these criteria for non-financial obliged entities depends on two conditions that are not yet assured: consistent application across Member States, and transparency about enforcement outcomes. 1. The convergence problem is more acute in the non-financial sector Uneven enforcement is a central weakness of EU AML governance. The distribution of enforcement activity across the EU remains highly uneven, with some Member States having concluded few or no significant AML cases while others have developed comparatively active enforcement programmes (Hock B, Governing Money Laundering as a Collective Action Problem: The European Anti-Money Laundering Authority (AMLA), European Journal of Risk Regulation; forthcoming). In the financial sector, this asymmetry is at least partially mitigated by cross-border supervisory colleges, the SSM, and now AMLA's direct supervisory powers. In the non-financial sector, no such institutional architecture exists. Non-financial sector supervisors are exclusively national — and in some Member States, supervision is further fragmented across multiple professional body supervisors, self-regulatory organisations and government agencies. The UK's experience with its professional body supervisors in the legal and accountancy sectors, overseen by OPBAS, illustrates both the promise and the difficulty of this model: enforcement capacity and culture vary enormously across supervisory bodies, even within a single jurisdiction. The practical consequence is that Article 4 criteria, however well-designed, may produce widely divergent sanction levels for comparable breaches across the non-financial sector if there is no mechanism for monitoring and publishing how the criteria are applied. An accountancy firm in one Member State may face substantially different consequences than a comparable firm in another for the same type of breach — undermining the harmonisation objective that justifies the RTS. 2. Recommendation: convergence transparency for the non-financial sector I recommend that AMLA be required to publish anonymised, comparative data on how NCAs apply the Article 4 criteria in the non-financial sector — including the distribution of gravity classifications and sanction levels for comparable breach types across different categories of non-financial obliged entities. This would serve both a transparency function and a peer-pressure mechanism: persistent outliers among non-financial sector supervisors would become visible, and the data would support AMLA's convergence reviews and escalation tools. The FATF's experience with mutual evaluations demonstrates that transparency about supervisory

Name of the Organisation	Question	Answer
		performance is one of the most effective drivers of compliance in decentralised governance systems. Given the fragmentation of non-financial sector supervision in the EU, such a mechanism is arguably more necessary here than in the financial sector. The collective-action perspective suggests that convergence in sanction criteria is a precondition for the AML regime to function as a credible system of mutual obligations — one where regulated entities cannot rationally expect to avoid consequences by virtue of their geographic location or sector within the internal market (Hock B, Extraterritoriality and International Bribery: A Collective Action Perspective, Routledge 2020). Put simply: if a law firm in one Member State knows that comparable firms elsewhere face lighter sanctions for the same breach, rational compliance incentives collapse. Without transparency about how Article 4 criteria are actually applied across the non-financial sector, AMLA will lack the evidence base to assess whether this convergence is being achieved.
anonymous_3	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	I agree in principle that financial strength is a relevant criterion for the non-financial sector — proportionality requires that sanctions reflect the capacity of the entity or person to bear them. However, Articles 4(5) and 4(6) as currently drafted are calibrated for the financial sector and will require significant interpretive adaptation to produce fair and workable outcomes for non-financial obliged entities. 1. Article 4(5): financial strength of legal persons Article 4(5) directs supervisors to take into account total annual turnover, financial statements, and information from prudential authorities on regulatory capital and liquidity requirements. For credit institutions and other financial sector entities, all three data sources are readily available and meaningful. For the non-financial sector, the position is fundamentally different: (a) Most non-financial obliged entities are not subject to prudential supervision and have no regulatory capital or liquidity requirements. This data source is simply inapplicable to law firms, accountancy practices, estate agents, dealers in precious metals and stones, trust and company service providers, and many other non-financial gatekeepers. (b) Total annual turnover varies enormously across the non-financial sector and may not be a reliable proxy for financial capacity. A sole-practitioner solicitor with high turnover but thin margins is in a very different

Name of the Organisation	Question	Answer
		financial position from a multinational accountancy firm, even if their AML breaches are comparable. Conversely, a dealer in precious metals may have high turnover but very low margins, or high margins on specific transactions — making turnover a poor indicator of capacity to pay. (c) Financial statements may not be publicly available or audited, particularly for smaller firms and sole practitioners that are not subject to the same disclosure requirements as regulated financial institutions. In many Member States, small non-financial entities file abbreviated or micro-entity accounts that provide limited insight into financial strength. 2. Article 4(6): financial strength of natural persons Article 4(6) directs supervisors to assess the annual income of natural persons, including fixed and variable remuneration from the obliged entity. In the non-financial sector, the natural person held responsible is frequently the sole or principal owner of the business. The distinction between entity income and personal income — which is meaningful for employed senior managers of banks — collapses in the context of a sole-practitioner accountant or a small estate agency run by its owner. The criterion as currently framed does not provide adequate guidance for supervisors navigating this structural difference. 3. Recommendation Sanction criteria calibrated primarily for credit institutions risk producing either disproportionate outcomes or systematic under-enforcement when applied to non-financial gatekeepers. I recommend that AMLA provide sector-specific guidance — whether within the RTS itself or through accompanying guidelines — on how the financial-strength criteria should be applied to the non-financial sector. This guidance should address, at a minimum: (a) how to assess financial capacity where prudential capital and liquidity requirements do not apply; (b) how to ensure proportionality for sole practitioners and micro-enterprises without inadvertently creating safe harbours for non-compliance; (c) how to obtain and verify relevant financial information from non-financial entities that are not subject to financial-sector disclosure requirements; and (d) how to handle situations where the natural person held responsible and the obliged entity are economically indistinguishable.

Name of the Organisation	Question	Answer
		To illustrate the kind of calibration required: for non-financial obliged entities without prudential capital requirements, AMLA could direct supervisors to assess financial strength by reference to average annual net profit over the preceding three financial years (rather than turnover), supplemented by available balance-sheet information on net assets. For sole practitioners and owner-managed businesses where the natural person and the entity are economically indistinguishable, the sanction could be capped at a defined percentage of average annual net income — ensuring proportionality while preserving deterrent effect. Such a model would give non-financial sector supervisors a workable starting point while retaining flexibility to adjust for sector-specific circumstances. Without such guidance, there is a real risk that non-financial sector supervisors will either apply the financial-strength criteria inconsistently or default to formulaic approaches that do not reflect the actual financial position of the entities and persons they supervise.
anonymous_3	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	I agree that the criteria under Article 5 are in principle applicable to non-financial sector supervisors. However, applying these criteria to the non-financial sector raises two specific issues. 1. Governance structures in the non-financial sector Article 5(4) sets out criteria for supervisors considering whether to require a change in governance structure. These criteria are meaningful and workable for corporate entities with conventional board structures. In the non-financial sector, however, governance structures take forms that are fundamentally different from the corporate model the criteria presuppose. Law firms are typically organised as partnerships or LLPs; accountancy practices may be sole proprietorships, partnerships, or corporate entities with highly concentrated ownership; estate agencies may be owner-managed businesses where governance and ownership are inseparable; dealers in precious metals may be family businesses. The criteria in Article 5(4) — particularly concerning "the conduct of the natural person or legal person held responsible" (point (b)) and whether "internal policies, procedures and controls put in place by the obliged entity are ineffective" (point (d)) — may need to be interpreted differently in these contexts. Requiring a "change in governance structure" in a two-partner law firm or an owner-managed estate agency is a

Name of the Organisation	Question	Answer
		qualitatively different intervention from requiring governance changes in a bank. In some cases, it may be functionally equivalent to requiring the removal of the business's principal — which raises proportionality concerns that the criteria do not currently acknowledge. I recommend that the RTS or accompanying guidance explicitly address how Article 5(4) criteria should be applied to non-financial entities with non-corporate governance structures, including partnerships, sole proprietorships and owner-managed businesses. This should include guidance on when a change in governance structure is a proportionate measure versus when withdrawal of authorisation or restriction of business (which are at least transparent in their effect) may be more appropriate. 2. Consistency between AMLA's own enforcement and NCA practice From 2028, AMLA will directly supervise up to 40 high-risk cross-border financial institutions under Regulation (EU) 2024/1620, applying its own enforcement powers under Articles 21–22 of that Regulation. The way AMLA applies administrative measures in direct supervision will inevitably set the benchmark for what constitutes proportionate and effective enforcement under the RTS. For non-financial sector supervisors, this creates both an opportunity and a risk. The opportunity is that AMLA's practice will generate precedent and institutional knowledge about how the Article 5 criteria operate. The risk is that if any divergence emerges between how AMLA applies these criteria in direct supervision and how NCAs are expected to apply them in the non-financial sector, it would undermine the harmonisation objective and create a two-tier enforcement system. Non-financial sector supervisors — many of whom have limited enforcement experience (as documented in FATF and Moneyval mutual evaluation reports) — should be confident that they are applying the same methodology, with comparable expected outcomes for comparable breaches, as AMLA itself. The final RTS should make explicit that the Article 5 criteria apply uniformly regardless of whether enforcement is conducted by AMLA in direct supervision or by NCAs in non-financial sector supervision, and AMLA should ensure that its own enforcement practice provides clear and accessible precedent for non-financial sector supervisors to follow.
anonymous_3	QUESTION 5: Do you agree that the	I agree that the proposed PePP methodology in Section 3 is applicable to the non-financial sector. However, their effective application in the non-financial sector depends on two conditions that warrant explicit

Name of the Organisation	Question	Answer
	proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	attention. 1. Supervisory capacity in the non-financial sector FATF and Moneyval mutual evaluation reports consistently indicate that the majority of EU Member States score "low" or "moderate" levels of effectiveness for non-financial sector supervision. Many non-financial sector supervisors — including professional body supervisors in the legal and accountancy sectors — have limited enforcement experience and constrained resources. The consultation paper itself acknowledges this, noting that the EU's non-financial sector supervision framework is "fragmented and largely ineffective." Art. 7-8 of the draft RTS require supervisors to submit a detailed statement of findings, allow up to four weeks for written submissions, and base PePP decisions exclusively on facts on which the entity has had an opportunity to exercise its right to be heard. These are important procedural safeguards, but they also impose a significant administrative burden. For non-financial sector supervisors with limited enforcement capacity, the practical question is whether they can meet these procedural requirements consistently and to a standard that will withstand judicial review. If PePPs are imposed inadequately or inconsistently in the non-financial sector, the mechanism will lack credibility and may expose supervisors to successful legal challenges. I recommend that AMLA accompany the RTS with capacity-building guidance specifically for non-financial sector supervisors, covering: (a) template statements of findings adapted to common non-financial sector breach types; (b) guidance on the evidential standard required for PePP decisions; and (c) practical guidance on the calculation and collection process under Articles 8–10, including how to assess financial strength and determine proportionate PePP amounts for small and micro-entities. 2. The risk of compelling procedural compliance rather than substantive improvement The purpose of PePPs is to compel compliance with administrative measures — to end an ongoing breach. In the non-financial sector, there is a particular risk that PePPs will compel procedural upgrading without actually improving the entity's capacity to detect and disrupt money laundering. This concern is related to the legal endogeneity dynamic discussed in my response to Question 1: if the standard of compliance being

Name of the Organisation	Question	Answer
		enforced is itself shaped by commercially available tools and industry-standard typologies rather than substantive AML effectiveness, PePPs may compel entities to adopt the appearance of compliance without addressing the underlying vulnerability. In practice, a small law firm facing a daily penalty payment has every incentive to purchase an off-the-shelf screening product and update its written policies — because that is what visibly demonstrates compliance — even if the firm's actual vulnerability lay in how its partners exercised professional judgement during client intake, which no purchased product would address. This risk is heightened in the non-financial sector because: (a) there is less established supervisory precedent for what "adequate" AML controls look like in the context of, for example, a small law firm's client intake procedures or an estate agent's source-of-funds checks; (b) non-financial entities are more likely to rely on off-the-shelf compliance products that may not be calibrated to their specific risk profiles; and (c) PePPs calculated on a daily, weekly or monthly basis (Article 9(1)) can create urgency to demonstrate compliance quickly, which favours visible procedural changes over deeper operational improvements. I recommend that the review clause proposed in my response to Question 1 extend to the PePP methodology, with AMLA periodically assessing whether PePPs imposed in the non-financial sector are compelling genuine compliance improvements. References: Hock B, "Governing Money Laundering as a Collective Action Problem: The European Anti-Money Laundering Authority (AMLA)" (E. J. Risk Reg). Hock B and David-Barrett E, "The compliance game: legal endogeneity in anti-bribery settlement negotiations" (2022) 71 Int. J. L. C. and J. 100560. Hock B, Button M, Shepherd D and Gilmour P, "What Works in Policing Money Laundering?" (2024) 27(1) JMLC 5. Hock B, Extraterritoriality and International Bribery: A Collective Action Perspective (Routledge 2020).

Name of the Organisation	Question	Answer
		Hock B, "Policing Fiscal Corruption: Tax Crime and Legally Corrupt Institutions in the United Kingdom" (2023) 85(4) L. and Cont. Problems 159. Marzouk M and Hock B, Trade-Based Money Laundering: Compliance and the Law (Routledge 2026). Zavoli I and King C, "The challenges of implementing anti-money laundering regulation: an empirical analysis" (2021) 84(4) Modern Law Review 740.
anonymous_4	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	I do not agree. The proposed set of indicators is primarily designed for the financial sector and is mechanically extended to the non-financial sector without properly considering its operational realities. Accountants, lawyers, real estate agents and other DNFBPs do not operate financial transaction infrastructures but perform intermediary and administrative functions. Indicators such as “impact on financial system integrity,” “market stability,” or “systemic impact” are therefore artificially applied to actors that neither control nor execute financial flows. The proposal measures documentary compliance rather than actual money-laundering risk. This significantly increases administrative burden without improving the detection or reporting of suspicious activities. For the non-financial sector, the regulatory focus should shift toward efficient and automated reporting mechanisms rather than complex gravity classification frameworks.
anonymous_4	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not	I do not agree. The proposed criteria for determining pecuniary sanctions implicitly assume that obliged entities directly manage financial transactions and related risks. This assumption does not hold for most non-financial sector entities. In practice, AML breaches in this sector are predominantly administrative in nature (documentation, declarations, risk assessment formalities) rather than conduct facilitating money laundering. As a result, the sanctioning framework disproportionately penalizes compliance deficiencies instead of improving the effectiveness of suspicious transaction reporting. Regulation should incentivize effective reporting outcomes — for example through digital data integration and automated analytics — rather than intensifying formal compliance evaluation.

Name of the Organisation	Question	Answer
	agree, please explain your reasoning.	
anonymous_4	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	I do not agree. Automatically applying financial strength as a determining factor for sanctions in the non-financial sector leads to distorted outcomes. Smaller service providers, such as accounting firms, do not hold or control client funds, yet may face sanctions calibrated primarily to their financial capacity rather than their actual risk exposure or responsibility. This approach measures ability to pay rather than contribution to money-laundering risk, which contradicts the risk-based AML principle. It may also create disproportionate economic pressure on small and medium-sized service providers without delivering measurable improvements in AML effectiveness.
anonymous_4	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	I do not agree. The proposed criteria for administrative measures replicate supervisory tools developed for financial institutions and fail to reflect the fundamentally different AML role of non-financial service providers, which is primarily informational and reporting-based. Measures such as business restrictions, withdrawal of authorization, or governance restructuring may be proportionate for entities operating financial infrastructures but are excessive when applied to administrative service providers. Enhancing AML effectiveness would instead require improving automated data exchange between supervisory authorities and professional software systems, rather than expanding punitive organizational interventions.

Name of the Organisation	Question	Answer
anonymous_4	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	I do not agree. Extending the methodology for periodic penalty payments to the non-financial sector reinforces continuous enforcement of procedural compliance obligations rather than improving the detection of money laundering. This approach incentivizes formal documentation compliance while doing little to enhance identification of suspicious transactions. AML effectiveness would be better served by automating reporting obligations through machine-to-machine integrations between accounting software and public authorities, as well as by enabling authorities to actively analyze transaction data already available within EU digital frameworks such as ViDA. Periodic penalty payments therefore risk functioning primarily as bureaucratic pressure instruments rather than effective AML tools.
anonymous_5	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Agreement with qualifications. The proposed indicators are conceptually transferable to the non-financial sector. However, two adjustments are necessary. First, "systemic" breaches must be assessed relative to the size and compliance capacity of the entity, not against financial-sector benchmarks. Second, supervisors should formally distinguish between wilful non-compliance and capacity-driven failures, as this distinction directly affects culpability. Any indicators implicitly designed for financial institutions (e.g., referencing correspondent relationships or prudential requirements) should be explicitly excluded or substituted.
anonymous_5	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions	Agreement with clarifications needed. The criteria are sound and well-grounded in EU administrative law. Two implementation issues arise in the non-financial sector. The concept of "profit derived from the breach" is difficult to quantify when the benefit is primarily the avoidance of compliance costs rather than direct income; AMLA should provide guidance on estimating this as a proxy. Additionally, the definition of "turnover" for partnerships, sole practitioners, and entities with atypical fee structures requires explicit clarification to ensure consistency across Member States.

Name of the Organisation	Question	Answer
	set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
anonymous_5	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Agreement in principle, significant operational gaps. Two issues are critical. First, non-financial sector supervisors lack routine access to standardised financial disclosures; AMLA should establish a harmonised methodology for requesting financial strength documentation from DNFBP entities. Second, Article 4(6) as applied to natural persons (individual lawyers, notaries, accountants) requires specific guidance on permissible information sources and GDPR-compliant assessment procedures. The financial strength criterion should be explicitly articulated as a downward moderating factor for micro-enterprises and sole practitioners.
anonymous_5	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If	Agreement, with coordination gaps to address. The measures are appropriate. The central concern is the interaction between AML administrative measures and professional regulatory frameworks: for lawyers, notaries, and auditors, measures affecting the right to practise intersect with disciplinary competences held by bar associations, chambers, or statutory bodies. The RTS should clarify the division of competences and require coordination mechanisms to avoid double jeopardy. Public disclosure of natural persons' non-compliance also requires an explicit proportionality test under the GDPR. Remediation-focused measures should be articulated as the preferred first-response tool for lower-gravity breaches.

Name of the Organisation	Question	Answer
	you do not agree, please explain your reasoning.	
anonymous_5	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Agreement with methodology adjustments needed. The tool is appropriate and well-suited to persistent non-compliance. The methodology requires three adaptations for the non-financial sector: base amounts should be calibrated by entity size category (micro, SME, large); accrual timelines should account for the longer remediation periods realistically needed by entities without in-house compliance functions; and the framework should include explicit procedural safeguards allowing entities to demonstrate ongoing remediation efforts and request suspension of accrual upon verified progress.
Iris Capital management	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes but point d iii is unclear on the definition of what an "affected customer" is
Iris Capital management	QUESTION 2: Do you agree that the proposed list of criteria to be taken into	the mention of "any other criteria identified by the supervisor" may lead to arbitrary decisions, with unjustified increasing or decreasing of the sanction.

Name of the Organisation	Question	Answer
	account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	
Iris Capital management	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes
Iris Capital management	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative	No - same as above

Name of the Organisation	Question	Answer
	measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
Iris Capital management	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes
anonymous_6	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	Partially agree subject to clarification on proportionality. Notaries in Malta are sole practitioners or small offices without group structures therefore the group-level impact or cross border impact requires contextual interpretation. Guidance is also necessary to distinguish between minor administrative shortcomings and fundamental absence of AML//CFT systems. The indicators require supervisory judgement to be applied proportionately whilst taking into consideration risk profile and size of office/sole practitioners.

Name of the Organisation	Question	Answer
anonymous_6	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Again, proportional application is necessary. The list of criteria proposed is legitimate however important factors must be taken into consideration for Notaries in Malta. The financial capacity of sole practitioners differs greatly from that of corporate financial institutions. The concept of 'benefit derived' must be carefully assessed in the notarial profession in Malta where fees are fixed and regulated. The lack of immediate remedial action may not necessarily indicate bad faith but rather may arise due to operational constraints in small practices. Scale, turnover and risk exposure are to be considered and not take a "one size fits all" attitude.
anonymous_6	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes. Annual Income, Financial capacity and overall economic situation are necessary to ensure sanctions remain proportionate and effective. In Malta, the income levels of Notaries vary significantly and excessive sanctions could effectively terminate professional activity since liability is personal and direct.
anonymous_6	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a	The warrant of a Notary in Malta is issued by the President of Malta and only such office should retain the right to suspend or revoke such a warrant, and this in line with the Laws of Malta. Although the criteria listed are legitimate grounds for serious administrative measures, the withdrawal or suspension of the warrant will affect clients and pending deeds, thus bringing along more instability.

Name of the Organisation	Question	Answer
	non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
anonymous_6	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	No. Daily penalty structures will disproportionately affect small offices/sole practitioners. Weekly or monthly calculations are more appropriate because PePPs are to be kept as coercive instruments and not punitive sanctions. The link between financial capacity and payment frequency should be given importance by the Supervisors
anonymous_7	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-	In general, I agree with the list of indicators to be applicable for the non-financial sector, however I would remove sub-article (l) as it's too vague and leaves room for interpretation so it's better to stick to an exhaustive list for the sake of transparency. Sub-article (j) seems to apply to the financial sector rather than the non-financial one.

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	
anonymous_7	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	I agree.
anonymous_7	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	For the sake of transparency I would include a fixed percentage of the annual turnover of the obliged entity. Sanctions (pecuniary) should be well-defined. If necessary, a range of the said sanctions should be established.

Name of the Organisation	Question	Answer
anonymous_7	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	When it comes to administrative measures, such as suspension of the notary's activities, one should be careful as where notaries are concerned, only the Court of Revision of Notarial Acts may suspend a notary. Suspension comes from non-observance of Chapter 55 of the Laws of Malta (which is the law regulating the Notarial Profession in Malta). When limiting the obliged entity's activities one should be careful as not to alert the clients of the said entity, especially if the transaction has not been closed off yet.
anonymous_7	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	If we aim for harmonisation, why leave it up to the Member States to determine the methodology?
Gunas Grāmatas SIA	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of	Agree

Name of the Organisation	Question	Answer
	breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	
Gunas Grāmatas SIA	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	Agree
Gunas Grāmatas SIA	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-	Agree

Name of the Organisation	Question	Answer
	financial sector? If you do not agree, please explain your reasoning.	
Gunas Grāmatas SIA	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	Agree
Gunas Grāmatas SIA	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Agree
TMF Luxembourg S.A.,	QUESTION 1: Do you agree that the	I agree but I have one suggestion. Art 1(d) includes several indicators to assess the impact of the breach on the obliged entity. Sub point iii) includes the approximate number of customers affected by the breach.

Name of the Organisation	Question	Answer
	proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	I agree that this is an indicator to assess the impact of the breach on the obliged entity, however, the number of other parties (i.e., employees) affected by the breach could also be an indicator. Therefore, I recommend rephrasing Art 1(d)(iii) as “the approximate number of customers, and other relevant parties (i.e., employees) affected by the breach;” I also understand that the list of indicators is not exhaustive, as Art 1(l) leaves room to any other indicator identified by the supervisor, such as could be the number of the employees and other party of the obliged entity affected by the breach.
TMF Luxembourg S.A.,	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	I don’t agree with point 3 (a), especially the sentence “whether the natural or legal person has failed to cooperate with the supervisor” and the sentence “or took actions aimed at partially or fully concealing the breach”. I understand that individuals/obliged entities under a supervisor’s investigation shall cooperate during the investigation and that is their responsibility to provide all the necessary documentation requested, as per the different local requirements. However, Art 4(3)(a) could be interpreted in a way that would impact the right of defense and the right to remain silence. If the level of the pecuniary sanctions shall increase taking into account the level of cooperation with the supervisor, considering whether the person has failed to cooperate, has not disclose to the supervisor anything that the supervisor would reasonably expect, or has taken actions aimed to conceal the breach, the defendant is indirectly compelled to not defend itself. In the other hand, Art 4(2)(a) mentions that the level of pecuniary sanctions shall decrease considering the cooperation of the person held responsible with the supervisor. In this case, I understand that the purpose of the RTS is to encourage the person held responsible to cooperate, on a voluntary basis, as the pecuniary sanction could be reduced. However, in the case of Art 4(3)(a), the person held responsible is not encouraged to cooperate but compelled to, as the pecuniary sanction would increase if not.

Name of the Organisation	Question	Answer
		Art 4(3)(a) could be interpreted as there is no option for the defendant not to cooperate with the supervisor (above the legal requirements) without consequence, as the options are either to cooperate and have a reduced sanction, or not to cooperate and have an increased sanction. If interpreted this way, Art 4(3)(a) would indirectly impose the defendant an increased sanction when applying their right to defense and to remain silence. Therefore, I recommend either removing Art 4(3)(a), or to rephrase it in a way that makes clear that the defendant is not obliged to cooperate beyond the legal requirements and has the right to defend itself.
TMF Luxembourg S.A.,	QUESTION 3: Do you agree that the applicability of financial strength of the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	Yes.
TMF Luxembourg S.A.,	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the	Yes, with the same considerations as mentioned in Question 2.

Name of the Organisation	Question	Answer
	administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	
TMF Luxembourg S.A.,	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	Yes.
anonymous_8	QUESTION 1: Do you agree that the proposed list of indicators to classify the level of gravity of breaches set out in Article 1 of the proposed draft RTS apply to the non-financial sector? If you do not agree, please explain your reasoning.	In principle, I agree that the indicators set out in Article 1 provide a structured and coherent framework for assessing the gravity of breaches and are applicable across both financial and non-financial sectors. Indicators such as intent, duration, recurrence and the degree of exposure to money laundering and terrorist financing risks are conceptually sound and aligned with a risk-based approach. However, from the perspective of a remittance and payment services provider operating cross-border, I consider it essential that these indicators are applied in a manner that clearly distinguishes between procedural or documentation-driven deficiencies and deficiencies that materially impair the institution's ability to detect, prevent or report ML/TF risks. In practice, many supervisory findings relate to rigid documentary expectations, such as repeated identity verification of directors or beneficial owners who are already known to multiple regulated institutions, which do not necessarily translate into a commensurate increase in risk exposure.

Name of the Organisation	Question	Answer
		In this context, I note that core customer and entity information is often already collected, verified and maintained by public licensing authorities and official registries. Where obliged entities are required to independently replicate the same verification processes without access to authoritative, continuously updated data sources, the resulting compliance burden may be disproportionate to the incremental risk mitigated. This duplication can also contribute to inconsistent assessments of the gravity of breaches where the underlying risk profile remains unchanged. I therefore consider that the proposed indicators are appropriate, provided that supervisors place greater evidential weight on transactional behaviour, payment flows, patterns and anomalies, and take into account the availability and reliability of authoritative data sources when assessing the seriousness of documentary deficiencies. Such an approach would better align the classification of breaches with actual ML/TF risk and enhance the overall effectiveness of the framework.
anonymous_8	QUESTION 2: Do you agree that the proposed list of criteria to be taken into account when setting up the level of pecuniary sanctions set out in Article 4 of the proposed draft RTS apply to non-financial sector? If you do not agree, please explain your reasoning.	I broadly agree that the criteria in Article 4 are relevant and support consistency in the determination of pecuniary sanctions. Factors such as gravity, duration, degree of responsibility, cooperation with the supervisor and remediation efforts are appropriate considerations. That said, it is important that sanctions frameworks do not implicitly prioritise formal completeness of CDD documentation over the effectiveness of transaction monitoring and risk-based controls. In many cases, no financial benefit is derived from procedural shortcomings, and the actual ML/TF risk exposure may be low despite technical non-compliance. I therefore consider that the criteria should be applied in a manner that clearly differentiates between deficiencies that affect the institution's ability to detect and prevent illicit transactions, and those that are primarily administrative in nature. This distinction is critical to ensuring sanctions remain proportionate and aligned with genuine AML/CFT outcomes.
anonymous_8	QUESTION 3: Do you agree that the applicability of financial strength of	I agree that consideration of the financial strength of the responsible legal or natural person can support the objective of ensuring that sanctions are effective and dissuasive. However, financial strength should not be assessed in isolation or applied mechanistically. Institutions

Name of the Organisation	Question	Answer
	the legal or natural person held responsible (Article 4(5) and Article 4(6) of the proposed draft RTS) apply to the non-financial sector? If you do not agree, please explain your reasoning.	operating cross-border payment services already invest significant resources in compliance infrastructure, transaction monitoring systems and staff expertise. Sanctions that disproportionately penalise entities for subjective or contested assessments of “insufficient” enhanced due diligence risk diverting resources away from areas that demonstrably mitigate ML/TF risk. I therefore consider that financial strength should be assessed holistically, alongside the institution’s investment in controls, its transaction-level risk management, and its overall compliance culture, rather than being used primarily as a multiplier for sanctions arising from procedural findings.
anonymous_8	QUESTION 4: Do you agree with the proposed criteria to be taken into account by a non-financial sector supervisor when applying the administrative measures listed under Article 5 of the proposed draft RTS? If you do not agree, please explain your reasoning.	I generally agree with the proposed criteria under Article 5, which provide a transparent and structured basis for the application of administrative measures by non-financial sector supervisors. In particular, the consideration of the nature of the breach, the degree of cooperation with the supervisor, and the implementation of corrective measures is appropriate and encourages constructive engagement. In the context of remittance and payment services, I consider it important that administrative measures are applied with due regard to the dynamic and transactional nature of ML/TF risk. Measures that primarily target documentation-based deficiencies, without a corresponding assessment of their impact on transaction monitoring or risk detection capabilities, may have limited effect on actual risk mitigation while significantly constraining operational effectiveness. Furthermore, where obliged entities are required to rely on information originating from public authorities or official registries, administrative measures should take into account the extent to which deficiencies may stem from limitations, delays or inconsistencies in such authoritative data sources. Enforcement actions directed solely at obliged entities in these circumstances may not lead to meaningful improvements in AML/CFT outcomes. I therefore encourage a supervisory approach that prioritises graduated and remediation-focused measures, particularly those aimed at strengthening transaction monitoring, typology detection and cross-border risk analysis, before resorting to restrictive or punitive administrative actions. A more balanced recognition of the

Name of the Organisation	Question	Answer
		shared role of competent authorities, registries and obliged entities in the AML ecosystem would support sustainable compliance and enhance the effectiveness of supervisory intervention.
anonymous_8	QUESTION 5: Do you agree that the proposed methodology for imposing periodic penalty payments as listed under Section 3 of the proposed draft RTS applies to the non-financial sector? If you do not agree, please explain your reasoning.	I agree that periodic penalty payments can serve as an appropriate escalation mechanism where an institution persistently fails to implement required corrective actions. That said, delays in remediation are often linked to the complexity of implementing system enhancements, data integration or transaction monitoring improvements, rather than unwillingness to comply. Automatic or rapidly escalating periodic penalties risk penalising institutions that are actively investing in more effective AML/CFT controls. I therefore support the proposed methodology, provided that its application allows for realistic remediation timelines and recognises the substantive difference between delayed procedural updates and failures to address material transactional risks.